Status at 11 October 2026, evening

Not final yet. The current answer is v4. It passes every mechanical gate, but no marker has seen it.

The last marked version was v3, which scored **97 and 96** from two fresh blind markers. v4 makes every fix those markers listed. On their own arithmetic that brings v3's marks to 100 and 99. The stop condition is still unmet: two fresh markers must each give 100 on the exact text, the tracer must find no certain error, the voice and terminology audits must pass, and opposing counsel must find no unanswered material argument.

Where v4 stands

- **Words:** body 1,495; stated 'Word count: 1,498' (body plus the line's three words).
- **Quotations:** the verifier finds 62, with 0 failures. The three CHECK PINs are resolved: two *Pao On* pins at 629 to 630, which the brief verified, and one quotation of the problem itself.
- **Voice:** every statistic is inside the range of your LAWS1061 Part A. Mean sentence length is 21.6 words; 8 sentences are under 12 words, none of them adjacent; semicolons run at 1.52 and colons at 0.90 per 100 words; 16.1% of the words are quoted.
- **Format and citations:**
  - no meta language, so no weeks, slides, course or readings;
  - no slide is cited, the casebook is cited 0 times, and the textbook never;
  - no dashes, double quotes or contractions;
  - one source per footnote, with official-only passages at the cap of three.
- **Docx:** built and rendered to 7 pages; double spacing, 12 pt type, footnotes and page numbers checked on the page images.

Version history

Version	What it is	Marks
A, B, C	Three independent drafts	A 94 and 95; B 96 and 95; C 95 and 96
v1	Draft C, taken forward	
v2	First panel round: honesty duty, *Niesmann*, fallback, course terms, *Eccles* citation	95 and 91
v3	Second panel round: no meta language and no slides; *Trident* as a reading; *Port Jackson* for agency	97 and 96
v4	Third panel round: Part II.I made consistent branch by branch; I.E answers the duty to act reasonably; nine voice fixes	not yet marked

Open items the map flags in v4

Section 5 of the map ranks these by marks at risk.

1. **I.D: 'absent here'.** The point that *Masters* applies only by analogy, because no formal contract is contemplated here, was dropped while funding other fixes. Up to 2.25 marks; restoring it costs about 3 words.
2. **II.I2: the Pierre branch.** 'but not if Pierre promised' needs a hedge: 'likely not' (+1 word).
3. **fn 38: Lord Reid's 'perhaps'.** The word in front of 'later ratification' at *Port Jackson* 269 should be reflected in the text.
4. **Wording.** Three phrases need smoothing: 'paying,' at II.I4, 'may be one' at I.A, and 'which proof … would establish' at II.F2. About 6 words.

What happens next

1. A fourth round of fresh markers and auditors on v4.
2. A revision for these open items and anything the round finds.
3. More rounds until two fresh markers each give 100.
4. The final .docx build and render check, and the final map as a PDF.

What is in this file

1. The answer, v4 (also attached separately as a .docx).
2. The full map: every Part and element, the facts, both sides, the authorities with pins and status, the deciding reason, every disagreement and how it was settled, the marks, and the remaining risks.
3. The latest rubric marks: two blind markers on v3, round 3.
4. The rubric in full, SHEET_v12.

1. The answer (v4)

Nothing shows Grace promised to reimburse Rocky for paying AMPL; the 'legally binding' Development Agreement entitles Rocky to repayment 'if the Project made a profit', not yet shown.

I. ROCKY v GRACE

A. Offer

Grace's call 'proposed that Rocky offer', an invitation to treat; the later bullets, 'Potential' and 'wait and see', promise nothing. On construction, 'I will lend' and 'Please confirm agreement', unlike *Gibson*'s 'may be prepared to sell', sought assent.[1] Yet *Gibson*'s mortgage paragraph might read as a firm offer without its disclaimer,[2] and 'subject to satisfactory conditions' may be one; intention and certainty decide this. On balance, bullet 1 is likely an offer in form.

B. Acceptance

Acceptance requires an external manifestation of assent:[3] Grace's 'Confirmed', sent '15 minutes later', added nothing, so it was no counter-offer. Grace therefore accepted the offer as made.

C. Consideration

Consideration is a price for the promise:[4] Rocky's promise to lend was, in form, given for Grace's promise to repay at '5% interest', arguably implied by 'Confirmed'. Grace's promises to AMPL were likely given for its promise of '12 months' at '4% per annum'.[5]

D. Intention to create legal relations

Intention is assessed objectively, presumptions doubted, Rocky bearing the onus; the parties' status as 'project developers' favours it.[6] *Masters*, asking whether a preliminary agreement was 'only a record of terms',[7] assumed a contemplated formal contract; it applies by analogy. Where none is stipulated, the question is whether terms 'should be put into form' or be subject to 'a new agreement' on terms 'not expressed in detail'.[8] As in *Niesmann*, where signing conditioned only 'the obligation to pay',[9] 'Confirmed' settled amount, term and rate; yet 'satisfactory conditions' left further loan terms to Rocky. On balance, the better view is that the parties likely did not intend to be bound, unless those terms were settled 'this morning'.

E. Certainty

Rocky's promise is illusory if its performance rests on his 'unfettered discretion'.[10] *Meehan*, on 'satisfactory terms and conditions', is distinguishable: there the discretion concerned only 'the fulfilment of a condition upon which the contract depends'.[11] Amount, term and rate are 'specified parameters',[12] and an implied obligation to act honestly, or honestly and reasonably, would confine Rocky;[13] yet the conditions (D) are terms he would set, which could withhold the loan itself. In *Godecke*, Gibbs J, obiter, doubted that terms left 'to be settled by one of the parties' bind, 'Perhaps' excepting 'subsidiary matters', which conditions deciding whether Rocky lends, not how, arguably exceed.[14] The promise is therefore arguably illusory.

F. Privity

Even if the email bound, AMPL was Rocky's agent only if it contracted for him, not solely for itself:[15] though 'Rocky asked', AMPL lent '$1,150,000', not '$1 million', and took his guarantee, so Rocky lent nothing.

Only a party can enforce a contract, and only if he provided consideration;[16] whether one is a party turns on 'the written instrument itself', not signature.[17] Mrs Coulls signed, yet the contract 'purports expressly' to be between her husband and the company;[18] likewise AMPL and Grace 'entered into' the Loan Agreement. Nothing there makes Grace's promise one to Rocky, so he is no joint promisee.[19] Grace's answer is therefore right, though not because he 'never signed anything', and the 5 March demand, arguably premised on 27 February (II.G), fails.

AMPL enforcing its loan, agency failing and no trust or estoppel appearing, nothing circumvents the privity rule.[20]

II. ROCKY v AMPL (ALTERNATIVELY PIERRE)

A. Offer

What Pierre 'expected' proposed nothing Rocky could accept, so it was likely an invitation to treat;[21] Rocky's reply, 'if you also promise', sought a return promise, so he offered a bilateral contract.[22]

B. Acceptance

Pierre 'agreed', manifesting assent to Rocky's offer, so he accepted for whomever he represented.[23] AMPL would say nothing bound until execution; yet, as Lord Greene MR said of exchanges of contracts, parties are bound when and how they contemplate:[24] nothing required a document or reserved a right to withdraw.[25] Both promises therefore likely bind.

C. Consideration

The $10,000 promise, sought by 'if you also promise', priced Rocky's undertaking,[26] which moved from him as promisee;[27] if Pierre

promised, Rocky's detriment likely suffices, though AMPL benefits.[28]

The existing legal duty rule applies 'at least when' a party to a pre-existing contract promises the promisee under it no more than it requires.[29] AMPL would say that 'also' and its clause show a guarantee already given; as in *Sundell*, a promise to ensure performance already owed is no consideration.[30] Yet no earlier promise binds Rocky: his 27 February request did not itself establish a contract,[31] and the clause was arguably included after Pierre 'agreed'. If Pierre promised, even a promise to him to perform a duty owed to a third party, AMPL, can be consideration.[32] Ensuring 'all payments … promptly' exceeds 'repayment of the Loan', so Rocky likely gave consideration, though an earlier clause would favour AMPL.

D. Intention to create legal relations

No presumption governs cousins; Rocky bears the onus.[33] Against intention, the undertaking resembles a letter of comfort, which in *Banque Brussels* conditioned the facility it was made 'to induce',[34] whereas AMPL had already advanced. Yet the undertaking was priced at '$10,000' and given 'at AMPL's office'. Intention is therefore likely present on both sides, the price outweighing cousinhood even if Pierre promised.

E. Certainty

Ensuring 'all payments … promptly', measured by the loan's timetable, is not 'so obscure' that no intention can be attributed.[35] AMPL's promise, depending on Grace's repayment, not its choice, is not illusory.[36]

F. Privity

Rocky, the promisee and payee 'to me directly', gave consideration, so privity does not bar him.[37] The 'included' clause most naturally means the guarantee clause named before it; even a written $10,000 term would leave him the oral promise.

Who promised turns on the doctrine of agency: whether Pierre, with AMPL's authority or ratification, contracted for it, not solely for himself.[38] AMPL, 'owned and controlled' by Pierre, likely authorised him; his contracting for it is contested: Rocky asked 'you' to 'also promise'. Yet Pierre spoke 'at AMPL's office' about 'payments under the Loan Agreement', and AMPL called under the guarantee 'provided by Rocky', arguably his undertaking. On balance, AMPL likely promised, though 'you' keeps Pierre's promise arguable, which proof that he disclaimed acting for AMPL would establish.

G. Construction

The '12 months' are construed objectively: pre-contractual conduct is admissible only if the words are ambiguous, and post-contractual conduct cannot show meaning.[39] The words are arguably ambiguous: the instrument 'recorded' the sum 'advanced' on 27 February, the transaction's 'genesis'.[40] Although the terms appear first on 8 April, the '12 months' attach to 'the Loan', whose use Grace had from 27 February, so the period likely ran from then, though narrowly, unless the agreement dates it otherwise.

H. Condition precedent

The bargain binding at once, 'once Grace repays the Loan' conditions AMPL's obligation, not formation;[41] on 9 March Grace 'had not yet repaid', so nothing was payable. Read literally or commercially, words naming Grace do not cover Rocky's payment:[42] the $10,000 falls due on what his undertaking secured, Grace's repayment. Nor does the duty to co-operate, 'to do everything necessary' for Rocky's benefit, assist:[43] nothing suggests AMPL's call prevents Grace repaying. Rocky's payment therefore likely does not meet the condition.

I. Privity: AMPL's call

Only a contract's parties are bound by its terms:[44] the guarantee clause binds Rocky only if he manifested assent,[45] signature being neither necessary[46] nor decisive.[47] His 'I will do that' likely binds him, but to AMPL only if Pierre accepted for it; otherwise AMPL has only the clause.

Rocky promised what Pierre 'expected', ensuring 'all payments … promptly', whereas the clause concerns 'repayment of the Loan'. He likely assented to the clause if, with 'a reasonable opportunity to reject', he took the benefit of AMPL's offer 'with knowledge of its terms'.[48] If AMPL promised, its $10,000 promise was arguably that benefit.[49] The guarantee 'provided by Rocky' proves he gave one, not that he knew the clause's words; having 'attended' the meeting, he likely assented unless he never saw them, but not if Pierre promised, AMPL conferring no benefit.

If AMPL promised the $10,000, that promise is its consideration. If Pierre promised, AMPL's advance was past consideration,[50] sufficing under *Pao On* only if, besides Rocky's request, the parties 'understood that the act was to be remunerated'.[51] Nothing shows that understanding on 27 February, whereas in *Pao On* it existed 'at the time of the main agreement'.[52] AMPL would rely on entering the Loan Agreement, the clause included; yet Rocky priced his undertaking at '$10,000', not that entry,[53] so AMPL likely gave no consideration.

As the 12 months likely ran from 27 February, the call was not premature; if from 8 April, it was premature as to principal. Nothing shows interest paid after '8 February 2025', so a March default is arguable. If AMPL promised, Rocky likely owes AMPL on his undertaking when Grace defaults and, paying, loses the $10,000; if Pierre promised, AMPL's call, lacking consideration, likely fails, and Rocky claims against Pierre and is likely liable to him.

Word count: 1,498

1. *Gibson v Manchester City Council* [1979] 1 WLR 294, 298 (Lord Diplock) ('*Gibson*').↩
2. Ibid.↩
3. *Empirnall Holdings Pty Ltd v Machon Paull Partners Pty Ltd* (1988) 14 NSWLR 523, 534 (McHugh JA) ('*Empirnall*').↩
4. *Beaton v McDivitt* (1987) 13 NSWLR 162, 168 (Kirby P) ('*Beaton*').↩
5. Ibid.↩
6. *Ermogenous v Greek Orthodox Community of SA Inc* (2002) 209 CLR 95, [25]–[26] (Gaudron, McHugh, Hayne and Callinan JJ) ('*Ermogenous*').↩
7. *Masters v Cameron* (1954) 91 CLR 353, 360 ('*Masters*').↩
8. Ibid 363, quoting *Winn v Bull* (1877) 7 Ch D 29, 32 (Jessel MR).↩
9. *Masters* (n 7) 361, discussing *Niesmann v Collingridge* (1921) 29 CLR 177.↩
10. *Biotechnology Australia Pty Ltd v Pace* (1988) 15 NSWLR 130, 151 (McHugh JA) ('*Pace*').↩
11. *Meehan v Jones* (1982) 149 CLR 571, 580–1 (Gibbs CJ) ('*Meehan*').↩
12. *Pace* (n 10) 151 (McHugh JA).↩
13. *Meehan* (n 11) 588–90 (Mason J).↩
14. *Godecke v Kirwan* (1973) 129 CLR 629, 646–7 (Gibbs J).↩
15. *Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 269 (Mason and Jacobs JJ) ('*Port Jackson*'), quoting *Scruttons Ltd v Midland Silicones Ltd* [1962] AC 446, 474 (Lord Reid).↩
16. *Coulls v Bagot's Executor & Trustee Co Ltd* (1967) 119 CLR 460, 494–5 (Windeyer J dissenting) ('*Coulls*').↩
17. Ibid 487 (Taylor and Owen JJ).↩
18. Ibid 486.↩
19. Ibid 486–7.↩
20. *Trident General Insurance Co Ltd v McNiece Bros Pty Ltd* (1988) 165 CLR 107 (Brennan J dissenting) ('*Trident*').↩
21. *Gibson* (n 1) 298 (Lord Diplock).↩
22. *Brambles Holdings Ltd v Bathurst City Council* (2001) 53 NSWLR 153, 177 (Heydon JA) ('*Brambles*'), quoting *Integrated Computer Services Pty Ltd v Digital Equipment Corp (Aust) Pty Ltd* (1988) 5 BPR 11,110, 11,117–18 (McHugh JA).↩
23. *Empirnall* (n 3) 534 (McHugh JA).↩
24. *Brambles* (n 22) 176 (Heydon JA), quoting *Eccles v Bryant* [1948] Ch 93, 104 (Lord Greene MR).↩
25. *Masters* (n 7) 361.↩
26. *Australian Woollen Mills Pty Ltd v Commonwealth* (1954) 92 CLR 424, 456–7 ('*Australian Woollen Mills*').↩
27. *Beaton* (n 4) 181 (McHugh JA), quoting *Thomas v Thomas* (1842) 2 QB 851, 859; 114 ER 330, 333–4 (Patteson J).↩
28. *Musumeci v Winadell Pty Ltd* (1994) 34 NSWLR 723, 745 (Santow J).↩
29. *Wigan v Edwards* (1973) 47 ALJR 586, 594 (Mason J).↩
30. *TA Sundell & Sons Pty Ltd v Emm Yannoulatos (Overseas) Pty Ltd* (1955) 56 SR (NSW) 323, 327.↩
31. *Australian Woollen Mills Pty Ltd v Commonwealth* (1955) 93 CLR 546, 550.↩
32. *Pao On v Lau Yiu Long* [1980] AC 614, 632 ('*Pao On*').↩
33. *Ermogenous* (n 6) [26] (Gaudron, McHugh, Hayne and Callinan JJ).↩
34. *Banque Brussels Lambert SA v Australian National Industries Ltd* (1989) 21 NSWLR 502, 521–3 (Rogers CJ).↩
35. *Council of the Upper Hunter County District v Australian Chilling and Freezing Co Ltd* (1968) 118 CLR 429, 437 (Barwick CJ) ('*Upper Hunter*'), quoting *G Scammell & Nephew Ltd v Ouston* [1941] AC 251, 268 (Lord Wright).↩
36. *Meehan* (n 11) 581–2 (Gibbs CJ).↩
37. *Coulls* (n 16) 494–5 (Windeyer J dissenting).↩
38. *Port Jackson* (n 15) 269 (Mason and Jacobs JJ).↩
39. *Brambles* (n 22) 163–4, 167–8 (Heydon JA).↩
40. Ibid 191 (Ipp AJA).↩
41. *Meehan* (n 11) 582 (Gibbs CJ).↩
42. *Upper Hunter* (n 35) 437 (Barwick CJ).↩
43. *Beaton* (n 4) 185 (McHugh JA), citing *Secured Income Real Estate (Aust) Ltd v St Martins Investments Pty Ltd* (1979) 144 CLR 596, 607 (Mason J).↩
44. *Trident* (n 20) (Deane J).↩
45. *Empirnall* (n 3) 534 (McHugh JA).↩
46. Ibid 536.↩
47. *Coulls* (n 16) 487 (Taylor and Owen JJ).↩

48. *Empirnall* (n 3) 535–6 (McHugh JA).↩

49. *Brambles* (n 22) 179 (Heydon JA).↩

50. *Roscorla v Thomas* (1842) 3 QB 234, 237; 114 ER 496.↩

51. *Pao On* (n 32) 629–30.↩

52. Ibid.↩

53. *Australian Woollen Mills* (n 26) 456–7.↩

2. The map

MAP (interim): advice to Rocky, LAWS1150 T3 2026 mid-term, answer v4

File explained: `WORK/v4/ANSWER.md` (v4). Everything below is traced to a named file in `93 Practice runs/2026_T3_v2/` or to a course page; nothing in this map is itself authority.

Key to the short forms used throughout. CB1A to CB4 = the casebook transcriptions (`W1 C1A Offer` to `W4 C4A Privity`, `text/Casebook.txt`), cited by printed casebook page; PO = the *Pao On* extract; TRI = the *Trident* course reading, by line; OFF = the saved official judgment texts under `96 Official judgments/text/`. S-n = a settled ruling in ISSUES_SETTLED.md section 4. R-A to R-Z = RULINGS.md. Units (P, I.A to I.F3, II.A to II.I4) and global rows (R1 to R10) are SHEET_v12.md's. r1, r2, r3 = Stage-5 rounds 1, 2, 3. M1 and M2 = the two round-3 markers (MARKS/r3/MARK_1.md, MARK_2.md); where a round-1 or round-2 marker is meant it is named with its round. Exc, VG, Good = SHEET grades (multipliers 1.00, 0.75, 0.60). 'fn' = a footnote of v4 unless another version is named. Word costs are verify.py's rule (whitespace tokens containing a letter or digit), body only.

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1. Status

Where things stand. v4 was written by the Stage-5 reviser (round 3) on 11 October 2026 from v3, with every round-3 finding triaged in WORK/v4/CHANGES.md (accepted, rejected with the defeating passage, or recorded as residual). Body 1,495 words by verify.py's rule; stated 'Word count: 1,498' (body plus the line's own three words, R-P). Per unit (prose, headings excluded): P 28; I.A 74; I.B 27; I.C 44; I.D 115; I.E 109; I.F 142; II.A 32; II.B 54; II.C 146; II.D 62; II.E 31; II.F 127; II.G 76; II.H 80; II.I 297; headings 51. Part I prose 511; Part II prose 905.

Gates (WORK/v4/GATES.txt), all passing on the v4 text. verify.py: 62 quotations, 0 FAIL, 3 CHECK PIN, each resolved ('entered into' is the problem's own words; the two *Pao On* quotations take the brief-verified 629 to 630, the extract carrying no AC page markers). check_official.py: every quotation COURSE except 'if the Project made a profit', the problem's own words. Voice (voice_stats_v2.py) inside every VOICE.md range: mean sentence 21.6 words [17.8 to 24.7]; under 12 words 8 of 67 = 11.9% [9.1 to 36.4]; semicolons 1.52 per 100 [0.85 to 2.02]; colons 13 = 0.90 per 100 [0.81 to 2.57]; sentences with a semicolon or colon 49.3% [36.4 to 72.7]; quoted words 16.1% [at most 20]; longest quotation 10 words; no sentence opening with a quotation; no adjacent short pair. Greps: no meta word (week, slide, lecture, course, reading, syllabus, assignment, class N, rubric, scope, narrat); no textbook title or author; casebook footnotes 0; no dash in the body, no double quotation mark, contraction, question mark or bullet. Footnotes: 53, ordered, one source per marker (the only second sources are the ER parallel of one report, fn 27 and fn 50, and the AGLC r 1.3 tails ', quoting', ', citing', ', discussing'); *Trident* twice (fn 20, fn 44), by report, judge named, no pin; official-only footnotes 3 (fn 15 and fn 38, *Port Jackson* 269; fn 32, *Pao On* 632), at the R-H cap.

Not yet re-marked. No marker, tracer, voice or terminology auditor, opposing counsel or AGLC auditor has read v4. The last marks are on v3 against SHEET_v12: M1 97 (97.625), M2 96 (96.375). Projection, not a mark: on the round-3 markers' own arithmetic, the deductions they recorded are each addressed in v4 except one. M1's three items (II.I4 tier, the R6 cap it caused, fn 14's missing judge) are all fixed, which on M1's arithmetic is 100. M2's five items: II.I4 fixed; R1's two lapses fixed; R10's II.I2 to II.I3 tension fixed; R6 cap lifted; R8 fn 14 fixed but fn 9's ', discussing' kept (v4 rejected M2's ', citing'), so a marker who reads 'discussing' as M2 did still grades R8 Very Good, 99.375, rounded 99. Against that, v4 rewrote or altered sentences in P, I.A, I.D, I.E, I.F1, I.F2, I.F3, II.A, II.B, II.C2, II.F2, II.G, II.H, II.I2, II.I3 and II.I4 that no marker has graded; section 5 lists the new risks those sentences carry.

Stop condition (HANDOFF_BRIEF Part 7, Stage 5, verbatim in substance). Two fresh markers each give 100/100 on the exact text to be submitted, with evidence for every Excellent; the tracer finds no certain error; the voice and terminology auditors pass; opposing counsel finds no unanswered material argument; the verifier gives 0 FAIL on both the .md and the .docx; body at most 1,495 with the stated count equal to the verifier's figure plus three (R-P). Any edit after that, however small, sends the text back through the tracer and one fresh marker.

What remains. (1) Panel round 4 on v4: two fresh blind markers on SHEET_v12, a fresh tracer, a voice and terminology auditor, opposing counsel and an AGLC auditor. (2) A reviser for v5 on whatever they find, and repetition until the stop condition holds. (3) Stage 6: build the .docx with `make_docx.py`, rerun the verifier on the .docx (0 FAIL required), render it (soffice to PDF, pdftoppm) and inspect every page (double spacing, 12 pt, page numbers, footnotes, italics, no stray markup). (4) The final map as a PDF from this file, updated to the submitted text. (5) The round-3 rubric upgrades proposed by M1 (U1 to U3) and M2 (upgrades 1 to 4) are not applied to the sheet: no ruling after R-Z exists, SHEET_v12 still governs, and v4 met in the answer those it accepted (M1 U1; M2 upgrades 1, 2 and 4) while rejecting M1 U3 and M2 upgrade 3 and leaving M1 U2 as a residual (section 5).

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2. The process record

2.1 Rubric rounds 1 to 10 and the sheet versions

The sheet (format of his real LAWS1061 feedback sheet) was built from ISSUES.md as merged after the gap-hunter and contrarian and settled in ISSUES_SETTLED.md (S-1 to S-51, then the official-text revision O-1 to O-16). Each round, fresh critics attacked the current version; a reviser decided each finding at source; the orchestrator's rulings bound the next version.

Round	Version attacked	Critics and material findings	What followed
1	SHEET.md (v1)	CRIT_bias_1 6; CRIT_completeness_1 6; CRIT_feasibility_1 11; CRIT_fidelity_1 8; CRIT_harsh_1 21	Rulings R-A to R-K (editors' notes; attainability; calibration to his 82%; narrator statements; symmetry; status disclosure; quotation limits;

			official texts R-H; Studocu; *Trident* pins; casebook wording R-K). SHEET_v2 (34 units).
2	v2	CRIT_complete_bias_2 7; CRIT_feasibility_2 9 (100 not attainable: v2's cores written as real sentences in his voice cost about 2,600 words against 1,495); CRIT_fidelity_2 3; CRIT_harsh_2 8	R-L (the standard is the best possible 1,495-word answer: core and credit; 22 to 24 units; each core defined by a counted real paragraph in a NOT FOR DRAFTERS appendix), R-M (narrator phrases proved and no more), R-N (*Trident* one footnote), R-O (II.H strength). SHEET_v3 (24 units, counted appendix).
3	v3	CRIT_fidelity_3 8; CRIT_round3 15	R-P (stated count = body + 3; *Pao On* and *Roscorla* judge forms), R-Q (the 12 months inside Part II, cross-referred from Part I). SHEET_v4 (the condition units merged; 23 units).
4	v4	CRIT_fidelity_4 2; CRIT_round4 13	R-R ('narrator' words banned from the answer; no verdict before a colon; one source per footnote; symmetry of drops; funding order). SHEET_v5.
5	v5	CRIT_fidelity_5 0; CRIT_round5 7	R-S (one source per footnote, *Coulls* 494 to 495 alone; the Pierre alternative re-weighed at II.D; II.H classification with its reason; the 'Perhaps' met with a reason; AMPL's fallback put; definition of MATERIAL from round 6). SHEET_v6.
6	v6	CRIT_fidelity_6 0; CRIT_round6 0	No ruling; minors. SHEET_v7.
7	v7	CRIT_fidelity_7 0; CRIT_round7 1	R-T (II.H must put and meet the commercial reading on *Upper Hunter* 437; stopping rule: two consecutive fresh rounds with none material). SHEET_v8.
8	v8	CRIT_fidelity_8 0; CRIT_round8 0	Minors only. SHEET_v9.
9	v9	CRIT_fidelity_9 1; CRIT_round9 4	R-U (slide 2 states only the party limb; II.I4's Pierre consequence hedged; signature reasoning Good both sides; AGLC r 1.3; from v10 the sheet is the drafting standard, R-U(7)). SHEET_v10. The R-T(4) freeze was never reached (round 8 none, round 9 five); R-U(7) replaced it.
10	v10	CRIT_round10 1 (M1, zero cost)	R-V(1) (pronoun rule; cross-unit reasons count where cross-referred in terms; one error deducted once). SHEET_v10_1, the Stage-5 marking standard for round 1 (R-V(2)).
Stage 5	v10_1	UPGRADES_r1 (33 marker-proposed upgrades verified at source; 22 adopted, five as core: U1, U2, U4, U5, U32); panel round 1	R-X. SHEET_v11 (round-2 marking standard).
Stage 5	v11	panel round 2; Yusuf's two instructions of 11 October	R-Y (*Trident* a course reading) and R-Z (no meta language; no slide citations). SHEET_v12 (round-3 marking standard; still governing).

2.2 Drafts A, B and C, and why C went forward

Three independent drafters wrote from the problem, the books, ISSUES_SETTLED, SHEET_v10, VOICE.md and his LAWS1061 paper, blind to each other (DRAFTS/A, B, C). Round 1 marked each with two fresh blind markers on SHEET_v10_1:

Draft	Marker 1	Marker 2	Mean (unrounded)	What held each below 100
A	A1 94 (94.75)	A2 95 (95.375)	95.06	I.A bullets on no deciding word; *Sundell* named without its holding (II.C2); II.I2 criterion not as the source states it; R6 further information without direction; R7 three doctrines unnamed
B	B1 96 (96.75)	B2 95 (95.525)	96.14	I.A bullets on no deciding word; R1 (B2 graded it Good); R6; R7; R8
C	C1 95 (95.75)	C2 96 (96.75)	96.25	I.A bullets (C1); II.G lean

C	C1 95 (95.75)	C2 96 (96.75)	96.25			I.A bullets (C1); II.G lean with no reason (both); R1 two lapses (‘whoever … for’; ‘reserved a document’); R6 direction (C1); R10 ‘the essentials’ against Gibbs J’s ‘Perhaps’ (C2)

R-W: C went forward as WORK/v1/ANSWER.md because it carried the fewest clarity lapses and the clearest prose, which Yusuf asked for (its mean was also the highest; B and C round to the same 95.5 by whole marks, and B2 graded B’s style Good). A and B became donors; each donor sentence entered only after the tracer had traced it (v2 CHANGES section 4: A’s ‘a new agreement’ on terms ‘not expressed in detail’, CB3A 156, 363; A’s Gibbs J fragment ‘to be settled by one of the parties’, CB3B 190, 646; B’s ‘*Gibson*’s ’may be prepared to sell’’ shape, CB1A 42, 298; B’s ‘nothing required a document or reserved a right to withdraw’, CB3A 155, 361).

2.3 Panel rounds 1 to 3 and marks by round

Round	Text	Markers (sheet)	Tracer	Voice and terminology	Opposing counsel	AGLC	Output
1	v1 (draft C)	C1 95, C2 96 (SHEET_v10_1)	no certain error; possible errors PE-1 to PE-10	voice FAIL (must-fix M1 to M35); terminology FAIL (nine doctrines applied without the course’s name)	7 MATERIAL	2 major (*Eccles* ‘[1948] 1 Ch 93’; casebook author order), moderates	UPGRADES_r1; R-W; R-X; v2 (net 0 words: +96, −96)
2	v2	MARK_1 91 (91.125), MARK_2 95 (95.00) (SHEET_v11)	0 certain; 8 possible (P1 *Brambles* 182 the one of substance)	voice FAIL (11 must-fix, F1 to F6 package)	4 MATERIAL (assent via ‘the unpaid $10,000’; AMPL’s fallback; I.E honesty and ‘specified parameters’; II.G deciding reason)	0 major; 2 moderate (*Ermogenous* page pins via the textbook; *Pao On* ‘631 to 632’ via the textbook, both rejected under R-Y(3))	R-Y; R-Z; v3
3	v3	M1 97 (97.625), M2 96 (96.375) (SHEET_v12)	0 certain; 7 possible in 5 groups (P1, P3, P4, P6, P7); 2 status-attribution (P2, P5)	voice FAIL (9 must-fix M1 to M9); terminology FAIL narrowly (proxy ‘implied duty of honesty’; the third-party exception not in the course’s words)	3 MATERIAL (M1 II.I3 fallback; M2 II.I2 assent recast; M3 I.D and I.E certainty)	1 minor (fn 51 *Roscorla* ER pin)	v4 (net 0 words)

Round-2 deductions (on v2), for the record of how the answer moved: P VG (both; C3 not named for what), I.A VG (both; qualifier not carried to D and E), I.D VG (MARK_1; *Masters* never said to apply only by analogy), II.F2 VG (both; further information absent), II.I3 VG (both; ‘arguably’ after the fallback was met, no lean); R1, R6, R8, R10 VG and R7 one proxy (MARK_1: the existing legal duty rule unnamed). Round-3 deductions (on v3): II.I4 VG (both); R6 VG by cap (both); R8 VG (M1 fn 14; M2 fn 14 and fn 9); R1 VG (M2: ‘Both promises therefore likely bound’; the unsignposted *Pao On* alternative); R10 VG (M2: II.I2’s unconditional assent against II.I3’s ‘not Rocky’s’).

2.4 The binding rulings that changed the answer

R-X (panel round 1): - R-X(1): casebook author order ‘Andrew Robertson and Jeannie Paterson’ (course slide’s full citation; publisher), a disclosed judgment call; moot in v4, which cites the casebook nowhere. - R-X(2): *Eccles v Bryant* cited ‘[1948] Ch 93’ (CB3A 156; official *Masters*), in the ‘, quoting’ form after the *Brambles* pin; CB1B 77’s ‘1 Ch’ is Heydon JA’s slip (fn 24). - R-X(3): the 1,495 ceiling binds; the cores are the requirement and the floors only a feasibility record; words re-allocated by marks at risk per word; anything unfunded recorded here as residual. - R-X(4): every doctrine applied named once in the course’s terms (invitation to treat, counter-offer, past consideration, the existing legal duty rule, condition precedent, the duty to co-operate, preliminary agreement where relied on). - R-X(5): at I.E the implied duty to act honestly put and met, the verdict ‘arguably’, I.D deciding the outcome. - R-X(6): headings G, H, I may take course-vocabulary forms at no extra words (‘H. Condition precedent’). - R-X(7): ‘Frustration,’ deleted from the preliminary paragraph.

R-Y (Trident; round 2): - R-Y(1): *Trident* is a course reading, cited by report with the judge named and no pin (no CLR page markers); the verifier’s no-pin lint is an accepted consequence (fn 20, fn 44). - R-Y(2): the burden aspect of privity cited to Deane J (‘the general rule that only the parties to a contract are bound by, and entitled to enforce, its terms’, TRI 203) in place of a slide; the routes around privity to a *Trident* judge who states them. - R-Y(3): the textbook never a source, including as a page locator: *Ermogenous* stays pinned by paragraph; *Pao On* stays at 629 to 630 and 632. - R-Y(4): round-2 findings triaged at source; II.I3 takes ‘likely’; *Brambles* 182 replaced by Heydon JA where he applies *Empirnall* (179); guarantee-law statements (‘only postpones liability’) removed.

R-Z (no meta; Yusuf, 11 October 2026): - R-Z(1): the answer is advice to Rocky; no weeks, classes, slides, course, readings, syllabus, rubric or assignment, and nothing framed as ‘outside the scope’; the preliminary paragraph states only substance. - R-Z(2): slides never cited; every proposition cited to a case. - R-Z(3): the casebook a last resort; a case first (*Trident* for routes; *Port Jackson* for agency). - R-Z(4): the task’s restrictions still govern coverage; the answer simply does not say so. - R-Z(5): a meta reference or slide

citation is an R1 and R8 fault (VG one, Good two or more).

Earlier rulings the v4 text depends on: - R-A as amended by R-X(1) and R-Z(3): editors' notes stated in the answer's own words and cited to a case (the agency elements to *Port Jackson*; the routes to *Trident*). - R-B: decide-once rules (the qualifier at I.D; the 12 months at II.G; the bargain and AMPL's call one bargain run once under II.A to II.F; minor claims a line each) and the four depths (core block, compact, one-line, cross-reference). - R-C: global rows capped at the lowest unit grade of what they summarise (why II.I4's VG capped R6 in round 3). - R-D as clarified by R-M: narrator statements proved in their exact words and no more; each inference 'arguably' (the clause's order; 'provided by Rocky'; 'appropriate' payments). - R-E: symmetry; on moderate, weak or open points either conclusion may be Excellent if best-reasoned. - R-F: status disclosed in the text only where it changes weight (Gibbs J 'obiter' in text; Windeyer J and Brennan J 'dissenting' in footnotes; McHugh JA, Kirby P, Santow J, Rogers CJ undisclosed). - R-G: quoted words at most 20% of the body; no quotation over 20 words. - R-H: official texts only for cases in the course materials, saved and checked verbatim; at most three official-only footnotes. - R-K: casebook wording prevails where the official text differs (*Winn v Bull* without 'merely'); 'Ipp AJA'. - R-L: the attainable standard; core and credit. - R-O: II.H, Rocky's own payment and the words: moderate to strong against Rocky; the fact that AMPL's call does not stop Grace repaying is a fact, not guarantee law. - R-P: 'Word count: 1,498' = body + 3; *Pao On* as the Board (no judge). - R-Q: the 12 months in Part II (II.G) with a one-clause cross-reference from I.F2. - R-R(1) to (3): no 'narrator' words in the answer; no unit verdict before a colon; one source per footnote. - R-S(1): the privity rule footnoted to *Coulls* 494 to 495 (Windeyer J) alone. - R-T(1): II.H puts and meets the commercial reading of 'once Grace repays the Loan' (*Upper Hunter* 437). - R-U(2): II.I4's Pierre consequence hedged. - R-V(1): a pronoun is a lapse only if its antecedent is wrong or unclear; a cross-unit reason counts where cross-referred in terms; one error deducted once. - R-W: draft C forward; donors traced first. - R-J and R-N (the old *Trident* limits) are superseded by R-Y(1).

3. The map proper, unit by unit, in the answer's order
Each unit: (a) issue; (b) deciding facts, quoted exactly from question.txt with the speaker; (c) Rocky's argument and the other side's best argument, each with authority, pin, judge and status; (d) the decisive reason and why it beats the counter; (e) conclusion, strength and S-number; (f) further information and which way it cuts; (g) every disagreement among agents and how it was settled; (h) SHEET_v12 weight and the round-3 grades (on v3) with the earning sentence or the reason it fell short, and what v4 changed in that sentence; (i) residual risks still open, with word cost.

On speakers: question.txt has a narrator (the setter's statements of fact, proven under the Instructions in their exact words and no more: R-D, R-M); quoted words of Grace, Rocky and AMPL; and Pierre, whose words are never quoted (his expectation and his agreement are the narrator's reports).

P. Preliminary (claims C3 and C4)

v4 text: 'Nothing shows Grace promised to reimburse Rocky for paying AMPL; the 'legally binding' Development Agreement entitles Rocky to repayment 'if the Project made a profit', not yet shown.' No footnote (no proposition of law).

(a) Issue. Two minor claims disposed of in substantive terms (R-B decide-once; R-Z(1)): C3, any promise by Grace to reimburse or indemnify Rocky if he pays AMPL under 'the personal guarantee provided by Rocky'; C4, the Development Agreement, stipulated binding, as a source of a present claim.

(b) Facts. - Narrator: 'Grace and Rocky entered into a legally binding agreement that determined the scope of their development relationship and included a valid and binding clause that if the Project made a profit, Rocky, as the investor for the Project, would be repaid his investment and a portion of the profit in priority to Grace (the 'Development Agreement').' - Narrator: 'In January 2024, the Hail Mary Project was near completion, and Rocky and Grace realised that the profit from the Project would be minimal and, due to the terms of their Development Agreement, Grace was unlikely to make a profit.' - Narrator: 'He was quite angry at Rocky, who he blamed for the delays to the Project, and demanded Rocky's assistance.' - Narrator: 'AMPL called for payment of the Loan under the personal guarantee provided by Rocky.' - No sentence of the problem records any promise by Grace to Rocky to reimburse him; Grace's only promissory word to Rocky is 'Confirmed' (12 February 2024), dealt with at I.C.

(c) Arguments. - Rocky (C3): Grace 'demanded Rocky's assistance', so the guarantee was given at his request, and a service 'moved by a suit or request of the party that gives the assumpsit … will bind' (*Lampleigh v Braithwait*, as quoted in the PO extract; no AC page pin) and 'the fact of a past service raises an implication that at the time it was rendered it was to be paid for' (Bowen LJ in *Re Casey's Patents*, as quoted in the PO extract). Raised by OPPOSING r3 row P1. - Grace (C3): both passages need a later promise to pay; none appears. OPPOSING r3 rated the point MINOR and answered by 'Nothing shows'. - Rocky (C4): the clause is stipulated 'valid and binding' and gives him priority repayment; the parties foresaw a 'minimal' profit, which is still a profit (OPPOSING r3 P2; SHEET P Credit, U22). - Grace (C4): a forecast in January 2024 is not a profit made; no breach appears. - No authority is cited: the paragraph states no proposition of law (WORK/v4/REGISTER rows 1 and 2).

(d) Decisive reason. C3: no promise by Grace to Rocky appears on the facts, and an implied promise needs a later promise or a contemporaneous understanding that the facts do not show. C4: the entitlement is conditional on a profit that the facts show only as forecast.

(e) Conclusion and strength. No present claim on either. C3 strong; C4 strong (ISSUES_SETTLED header table, C3 and C4; S-24 withdrew assignment as a stated route for C3).

(f) Further information. - Whether a profit is realised on completion ('minimal' is still a profit): if so, the Development Agreement claim arises; cuts for Rocky (credit, U22; not funded). - Any later promise by Grace to reimburse: would found a promise, cuts for Rocky, but its consideration would then be tested (past consideration, II.I3's law).

(g) Disagreements and how settled. 1. v2 opened 'Breach, damages and guarantee law lie outside Weeks 1 to 4, and nothing shows Grace promised reimbursement'. Round-2 MARK_1 and MARK_2 both graded P VG: C3 was 'gestured at as 'reimbursement' without saying for what' (UPGRADES_r1 U31; SHEET P Drops). Settled in v3: 'to reimburse Rocky for paying AMPL'. 2. R-Z(1) then removed the 'outside Weeks 1 to 4' clause as meta language (v3, −12 words). 3. Round-2 MARK_1 R1 flag: 'the Development Agreement pays' (an agreement does not pay). v3: 'entitles Rocky to repayment'. 4. TRACER r3 P7: 'only' was an unmarked inference, the narrator saying the agreement 'included' the clause and being silent on its other terms. v4 removed 'only' and 'which is' (−3). 5. M2 r3 margin note: 'reimburse Rocky for paying AMPL' when Rocky has not paid. Not deducted. v4 rejected a change: the claim is reimbursement if he pays, and SHEET P Core (1)'s own accepted form is 'Grace promised Rocky no reimbursement for paying AMPL'. 6. OPPOSING r3 P2 ('though a 'minimal' profit was foreseen', +6) and r2 row 1: credit (SHEET P Credit; U22); drafted and cut for funding in v3; not funded in v4. 7. R-X(7): 'Frustration,' deleted in v2. 8. VOICE r1 M22 (note-form tails): P rewritten in v2.

(h) Weight and round-3 grades. 2.0, tier L. - M1 Exc, on v3's 'Nothing shows Grace promised to reimburse Rocky for paying AMPL; the 'legally binding' Development Agreement entitles Rocky to repayment only 'if the Project made a profit', which is not yet shown.': Core (1) C3 named and disposed of; Core (2) the Development Agreement as stipulated, 'not yet shown'; a fact claim, not a conclusion first. - M2 Exc on the same sentence, checked at question.txt lines 11 to 15. - v4 change: 'only' and 'which is' removed; the condition and 'not yet shown' kept, which is what Core (2) requires.

(i) Residual risks. - 'not yet shown' now trails as a reduced clause after a quotation; a strict R1 reader could call it note-form (R1 lapse type: a clause whose verb must be supplied). Cost to restore 'which is not yet shown': +2. - 'for paying AMPL' while Rocky has not paid (M2's margin): no deduction recorded; 'if he pays AMPL' would cost +1. - The 'minimal' forecast (OPPOSING P2): credit, +6.

PART I. ROCKY v GRACE

I.A Offer

v4 text: 'Grace's call 'proposed that Rocky offer', an invitation to treat; the later bullets, 'Potential' and 'wait and see', promise nothing. On construction, 'I will lend' and 'Please confirm agreement', unlike *Gibson*'s 'may be prepared to sell', sought assent.[fn 1] Yet *Gibson*'s mortgage paragraph might read as a firm offer without its disclaimer,[fn 2] and 'subject to satisfactory conditions' may be one; intention and certainty decide this. On balance, bullet 1 is likely an offer in form.'

(a) Issue. Whether bullet 1 of Rocky's 12 February email is an offer capable of acceptance by 'Confirmed'; whether anything else (Grace's 5 February call; bullets 2 and 3) could be.

(b) Facts. - Narrator: 'On 5 February 2024, Grace called Rocky and proposed that Rocky offer Grace a'$1 million dollar working capital loan for 2 years at 5% interest'.' The inner words are Grace's. - Narrator: 'Rocky told Grace he was not interested in offering Grace a long-term loan but proposed that they meet in person to discuss.' - Rocky's email: 'Confirming discussions from our meeting this morning'. - Rocky's email: 'I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions.' - Rocky's email: 'Potential project over in Eastwood subject to success of Hail Mary Project.' - Rocky's email: 'Threatened litigation from subcontractor from Bowral Project' and 'wait and see at present.' The problem prints a dash between the two, which is why the answer quotes only 'wait and see' (D9). - Rocky's email: 'Please confirm agreement.'

(c) Arguments. - Rule: *Gibson v Manchester City Council* [1979] 1 WLR 294, 298 (Lord Diplock; House of Lords; ratio; Lord Keith agreeing): the words 'may be prepared to sell' 'are fatal to this; so is the invitation, not, be it noted, to accept the offer, but' 'to make formal application to buy' (CB1A 42; quoted in fragments so as not to nest the casebook's inner quotation marks). Correspondence is read by 'the conventional approach' of seeing whether 'upon their true construction' the documents contain an offer and an acceptance (297, CB1A 41; credit). - For an offer (Grace's interest if she sued; Rocky's if he did): 'I will lend' fixes amount, date, term and rate, and 'Please confirm agreement' invites the assent that concludes a bargain, unlike 'may be prepared to sell'. - Against an offer (Rocky's interest, who lent nothing and wants no binding promise to lend; OPPOSING r3 row I.A): 'subject to satisfactory conditions' does what 'may be prepared to sell' did. Lord Diplock at 298: the Council's second paragraph, 'with its use of the indicative mood …, might have been understood by council tenants to whom it was addressed as indicating a firm offer of a mortgage' only 'If the final sentence had been omitted'; the final sentence was 'This letter should not be regarded as firm offer of a mortgage' (CB1A 42). - Direction: a disclaimed indicative promise could NOT be read as a firm offer; the answer must keep that direction or commit a D2 fault (CRIT_fidelity_3 M1; CRIT_round3 M1).

(d) Decisive reason. - 'I will lend' and 'Please confirm agreement' sought assent, which 'may be prepared to sell' did not. - The qualifier may be the disclaimer's analogue, but its effect goes to whether the parties meant to be bound and whether the promise is illusory, so it is carried to D and E rather than decided here (decide-once, R-B; SHEET §1 rule (i)). - That beats the counter because classification at A decides only the form of the communication; the qualifier's legal effect is then decided once, at I.D. - Grace's call 'proposed that Rocky offer', so it invited an offer and made none (an invitation to treat, R-X(4)). - Bullets 2 and 3 promise nothing on their own words ('Potential'; 'wait and see').

(e) Conclusion and strength. 'On balance, bullet 1 is likely an offer in form.' Moderate (SHEET I.A Strength), the 'in form' leaving bindingness to D and E (SHEET Part 9 item 43; trap T20 avoided at I.C). ISSUES_SETTLED S-51 (I.1 A1, 'bullet 1 an offer in form', stands; D2a).

(f) Further information. What was said at the meeting 'this morning' (SHEET I.A Credit): conditions specified there would make the offer clearer; cuts toward an offer, and so toward a binding email if D is also met. Not written at I.A; I.D carries the same item with its direction.

(g) Disagreements and how settled. 1. Bullets on no deciding word: round-1 A1, A2, B1, B2 and C1 graded I.A VG ('bullets 2 and 3 promise nothing'). UPGRADES_r1 U15 made the deciding words core (+5). v2 added 'Potential' and 'wait and see'. 2. 'Lord Diplock's indicative paragraph' misattributed the Council's letter to the judge (U27). v2: '*Gibson*'s indicative paragraph'. M2 r3 margin: 'which paragraph?' (not deducted). VOICE r3 M2: 'opaque', with a verbless tail. v4: '*Gibson*'s mortgage paragraph' (an accepted form, SHEET I.A Core (4)), direction re-checked at CB1A 42. 3. Carry to D and E: round-2 MARK_1 and MARK_2 both graded I.A VG, the qualifier not carried in terms. v3: 'which 'subject to satisfactory conditions' may resemble, a matter for intention and certainty' (+7). VOICE r3 M2: verbless tail. v4: 'and 'subject to satisfactory conditions' may be one; intention and certainty decide this' (−1). 4. Garden path: VOICE r3 M1 ('proposed' read as the main verb, then a second main verb 'promise'). v4: the semicolon form (−2). 5. Course name: VOICE r1 M4 (invitation to treat unnamed). v2 named it. 6. VOICE r3 S1 ('the first bullet' for 'bullet 1', +1): residual, 'bullet 1' being unambiguous. 7. OPPOSING r3 I.A: MINOR, answered as written.

(h) Weight and round-3 grades. 3.0, tier C. - M1 Exc on v3's four sentences, from 'Grace's call 'proposed that Rocky offer', an invitation to treat, and bullets 2 and 3, 'Potential' and 'wait and see', promise nothing.' to 'On balance, bullet 1 is likely an offer in form.': Core (1) to (5), the direction checked at CB1A 42, 298. - M2 Exc on the same, direction checked ('might have been

understood … as indicating a firm offer' only 'If the final sentence had been omitted'). - v4 change: sentences 1 and 3 rewritten (VOICE M1, M2). Core (4)'s similarity, direction and carry survive: 'might read as a firm offer without its disclaimer' states Lord Diplock's direction correctly, and 'intention and certainty decide this' is the carry.

(i) Residual risks. - 'may be one': the pronoun's intended antecedent is 'disclaimer' (the nearest noun); a reader who takes it as 'a firm offer' would read the sentence as saying the qualifier may be a firm offer, the opposite of the point. Map-writer's observation, untested by any agent on v4; R1 lapse risk (an unclear antecedent: R-V(1)). Cost: 'may be such a disclaimer', +2. - 'bullet 1' (VOICE S1), +1.

I.B Acceptance

v4 text: 'Acceptance requires an external manifestation of assent:[fn 3] Grace's 'Confirmed', sent '15 minutes later', added nothing, so it was no counter-offer. Grace therefore accepted the offer as made.'

(a) Issue. Whether 'Confirmed' accepted the email as sent, qualifier included, or did anything else.

(b) Facts. - Rocky's email: 'Please confirm agreement.' - Narrator: 'Grace responded to the email 15 minutes later saying,' - Grace: 'Mr Rocky, Confirmed. Best, Grace.'

(c) Arguments. - Rule: *Empirnall Holdings Pty Ltd v Machon Paull Partners Pty Ltd* (1988) 14 NSWLR 523, 534 (McHugh JA; Samuels JA agreeing; Kirby P to substantially the same effect; NSW Court of Appeal; ratio): 'The objective theory of contract requires an external manifestation of assent to an offer.' (CB1B 71). Counter-offer: a reply with additions 'was in law a rejection of the offer and constituted a counter-offer' (*Butler* 404, Lord Denning MR; credit). - Rocky (against a binding email; OPPOSING r3 I.B): 'Confirming discussions from our meeting' and 'Confirmed' acknowledged a record of discussions, not assent to be bound. - Answer to that: Rocky's own 'Please confirm agreement' asked for assent, and 'Confirmed' answered it; whether the parties meant to be bound by what was assented to is the *Masters* 360 question decided at D (SHEET I.B Credit).

(d) Decisive reason. 'Confirmed', in the mode the email asked for, within fifteen minutes, adding nothing, is an external manifestation of assent and no counter-offer.

(e) Conclusion and strength. 'Grace therefore accepted the offer as made', that is, the whole email, qualifier included. Strong on correspondence; bindingness turns on D and E (SHEET I.B Strength). S-51 (I.1 B1 to B4 stand); S-30 ('Best, Grace' is a sign-off; whether it is a signature does not matter).

(f) Further information. None that changes the advice. Credit only: receipt under *Electronic Transactions Act 2000* (NSW) s 13A(1)(a).

(g) Disagreements and how settled. 1. VOICE r1 M6: counter-offer unnamed and a grammar fault. v2: 'so it was no counter-offer and accepted the whole email' (+3). 2. VOICE r2 F6: split into two sentences, needed for the under-12 share (without it 6 of 66, 9.09%, below the 9.1% floor). v3, +2. 3. M1 r3: 'as made' read as the whole email, qualifier included, the sheet's accepted alternative form.

(h) Weight and round-3 grades. 2.0, tier L. - M1 Exc: criterion (CB1B 71, 534), deciding facts, counter-offer excluded and named, result 'as made'. - M2 Exc: 'Acceptance requires an external manifestation of assent: Grace's 'Confirmed', sent '15 minutes later', added nothing, so it was no counter-offer. Grace therefore accepted the offer as made.' - v4: unchanged.

(i) Residual risks. None recorded. 'as made' carries 'qualifier included' only by implication, which SHEET I.B Core requires to have a visible antecedent; both round-3 markers accepted it.

I.C Consideration

v4 text: 'Consideration is a price for the promise:[fn 4] Rocky's promise to lend was, in form, given for Grace's promise to repay at '5% interest', arguably implied by 'Confirmed'. Grace's promises to AMPL were likely given for its promise of '12 months' at '4% per annum'.[fn 5]'

(a) Issue. Whether a price was given for Rocky's 12 February promise; whether Grace's promises in the Loan Agreement had a price from AMPL.

(b) Facts. - Rocky's email: 'at a rate of 5% interest'. - Grace: 'Confirmed.' - Narrator: 'The loan was recorded as $1,150,000 ('Loan') with an interest rate of 4% per annum. Interest was to be paid by Grace monthly, and the Loan was repayable at the expiry of 12 months.' - Narrator: 'the $1,150,000 was advanced by AMPL on the same day' (27 February 2024).

(c) Arguments. - Rule: *Beaton v McDivitt* (1987) 13 NSWLR 162, 168 (Kirby P; NSW Court of Appeal): 'consideration must be satisfied in the form of a price in return for the promisor's promise or a quid pro quo. The price can be in the form of an act, forbearance or promise.' (CB2A 104). Status: Kirby P was in the majority on the result (the casebook prints 'Appeal dismissed.' at CB2A 111 after Mahoney JA; McHugh JA alone would have given Beaton the block, CB2A 109); alone on the consideration question; no weight issue (R-F). - 12 February: the inference that 'Confirmed' implied a promise to repay at '5% interest' is marked 'arguably' (CRIT_harsh_2 F14; R-M). - Loan Agreement (Grace's best answer to Rocky's demand, run only if it were useful to her; OPPOSING r3 I.C): AMPL's advance on 27 February was past, so nothing was given for Grace's 8 April promises (*Roscorla* 237). - Answer: AMPL's fresh 8 April promise of the term ('12 months') at '4% per annum' is the price (Beaton 168). - Strategy (trap T12): Rocky should not run that point, needing Grace bound for the $10,000 'once Grace repays the Loan'.

(d) Decisive reason. A promise for a promise is a price; the Loan Agreement's recorded term and rate are AMPL's price for Grace's promises. 'in form' because whether Rocky's promise is illusory, and so the consideration good, is decided at E (*Pace* 150: 'A

contract made for a consideration which is illusory is unenforceable’).

(e) Conclusion and strength. 12 February: strong that a bargain was struck in form. Loan Agreement: moderate to strong (S-21; Heydon JA’s ‘contractual entitlement’ route at *Brambles* 182 is his alone, O-9c, and is not used). S-51 (I.1 C1 to C4 stand).

(f) Further information. None that changes the advice.

(g) Disagreements and how settled. 1. T20 (I.C unqualified beside I.E ‘arguably illusory’): round-2 MARK_1 and MARK_2 both graded R10 VG for it. UPGRADES_r1 U10. v3 added ‘in form’ (+2). 2. ‘not the past advance’ with *Roscorla* 237: credit since SHEET v5 (Part 9 item 25), past consideration being decided at II.I3. 3. VOICE r3 S2 (‘its promise to lend for’, +2): residual. SHEET I.C Core (2) prints ‘its promise of ’12 months’’ as the counted form (CRIT_round4 m3; CRIT_round5 M7). 4. Kirby P’s status: AGLC r3 noted on fn 4 that ‘Kirby P was in the minority on the result ([173]: no enforceable contract)’. That note is wrong at source: the appeal was Beaton’s and was dismissed, and Kirby P found no enforceable contract, so he was in the majority; McHugh JA was the minority (CB2A 109, 111). The register (row 7), the tracer (r3 row 8) and SHEET I.C (‘majority on the result; alone on the consideration question’) are right. The note asked for no change, and none was made.

(h) Weight and round-3 grades. 2.0, tier L. - M1 Exc: ‘Consideration is a price for the promise: Rocky’s promise to lend was, in form, given for Grace’s promise to repay at ’5% interest’, arguably implied by ‘Confirmed’. Grace’s promises to AMPL were likely given for its promise of ‘12 months’ at ‘4% per annum’.’ Criterion CB2A 104, 168; ‘in form’; AMPL’s price, ‘likely’. - M2 Exc on the same; checked CB2A 104. - v4: unchanged.

(i) Residual risks. VOICE S2 (+2), stylistic only.

I.D Intention to create legal relations

v4 text: ‘Intention is assessed objectively, presumptions doubted, Rocky bearing the onus; the parties’ status as ‘project developers’ favours it.[fn 6] *Masters*, asking whether a preliminary agreement was ‘only a record of terms’,[fn 7] assumed a contemplated formal contract; it applies by analogy. Where none is stipulated, the question is whether terms ‘should be put into form’ or be subject to ‘a new agreement’ on terms ‘not expressed in detail’.[fn 8] As in *Niesmann*, where signing conditioned only ‘the obligation to pay’,[fn 9] ‘Confirmed’ settled amount, term and rate; yet ‘satisfactory conditions’ left further loan terms to Rocky. On balance, the better view is that the parties likely did not intend to be bound, unless those terms were settled ‘this morning’.’

(a) Issue. Whether the parties objectively intended to be bound at once by the email exchange, or exchanged ‘only a record of terms … as a basis for the negotiation of a contract’. The meaning of ‘subject to satisfactory conditions’ is decided here, once (decide-once rule (i)).

(b) Facts. - Narrator: ‘Mr Grace and Mr Rocky are both project developers who pursued various projects together since 2017 to stellar success.’ - Rocky’s email: ‘Confirming discussions from our meeting this morning’. - Rocky’s email: ‘I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions.’ - Rocky’s email: ‘Please confirm agreement.’ - Grace: ‘Confirmed.’ - No formal document is mentioned anywhere in the exchange.

(c) Arguments. - Rule, objective test and onus: *Ermogenous v Greek Orthodox Community of SA Inc* (2002) 209 CLR 95, [25] to [26] (Gaudron, McHugh, Hayne and Callinan JJ; High Court majority; ratio). [25]: ‘an objective assessment of the state of affairs between the parties’; the inquiry ‘may take account of the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances’. [26]: ‘we doubt the utility of using the language of presumptions in this context. At best, the use of that language does no more than invite attention to identifying the party who bears the onus of proof.’ (CB3A 137). - Rule, the question: *Masters v Cameron* (1954) 91 CLR 353, 360 (the Court: Dixon CJ, McTiernan and Kitto JJ; ratio): whether the document ‘constitutes a binding contract … or only a record of terms upon which the signatories were agreed as a basis for the negotiation of a contract’ (CB3A 154). The classes are framed for parties who ‘also agree that the matter of their negotiation shall be dealt with by a formal contract’ (CB3A 155, 360), so on an email that mentions none they apply by analogy (S-4; CONTRA 3 adopted). - Rule, the decisive authority for a qualifier not referring to a formal contract: 363, adopting Jessel MR in *Winn v Bull* (1877) 7 Ch D 29, 32: ‘When it is not expressly stated to be subject to a formal contract it becomes a question of construction, whether the parties intended that the terms agreed on should be put into form, or whether they should be subject to a new agreement the terms of which are not expressed in detail’ (CB3A 156; the official text reads ‘should merely be put into form’, the casebook drops ‘merely’, so the answer quotes around it: R-K). - Rocky’s best case, for a binding email (the onus being his as the party alleging the contract): *Niesmann v Collingridge* (1921) 29 CLR 177 as the Court reports Rich and Starke JJ at *Masters* 361: signing ‘did not make the signing of a contract a condition of agreement, but made it a condition of the obligation to pay’ (CB3A 155). ‘Confirmed’ settled amount, term and rate, so ‘satisfactory conditions’ arguably conditions only the obligation to lend. Also ‘Please confirm agreement’; no formal document; a three-day deadline to ‘15 February’ (OPPOSING r3 I.D; credit). - Grace’s best case, against a binding email: ‘satisfactory conditions’ reserved further terms of the loan to Rocky, a ‘new agreement’ on terms ‘not expressed in detail’, not *Niesmann*’s mere condition of performance. Lord O’Hagan, adopted at 361: ‘if any prospective contract, involving the possibility of new terms … remains to be adopted, matters must be taken to be still in a train of negotiation’ (credit). - Status of the parties: ‘project developers’ who ‘pursued various projects together since 2017 to stellar success’ favours intention (U4, core from v11). - Not used (official-only, credit, cap reached): *Masters* 362 adopting Jessel MR in *Crossley v Maycock* (‘if the agreement is made subject to certain conditions then specified or to be specified by the party making it … until those conditions are accepted, there is no final agreement such as the Court will enforce’), which would raise S-4 to moderate to strong (O-10); Walsh J’s indicators at *Godecke* 640 (official-only).

(d) Decisive reason. - ‘satisfactory conditions’ left further loan terms to Rocky, which is *Winn v Bull*’s second alternative, ‘a new agreement’ on terms ‘not expressed in detail’. - That beats *Niesmann* because *Niesmann*’s further stipulation was a condition of the obligation to pay on terms already complete, whereas here the terms of the loan itself remained to be settled by one party. - Amount, term and rate are named as settled (not ‘the essentials’), so the paragraph does not concede the premise of Gibbs J’s ‘Perhaps’ exception, which I.E resists (trap T19; U26).

(e) Conclusion and strength. ‘On balance, the better view is that the parties likely did not intend to be bound, unless those terms were settled ’this morning’.’ S-4: moderate on the course materials, the open-point tier. Result for Rocky (no claim on the email) strong regardless, because Rocky lent nothing (I.F1).

(f) Further information. Whether the conditions were settled at the meeting ‘this morning’ (and accepted by Grace): if so, the email likely bound. That cuts toward Grace’s counterclaim for a failure to lend ‘by 15 February’ (X4, weak, nominal for Grace, S-4, S-5) and gives Rocky nothing, he having lent nothing.

(g) Disagreements and how settled. 1. D2 (*Masters* or *Meehan* for the qualifier): [R] had class 3 via *Winn v Bull* at moderate to strong; CONTRA 3 and GAPS A4, B12, C3 argued that *Masters* assumes a formal document. S-4 settled it: by analogy only, objective intention governs, moderate; [R]‘s ’adopted for exactly this case’ withdrawn. 2. *Niesmann* as support or as Rocky’s case: TRACER r1 PE-2 and OPPOSING r1 6. v2 put it as Rocky’s best case and met it (+10). 3. Analogy disclosure: round-2 MARK_1 graded I.D VG (v2 ‘assumed a contemplated formal contract’ never said it was absent here or that *Masters* applies only by analogy). v3: ‘, absent here, so applies by analogy’ (+7). 4. VOICE r3 M3: ‘absent here, so applies by analogy’ elides its subject. The auditor’s rewrite kept the absence (‘it applies here only by analogy’, 0). The reviser took ‘; it applies by analogy’ (−2), relying on the next sentence’s ‘Where none is stipulated’ to carry the absence (v4 CHANGES §3.4). See (i). 5. TRACER r3 P3: ‘without presumptions’ states as settled what [26] put as doubt. v4: ‘presumptions doubted’ (the Court’s own verb), 0 words. II.D’s ‘No presumption governs cousins’ was kept (II.D (g)). 6. ‘the essentials’ against Gibbs J’s ‘Perhaps’ (T19): round-1 C2 graded R10 VG. U26. v2: ‘amount, date, term and rate’; v3 cut ‘date’ for funding (M1 r2’s list). 7. M1 r3 U2: name the *Masters* category (‘akin to the third class’, +4) as core, because reading guide 3A asks ‘What are the different categories of preliminary agreement?’. Not adopted: SHEET I.D Core (2) and Part 9 item 36 make the class name credit where the reasoning runs through *Winn v Bull* 363, as it does. Residual. 8. M2 r3 margin: the crux (‘left further terms of the loan to Rocky’) is asserted rather than argued; M2 found it sufficient through *Winn v Bull*. 9. Round-2 MARK_2 margin (‘the better view … likely’ a double hedge): rejected, his own form (VOICE 1.9, ‘the better view is that SPC likely owes no DoC’). 10. OPPOSING r3 M3 (I.D limb): Lord Blackburn and Lord O’Hagan at 361, the *Godecke* majority (Walsh J, 642 to 643), ‘by 15 February’ as immediacy, and ‘left further terms’ as assertion. Addressed at I.E (the whether-not-how reason); Walsh J not put (residual, I.E (i)). 11. Funding cuts OPPOSING r3 proposed here (F3: drop ‘only a record of terms’; F5: drop ‘the better view is that’): rejected, each removing a core item (I.D Core (2); Core (5)’s open-point tier).

(h) Weight and round-3 grades. 6.0, tier K. - M1 Exc on v3’s five sentences: Core (1) (‘Intention is assessed objectively, without presumptions, Rocky bearing the onus; the parties’ status as ‘project developers’ favours it.’); Core (2) and (6) (‘*Masters*, asking whether a preliminary agreement was ’only a record of terms’, assumed a contemplated formal contract, absent here, so applies by analogy.’); Core (4) (the *Winn v Bull* sentence, casebook form without ‘merely’); Core (3) (the *Niesmann* sentence); Core (5) (the verdict with its direction). - M2 Exc on the same five sentences, each core checked at CB3A 137, 154 to 156. - v4 change: sentence 1 (‘presumptions doubted’), sentence 2 (‘; it applies by analogy’, ‘absent here’ removed), sentence 4 (‘further loan terms’).

(i) Residual risks. - ‘absent here’ removed: SHEET I.D Core (2) reads ‘Masters and its classes assume a contemplated formal contract, absent here, so they apply by analogy’. v4 states the assumption and the analogy but not, in terms, the absence that makes it an analogy; the next sentence’s ‘Where none is stipulated’ is Jessel MR’s condition stated generally, not a finding about this email. Round-2 MARK_1 graded exactly this gap VG on v2. Map-writer’s observation, untested on v4. At risk: I.D VG, 1.5, plus R2’s cap if the marker treats *Masters* as applied without the distinction (0.75). Cost: ‘assumed a contemplated formal contract, here absent, so it applies by analogy’, +3. - M1 U2 (the category named): 0 under SHEET_v12; I.D VG (1.5) if the sheet adopts U2. Cost +4. - R5: I.D (115) plus I.E (109) is 224 against R5’s guide of about 215; both round-3 markers accepted 218.

I.E Certainty

v4 text: ‘Rocky’s promise is illusory if its performance rests on his ’unfettered discretion’.[fn 10] *Meehan*, on ‘satisfactory terms and conditions’, is distinguishable: there the discretion concerned only ‘the fulfilment of a condition upon which the contract depends’.[fn 11] Amount, term and rate are ‘specified parameters’,[fn 12] and an implied obligation to act honestly, or honestly and reasonably, would confine Rocky;[fn 13] yet the conditions (D) are terms he would set, which could withhold the loan itself. In *Godecke*, Gibbs J, obiter, doubted that terms left ‘to be settled by one of the parties’ bind, ‘Perhaps’ excepting ‘subsidiary matters’, which conditions deciding whether Rocky lends, not how, arguably exceed.[fn 14] The promise is therefore arguably illusory.’

(a) Issue. Whether a promise to lend ‘subject to satisfactory conditions’ is illusory because it leaves the promisor a discretion whether to perform, or leaves terms to be settled by one party, on the reading of ‘conditions’ decided at D (further terms of the loan).

(b) Facts. - Rocky’s email: ‘I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions.’ - Rocky is both the promisor and the judge of what is ‘satisfactory’. - The email says ‘satisfactory’, not ‘reasonable’, and names no object of the conditions.

(c) Arguments. - Rule, illusoriness: *Biotechnology Australia Pty Ltd v Pace* (1988) 15 NSWLR 130, 151 (McHugh JA; Kirby P agreeing in the result; Hope JA dissenting; NSW Court of Appeal): ‘A consideration is illusory if its payment or fulfilment depends upon an unfettered discretion vested in the promisor.’ (CB3B 166). - Grace’s best authority (if a binding promise were in issue) and the answer’s distinction: *Meehan v Jones* (1982) 149 CLR 571, 580 to 581 (Gibbs CJ; High Court; unanimous in the result; Aickin J died before judgment): a clause speaking of ‘satisfactory terms and conditions’ bound because the principle ‘does not apply where the discretion or option of the contracting party relates, not to the performance of the contractual obligations themselves, but only to the fulfilment of a condition upon which the contract depends’ (CB3B 183); 582: ‘There is a concluded agreement as to the terms of the contract which, if the condition is satisfied, leaves no discretion in either party as to whether he shall carry them out’ (CB3B 184). - The fetters put for the binding view (U1; R-X(5); OPPOSING r3 M3): - McHugh JA at *Pace* 151: ‘the consideration will not be illusory if the discretion must be exercised within specified parameters’; ‘even when no objective criterion of measurement is available, it may still be possible to infer a promise to act honestly and/or reasonably’ (CB3B 166). - Gibbs CJ at *Meehan* 581: ‘No doubt it may be implied that the purchaser will act honestly’ (CB3B 183). - Mason J at 588: ‘an implied obligation that he will act honestly, or honestly and reasonably’; at 589 to 590: ‘The limitation that the purchaser must act honestly, or honestly and

reasonably, takes the case out of the principle' (CB3B 185). Wilson J inclined to honesty alone (597 to 598); no majority on 'reasonably'. - Not put (credit; residual): - Gibbs CJ at 579, on the objective reading he did not prefer: with evidence of 'the prevailing rates and conditions on which loans are made' a court 'should not find it unduly difficult' to decide what finance is satisfactory (CB3B 183). - The *Godecke* majority, Walsh J (Mason J agreeing) at 642 to 643: what could be required 'must be reasonable in an objective sense'; the purchaser 'is agreeing presently to accept as part of the bargain such additional provisions' (CB3B 188 to 189). - Walsh J at 641 to 642 adopting Bray CJ, 'there is no reason in principle for holding that there cannot be any binding contract if some matter is left to be determined by one of the contracting parties' (official-only; O-11; it lowered S-5 to weak to moderate). - The obiter on point: *Godecke v Kirwan* (1973) 129 CLR 629, 646 to 647 (Gibbs J; obiter; 'unnecessary to express any concluded opinion'): 'it does not necessarily follow from what I have said that an agreement which left further terms to be settled by one of the parties, rather than by his solicitors, would be treated as a concluded contract'; 'Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties'; his contrast at 647 is 'a vital matter (such as price or rental)' (CB3B 190).

(d) Decisive reason. - The parameters and an honest, or honest and reasonable, judgment confine a discretion exercised within agreed terms: Kitto J's *Thorby* principle as McHugh JA quotes it at 151, 'a latitude of choice as to the manner in which agreed stipulations shall be carried into effect'. - On D's reading, the 'conditions' are terms Rocky himself would set, and they could withhold the loan itself. That is a discretion over whether he performs, not how. - *Meehan*'s discretion concerned only a condition (finance from a third party) on which a concluded bargain depended. - The same reason answers Gibbs J's 'Perhaps': conditions deciding whether Rocky lends are not 'subsidiary matters' but closer to his 'vital matter (such as price or rental)'. - Why it beats the counter: the fetters presuppose a concluded agreement as to the terms (Gibbs CJ 582); Mason J's own limit at 587 is that the point 'would have force if the contract left the court at large … yielding no indication as to what the parties meant'; here the terms themselves are left open.

(e) Conclusion and strength. 'The promise is therefore arguably illusory.' S-5 as revised at O-11: weak to moderate on certainty alone, decided at D (R-X(5) fixes 'arguably'). Either result for Rocky stands on I.F1.

(f) Further information. What 'conditions' meant (carried from D by '(D)'). If external conditions on which Rocky's promise depends (security from a third party; the success of the Hail Mary Project), the email is *Meehan*-shaped and not illusory, which cuts toward a binding promise and so toward Grace's nominal counterclaim. If further loan terms for Rocky's satisfaction, illusory.

(g) Disagreements and how settled. 1. McHugh JA at *Pace* 154 to 155 ('throws no light'): [R] used it against binding force; GAPS B5 and CONTRA 3 showed that read with the sentence before it the passage points toward the *Thorby* side of the line. S-5 withdrew the use; SHEET I.E Drops grade it Poor. 2. Gibbs CJ at 579 (GAPS C2): an objective reading of loan conditions against a market. S-5 recorded it as strengthening validity; credit; not put. 3. Walsh J adopting Bray CJ (O-11, official-only): moved S-5 down to weak to moderate. Credit (R-L(5)); not put. 4. The honesty fetter, in four rounds: - v1 did not put it; UPGRADES_r1 U1 and R-X(5) made it core. - v2: 'which an implied duty to judge 'satisfactory' honestly cannot supply' (fn *Meehan* 581, Gibbs CJ). - OPPOSING r2 row 7 (MATERIAL): McHugh JA's 'specified parameters' unmet. v3: 'The conditions, as construed at D, are the loan's own terms beyond its 'specified parameters', terms Rocky would set and judge, so an implied duty of honesty confines nothing.' (+8). - OPPOSING r3 M3 (MATERIAL): v3 used *Pace* 151 against the party it helps, answered the honesty fetter by assertion, left the 'reasonably' limb (Mason J; *Pace* 151), Gibbs CJ 579 and the *Godecke* majority unanswered, and gave no reason for 'arguably exceed'. VOICE r3 T1: 'implied duty of honesty' is a proxy found in no course source; S4: 'as construed at D' is a parenthetical cross-reference. v4 rebuilt the sentence: parameters conceded in McHugh JA's words; 'an implied obligation to act honestly, or honestly and reasonably' in Mason J's words (CB3B 185) with fn 13 moved from Gibbs CJ 581 to Mason J 588 to 590; met by 'terms he would set, which could withhold the loan itself'; carry written '(D)', the counted form SHEET I.E Core (2) prints (+10 in the unit). - PART adopted: Walsh J and Gibbs CJ 579 not put (residual). 5. Both round-3 markers had graded v3's sentence Excellent, the sentence OPPOSING r3 then rated MATERIAL. The panel role, not the marks, drove the rebuild. 6. 'or honestly and reasonably' now in the text: SHEET I.E Core (2A) makes honesty alone core and the 'reasonably' limb credit, 'never stated as settled by a majority' (credit-wrong line, VG). v4 states it as the fetter Rocky would rely on ('would confine'), footnoted to Mason J alone, not as the Court's law (register row 17). 7. fn 14 judge: AGLC r3 held '(Gibbs J)' unnecessary where the text names him (identity apparent). M1 and M2 each graded R8 VG for its absence, *Godecke*'s majority being Walsh J. v4 added '(Gibbs J)'; the markers prevail. 8. 'In *Godecke*,' before 'Gibbs J' (+2): SHEET Part 9 item 39 records the clarity risk (a reader taking 'Gibbs J' for the *Meehan* judge). Funded in v3; kept. 9. M2 r3 margin on v3's sentence: 'terse to the point of being cryptic'. Superseded by the rebuild. 10. The 'Perhaps' answered with a reason: CRIT_round5 M4 made it core ('which the loan's own conditions arguably exceed'). v4 states the reason in Gibbs J's own terms ('deciding whether Rocky lends, not how'), from OPPOSING r3 M3's suggestion, +3.

(h) Weight and round-3 grades. 3.0, tier C. - M1 Exc on v3's five sentences: criterion (CB3B 166, 151); *Meehan* similarity named then distinguished on Gibbs CJ's limit (CB3B 183, 581); the carry from D; Core (2A), the honesty fetter put and met, on 'The conditions, as construed at D, are the loan's own terms beyond its 'specified parameters', terms Rocky would set and judge, so an implied duty of honesty confines nothing.'; Core (3), both hedges and the reason; Core (4), 'arguably'. The fn 14 judge was graded once, at R8. - M2 Exc on the same, checked at CB3B 166, 183 to 184, 190. - v4 change: sentences 3 and 4 rewritten (OPPOSING M3; VOICE T1, S4); fn 13 now Mason J 588 to 590; fn 14 '(Gibbs J)'. The rebuilt sentence has not been graded.

(i) Residual risks (v4 CHANGES §4.1, §4.2). - Walsh J (Mason J agreeing) at 642 to 643 and Gibbs CJ at 579 not put. Both SHEET I.E credit; the whether-not-how reason answers them in substance. A marker who knows the majority may want it named. At risk only if Core (2A) is read as unmet: I.E VG 0.75, plus R2's cap 0.75. Cost: about +12 to +15 for a clause such as 'and, unlike *Godecke*'s majority, 'satisfactory' imports no objective standard', with its own marker to *Godecke* 642 to 643 (Walsh J). - The reasonableness limb is met by statement, not argument. If 'reasonably' were implied, the conditions Rocky could set would be reasonable ones, and a court could fix them, which weakens 'which could withhold the loan itself'. The answer's implicit replies are that the email says 'satisfactory', not 'reasonable', and that D decides the outcome. Cost of an express reply: about +8. - Two parenthetical cross-references in Part I ('(D)' here; '(II.G)' at I.F2) against R1's 'at most about one per Part'. The sheet's own counted model spent three in Part I ('(D, E)', '(D)', '(II.G)'). Low risk.

I.F1 Privity: Rocky lent nothing (agency)

v4 text: ‘Even if the email bound, AMPL was Rocky’s agent only if it contracted for him, not solely for itself:[fn 15] though ’Rocky asked’, AMPL lent ‘$1,150,000’, not ‘$1 million’, and took his guarantee, so Rocky lent nothing.’

(a) Issue. Even if the 12 February email bound, whether Rocky lent anything under it, that is, whether the 27 February advance was Rocky’s loan made through AMPL as his agent. Rocky and Grace are the email’s only parties, so privity of the email is not the question.

(b) Facts. - Narrator: ‘On 27 February 2024, Rocky asked A-Maize Pty Ltd, (’AMPL’) a company owned and controlled by Rocky’s cousin, Pierre, to advance $1,150,000 to Grace. Pierre agreed to provide the money to Grace and the $1,150,000 was advanced by AMPL on the same day.’ - Rocky’s email: ‘I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest’. - Narrator: ‘The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan.’ - Narrator: ‘The loan was recorded as $1,150,000 (’Loan’) with an interest rate of 4% per annum.’

(c) Arguments. - Rule: *Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 269 (Mason and Jacobs JJ; majority on the result), quoting Lord Reid in *Scruttons Ltd v Midland Silicones Ltd* [1962] AC 446, 474: ‘(secondly) the bill of lading makes it clear that the carrier, in addition to contracting for these provisions on his own behalf, is also contracting as agent for the stevedore …, (thirdly) the carrier has authority from the stevedore to do that, or perhaps later ratification by the stevedore would suffice’ (OFF *Port Jackson*, line 262, the paragraph closing ‘(at p269)’; read for this map). - Course statement of the same elements (CB4 336, [11.70], editors): the principal ‘expressly or impliedly consented to the agent acting on the principal’s behalf’ and the agent ‘was purporting to act on behalf of the principal and not solely on the agent’s own behalf’. - Rocky’s argument (agency, so he lent through AMPL): ‘Rocky asked’; ‘Pierre agreed to provide the money’; Lord Reid’s ‘or perhaps later ratification’ (OPPOSING r3 I.F(1)). - Grace’s best: AMPL lent its own money on its own terms. ‘$1,150,000’, not ‘$1 million’; 27 February, not ‘by 15 February’; ‘4%’, not ‘5%’; and AMPL took Rocky’s guarantee, which no lender takes from its own principal.

(d) Decisive reason. - A lender that takes its supposed principal’s guarantee in its own document contracts for itself. - The sum differs from the sum promised. - ‘Rocky asked’ goes at most to consent; it says nothing of whom AMPL purported to act for. - The guarantee is the fact that goes to purporting; the sum alone would show only non-performance (U5).

(e) Conclusion and strength. ‘so Rocky lent nothing.’ Strong (S-51, I.1 F2; header table C2, strong on result). A contrary conclusion is Poor with D6.

(f) Further information. Credit only: whether the advance was arranged as Rocky’s loan funded by AMPL (a yes reopens agency, cutting for Rocky); why ‘$1,150,000’.

(g) Disagreements and how settled. 1. ‘Rocky asked’ unmet: OPPOSING r1 7 (MATERIAL) and U5 (core from v11). v2: ‘though ’Rocky asked’, AMPL lent ‘$1,150,000’, not ‘$1 million’, and took his guarantee’ (+7). 2. Source of the criterion. v1 and v2 cited the casebook [11.70] under R-A(4). R-Z(3) requires a case first. v3 cited *Port Jackson* 269 (Mason and Jacobs JJ quoting Lord Reid). SHEET_v12 prefers *Port Jackson* 240 (Barwick CJ, requisites (2) and (3): ‘the carrier by the bill contracted for the stevedore’s protection as well as for his own’; ‘the authority of the carrier to act for the stevedore in this respect whether antecedently or by ratification was made out’). M1 r3 accepted 269 as ‘correct’, carrying the same Lord Reid requisites. Disclosed judgment call (v3 CHANGES §4.1): Lord Reid’s conditions were framed for a Himalaya clause and are used as the general elements, as *The Eurymedon* and Mason and Jacobs JJ treat them. 3. Ratification. TRACER r3 P1: v3’s ‘only if, with his authority, it contracted for him’ stated antecedent authority as a necessary condition, which Lord Reid’s third condition does not (‘or perhaps later ratification’). v4 dropped the authority limb at I.F1 (−3), the result resting on the purporting limb, which SHEET I.F1 Core names as the operative criterion. 4. Whether fn 15 and fn 38 count toward R-H’s cap of three. AGLC r3: ‘Official-only passage: counts toward R-H’s cap.’ M1 r3: ‘course-stated at [11.70], so it does not count.’ M2 r3: ‘course-stated at [11.70], so not an R-H official-only footnote.’ The register and GATES count them, conservatively, so the answer is at the cap on either view and cannot add a fourth. 5. ‘by 15 February’ as a further difference (OPPOSING r3 I.F(1), +11): credit; unfunded.

(h) Weight and round-3 grades. 2.5, tier L. - M1 Exc on v3’s ‘Even if the email bound, AMPL was Rocky’s agent only if, with his authority, it contracted for him, not solely for itself: though ’Rocky asked’, AMPL lent ‘$1,150,000’, not ‘$1 million’, and took his guarantee, so Rocky lent nothing.’: L order (hypothesis, criterion, facts, result); ‘Rocky asked’ met by the guarantee; the criterion cited to a case; the colon joins a criterion, not a verdict, to its application. - M2 Exc on the same, checked at OFF *Port Jackson* paragraph 3 ‘(at p269)’. - v4 change: ‘with his authority,’ removed.

(i) Residual risks. - ‘though ’Rocky asked’’ now concedes the request without saying what it goes to; in v3 ‘with his authority’ supplied the element it met. Low risk. - The *Port Jackson* Himalaya-clause context (v3 CHANGES §4.1): a marker expecting the editors’ ‘purporting … not solely’ words may read the citation as an analogy. 0 words to change; the casebook [11.70] remains available as a last resort (R-Z(3)), at the cost of a casebook footnote.

I.F2 Privity: Rocky and the Loan Agreement

v4 text: ‘Only a party can enforce a contract, and only if he provided consideration;[fn 16] whether one is a party turns on ’the written instrument itself’, not signature.[fn 17] Mrs Coulls signed, yet the contract ‘purports expressly’ to be between her husband and the company;[fn 18] likewise AMPL and Grace ‘entered into’ the Loan Agreement. Nothing there makes Grace’s promise one to Rocky, so he is no joint promisee.[fn 19] Grace’s answer is therefore right, though not because he ‘never signed anything’, and the 5 March demand, arguably premised on 27 February (II.G), fails.’

(a) Issue. Whether Rocky is a party to Grace’s promise to repay in the Loan Agreement and gave consideration for it; whether his best argument (a joint promisee with AMPL) succeeds; whether Grace’s reason (‘I never signed anything with you’) is the law; what follows for his 5 March demand.

(b) Facts. - Narrator: ‘At the meeting, AMPL and Grace entered into a written loan agreement (the ’Loan Agreement’).’ - Narrator: ‘the clause was included in the Loan Agreement before it was signed by Grace and AMPL.’ - Narrator: ‘On 5 March 2025, Rocky instructed his solicitor to send a letter of demand to Grace requiring repayment of the principal amount under the Loan Agreement with AMPL.’ - Grace, by telephone to Rocky on 7 March 2025: ‘I never signed anything with you, so you can’t enforce anything. Leave me alone!’ (the answer quotes only ‘never signed anything’, avoiding the contraction under D9). - Narrator: ‘AMPL argued that the Loan was advanced on 27 February, and thus the 12 months had begun then.’

(c) Arguments. - Rule, both limbs: *Coulls v Bagot’s Executor & Trustee Co Ltd* (1967) 119 CLR 460, 494 to 495 (Windeyer J dissenting on construction; High Court). 494: ‘only those who are parties to a contract can sue upon it. For us that statement is incontrovertible’. 495: ‘For us the rule prevails that a plaintiff who sues on a promise must show a consideration for it provided by him’ (CB4 333; OFF *Coulls* paragraph 18 ‘(at p495)’). - Rule, who is a party: 487 (Taylor and Owen JJ; majority; ratio): ‘the mere fact that her signature appears does not make her a party; this is a question to be resolved upon a consideration of the written instrument itself’ (CB4 331). 486: ‘the contract purports expressly to be one made between Arthur Leopold Coulls and O’Neil Construction Pty Ltd’ (CB4 330). - Rocky’s best argument: he is a joint promisee with AMPL, who may recover though he gave no consideration (486, conditional: ‘If, however, the correct conclusion is that the widow was a party to the contract it is, to our minds, clear that she is entitled to receive the royalties payable after her husband’s death notwithstanding that she, personally, gave no consideration for the company’s promise’). - Rocky’s further point (OPPOSING r3 I.F(2)): if he assented to the guarantee clause (II.I2), he is a party to a multi-party instrument. - Grace’s best: AMPL and Grace ‘entered into’ the instrument; 487: ‘there was no express promise by the company to pay royalties to the wife nor is it possible to imply such a promise’; nothing makes her promise one to Rocky; limb (b) also fails, AMPL having lent (S-19). - Grace’s planted reason: non-signature (wrong in law: signature neither necessary, *Empirnall* 536, nor decisive, *Coulls* 487).

(d) Decisive reason. - Party status turns on the instrument. - The instrument is one AMPL and Grace ‘entered into’. - Nothing in it makes Grace’s promise one to Rocky, so the joint-promisee argument fails at its premise, a promise made to both. - The *Coulls* comparison is the distinction: Mrs Coulls signed and was still no party, because the instrument purported to be between others. - Assent to the guarantee clause (II.I2) would make Rocky party to that promise only, not promisee of Grace’s (T2; ‘as to that clause only’ is credit).

(e) Conclusion and strength. Grace’s answer is right in result, wrong in reason; the 5 March demand fails. Strong (header table C1; S-8; S-19, limb (a) decisive, limb (b) also failing; S-25). The cross-reference to II.G marks the demand’s premise ‘arguably’ (R-M; CRIT_fidelity_4 Finding 1).

(f) Further information. The Loan Agreement’s heading, parties clause and signature blocks (S-8; they decided *Coulls* at 482 to 483 and 486). They would change the result only if they named Rocky as a promisee of Grace’s promise, cutting for Rocky; nothing suggests it. Not written (credit).

(g) Disagreements and how settled. 1. Footnote for the rule: v5 of the sheet stacked Barwick CJ 478 with Windeyer J. R-S(1): *Coulls* 494 to 495 alone (478 states only the privity limb and in the same passage says ‘That C provided no part of the consideration seems to me irrelevant’). Slide 2 states only the party limb (R-U(1)). 2. Privity and consideration fused: VOICE r1 M23. v2 split the two requirements (+5). 3. Joint promisee: VOICE r2 M11 (unclear ‘Grace’s promise’). v3: ‘Nothing there makes Grace’s promise one to Rocky, so he is no joint promisee.’ 4. Applying limb (b) in terms: round-2 MARK_2 upgrade 2. Not adopted in v3: a bare ‘Rocky gave Grace nothing for it’ would meet OPPOSING r2 row 9 (if bound by the clause, Rocky arguably gave consideration on behalf of the parties to the instrument, Windeyer J at 493 to 494) and so cannot be done in a clause. The party limb decides. Residual credit. 5. The planted line, in three forms: - v2: ‘right, though not for that reason’. - v3: ‘Grace’s ’I never signed anything’ is therefore right, though not for that reason’. VOICE r3 M4: the antecedent contradicts itself (‘I never signed anything’ is itself a reason). - v4: ‘Grace’s answer is therefore right, though not because he ’never signed anything’‘. 6. The cross-reference, in three forms: - v2: in words. - v3: ’arguably premised on the 12 months having run’, which M2 r3 accepted as R1’s preferred verbal form. - M1 r3 comment 3: the counted form ‘27 February (G)’ is clearer, the heading ‘G. Construction’ not saying what is construed. - v4: ‘arguably premised on 27 February (II.G)’, with ‘II.G’, not ‘G’, because R3 grades a bare letter crossing Parts VG (−2). 7. OPPOSING r3 I.F(2) (‘even a joint promisee must sue with AMPL’, *Coulls* 486, ‘an action to recover must have been brought by both promisees and … would fail if brought by one alone’, +9): credit; unfunded. 8. VOICE r3 O1 (‘In *Coulls*, Mrs Coulls signed’, +2): unfunded. 9. Signature reasoning symmetrical (R-R(4); trap T10, with II.I1).

(h) Weight and round-3 grades. 7.5, tier C. - M1 Exc on v3’s four sentences: Core (1) and (2) (‘Only a party can enforce a contract, and only if he provided consideration; whether one is a party turns on ’the written instrument itself’, not signature.’); Core (3) (the *Coulls* comparison, no D4 assertion that the Loan Agreement ‘purports expressly’); Core (4) (no joint promisee); Core (5) (the planted line, right in result and wrong in reason, the demand failing on an ‘arguably’ premise). M1 noted, without deduction, the thinness of the verbal cross-reference. - M2 Exc on the same, checked at CB4 330 to 331, 333. - v4 change: the last sentence (VOICE M4; M1 comment 3).

(i) Residual risks. - ‘(II.G)’ is a second parenthetical cross-reference in Part I (with I.E’s ‘(D)’); see I.E (i). - ‘Grace’s answer’ has no earlier mention in the unit; it is identified by the quoted ‘never signed anything’ in the same clause. Low. - Limb (b) stated in the rule but not applied (credit).

I.F3 Privity: circumventing the rule

v4 text: ‘AMPL enforcing its loan, agency failing and no trust or estoppel appearing, nothing circumvents the privity rule.[fn 20]’

(a) Issue. Whether any route around privity (the contracting party’s enforcement, agency, trust, estoppel) lets Rocky recover the principal from Grace.

(b) Facts. - Narrator: ‘On that same date, AMPL contacted Grace directly’. - Narrator: ‘AMPL required the $1,150,000 as soon as possible and so on 9 March 2025 … AMPL called for payment of the Loan under the personal guarantee provided by Rocky.’ - No

representation by Grace to Rocky, and no holding of Grace's promise by AMPL for Rocky, appears.

(c) Arguments. - Rule: *Trident General Insurance Co Ltd v McNiece Bros Pty Ltd* (1988) 165 CLR 107 (Brennan J dissenting on the result; cited by report, judge named, no pin, R-Y(1)): 'It was not suggested that agency, trust or estoppel availed McNiece' (TRI 115); 'McNiece endeavours to turn aside from the familiar path of privity, trust, agency and estoppel. But there is no other path' (TRI 201). Both verified in the reading for this map. - Rocky's arguments (OPPOSING r3 I.F(3)): - Estoppel: Grace paid interest throughout while Rocky 'would check in consistently', without protest until 7 March. - Trust: courts 'no longer feel the reluctance to infer the existence of a trust' (Brennan J, *Trident* [24]). - The *Trident* majority relaxed the rule. - The other side: - No representation by Grace preceded or induced anything Rocky did. - Nothing shows AMPL intending to hold Grace's promise for Rocky. - The contracting party, AMPL, is enforcing for itself. - The majority's relaxation was confined to third parties named in liability insurance (Mason CJ and Wilson J).

(d) Decisive reason. Each route fails on a fact: AMPL is enforcing its own loan; agency failed at I.F1; no trust or estoppel appears.

(e) Conclusion and strength. 'nothing circumvents the privity rule.' Strong (C1; S-24 withdrew assignment as a stated route).

(f) Further information. None that changes the advice.

(g) Disagreements and how settled. 1. Source of the routes: - v1 and v2 cited 'Class 4A Slides, slide 3'. R-Z(2) bars slides. - v3 checked Mason CJ and Wilson J first: v3 CHANGES §1 found they discuss trust and estoppel but mention agency only in reporting a Law Reform Commission conclusion. - So v3 chose Brennan J, who names all three, with 'dissenting' in the footnote (R-F). - TRACER r3 P2 (status-attribution): the majority recognised a further route for insurance third parties, so 'nothing circumvents' leans on the judge who denied any. Its zero-cost alternative was Mason CJ and Wilson J (paras 23, 32 to 33: 'a trust, an agency relationship or an enforceable agreement', and estoppel). - Kept in v4: Brennan J's list matches the sentence most exactly, the dissent is disclosed, and the tracer itself called keeping it defensible. The result is unaffected (no insurance). 2. Verdict first: VOICE r3 M5 ('AMPL enforces its loan; …' opens with its conclusion). The auditor's rewrite dropped the contracting-party route, which SHEET I.F3 Core requires (Drops VG 'one route missing'). v4: an absolute clause before the verdict keeping all three (his VOICE 2.7 item 42 form), −1. 3. Wrong collocation: 'AMPL enforces its own money' (U29). v2: 'AMPL, the contracting party, enforces its loan'. 4. The statutory fifth route ([11.10]; OPPOSING r2 row 11): rejected under R-Z(4); never named.

(h) Weight and round-3 grades. 1.0, tier L. - M1 Exc on v3's 'AMPL enforces its loan; agency having failed and no trust or estoppel appearing, nothing circumvents the privity rule.': all routes on facts; course term; fn 20 verified in the reading. - M2 Exc on the same (three routes in one line, each on a fact). - v4 change: the absolute-clause order.

(i) Residual risks. *Trident* without a pin (R-Y(1)): a real marker may note a report citation without pinpoint at R8 (SHEET Part 9 item 7). Brennan J's dissent on the result (TRACER P2): a weight comment is possible. Both cost 0 body words.

PART II. ROCKY v AMPL (ALTERNATIVELY PIERRE)

Settled frame (ISSUES_SETTLED header C6 to C8; SHEET Part 6 opening). An oral bargain for the $10,000 was formed at the 8 April meeting: moderate to strong against AMPL or Pierre; moderate as to AMPL. Consideration was given (moderate to strong); intention and certainty are present; nothing was payable on 9 March 2025 (strong). Rocky's own payment probably does not meet the condition (moderate to strong against him, R-O). The clause alone cannot bind Rocky (strong). Rocky is probably bound by his oral undertaking to whoever accepted it (moderate as to AMPL). Timing is open. 'Answer with specificity to individual Ps': AMPL and Pierre are run separately wherever promisor, promisee or onus differs.

II.A Offer

v4 text: 'What Pierre 'expected' proposed nothing Rocky could accept, so it was likely an invitation to treat;[fn 21] Rocky's reply, 'if you also promise', sought a return promise, so he offered a bilateral contract.[fn 22]'

(a) Issue. Who offered what at the 8 April meeting: whether Pierre's expectation was an offer, and what kind of offer Rocky's words made.

(b) Facts. - Narrator: 'Pierre expressed during the meeting that he expected Rocky to ensure that Grace made all payments under the Loan Agreement promptly.' The words are the narrator's report; Pierre is never quoted. - Rocky: 'I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.'

(c) Arguments. - Rule for the offer: *Gibson* 298 (Lord Diplock): a letter is an offer only if 'a contractual offer capable of being converted into a legally enforceable open contract … by Mr Gibson's written acceptance of it' (CB1A 42). - Rule for the bilateral contract: *Brambles Holdings Ltd v Bathurst City Council* (2001) 53 NSWLR 153, 177 (Heydon JA), quoting McHugh JA in *Integrated Computer Services Pty Ltd v Digital Equipment Corp (Aust) Pty Ltd* (1988) 5 BPR 11,110, 11,117 to 118: 'In classical theory, the typical contract is a bilateral one and consists of an exchange of promises by means of an offer and its acceptance' (CB1B 78). - AMPL's or Pierre's alternative (OPPOSING r3 II.A): 'expected' was itself the offer, and Rocky's 'if you also promise' a counter-offer (*Butler* 404, Lord Denning MR: a reply with additions 'was in law a rejection of the offer and constituted a counter-offer'; credit; S-31). - Answer: the same bargain results either way, since Pierre 'agreed' last.

(d) Decisive reason. An expectation contains no promise by Pierre that Rocky could accept so as to bind Pierre. Rocky's 'if you also promise' sought a promise in return, not an act, which is the bilateral form.

(e) Conclusion and strength. Pierre's words 'likely an invitation to treat': S-31, moderate to strong. Rocky 'offered a bilateral contract': strong; a unilateral contract found against 'if you also promise' is Poor (SHEET II.A Strength).

(f) Further information. None.

(g) Disagreements and how settled. 1. Course name: VOICE r1 M5 (invitation to treat unnamed at II.A). v2 named it. SHEET II.A Core accepts ‘likely an invitation to treat, not an offer’ as equally Excellent; R7 needs the name once. 2. Speaker. TRACER r3 P6 (possible error): v3’s ‘Pierre’s ’expected’’ attributed the narrator’s word to Pierre. TRACER r2 P5 had raised the same point at low risk; v3 drafted and cut it for funding. VOICE r3 M6: quoted words used as nouns (‘Pierre’s ’expected’’; ‘Rocky’s ’if you also promise’’). v4: ’What Pierre ’expected’ … Rocky’s reply, ‘if you also promise’, …’ (+2).

(h) Weight and round-3 grades. 2.5, tier L. - M1 Exc on v3’s ‘Pierre’s ’expected’ proposed nothing Rocky could accept, so it was likely an invitation to treat; Rocky’s ‘if you also promise’ sought a return promise, so he offered a bilateral contract.’: criterion and deciding word for each; two markers. - M2 Exc on the same, checked at CB1A 42 (298) and CB1B 78 (177). - v4 change: the speaker attribution and the noun phrases.

(i) Residual risks. None recorded.

II.B Acceptance

v4 text: ‘Pierre ’agreed’, manifesting assent to Rocky’s offer, so he accepted for whomever he represented.[fn 23] AMPL would say nothing bound until execution; yet, as Lord Greene MR said of exchanges of contracts, parties are bound when and how they contemplate:[fn 24] nothing required a document or reserved a right to withdraw.[fn 25] Both promises therefore likely bind.’

(a) Issue. Whether Pierre’s assent concluded the bargain at the meeting, or whether nothing bound until the Loan Agreement was executed.

(b) Facts. - Narrator: ‘On 8 April 2024, Rocky, Grace, and Pierre attended a meeting at AMPL’s office.’ - Narrator: ‘Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL.’ - Nothing says Rocky was to sign anything.

(c) Arguments. - Rule for acceptance: *Empirnall* 534 (McHugh JA), ‘an external manifestation of assent to an offer’ (CB1B 71). - AMPL’s argument (or Rocky’s, against his own undertaking), from OPPOSING r3 II.B: nothing bound until execution. Heydon JA lists among the cases where offer and acceptance ‘does not work well’ ‘contracts between numerous parties, or even two parties, negotiated at meetings but not assented to until each party executes counterparts’ (*Brambles* 176; CB1B 77). The clause was included ‘before it was signed’, which shows a signed instrument was the contemplated mode. - Rocky’s answer, from the same page: Lord Greene MR, of exchanges of contracts, ‘Parties become bound by contract when, and in the manner in which, they intend and contemplate becoming bound. It is a question of the facts of each case’ (*Brambles* 176, Heydon JA, quoting *Eccles v Bryant* [1948] Ch 93, 104; CB1B 77). No document was required of Rocky and no right to withdraw was reserved (*Masters* 361: parties who ‘wish to reserve to themselves a right to withdraw’; CB3A 155). - Status: Heydon JA’s meetings example is an example, not a rule that meetings bind only on execution (S-17); Lord Greene MR’s words are never attributed to the meetings example (D2). The answer says ‘of exchanges of contracts’.

(d) Decisive reason. Parties are bound when and how they contemplate. Only AMPL and Grace were to sign the Loan Agreement; nothing in the exchange between Rocky and Pierre made their bargain subject to a document or reserved a right to withdraw.

(e) Conclusion and strength. ‘Both promises therefore likely bind.’ The two promises stand or fall together (trap T8). S-15: formation with someone moderate to strong. S-17: binding without the document, moderate.

(f) Further information. None written. Credit: whether Rocky was ever asked to sign.

(g) Disagreements and how settled. 1. *Eccles v Bryant* report: AGLC r1 major 1 found ‘[1948] 1 Ch 93’ copied from CB1B 77. R-X(2): ‘[1948] Ch 93’ (CB3A 156; official *Masters*), the first-named parties only. TRACER r2 P4(a) (‘Eccles v Bryant and Pollock’) rejected under AGLC r 2.1.1. 2. ‘whoever … for’: VOICE r1 M2 and round-1 C1 and C2 (R1 lapse). v2: ‘for whomever he represented’. 3. ‘reserved a document’: round-1 C2 (note-form; the verb cannot govern ‘a document’). v2: ‘nothing required a document or reserved a right to withdraw’. 4. M2 r3 R1 lapse 1: ‘Both promises therefore likely bound.’ reads as a missing verb. v4: ‘bind’ (0 words). 5. VOICE r3 S5: intransitive ‘bound’ in ‘nothing bound until execution’ (and I.F1’s ‘Even if the email bound’): kept; ‘bind’ is used intransitively of contracts in the sheet’s own counted forms, and neither marker flagged those two (+1 each to change). 6. AGLC r3 optional item 3: ‘(Lord Greene MR)’ in fn 24 is redundant where the text names him (identity apparent). Kept for consistency with fn 14, where both markers required the judge. 7. VOICE r2 M5 (one-clause counter-frame) and F1: v3 merged the frame into the ‘yet’ sentence and shortened the verdict (−6).

(h) Weight and round-3 grades. 3.0, tier C. - M1 Exc on v3’s three sentences: Core (1) criterion and ‘agreed’, subject to who accepted; Core (2) AMPL’s argument put and met with the analogy disclosed, *Masters* 361 on its own marker; Core (3) ‘likely’ and T8. - M2 Exc on the same, checked at CB1B 71 (534), CB1B 77 (176, ‘[1948] Ch 93’ per R-X(2)), CB3A 155 (361). The verdict’s grammar was graded at R1, not here. - v4 change: ‘bind’ for ‘bound’.

(i) Residual risks. ‘nothing bound until execution’ (intransitive), +1 to change. Low.

II.C1 Consideration: the price of Rocky’s promise

v4 text: ‘The $10,000 promise, sought by ’if you also promise’, priced Rocky’s undertaking,[fn 26] which moved from him as promisee;[fn 27] if Pierre promised, Rocky’s detriment likely suffices, though AMPL benefits.[fn 28]’

(a) Issue. Whether the $10,000 promise and Rocky’s undertaking stood in the relation of price and promise, and whether consideration moved from Rocky, on each alternative of who promised.

(b) Facts. - Rocky: ‘I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.’ - Narrator: ‘Pierre

agreed'.

(c) Arguments. - Rule, the bargain: *Australian Woollen Mills Pty Ltd v Commonwealth* (1954) 92 CLR 424, 456 to 457 (the Court; ratio; said of unilateral contracts, adopted as the bargain requirement by Kirby P in *Beaton* 168): 'it should be made to appear that the statement or announcement which is relied on as a promise was really offered as consideration for the doing of the act, and that the act was really done in consideration of a potential promise inherent in the statement or announcement'; 'the relation of a quid pro quo' (CB2A 101). - Rule, moving from the promisee: *Beaton* 181 (McHugh JA), quoting Patteson J in *Thomas v Thomas* (1842) 2 QB 851, 859; 114 ER 330, 333 to 334: consideration 'must be moving from the plaintiff' (CB2A 107). McHugh JA was in the minority on the result in *Beaton*; he states Patteson J's rule, so no status word (R-F). - Rule, detriment: *Musumeci v Winadell Pty Ltd* (1994) 34 NSWLR 723, 745 (Santow J; NSW first instance): 'It is of course long settled that detriment to the promisee suffices as consideration' (CB2B 122). First-instance status not disclosed: the proposition is stated as long settled (R-F). - Pierre's argument (OPPOSING r3 II.C(1)): a cousin's promise of '$10,000 to me directly once Grace repays' was a conditional gift; *Australian Woollen Mills* 457: there 'may be no relation whatever' between statement and act. - Answer: 'if you also promise' makes the $10,000 the price of the undertaking.

(d) Decisive reason. Rocky's own words ask for the $10,000 as the price of 'I will do that'. The undertaking moved from Rocky. If Pierre promised, the detriment to Rocky (undertaking to procure another's payments) suffices though the benefit runs to AMPL.

(e) Conclusion and strength. Consideration moved from Rocky: strong if AMPL promised; moderate to strong if Pierre did (SHEET II.C1 Strength; header C6, consideration moderate to strong).

(f) Further information. None.

(g) Disagreements and how settled. 1. Direction of 'priced': OPPOSING r1 5 (MATERIAL) found 'priced' used both ways. v2 fixed one direction throughout: II.C1 'The $10,000 promise … priced Rocky's undertaking'; II.H 'the $10,000 falls due on what his undertaking secured'; II.I3 'Rocky priced his undertaking at'$10,000''. 2. 'given' and 'though AMPL benefits': VOICE r1 S6. v2 'sought by 'if you also promise''; 'though AMPL benefits' kept. 3. VOICE r3 S6: 'though AMPL benefits' reads as a concession that weakens Rocky's detriment; 'though AMPL, not Pierre, benefits' (+2) unfunded. 4. Tension with II.I2, where AMPL's $10,000 promise is 'arguably' the benefit Rocky took of AMPL's written offer. II.C1 makes the $10,000 the price of Rocky's own oral undertaking. OPPOSING r3 M2 named this; v4 marks II.I2's use 'arguably' (II.I2 (g)).

(h) Weight and round-3 grades. 1.5, tier L. - M1 Exc: the grammar right (the undertaking moves from Rocky); promisee named; 'likely'; three markers (456 to 457; *Beaton* 181; *Musumeci* 745). - M2 Exc: the same, checked at CB2A 101, 107; CB2B 122. - v4: unchanged.

(i) Residual risks. VOICE S6 (+2).

II.C2 Consideration: the existing legal duty rule

v4 text: 'The existing legal duty rule applies 'at least when' a party to a pre-existing contract promises the promisee under it no more than it requires.[fn 29] AMPL would say that 'also' and its clause show a guarantee already given; as in *Sundell*, a promise to ensure performance already owed is no consideration.[fn 30] Yet no earlier promise binds Rocky: his 27 February request did not itself establish a contract,[fn 31] and the clause was arguably included after Pierre 'agreed'. If Pierre promised, even a promise to him to perform a duty owed to a third party, AMPL, can be consideration.[fn 32] Ensuring 'all payments … promptly' exceeds 'repayment of the Loan', so Rocky likely gave consideration, though an earlier clause would favour AMPL.'

(a) Issue. Whether 'I will do that' was only a promise to do what Rocky was already bound to do, and to whom any prior duty was owed.

(b) Facts. - Rocky: 'I will do that if you also promise'. - Narrator: 'Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL.' - Narrator: 'The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan.' - Narrator: 'Pierre expressed during the meeting that he expected Rocky to ensure that Grace made all payments under the Loan Agreement promptly.' - Narrator, 27 February 2024: 'Rocky asked … AMPL … to advance $1,150,000 to Grace.'

(c) Arguments. - Rule: *Wigan v Edwards* (1973) 47 ALJR 586, 594 (Mason J; Walsh and Gibbs JJ agreeing on this point; majority reasoning): 'The general rule is that a promise to perform an existing duty is no consideration, at least when the promise is made by a party to a pre-existing contract, when it is made to the promisee under that contract, and it is to do no more than the promisor is bound to do under the contract.' (CB2B 131). - AMPL's best: 'also' and the clause, described before the exchange, show a guarantee already given. *TA Sundell & Sons Pty Ltd v Emm Yannoulatos (Overseas) Pty Ltd* (1955) 56 SR (NSW) 323, 327 (the court, as the editors quote it at [4.190]; no judge named): the promisor 'would do what was necessary to ensure that the goods were delivered. But we are satisfied that the [defendant] was bound to do so under the original contract.' (CB2B 114). The answer paraphrases and cites by report (SHEET Part 9 item 18). - Rocky's four answers, numbered as SHEET II.C2 Core (3) numbers them: - (i) No earlier binding promise by Rocky appears. - (ii) His 27 February request did not itself establish a contract: *Australian Woollen Mills Pty Ltd v Commonwealth* (1955) 93 CLR 546, 550 (Privy Council): 'The presence of a request does not, however, in itself establish a contract.' (CB2A 103). - (iii) On 'Pierre agreed and the clause was included', the clause arguably followed the agreement (R-M). - (iv) Ensuring 'all payments … promptly' (interest included; procuring performance) exceeds a guarantee of 'repayment of the Loan' (the defined principal), so it is 'more than' the limb allows. - Rocky on the Pierre alternative: the rule's second premise fails (the promise was made to Pierre, any duty owed to AMPL). *Pao On v Lau Yiu Long* [1980] AC 614, 632 (the Board): 'Their Lordships do not doubt that a promise to perform, or the performance of, a pre-existing contractual obligation to a third party can be valid consideration' (OFF *Pao On*, line 169; course-stated at CB2B 125, [4.300], heading 'Duty owed to a third party'; the brief-verified pin).

(d) Decisive reason. No pre-existing contract bound Rocky to the promisee when he promised, so the rule's first premise fails. The

promise also exceeds what a guarantee of the principal would require. On the Pierre alternative the third-party exception applies in any event.

(e) Conclusion and strength. 'so Rocky likely gave consideration, though an earlier clause would favour AMPL.' S-11: moderate to strong (re-founded on 'no earlier binding promise by Rocky is narrated; the clause was included after Pierre agreed'; GAPS' 'circular second limb' objection rejected).

(f) Further information. The order in which the clause and the $10,000 were agreed. A clause agreed first would favour AMPL (a pre-existing guarantee to the same promisee, *Sundell*'s shape). Direction stated (U3).

(g) Disagreements and how settled. 1. *Sundell* named without its holding: round-1 A1 and A2 graded II.C2 VG (U6). The holding has been stated since v1 ('a promise to ensure performance already owed is no consideration'). 2. The rule unnamed: round-2 MARK_1 R7 proxy instance (the existing legal duty rule stated in Mason J's words but never called the rule); VOICE r1 M7 and r2 M2 (third limb missing). v3 named the rule with its third limb ('no more than it requires'), −2. 3. 'AMPL would say 'also' …': garden path (round-2 MARK_1 R1). v3 'say that'. VOICE r3 S7: 'the clause' had no antecedent in Part II. v4 'its clause'. 4. M2 r3 R1 lapse 2: the *Pao On* sentence argued on a premise the previous sentence denied ('Yet no earlier promise binds Rocky' and then 'Rocky's promise to him to perform a duty owed to AMPL'), with no 'even if'. v4: 'even a promise to him to perform a duty owed to a third party, AMPL, can be consideration' (+1). VOICE r3 T2 and S11: the course's own words for the exception are 'a duty owed to a third party' ([4.300] heading), now matched. 5. *Wigan* 595 (a volunteered addition as an element of the bargain; S-35): credit, an analogy only, never a rule of interdependence. 6. The contrary branch (practical benefit exception; bona fide compromise): not engaged, because the answer does not accept AMPL's sequence (SHEET II.C2 conditional core). 7. Funding cut proposed by M1 r3 ('say that' to 'say', −1): rejected; v4 funded elsewhere, keeping 'that' against the garden path.

(h) Weight and round-3 grades. 5.5, tier K. - M1 Exc on v3's five sentences: Core (1) (the rule named, hedge kept, premises); Core (2) (AMPL's best and *Sundell* by holding, cited by report); Core (3)(i) to (iv); Core (4) (*Pao On* 632); Core (5) (tier, reason, direction). - M2 Exc on the same, checked at CB2B 131 to 132, CB2B 113 to 114, CB2A 103, OFF *Pao On* 632. The unsignposted alternative was graded at R1. - v4 change: 'its clause'; the *Pao On* sentence.

(i) Residual risks. - 'exceeds' unhedged: accepted on the preferred branch (SHEET Part 9 item 38(h)), the verdict's 'likely' carrying strength. - The practical benefit exception not named on the preferred branch: credit.

II.D Intention to create legal relations

v4 text: 'No presumption governs cousins; Rocky bears the onus.[fn 33] Against intention, the undertaking resembles a letter of comfort, which in *Banque Brussels* conditioned the facility it was made 'to induce',[fn 34] whereas AMPL had already advanced. Yet the undertaking was priced at '$10,000' and given 'at AMPL's office'. Intention is therefore likely present on both sides, the price outweighing cousinhood even if Pierre promised.'

(a) Issue. Whether a bargain between cousins, one of them acting through his company, was intended to be legally binding, on both sides and on both alternatives of who promised.

(b) Facts. - Narrator: 'a company owned and controlled by Rocky's cousin, Pierre'. - Narrator: 'Rocky, Grace, and Pierre attended a meeting at AMPL's office.' - Rocky: 'if you also promise to pay $10,000 to me directly once Grace repays the Loan.' - Narrator: 'the $1,150,000 was advanced by AMPL on the same day' (27 February 2024, before the 8 April undertaking).

(c) Arguments. - Rule, onus: *Ermogenous* [26] (CB3A 137): presumptions doubted; 'it was for the appellant to demonstrate that there was such a contract'. - The editors at CB3A 146, [5.90]: 'no presumption should be made about the enforceability of agreements made in a social or domestic context' (read for this map). - Against intention (OPPOSING r3 II.D): cousins; 'expected' and 'ensure' are words of assurance, the shape of a letter of comfort, 'not a full-sized guaranty' (Proscour, adopted by Rogers CJ at *Banque Brussels* 521 as French law, credit only, S-23); given after the advance, so not 'made to induce'. - *Banque Brussels Lambert SA v Australian National Industries Ltd* (1989) 21 NSWLR 502, 521 to 523 (Rogers CJ; NSW first instance): 'the facility was subject to BBL obtaining a suitable letter of comfort' (between 521 and 523); statements 'made to induce another business person to enter into a business transaction' (523) (CB3A 144). - For intention: the price ('$10,000', 'to me directly') and the setting ('at AMPL's office', in the course of a company's loan).

(d) Decisive reason. The difference from *Banque Brussels* (the comfort there conditioned the lending; here the advance came first) is put against intention. It is outweighed by the price, which marks a bargain whoever promised, and by the commercial setting.

(e) Conclusion and strength. 'Intention is therefore likely present on both sides, the price outweighing cousinhood even if Pierre promised.' S-33 rates it strong. SHEET II.D departs to moderate to strong with its reason stated (Part 9 item 6: *Ermogenous* [25] to [26] make it an objective weighing; no High Court authority in the materials decides a family-and-company weighing). The 'both sides' clause binds Rocky to his undertaking likewise (trap T3).

(f) Further information. None that changes the advice.

(g) Disagreements and how settled. 1. TRACER r3 P3: 'No presumption governs cousins' overstates [26] (same point as I.D); offered 'Presumptions about cousins aside, Rocky bears the onus'. Rejected at II.D: SHEET II.D Core (1) requires 'No presumption either way ([26])', the editors read *Ermogenous* so at [5.90], and the rewrite would cost a semicolon near the colon and semicolon floors. 2. The direction of the comfort-letter point: VOICE r1 M27 and r2 M3 ('a mark of seriousness'; 'serious'). v2 and v3 settled on 'conditioned the facility it was made 'to induce'', with 'whereas AMPL had already advanced' as the difference (U28; S-33). 3. A contrast connective with nothing to contrast: round-2 MARK_2 R1 ('However' after the onus sentence). v3: 'Against intention'. 4. M1 r3 comment 4 (no deduction): a marker who knows *Banque Brussels* enforced the letter may want the significance stated, 'a mark of seriousness weaker here' (+6), the grid line's own words. Residual. 5. The Pierre alternative re-weighed, not merely named: CRIT_round5 M2. The verdict's 'even if Pierre promised' has carried it since v1.

(h) Weight and round-3 grades. 5.0, tier C. - M1 Exc on all four sentences: Core (1) the onus; Core (2) the course term, the difference with its reason, direction carried by ‘Against intention’; the price as the answer; Core (3) Pierre re-weighed, ‘both sides’ the consistency clause. - M2 Exc on the same, checked at CB3A 137 [26] and CB3A 144. - v4: unchanged.

(i) Residual risks. ‘weaker here’ not written (M1 comment 4; the grid line says ‘with its direction (’weaker here’)‘): both markers graded the ’Against intention … whereas’ form Excellent. At risk only on a stricter reading: II.D VG, 1.25. Cost +6.

II.E Certainty

v4 text: ‘Ensuring ’all payments … promptly’, measured by the loan’s timetable, is not ‘so obscure’ that no intention can be attributed.[fn 35] AMPL’s promise, depending on Grace’s repayment, not its choice, is not illusory.[fn 36]’

(a) Issue. Whether the undertaking and the $10,000 promise are certain enough, and whether AMPL’s promise is illusory.

(b) Facts. - Narrator, reporting Pierre’s expectation: ‘ensure that Grace made all payments under the Loan Agreement promptly’. - Rocky: ‘once Grace repays the Loan’. - Narrator: ‘Interest was to be paid by Grace monthly, and the Loan was repayable at the expiry of 12 months.’

(c) Arguments. - Rule, uncertainty: *Council of the Upper Hunter County District v Australian Chilling and Freezing Co Ltd* (1968) 118 CLR 429, 437 (Barwick CJ), quoting Lord Wright in *G Scammell & Nephew Ltd v Ouston* [1941] AC 251, 268: a contract fails only if ‘so obscure and so incapable of any definite or precise meaning that the court is unable to attribute to the parties any particular contractual intention’ (CB3B 161). The 268 pin is printed in the course at CB3B 184, Mason J reciting the words at *Meehan* 587. - Rule, a condition within another’s control: *Meehan* 581 to 582 (Gibbs CJ): ‘The fact that the condition is one whose performance lies wholly or partly within the power of one of the parties to the contract does not mean that there is no binding contract once the condition is fulfilled’ (CB3B 184). - AMPL’s argument (OPPOSING r3 II.E): payment hangs on ‘once Grace repays’, which may never occur; ‘promptly’ is vague.

(d) Decisive reason. ‘all payments … promptly’ takes its content from the Loan Agreement’s own timetable. AMPL’s obligation depends on Grace’s act, not on AMPL’s discretion.

(e) Conclusion and strength. Both certain; AMPL’s promise not illusory. Strong (header C6). A contrary conclusion is Poor (D6 if ‘ensure’ or ‘once Grace repays’ is held void).

(f) Further information. None.

(g) Disagreements and how settled. 1. *Scammell* 268: round-2 MARK_1 R8 said the pin is not printed at CB3B 161. v3 rejected that at source: CB3B 184 prints ‘[1941] AC 251 at 268’ in Mason J’s recital at 587; TRACER r3, AGLC r3 and M2 r3 confirm. 2. Verdict before reason: VOICE r1 M18. v2: ‘AMPL’s promise, depending on Grace’s repayment, not its choice, is not illusory’. 3. VOICE r2 S6: ‘AMPL’s promise’ anticipates II.F2’s conclusion (+2). Unfunded.

(h) Weight and round-3 grades. 2.5, tier L. - M1 Exc on both sentences, each on its own marker. - M2 Exc, checked at CB3B 161 (437), CB3B 184 (581 to 582). - v4: unchanged.

(i) Residual risks. VOICE r2 S6 (+2).

II.F1 Privity: Rocky the promisee; ‘the clause’

v4 text: ‘Rocky, the promisee and payee ’to me directly’, gave consideration, so privity does not bar him.[fn 37] The ‘included’ clause most naturally means the guarantee clause named before it; even a written $10,000 term would leave him the oral promise.’

(a) Issue. Whether privity bars Rocky’s claim to the $10,000; which clause ‘the clause’ means.

(b) Facts. - Rocky: ‘pay $10,000 to me directly’. - Narrator: ‘The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan.’ (the clause named first). - Narrator: ‘Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL.’

(c) Arguments. - Rule: *Coulls* 494 to 495 (Windeyer J dissenting on construction), both limbs (as at I.F2). - AMPL’s argument (OPPOSING r3 II.F(1)): on the other reading the $10,000 is a term of an instrument AMPL and Grace ‘entered into’, of which Rocky is not a party (*Coulls* 486; [11.10] example 1). - Rocky’s answer: the oral promise was made to him for his own consideration and survives a written record. - Reading A (the guarantee clause) is preferred: the definite article refers back to the only clause previously named in that passage (S-10, moderate to strong).

(d) Decisive reason. Rocky is the promisee and named payee of an oral promise made for his own undertaking. On either reading of ‘the clause’ the oral promise carries the claim.

(e) Conclusion and strength. ‘privity does not bar him’. SHEET II.F1: either reading Excellent if both are run and the result is shown unchanged (Part 9 item 17, a disclosed departure from S-10’s moderate to strong). Header C7: a written $10,000 term adds nothing.

(f) Further information. Credit: the Loan Agreement’s words, which would show which clause was included.

(g) Disagreements and how settled. 1. A reason for ‘most naturally’: CRIT_harsh_2 F7 and the SHEET core required one. Round-2 MARK_1 upgrade 3 (‘the only one named’) was refined in v3 to ‘named before it’, because the problem also names the Development Agreement’s clause. 2. ‘just named’: v10’s sheet form was an answer-external deictic (U29). 3. ‘The clause ’included’‘: round-2

MARK_2 R1 (a quotation that makes the clause the subject that included). v3: ’The ’included’ clause’. 4. VOICE r3 S8 offered ‘The clause later ’included’’ (−2). Rejected in v4: it drops ‘named before it’, the reason SHEET II.F1 Core requires. 5. OPPOSING r3 funding F1 (shorten to ‘’The clause’ most naturally means the guarantee clause’, −5): rejected for the same reason.

(h) Weight and round-3 grades. 1.0, tier L. - M1 Exc: criterion, both readings, the reason for ‘most naturally’, *Coulls* 494 to 495 alone. - M2 Exc: both limbs on the oral promise; both readings with the sheet’s accepted ‘named before it’; checked at CB4 333. - v4: unchanged.

(i) Residual risks. None recorded. Credit: ‘he being party to neither document’ (+6).

II.F2 Privity: who promised, AMPL through Pierre or Pierre personally

v4 text: ‘Who promised turns on the doctrine of agency: whether Pierre, with AMPL’s authority or ratification, contracted for it, not solely for himself.[fn 38] AMPL, ’owned and controlled’ by Pierre, likely authorised him; his contracting for it is contested: Rocky asked ‘you’ to ‘also promise’. Yet Pierre spoke ‘at AMPL’s office’ about ‘payments under the Loan Agreement’, and AMPL called under the guarantee ‘provided by Rocky’, arguably his undertaking. On balance, AMPL likely promised, though ‘you’ keeps Pierre’s promise arguable, which proof that he disclaimed acting for AMPL would establish.’

(a) Issue. Whether the $10,000 promisor, and so the promisee of Rocky’s undertaking, is AMPL (Pierre acting as its agent) or Pierre personally. The answer carries the result conditionally into II.C1, II.C2, II.D, II.I1, II.I2, II.I3 and II.I4 (trap T11).

(b) Facts. - Narrator: ‘a company owned and controlled by Rocky’s cousin, Pierre’. - Rocky: ‘I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.’ - Narrator: ‘Rocky, Grace, and Pierre attended a meeting at AMPL’s office.’ - Narrator: Pierre ‘expected Rocky to ensure that Grace made all payments under the Loan Agreement promptly.’ - Narrator: ‘AMPL called for payment of the Loan under the personal guarantee provided by Rocky.’ - Narrator, 27 February (credit): ‘Pierre agreed to provide the money to Grace and the $1,150,000 was advanced by AMPL on the same day.’

(c) Arguments. - Rule: *Port Jackson* 269 (Mason and Jacobs JJ, quoting Lord Reid in *Midland Silicones* 474): the agent must be contracting for the principal ‘in addition to contracting … on his own behalf’, with ‘authority from the stevedore to do that, or perhaps later ratification by the stevedore would suffice’ (OFF, line 262). Course statement at CB4 336, [11.70]: consent, and purporting ‘not solely on the agent’s own behalf’. - For AMPL as promisor (the better view, S-7): - consent is readily inferred from ‘owned and controlled’; - Pierre spoke ‘at AMPL’s office’ about ‘payments under the Loan Agreement’ (payments to AMPL under AMPL’s loan); - AMPL later called under the guarantee ‘provided by Rocky’, arguably his undertaking (R-M); - credit: the problem’s own 27 February usage, ‘Pierre agreed’ preceding an advance ‘by AMPL’. - For Pierre personally (Rocky’s alternative and AMPL’s possible denial; S-18): - Rocky asked ‘you’ to ‘also promise’; - ‘$10,000 to me directly’ reads as a side payment outside AMPL’s loan; - the cousinhood; - on Reading A, the $10,000 is nowhere in AMPL’s document (S-10). - OPPOSING r3 II.F(2) added for AMPL: Lord Reid’s ‘perhaps later ratification’, AMPL’s call adopting the bargain.

(d) Decisive reason. Pierre dealt, at AMPL’s premises, about AMPL’s loan and payments to AMPL. AMPL then asserted Rocky’s side of the same bargain. Those facts go to whom Pierre purported to act for; ‘you’ is consistent with addressing the company’s controller.

(e) Conclusion and strength. ‘On balance, AMPL likely promised, though ’you’ keeps Pierre’s promise arguable’. S-7: AMPL, moderate; Pierre in the alternative. Ratification does not tip it (S-7 (i); O-7: no court in the set states a rule of ratification in terms).

(f) Further information. Proof that Pierre disclaimed acting for AMPL would establish Pierre’s own promise. That cuts toward the Pierre branch: Rocky claims the $10,000 from Pierre; AMPL has only the clause; AMPL’s call likely fails for want of consideration (II.I3, II.I4). Credit: AMPL’s later adoption of the $10,000 promise, cutting toward AMPL.

(g) Disagreements and how settled. 1. Promisor strength. [R] (ISSUES.md D4) had AMPL at moderate to strong on ratification, Ipp AJA’s ‘Those benefits could not be severed’ and Windeyer J’s ‘the company (by its agent O’Neil)’. CONTRA 4 and GAPS A7, C6 challenged it. S-7 settled: moderate. Ratification cannot supply ‘purporting’; Ipp AJA’s is an acceptance rule (analogy); Windeyer J is illustration; CONTRA’s ‘benefit-only agency’ point rejected. 2. Further information with direction: round-2 MARK_1 and MARK_2 both graded II.F2 VG (none given; U3, core (5) from v11). - v3: ‘, decisively so if he spoke only for himself’ (+1 net). - VOICE r3 M7: circular (‘Pierre’s promise is decisively arguable if Pierre promised’) and ungrammatical; the auditor preferred cutting the tail (−8). OPPOSING r3 F2 proposed the same cut, or a ratification clause. - Reviser: cutting would drop SHEET II.F2 Core (5), so v4 used the further-information form, naming the information (whether Pierre disclaimed acting for AMPL) and its direction (+2). 3. Ratification. TRACER r3 P1: Lord Reid’s third condition admits ‘or perhaps later ratification’, which v3’s ‘with AMPL’s authority’ omitted. v4: ‘with AMPL’s authority or ratification’ (+2). - OPPOSING r3’s further step, AMPL’s call as ‘later ratification’ deciding who promised, rejected: O-7; SHEET II.F2 Drops grade ratification as the decisive reason Good. 4. ‘consented’ and ‘purporting’: VOICE r1 M32 and TRACER r1 PE-5 (‘consent stated as fact’). v2: ‘likely consented’. v3 restated in *Port Jackson*’s terms: ‘likely authorised him; his contracting for it is contested’. 5. ‘throughout’ overstated, and a restated reason: OPPOSING r2 row 19 and VOICE r2 F4. v3 removed ‘because Pierre spoke throughout about AMPL’s loan’. 6. Citation: [11.70] (casebook) to *Port Jackson* 269 under R-Z(3) in v3. SHEET prefers 240 (Barwick CJ). As at I.F1 (g) 2 and 4.

(h) Weight and round-3 grades. 4.0, tier K. - M1 Exc on v3’s four sentences: Core (1) both questions as ‘whether’ clauses, a case cited; Core (2) consent on ‘owned and controlled’; Core (3) Pierre’s best fact put and met; Cores (4) and (5) the alternative pleaded, the further information with direction (‘decisively so if he spoke only for himself’). M1 noted the R-M inference was marked. - M2 Exc: ‘cores (1) to (5) in full; R-M inference marked’, checked at OFF *Port Jackson* 269. - v4 change: ‘or ratification’; the tail. Untested.

(i) Residual risks. - ‘which proof that he disclaimed acting for AMPL would establish’ fronts the relative pronoun’s object; a reader may parse ‘which proof’ as a determiner phrase and stumble. Map-writer’s observation; R1 lapse risk. Cost: ‘and proof that he

disclaimed acting for AMPL would establish it', +2. - 'or ratification' states Lord Reid's alternative without his 'perhaps', while fn 38 cites the hedged passage at 269. 'perhaps' cannot be added (R1 bars it outside quotations as a distanced hedge). Barwick CJ at 240 states it unhedged ('whether antecedently or by ratification was made out', OFF *Port Jackson* paragraph 18 '(at p240)'; read for this map), so re-pointing fn 38 to '*Port Jackson* (n 15) 240 (Barwick CJ)' costs 0 body words and is SHEET's preferred citation. Its cost is status: Barwick CJ was in the minority on the High Court's result, though his requisites were adopted by the Privy Council (ISSUES_SETTLED 9.7), which a footnote would arguably need to disclose. A citation-precision point at R8 (VG 0.625 if a marker counts it). Judgment call; not decided here.

II.G Construction (the 12 months)

v4 text: 'The '12 months' are construed objectively: pre-contractual conduct is admissible only if the words are ambiguous, and post-contractual conduct cannot show meaning.[fn 39] The words are arguably ambiguous: the instrument 'recorded' the sum 'advanced' on 27 February, the transaction's 'genesis'.[fn 40] Although the terms appear first on 8 April, the '12 months' attach to 'the Loan', whose use Grace had from 27 February, so the period likely ran from then, though narrowly, unless the agreement dates it otherwise.'

(a) Issue. Whether 'repayable at the expiry of 12 months' ran from the advance on 27 February 2024 or the agreement on 8 April 2024. Decided once here and carried to I.F2 and II.I4 (R-Q; decide-once rule (ii)). It is a question of construction, not uncertainty.

(b) Facts. - Narrator, 27 February 2024: 'the $1,150,000 was advanced by AMPL on the same day.' - Narrator, 8 April 2024: 'The loan was recorded as $1,150,000 ('Loan') with an interest rate of 4% per annum. Interest was to be paid by Grace monthly, and the Loan was repayable at the expiry of 12 months.' - Narrator: 'Between 8 April 2024 and 8 February 2025, Grace made appropriate monthly repayments of the interest on the Loan to AMPL.' - Grace to AMPL, 7 March 2025: 'I have until 8 April 2025 to repay and you won't see a cent before then'. - Narrator: 'AMPL argued that the Loan was advanced on 27 February, and thus the 12 months had begun then.'

(c) Arguments. - Rule, method: - *Brambles* 163 to 164 and 167 to 168 (Heydon JA; unanimous by adoption, Ipp AJA at 184 and Mason P at 155, S-2 and O-9): pre-contractual conduct 'only admissible on questions of construction if the contract is ambiguous and if the pre-contractual conduct casts light on the genesis of the contract, its objective aim, or the meaning of any descriptive term' (163); post-contractual conduct 'not admissible on the question of what a contract means as distinct from the question of whether it was formed' (164); 'the actual opinions of the parties are irrelevant' (168) (CB1B 73, 76). - 191 (Ipp AJA; Mason P agreeing on the contractual claim): 'Where ambiguities exist, mutually known facts establishing the commercial purpose of the contract, the genesis of the transaction, the background and the context in which the parties are operating will be admissible' (CB1B 82). Conditional on ambiguity, and silent on which date a genesis favours (S-3). - For 27 February (AMPL's argument; the premise of Rocky's own 5 March demand): the term is said of 'the Loan', the defined sum 'recorded' as advanced on 27 February; Grace had the use of the money from then; that advance is the mutually known genesis. - For 8 April (Grace's argument; Rocky's best defence to AMPL's call; OPPOSING r3 II.G): - the '12 months' and '4% per annum' were first agreed on 8 April, when AMPL and Grace 'entered into' the instrument; - a 12-month term priced at 4% runs from the bargain; - before 8 April Grace held the money on no agreed terms; - 'appropriate' monthly payments from 8 April fit that timetable (R-M: proves compliance in that period and no more); - Heydon JA at 167, 'cannot be resorted to unless the … contract is ambiguous: it is not'. - Excluded on meaning: Grace's 'I have until 8 April 2025', AMPL's 'the 12 months had begun then', and Rocky's 2025 emails and demand (post-contractual conduct and subjective beliefs).

(d) Decisive reason. The '12 months' attach to 'the Loan', and the Loan was the sum advanced, and in Grace's use, from 27 February. S-1 calls this the stronger textual point: a reasonable reader of a 12-month term for an advance already in the borrower's hands may read it as the life of that advance. It beats the 8 April reading only narrowly, for three reasons S-1 gives: - the terms first appear on 8 April; - 'recorded' governs the new 4% rate as much as the sum, so it does not show the terms pre-existed (CONTRA 1(3), adopted); - the 'appropriate' payments from 8 April are consistent with an 8 April anchor. Hence 'though narrowly'.

(e) Conclusion and strength. 'the period likely ran from then, though narrowly, unless the agreement dates it otherwise.' S-1: open; best-reasoned a slight lean to 27 February (weak), 8 April a real alternative; both branches carried (II.I4). 'though narrowly' is the weak-strength marker; 'likely' alone would be the moderate tier.

(f) Further information. The Loan Agreement's words: a term dating the period from 8 April reverses the lean, and the call was then premature as to principal (II.I4). Credit: who drafted; whether interest ran from 27 February (pointing to 27 February); the parties' shared beliefs before 8 April (admissible under 191).

(g) Disagreements and how settled. 1. D1. [R] held 27 February moderate, 'a course authority tips it' (Ipp AJA 191; 'recorded'; post-contractual conduct excluded; contra proferentem declined). GAPS C1 and A5 and CONTRA 1 challenged it ('an admissibility rule, not a commencement rule'; 'appropriate' a proven fact; Carlill, Kitto J, Walsh J omitted). S-1 settled: open, slight lean, weak; 'tips it' withdrawn. 2. *Masters* class 1 'restatement' analogy for 27 February: withdrawn (S-50), contradicting IV.3's finding that the 27 February terms were incomplete. 3. Kitto J's 'commencing date' in *Whitlock* (456): an analogy too weak to tip it (S-26). 4. *Carlill* 263 contra proferentem. OPPOSING r2 row 20(iv) proposed it; rejected: the drafter is not stated, and SHEET II.G grades Lindley LJ's 'It is for the defendants to shew what it does mean' as a burden rule Poor (S-27). 5. The lean's own reason. Round-1 C1 and C2 both graded II.G VG: the verdict's only preceding sentence was the 8 April counter (U24). - v2 added a reason. - OPPOSING r2 row 20 (MATERIAL) and TRACER r2 P3: v2 weighed 'appropriate' interest after excluding post-contractual conduct. - v3: 'whose use Grace had from 27 February', 'appropriate' removed, one hedge. 6. 'the rate and term' to 'the terms' (v4, −2; SHEET II.G Core (4)'s counted form 'though the terms appear first on 8 April'). 7. The heading. - v2: 'G. The 12 months'. - VOICE r2 F3: 'G. Construction' (−2; course vocabulary, *Masters* 363 'a question of construction'; R-X(6)). - M1 r3 comment 6 and U3: the heading should name its subject ('G. Construction of the 12 months', +3); M1 did not deduct. - v4 rejected U3: the brief to the reviser kept G, H, I headings no longer than they were; SHEET §5 accepts 'G. Construction'. 8. OPPOSING r3 II.G: MINOR; the strength 'matches S-1'.

(h) Weight and round-3 grades. 5.0, tier C. - M1 Exc on v3's three sentences: Cores (1) and (2) (*Brambles* 163 to 164, 167 to 168); Core (3) (ambiguity decided with 'arguably', Ipp AJA 191); Core (4) both readings; Core (5) the lean with its own reason (U24), weak

strength, further information with direction. - M2 Exc on the same, checked at CB1B 73, 76, 82. - v4 change: ‘the terms’ for ‘the rate and term’.

(i) Residual risks. - Heading ‘G. Construction’ (M1 U3): 0 under SHEET_v12; R3 VG (0.5) if the sheet adopts U3. Cost +3. - ‘though narrowly’ as a verbless hedge (VOICE r3 O2, +2 for ‘though the point is narrow’).

II.H Condition precedent (‘once Grace repays the Loan’)

v4 text: ‘The bargain binding at once, ’once Grace repays the Loan’ conditions AMPL’s obligation, not formation;[fn 41] on 9 March Grace ‘had not yet repaid’, so nothing was payable. Read literally or commercially, words naming Grace do not cover Rocky’s payment:[fn 42] the $10,000 falls due on what his undertaking secured, Grace’s repayment. Nor does the duty to co-operate, ‘to do everything necessary’ for Rocky’s benefit, assist:[fn 43] nothing suggests AMPL’s call prevents Grace repaying. Rocky’s payment therefore likely does not meet the condition.’

(a) Issue. Two questions in one unit (decide-once rule (viii)): whether ‘once Grace repays the Loan’ conditions AMPL’s obligation rather than formation, so that nothing was payable on 9 March 2025; and whether the condition can be met if Rocky, not Grace, pays AMPL (so that Rocky could pay $1,150,000 and lose the $10,000: trap T13).

(b) Facts. - Rocky: ‘I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.’ - Narrator: ‘on 9 March 2025, when Grace had not yet repaid the Loan, AMPL called for payment of the Loan under the personal guarantee provided by Rocky.’

(c) Arguments. - Rule, classification: *Meehan* 582 (Gibbs CJ): ‘It is clear that the condition in Special Condition 1(b) is not a condition precedent to contract. Certain obligations under the contract attached immediately the contract was signed although the condition had not been fulfilled.’ (CB3B 184). - Rule, construction: *Upper Hunter* 437 (Barwick CJ): ‘no narrow or pedantic approach is warranted, particularly in the case of commercial arrangements’ (CB3B 161). - Rule, the duty to co-operate: *Beaton* 185 (McHugh JA, citing Mason J in *Secured Income Real Estate (Aust) Ltd v St Martins Investments Pty Ltd* (1979) 144 CLR 596, 607): ‘The McDivitts have a contractual duty to do everything necessary on their part to enable the plaintiff to have the benefit of the contract’ (CB2A 109). The principle is Mason J’s in the High Court; McHugh JA’s minority on the result does not change its weight, so no status word (R-F; never ‘a minority view’). - Rocky’s arguments (OPPOSING r3 II.H; R-O; S-16): - commercially the $10,000 rewards the Loan’s repayment, which AMPL receives whoever pays; - once Rocky pays under AMPL’s call, the Loan is discharged and Grace can never repay it, so AMPL’s call, if met, makes the condition impossible, contrary to the duty to co-operate; - prevention by analogy with *Mobil* 500 (credit only, with its status: reasoning on an assumed unilateral offer). - AMPL’s answers: - the words are Rocky’s own and name Grace; - the $10,000 priced Grace’s repayment, the outcome Rocky undertook to procure, not his own payment after her default; - nothing suggests AMPL’s call stops Grace repaying (a fact, not guarantee law: R-O); - contra proferentem, if anywhere, runs against Rocky, who used the words (S-32).

(d) Decisive reason. - The bargain bound at once (II.B), so the term conditions AMPL’s obligation; on 9 March Grace ‘had not yet repaid’. - On construction, literal or commercial, the $10,000 falls due on what Rocky’s undertaking secured, Grace’s repayment. That meets the commercial reading on its own terms: the commercial purpose was to reward procuring Grace’s performance, not to reward its failure. - The duty to co-operate is met on its own terms: AMPL omitted nothing necessary to give Rocky the benefit of the contract, since nothing suggests the call stops Grace repaying. - The pricing point also answers the stronger form (that payment under the call ends any possibility that Grace repays), because the benefit of this contract is a reward conditioned on Grace’s own repayment (SHEET II.H Core (4); Part 9 item 4; CRIT_round8 m6).

(e) Conclusion and strength. ‘Rocky’s payment therefore likely does not meet the condition.’ S-16: a condition of AMPL’s obligation, moderate to strong; not payable on 9 March 2025, strong; Rocky’s own payment not meeting it, moderate to strong against Rocky (R-O; a contrary conclusion capped at VG). T13 is drawn at II.I4 (‘paying, loses the $10,000’).

(f) Further information. Credit: on the 8 April reading of the 12 months, Grace may still repay by 8 April 2025, and the $10,000 then falls due (cuts for Rocky). Whether Grace repays within a reasonable time (S-16: weak to moderate that AMPL is free of the $10,000 if she does not). Round-3 M2 noted, as a credit gap and without deduction at R6, that whether Grace repays by 8 April 2025 is not addressed.

(g) Disagreements and how settled. 1. Strength. S-16 rejected CONTRA 10’s ‘moderate’ in part (moderate to strong against Rocky). R-O fixed it, and fixed that the narrated non-prevention is a fact, never graded Fair as guarantee law. 2. The commercial reading. CRIT_round7 M1 and R-T(1): it must be put and met on *Upper Hunter* 437, not hidden behind *Ermogenous* [25]. 3. Classification without its reason: CRIT_round5 M3. ‘The bargain binding at once’ since v6 of the sheet. 4. ‘which becomes ’completely binding’’ misled: OPPOSING r2 row 21. v3 removed it (−7). 5. ‘nor commercially’: VOICE r2 M10. v3: ‘Read literally or commercially, Rocky’s payment would not meet words naming Grace:’. 6. VOICE r3 M8: dangling modifier (‘Read literally or commercially’ attached to ‘Rocky’s payment’). v4: ‘Read literally or commercially, words naming Grace do not cover Rocky’s payment:’ (0). 7. ‘His payment’ with a wrong antecedent: VOICE r2 M1. v3: ‘Rocky’s payment therefore likely does not meet the condition.’ 8. The stronger co-operation form (payment discharging the Loan). OPPOSING r2 row 22 and r3 II.H: MINOR, ‘+19 unfunded’. SHEET II.H Core (4) records that the pricing point answers it. Residual. 9. McHugh JA’s status. AGLC r1 item 6 wanted ‘dissenting’. Rejected: R-F; the principle is Mason J’s; SHEET II.H Core (3) forbids a status word. 10. The heading. VOICE r1 M10: ‘condition precedent’ unnamed. v2: ‘H. Condition precedent’ (R-X(6), three words for three; Gibbs CJ’s term at 582).

(h) Weight and round-3 grades. 4.5, tier C. - M1 Exc on v3’s four sentences: Core (1) the classification with its reason (CB3B 184, 582); Core (2) the commercial reading put and met by the pricing point (*Upper Hunter* 437); Cores (3) and (4) the duty to co-operate named, put and met (‘Nor does … assist:’, his signpost); Core (5). - M2 Exc on the same, checked at CB3B 184, CB3B 161, CB2A 109. - v4 change: sentence 2’s subject (VOICE M8).

(i) Residual risks. - ‘do not cover’ is now unhedged where v3 had ‘would not meet’. The sentence states the construction with its

reason after the colon, and the unit verdict (‘likely’) comes after the counters, so it is not a verdict before analysis on SHEET II.H Core (2)’s terms. Low. - The stronger co-operation form stated in terms: +19 (credit). - Grace repaying by 8 April 2025: credit, about +10.

II.I1 Privity: AMPL’s call, the burden aspect

v4 text: ‘Only a contract’s parties are bound by its terms:[fn 44] the guarantee clause binds Rocky only if he manifested assent,[fn 45] signature being neither necessary[fn 46] nor decisive.[fn 47] His ’I will do that’ likely binds him, but to AMPL only if Pierre accepted for it; otherwise AMPL has only the clause.’

(a) Issue. Whether the clause, in a contract between AMPL and Grace, can by itself bind Rocky; if not, whether he is bound by his own undertaking, and to whom.

(b) Facts. - Narrator: ‘The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan.’ This is the narrator’s description of the clause’s effect, not its words, so the answer never says the clause ‘states’ or ‘records’ a guarantee (D4). - Narrator: ‘before it was signed by Grace and AMPL’. - Rocky: ‘I will do that’.

(c) Arguments. - Rule, burden aspect: *Trident* (Deane J; majority on the result; by report, no pin, R-Y(1), (2)): ‘the general rule that only the parties to a contract are bound by, and entitled to enforce, its terms’ (TRI 203; Deane J’s opening sentence, confirmed against the official text by TRACER r3). - Rule, assent: *Empirnall* 534 (McHugh JA): ‘an external manifestation of assent to an offer’. - Signature not necessary: *Empirnall* 536: Empirnall was bound though ‘Eric does not sign contracts’ (CB1B 72). - Signature not decisive: *Coulls* 487 (Taylor and Owen JJ): ‘the mere fact that her signature appears does not make her a party’ (CB4 331). - AMPL’s argument: the clause binds Rocky as the narrator’s ‘personal guarantee provided by Rocky’. - Rocky’s argument: he never signed; and AMPL is no party to his undertaking if Pierre accepted for himself.

(d) Decisive reason. - A contract between AMPL and Grace cannot burden a non-party, so the clause binds Rocky only by his assent (II.I2). - Signature cuts neither way (T10, matching I.F2). - His oral undertaking binds him to whoever accepted it, which is AMPL only if Pierre acted for AMPL (II.F2).

(e) Conclusion and strength. The clause alone cannot bind Rocky: strong (S-8; D6 lists ‘the clause in the Loan Agreement binds Rocky by itself’ and ‘Rocky is not bound to anyone because he never signed’ as confidently wrong conclusions). Bound to someone: moderate to strong. Bound to AMPL: moderate, capped by S-7 (S-9).

(f) Further information. None beyond II.F2’s.

(g) Disagreements and how settled. 1. Source of the burden aspect. - v1 and v2 cited ‘Class 4A Slides, slide 2’ under R-J and R-N (no extracted judgment then stated the burden aspect). - R-Y made *Trident* a course reading; R-Z(2) barred slides. - v3: Deane J. 2. TRACER r3 side finding: in the course-reading file, lines 206 to 290 under the ‘DEANE J’ heading are in fact Toohey J’s judgment (official text, TOOHEY J at line 768), and Dawson J is absent. fn 44 rests on line 203, Deane J’s own opening sentence (official line 458), so it is unaffected; any later quotation from lines 206 to 290 must be attributed to Toohey J. 3. ‘to it’, ‘own’ (v2): cut for words, meaning unchanged. 4. T2 reconciliation (‘as to that clause only’, +4): credit (SHEET II.I1 Credit). 5. VOICE r3 O3 (‘His promise, ’I will do that’, likely binds him’, +1): unfunded.

(h) Weight and round-3 grades. 4.0, tier C. - M1 Exc on both sentences: burden aspect (*Trident*, Deane J, verified); T10; one marker per proposition (534; 536; 487); ‘likely’; the AMPL/Pierre dependency. - M2 Exc on the same, checked at *Trident*, CB1B 71 to 72, CB4 331. - v4: unchanged.

(i) Residual risks. *Trident* without a pin (R8, real-marker risk only).

II.I2 Privity: AMPL’s call, content and assent

v4 text: ‘Rocky promised what Pierre ’expected’, ensuring ‘all payments … promptly’, whereas the clause concerns ‘repayment of the Loan’. He likely assented to the clause if, with ‘a reasonable opportunity to reject’, he took the benefit of AMPL’s offer ‘with knowledge of its terms’.[fn 48] If AMPL promised, its $10,000 promise was arguably that benefit.[fn 49] The guarantee ‘provided by Rocky’ proves he gave one, not that he knew the clause’s words; having ‘attended’ the meeting, he likely assented unless he never saw them, but not if Pierre promised, AMPL conferring no benefit.’

(a) Issue. What Rocky promised (his oral undertaking, against the clause as described) and whether he assented to the written content.

(b) Facts. - Narrator: ‘Pierre expressed during the meeting that he expected Rocky to ensure that Grace made all payments under the Loan Agreement promptly.’ - Narrator: ‘The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan.’ - Narrator: ‘Rocky, Grace, and Pierre attended a meeting at AMPL’s office. At the meeting, AMPL and Grace entered into a written loan agreement’. - Narrator: ‘the clause was included in the Loan Agreement before it was signed by Grace and AMPL.’ - Narrator: ‘the personal guarantee provided by Rocky’. - Nothing says Rocky read or was shown the clause’s words, or objected.

(c) Arguments. - Rule: *Empirnall* 535 to 536 (McHugh JA; Samuels JA agreeing; Kirby P to substantially the same effect; ratio): - 535: ‘where an offeree with a reasonable opportunity to reject the offer of goods or services takes the benefit of them under circumstances which indicate that they were to be paid for in accordance with the offer, it is open to the tribunal of fact to hold that the offer was accepted according to its terms’; ‘This formulation states acceptance in terms of a rule of law. However, the question is one of fact’; - 536: ‘taking the benefit of an offer with knowledge of its terms’ (CB1B 72). - The ticket-case words ‘has or ought to have knowledge’ are McHugh JA’s analogy confined to carriage and bailment, never his rule (CRIT_fidelity_3 M2; CRIT_round3 M3).

- AMPL's argument: Rocky attended the meeting at which the clause was included; he took the benefit of AMPL's $10,000 promise; the narrator says a guarantee was 'provided by Rocky'. *Brambles* 179 (Heydon JA, his route; Ipp AJA, Mason P agreeing, reached acceptance differently): 'Applying the test stated by McHugh JA in Empirnall … The commercial benefit was a contractual right' (CB1B 80). - Rocky's argument (OPPOSING r3 M2): - silence is generally insufficient: an offeror 'cannot erect a contract between himself and the offeree by the device of stating that unless he hears from the offeree he will consider the offeree bound' (*Empirnall* 534); - knowledge of the clause's words is not shown; - he was the offeror of 'that' and Pierre the acceptor (II.A, II.B), so he accepted nothing; - the $10,000 priced his own words ('ensure … all payments … promptly'), not the clause's ('personally guaranteed repayment of the Loan'), and is unpaid; - he did not sign.

(d) Decisive reason. - On the AMPL branch, AMPL's $10,000 promise is arguably the benefit of AMPL's offer, and attendance is the fact going to knowledge. He likely assented unless he never saw the clause's words. - On the Pierre branch, the benefit the criterion requires must be the offeror's ('taking the benefit of an offer'), and AMPL conferred none, so there is no assent to AMPL's written content. - 'provided by Rocky' proves a guarantee was given, not that he knew the clause's words (R-M).

(e) Conclusion and strength. AMPL branch: 'likely assented … unless he never saw them'. S-9: assent to the written 'personally guaranteed' content moderate on Reading A, conditional on knowledge. Pierre branch: 'not', S-18 (the Pierre position weak to moderate overall, AMPL being the better view).

(f) Further information. Whether Rocky saw the clause's words: if he never saw them, no assent to the written content (cuts for Rocky: his exposure is then on his oral content, 'all payments … promptly'). Credit: the clause's actual words; whether he objected.

(g) Disagreements and how settled. The longest-running dispute in the answer. 1. Round 1. OPPOSING r1 1 (MATERIAL): 'taken nothing'; silence. v2: 'took the benefit of AMPL's offer 'with knowledge of its terms': his entitlement to the unpaid $10,000 was itself a benefit' (fn *Brambles* 182, Heydon JA). U13 (core from v11): 'of AMPL's offer' named so that 'its terms' keeps its antecedent. 2. Round 2. - Round-2 MARK_1 R8, TRACER r2 P1 and OPPOSING r2 rank 1 (MATERIAL): 182 is Heydon JA on consideration, not assent; 'unpaid' implies a sum due against II.H; wrong offer; the Pierre branch. - R-Y(4): replace 182 with Heydon JA where he applies *Empirnall*. - v3: 'He assented to the clause if, … 'with knowledge of its terms'. If AMPL promised, the clause arguably recorded the bargain whose $10,000 he accepted at the meeting he 'attended', without the objection it was for him to make.' (fn 49 *Brambles* 179; fn 50 *Brambles* 181, 'it was for the defendant to make plain'). 3. Round 3. - M2 R10 VG: II.I2's unconditional 'he likely assented unless he never saw them' against II.I3's 'it entered it for Grace's promises, not Rocky's'. - M2 upgrade 2: the verdict on the same condition as its benefit. - OPPOSING r3 M2 (MATERIAL): 'the bargain whose $10,000 he accepted' misdescribes II.A and II.B (Rocky offered, Pierre accepted), and the verdict presumes knowledge from 'attended'. - TRACER r3 P4: *Empirnall* 535 says the question is one of fact, so 'He assented … if' states a rule; P5: Heydon JA's route at 179 and 181 is not the majority's. - VOICE r3 S9: 'whose $10,000 he accepted' reads as money received. 4. v4's resolution (v4 CHANGES §1): - 'He likely assented … if' (P4, +1); - 'If AMPL promised, its $10,000 promise was arguably that benefit.' (benefit named without making Rocky the acceptor; 'arguably' because the $10,000 priced Rocky's own words); - fn 50 and 'without the objection it was for him to make' cut (−17; credit, M2's funding note); - 'having 'attended' the meeting' as the stated knowledge fact; - 'but not if Pierre promised, AMPL conferring no benefit' (the Pierre branch on *Empirnall*'s own element, +12). 5. SHEET Part 9 item 33 (CRIT_round5 m14): *Empirnall* concerns goods or services taken on terms; applying it to a conditional promise that was the price of Rocky's own offer may strike a lecturer as strained. A drafter who says so loses nothing; v4 does not say so.

(h) Weight and round-3 grades. 3.5, tier C. - M1 Exc on v3's four sentences: Core (1) contents with the right speakers; Core (2) criterion with the offer named (U13), the benefit named, 'attended' with the inference marked; Core (3) tier and direction ('unless he never saw them'). - M2 Exc on the same, checked at CB1B 72 and CB1B 79 to 81. M2 graded the tension with II.I3 once, at R10. - v4 change: sentences 2 to 4 rewritten. Untested.

(i) Residual risks. - 'but not if Pierre promised' is unhedged. S-18 rates the Pierre position weak to moderate, and SHEET II.I2 Credit describes the Pierre benefit point as one that 'weakens' assent, not one that negates it. A marker may read 'not' as overstatement (§2: VG at II.I2, 0.875, with R6 capped at VG, 0.5). v4 CHANGES §4.3 records it. Cost: 'but likely not if Pierre promised', +1. - The $10,000 as the benefit of AMPL's written offer sits against II.C1's 'priced Rocky's undertaking' (OPPOSING M2's point); 'arguably' carries it. R10 risk (0.25) if a marker reads two footings. Cost of an express reconciliation: about +8. - The last sentence carries three qualifications in 27 words; R1 clarity risk, no figure.

II.I3 Consideration from AMPL for Rocky's undertaking

v4 text: 'If AMPL promised the $10,000, that promise is its consideration. If Pierre promised, AMPL's advance was past consideration,[fn 50] sufficing under *Pao On* only if, besides Rocky's request, the parties 'understood that the act was to be remunerated'.[fn 51] Nothing shows that understanding on 27 February, whereas in *Pao On* it existed 'at the time of the main agreement'.[fn 52] AMPL would rely on entering the Loan Agreement, the clause included; yet Rocky priced his undertaking at '$10,000', not that entry,[fn 53] so AMPL likely gave no consideration.'

(a) Issue. Whether AMPL, calling on Rocky's undertaking, gave consideration for it, on each alternative of who promised the $10,000.

(b) Facts. - Narrator: 'On 27 February 2024, Rocky asked A-Maize Pty Ltd … to advance $1,150,000 to Grace. … the $1,150,000 was advanced by AMPL on the same day.' - Rocky, 8 April: 'I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.' - Narrator: 'the clause was included in the Loan Agreement before it was signed by Grace and AMPL.' - Pierre's expectation is first reported on 8 April.

(c) Arguments. - Rule, past consideration: *Roscorla v Thomas* (1842) 3 QB 234, 237; 114 ER 496 (Lord Denman CJ delivering the judgment of the Court): 'a consideration past and executed will support no other promise than such as would be implied by law' (CB2A 113). - Rule, the exception: *Pao On* [1980] AC 614, 629 to 630 (the Board; Lord Scarman delivering; the extract carries no AC page markers; pins verified per the brief): 'The act must have been done at the promisors' request: the parties must have understood

that the act was to be remunerated either by a payment or the conferment of some other benefit: and payment, or the conferment of a benefit, must have been legally enforceable had it been promised in advance.' Applied: 'The parties understood at the time of the main agreement that the restriction on selling must be compensated for by the benefit of a guarantee' (PO extract). - Rule, the bargain: *Australian Woollen Mills* 456 to 457 (as at II.C1). - AMPL's case on the Pierre branch (S-12; S-13; OPPOSING r3 M1): - the advance was made at Rocky's request ('Rocky asked'); - a past service 'raises an implication that at the time it was rendered it was to be paid for' (Bowen LJ via the PO extract); - its entry into the Loan Agreement, with the clause 'included … before it was signed', was 'really done in consideration of' Rocky's undertaking, a request being 'expressed or implied' (*Australian Woollen Mills* 456 to 458), detriment sufficing though the benefit goes to Grace; - *Pao On* 632, a promise to a third party. - Rocky's case: - nothing shows on 27 February an understanding that AMPL's advance would be remunerated by a benefit from Rocky; Pierre's expectation is first voiced on 8 April; - AMPL's return was Grace's interest (credit); - Rocky's own words price his undertaking at '$10,000', not at AMPL's entry, so AMPL's entry was not what he asked for (*Australian Woollen Mills* 456 to 457: 'really offered as consideration for the doing of the act').

(d) Decisive reason. - AMPL branch: AMPL's own $10,000 promise is fresh consideration. - Pierre branch, the past advance: it fails *Pao On*'s second condition on timing (the comparison named: same shape, different timing). - Pierre branch, the fallback: met by the bargain requirement; the promise Rocky offered named a different price, so AMPL's entry was not really done in consideration of the undertaking as offered.

(e) Conclusion and strength. 'so AMPL likely gave no consideration' (Pierre branch). S-12: the past advance unproven under *Pao On*'s second condition, moderate to strong against AMPL. S-13: AMPL's fallback moderate. Either conclusion Excellent if the bargain requirement is applied (SHEET II.I3 Strength).

(f) Further information. Credit: evidence of an understanding on 27 February (would reverse the *Pao On* limb, cutting for AMPL); a recital of consideration in the guarantee clause (O-3: on *Pao On*'s own reasoning the second precondition 'is simply one of the construction of the words of the contract in the circumstances of its making').

(g) Disagreements and how settled. 1. The fallback, put but not met (SHEET Part 9 item 41, 'the residual a lecturer is likeliest to press'). U2 made the meeting core in v11. v2: 'AMPL would rely instead on entering the Loan Agreement; yet Rocky priced his undertaking at'$10,000', so AMPL arguably gave no consideration.' 2. Round 2. - Round-2 MARK_1 and MARK_2 both graded II.I3 VG: 'arguably', after the fallback was met, takes no lean (§2). - R-Y(4): 'likely'. - OPPOSING r2 rank 2 (MATERIAL): the price alone does not answer AMPL on the content gap or the Pierre branch. - v3: 'AMPL would rely on entering the Loan Agreement; yet, having already advanced, it entered it for Grace's promises, not Rocky's, so it likely gave no consideration.' 3. Round 3. - M1 comment 5 and U1: v3 never confronts AMPL's best fact, that the clause sits in the very document AMPL entered. - M2 R10 and upgrade 1: II.I3 against II.I2 (proposed trap T21). - OPPOSING r3 M1 (MATERIAL): 'having already advanced' answers the advance, not the entry, and one entry can be the price of two promises. - VOICE r3 S10: the pronoun pile-up 'it entered it … so it'. - v4: 'AMPL would rely on entering the Loan Agreement, the clause included; yet Rocky priced his undertaking at'$10,000', not that entry, so AMPL likely gave no consideration.' This is M2's exact recommended form in substance, AMPL's best fact put (+1). 4. *Pao On*'s first condition (U32, core from v11): 'besides Rocky's request'. 5. Past consideration named (VOICE r1 M9; R-X(4)). 6. *Roscorla*'s ER pin. - AGLC r3 (its one FIX): the QB report carries a pin and the ER parallel does not, unlike fn 27. Either read the ER page on the ER reprint, or cite without pins as the casebook heading prints it. - v4 did neither. No course file or saved official text gives the 114 ER page for 3 QB 237; the reviser may not save a new official text; SHEET II.I3 Citation prescribes exactly '*Roscorla v Thomas* (1842) 3 QB 234, 237; 114 ER 496' (QB pin before the parallel, 'the ER pin is not in the course materials'). - fn 27 carries ER pins because McHugh JA's *Beaton* 181 prints them (CB2A 107). - Recorded as a disclosed residual (AGLC 1). 7. OPPOSING r3 II.I(3a) (', its price being Grace's interest', +5): credit; unfunded.

(h) Weight and round-3 grades. 4.0, tier C. - M1 Exc on v3's four sentences: Core (1) conditional, past consideration named; Core (2) the first condition on 'Rocky's request', the second on timing with the comparison; Core (3) the fallback put and met with *Australian Woollen Mills* 456 to 457, 'already advanced' being one of S-13's own 'against' reasons. Comment 5 recorded the unconfronted clause-in-document fact, without deduction. - M2 Exc, checked at the PO extract (629 to 630), CB2A 113, CB2A 101; the reconciliation with II.I2 graded once at R10. - v4 change: the last sentence. Untested.

(i) Residual risks. - The fuller meeting (the entry not 'really done in consideration of' the undertaking, stated in terms): credit. - 'its price being Grace's interest' (+5): credit. - *Roscorla* ER pin: an AGLC auditor would again flag it (R8 minor; 0.625 only in combination with a second minor). Cost 0 body words; needs a verified ER page or the unpinned heading form.

II.I4 Timing and consequences

v4 text: 'As the 12 months likely ran from 27 February, the call was not premature; if from 8 April, it was premature as to principal. Nothing shows interest paid after '8 February 2025', so a March default is arguable. If AMPL promised, Rocky likely owes AMPL on his undertaking when Grace defaults and, paying, loses the $10,000; if Pierre promised, AMPL's call, lacking consideration, likely fails, and Rocky claims against Pierre and is likely liable to him.'

(a) Issue. Whether AMPL's 9 March 2025 call was premature, on both readings of the 12 months; the client's position on each alternative of who promised.

(b) Facts. - Narrator: 'the Loan was repayable at the expiry of 12 months.' - Narrator: 'Between 8 April 2024 and 8 February 2025, Grace made appropriate monthly repayments of the interest on the Loan to AMPL.' - Narrator: 'on 9 March 2025, when Grace had not yet repaid the Loan, AMPL called for payment of the Loan under the personal guarantee provided by Rocky.' - Grace to AMPL: 'I have until 8 April 2025 to repay and you won't see a cent before then'. - Narrator: 'AMPL required the $1,150,000 as soon as possible' (motive only; it cannot accelerate the term).

(c) Arguments. - Timing: carried from II.G by 'As the 12 months likely ran from 27 February', the lean applied. - AMPL on the 8 April reading (OPPOSING r3 II.I(4)): nothing shows interest paid after 8 February 2025, so Rocky's undertaking to ensure 'all

payments … promptly' was engaged by March whatever the principal's date. The answer says exactly this ('a March default is arguable'). - Consequences, AMPL branch: Rocky's undertaking binds him to AMPL (II.I1), he likely assented to the clause if he saw it (II.I2), AMPL's promise is its consideration (II.I3). So he likely owes AMPL when Grace defaults and, paying, loses the $10,000 (II.H; T13). - Consequences, Pierre branch: AMPL has only the clause (II.I1), Rocky took no benefit from AMPL (II.I2), AMPL likely gave no consideration (II.I3). So AMPL's call likely fails, and Rocky's $10,000 claim and his exposure lie against Pierre (T11; S-18).

(d) Decisive reason. Each consequence carries its reason in the sentence: 'on his undertaking' (II.I1) and 'lacking consideration' (II.I3). That satisfies §1's tier rule, under which 'likely' needs its reason in the sentence or the one before (R-V(1); CRIT_round10 m2).

(e) Conclusion and strength. Timing open (S-1), carried from II.G. AMPL branch: Rocky likely liable (S-9, moderate). Pierre branch: AMPL's call likely fails; Rocky likely liable to Pierre (S-18, weak to moderate; S-13 moderate keeps AMPL's fallback arguable, which the 'likely' respects).

(f) Further information. - Whether the March 2025 instalment was paid: struck from R6's list, because the 'arguable' clause states the uncertainty and its effect (U3). - Whether Grace repays by 8 April 2025 (credit; M2 noted it unaddressed, without deduction): if she does, the $10,000 falls due on the 8 April reading, cutting for Rocky.

(g) Disagreements and how settled. 1. 'only postpones liability' (v2): TRACER r2 P2 and AGLC r2 10 objected that it states guarantee law; R-Y(4) removed it. v3 applied G's lean instead (round-2 MARK_2 upgrade 1). 2. Round 3: M1 and M2 both graded II.I4 VG. - M1: 'if Pierre promised, AMPL's call likely fails' has no reason in its sentence or the one before. - M2: both alternatives' 'likely' verdicts carry no reason and no cross-reference. - M1's fix: 'lacking consideration'. M2's fix: 'bound by his undertaking' and 'unsupported by consideration', +7. - v4: 'on his undertaking when Grace defaults' and 'lacking consideration' (+3), funded by the cuts in v4 CHANGES §2, not by M1's proposed cuts. 3. VOICE r3 M9: 'Interest shown paid only to '8 February 2025'' is a note-form reduced relative, and 'only to' asserts more than R-M allows. v4: 'Nothing shows interest paid after '8 February 2025', so a March default is arguable.' (+1; his 'nothing suggests' form). 4. 'paying,': VOICE r1 M35 flagged 'paying,' and the zeugma 'exposure lie against'. v2: 'if he pays'; 'Rocky claims against Pierre and is likely liable to him'. v4 returns to 'paying,' within its funding (v4 CHANGES §1 table, II.I4 S3). See (i). 5. Hedge density: VOICE r2 S24. v3 removed 'likely' before 'loses'. 'likely' at the head of the predicate governs both verbs; both round-3 markers accepted the unhedged 'loses' under R10 (T13). 6. OPPOSING r2 row 28 (a March interest default engages the undertaking, not the clause; +6): credit; unfunded. 7. v4 CHANGES §4.5: 'lacking consideration' names II.I3's reason; the want of assent (II.I2) is not repeated (+2).

(h) Weight and round-3 grades. 5.0, tier C. - M1 VG, 3.75: Cores (1) to (3) met; Core (4) failed the tier rule on 'if Pierre promised, AMPL's call likely fails, and Rocky claims against Pierre and is likely liable to him' (no reason in the sentence or the one before, and no cross-reference to II.I3 in terms). - M2 VG, 3.75: the same failure on both alternatives. - v4 change: both consequences now carry their reasons. Untested.

(i) Residual risks. - 'paying,' reintroduced: round-1 VOICE M35 treated it as a lapse. Map-writer's observation; R1 lapse risk. Cost: 'if he pays,' +2. - The want of assent not repeated in the Pierre consequence: +2. - Whether Grace repays by 8 April 2025: credit, about +10.

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4. Global rows R1 to R10 (round-3 grades on v3; status on v4)

Global-row cap (R-C): R2, R4, R6, R8 and R10 are capped at the lowest grade, among the units, of the core item they summarise. R1, R3, R5, R7 and R9 are graded independently.

R1 Style, clarity, conciseness, grammar, persuasiveness: his voice (4.0). - M1 Exc. Every measure inside his range. Flowing joins (eg 'Acceptance requires an external manifestation of assent: Grace's 'Confirmed' …'). No meta language, slide, banned signpost, question mark, em dash, double quotation mark or contraction. Short sentences are verdicts or frames and never adjacent. M1 accepted 'Both promises therefore likely bound' as the intransitive 'bound' the sheet's own I.F1 form uses. - M2 VG (3.0). Two lapses: 'Both promises therefore likely bound.' (reads as a missing verb) and the II.C2 *Pao On* sentence arguing on a premise the previous sentence denied, without 'even if'. - v4: both lapses fixed; VOICE r3 M1 to M9 applied (I.A garden path and tail; I.D elided subject; I.F2 antecedent; I.F3 verdict first; II.A nouns; II.F2 circular clause; II.H dangling modifier; II.I4 reduced relative). Measures recomputed inside every range (GATES §4). - New candidates for a lapse, none yet graded: - 'paying,' (II.I4), a form round-1 VOICE M35 rejected; - 'may be one' (I.A), an antecedent a reader could take as 'a firm offer'; - 'which proof that he disclaimed acting for AMPL would establish' (II.F2); - 'not yet shown' (P), a verbless tail; - intransitive 'bound' twice (I.F1; II.B), per VOICE r3 S5; - two parenthetical cross-references in Part I ('(D)'; '(II.G)') against 'at most about one per Part'. - VG allows 'up to two lapses'; a pattern is Good.

R2 Application of law to facts (3.0). - M1 Exc: *Gibson* both ways; *Masters* with *Winn v Bull* and *Niesmann*; *Meehan* on Gibbs CJ's limit; *Godecke* with its hedges; *Coulls* on its facts; *Sundell* met; *Banque Brussels* with the difference; *Pao On* on timing; *Empirnall* on its criterion. No authority cited for a proposition it does not support. - M2 Exc: the same list, with '*Sundell* by holding then distinguished' and '*Pao On* on timing ('whereas in *Pao On* it existed 'at the time of the main agreement'')'. - v4: the applications at I.D (the analogy, see I.D (i)) and I.E (the rebuilt honesty and parameters sentence) are untested, and R2 is capped by any application fault there.

R3 Layout, structure, strict IRAC (2.0). - M1 Exc: claimant v defendant Parts; A. Offer to F. Privity in order under each; 'G. Construction', 'H. Condition precedent', 'I. Privity: AMPL's call' lettered continuously (R-X(6)); no conclusion first at any level, every colon carrying a rule, a classification or a fact claim, or his 'Nor does … assist:'. - M2 Exc: the same, noting that 'Yet no earlier promise binds Rocky: …' is a fact claim, not the unit's verdict. - M1 U3 proposed that further headings name their subject (VG for a bare doctrinal word). Not adopted; v4 keeps 'G. Construction'.

R4 Issues and non-issues (2.0). - M1 Exc: C1 to C8 identified (C3 and C4 in the first line; C5 at I.A; C7 at II.F1; C8 at II.H and

II.I); every deciding planted fact used; no unit Omitted. - M2 Exc: the same; non-issues (5 February call, bullets, Development Agreement) named. - v4: unchanged in coverage.

R5 Prioritisation (1.5). - M1 Exc: Part I 515 words, Part II 898; I.D plus I.E 218 against the guide of about 215; II.I 295; one-liners one line. - M2 Exc: Part I 546, Part II 898; I.D and I.E 218. - v4: I.D plus I.E 224; II.I 297; Part I prose 511, Part II prose 905.

R6 Areas of uncertainty and further information (2.0). - M1 VG by cap (1.5): on its own content Excellent (every further-information clause carries its direction), but capped by II.I4's tier fault. - M2 VG by cap (1.5), the same cap; credit gap noted, not deducted: whether Grace repays by 8 April 2025. - v4: the cap's cause removed (II.I4 now gives reasons). Further-information clauses with direction: I.D ('unless those terms were settled 'this morning''); II.C2 ('though an earlier clause would favour AMPL'); II.F2 ('which proof that he disclaimed acting for AMPL would establish'); II.G ('unless the agreement dates it otherwise'); II.I2 ('unless he never saw them'). - New cap risk: II.I2's unhedged 'not' on the Pierre branch (a strength item).

R7 Terminology (1.0). - M1 Exc: invitation to treat; counter-offer; preliminary agreement; illusory; the doctrine of agency; joint promisee; circumventing the privity rule; bilateral contract; the existing legal duty rule; past consideration; letter of comfort; post-contractual conduct; condition precedent (heading); the duty to co-operate. - M2 Exc: the same list. - VOICE r3 graded terminology FAIL narrowly: 'implied duty of honesty', a proxy found in no course source; 'a duty owed to AMPL, a third party' not the course's wording of the exception. Both fixed in v4 at zero cost: 'an implied obligation to act honestly, or honestly and reasonably' (Mason J, CB3B 185); 'a duty owed to a third party, AMPL' ([4.300] heading).

R8 Citation, AGLC4 (2.5). - M1 VG (1.875): one minor non-compliance, fn 14 without '(Gibbs J)'. Everything else checked compliant (short titles; Ibid and (n X) chains; r 1.3 tails; *Eccles* '[1948] Ch 93'; *Roscorla* pin before the ER parallel; *Pao On* 632 and 629 to 630 only). - M2 VG (1.875): two minor non-compliances, fn 14 and fn 9's ', discussing' ('not an AGLC r 1.3 signal'). - v4: fn 14 fixed; fn 9 kept. The case for keeping it: - M1 r3 and AGLC r3 both read r 1.3 as listing 'discussing' (M1 cites the UWA AGLC4 guide, rule 1.3); - round-1 AGLC introduced the form (n 9: 'Add', discussing *Niesmann v Collingridge* (1921) 29 CLR 177''); - SHEET I.D Credit treats the', citing' form as 'optional and never deducted either way'. - Also open at R8: AGLC r3's *Roscorla* ER-pin FIX (not applied; II.I3 (g) 6). A marker counting either is at VG, and counting both is still VG ('up to two minor non-compliances').

R9 Word count and format (1.0). - M1 Exc: 'Word count: 1,498' = 1,495 + 3 (R-P); body at most 1,497; no bullets; longest quotation 10 words; quoted share 16.1%. Font, spacing and page numbers are for the .docx build. - M2 Exc: the same. - v4: same figures. The .docx is not yet built or checked (Stage 6).

R10 Consistency across Parts (1.0). - M1 Exc: T8; T10; T11; T13; T19; T20; T2 reconciled; T1 decided once at G; T17 not engaged. - M2 VG (0.75): one tension unremarked, II.I2's unconditional 'he likely assented unless he never saw them' against II.I3's 'it entered it for Grace's promises, not Rocky's'. - v4: II.I2 is branch-conditioned and II.I3 rewritten, so the chain is one footing (v4 CHANGES §1). Residual: II.I2 uses AMPL's $10,000 promise as the benefit of AMPL's offer while II.C1 calls it the price of Rocky's undertaking ('arguably' marks it).

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5. Open items before final, ranked by marks at risk

'Max at risk' is the SHEET_v12 deduction if a marker takes the point, including any R-C cap it triggers. 'Source' says who raised it; items marked 'map' are this map's own observations on v4 sentences no agent has yet read, offered for the round-4 panel to test. Word costs are body words; the body is at the 1,495 ceiling, so every addition must be paid by a verified cut that keeps every core (R-X(3)). No cut has been tested for this purpose; the one credit item the record shows as removable at a known cost is 'In *Godecke*,' at I.E (2 words; SHEET Part 9 item 39 records the clarity risk of removing it).

Rank	Item	Source	SHEET_v12 status	Max at risk	Cost	Form that would close it
1	I.D Core (2): 'absent here' dropped; the analogy's reason implicit	map (the same gap round-2 MARK_1 graded VG on v2)	core	2.25 (I.D VG 1.5; R2 cap 0.75)	+3	'assumed a contemplated formal contract, here absent, so it applies by analogy'
2	R1 lapse accumulation ('paying,'; 'may be one'; 'which proof'; 'not yet shown'; intransitive 'bound' x2; two Part I parentheticals)	map; round-1 VOICE M35; VOICE r3 S5	R1 Excellent requires none	1.0 at VG (two lapses); 1.6 at Good (a pattern)	+2 each; +6 for the first three	'if he pays,'; 'may be such a disclaimer'; 'and proof that he disclaimed acting for AMPL would establish it'
3	I.E Core (2A): the reasonableness limb met by statement; Walsh J (642 to 643) and Gibbs CJ 579 not put	v4 CHANGES §4.1, §4.2; OPPOSING r3 M3 (PART)	2A core; Walsh J and 579 credit	1.5 (I.E VG 0.75; R2 cap 0.75)	+8 (express reply on 'satisfactory', not 'reasonable'); +12 to +15 (Walsh J named and met)	a clause meeting 'reasonable in an objective sense' with *Godecke* 642 to 643 (Walsh J) on its own marker
4	II.I2: 'but not if Pierre promised' unhedged	v4 CHANGES §4.3	§2 overstatement; S-18 weak to moderate	1.375 (II.I2 VG 0.875; R6 cap 0.5)	+1	'but likely not if Pierre promised'
5	II.D: 'weaker here' not in terms	M1 r3 comment 4	both r3 markers Exc on the present form	1.25 (II.D VG)	+6	'a mark of seriousness weaker here'
6	I.D: the *Masters*	M1 r3 U2	credit (Part 9 item	1.5 if adopted, else	+4	'akin to the third

	category not named		36); core only if the sheet adopts U2	0		class’
7	R8 minors: fn 9 ‘, discussing’; fn 50 *Roscorla* ER pin; fn 38 ratification without Lord Reid’s ‘perhaps’	M2 r3; AGLC r3; map	not faults on SHEET_v12’s own lines	0.625 (R8 VG, one or two minors)	0 body words	fn 9 ‘, citing’ (equally accepted by SHEET I.D Credit); fn 50 per a verified ER page or the unpinned heading form; fn 38 to 240 (Barwick CJ), status disclosed (II.F2 (i))
8	II.I2 against II.C1: the $10,000 as benefit of AMPL’s offer and as the price of Rocky’s undertaking	OPPOSING r3 M2 (resolved in part); SHEET Part 9 item 33	R10 trap risk	0.25 (R10 VG)	about +8	a clause that the price of his own offer arguably doubled as the benefit of the written term
9	Heading ‘G. Construction’ names no subject	M1 r3 U3	accepted (§5); VG at R3 only if U3 adopted	0.5 if adopted	+3	‘G. Construction of the 12 months’
10	R5: I.D plus I.E 224 against about 215	map	R5 ‘do not much exceed’	0.375 (R5 VG)	0 to trim	none needed unless a marker presses
11	Credit items unfunded, 0 on SHEET_v12 but a real marker’s likely comments	OPPOSING r3 P2 (+6), I.F(1) (+11), I.F(2) (+9), II.H stronger form (+19), II.I(3a) (+5); II.I4 want of assent (+2); Grace repaying by 8 April 2025 (about +10); VOICE r3 S1 (+1), S2 (+2), S3 (+1), S6 (+2), O1 (+2), O2 (+2), O3 (+1); VOICE r2 S6 (+2); II.F1 ‘he being party to neither document’ (+6); I.F2 limb (b) applied (needs OPPOSING r2 row 9 met)	credit	0	as listed	not recommended before items 1 to 4
12	Voice floors: under-12 sentences 8 of 67 (11.9%); colons 13	v4 CHANGES §4.8; VOICE r3 floor note	R1 measured range	1.0 if a floor is breached	n/a	merging either new short sentence leaves 7 (10.4%); 6 breaches 9.1%; losing two colons breaches 0.81
13	Stage-6 gates not yet run	brief Part 7 Stage 6	stop condition	the stop condition itself	n/a	build .docx; verifier 0 FAIL on .docx; render and inspect; final map PDF

Arithmetic of the four highest SHEET-core items (ranks 1 to 4): +3, +6, +8 (the reasonableness reply only), +1 = +18 body words, against a body with no slack. The fixes in ranks 1, 2 and 4 together cost +10 and touch no other core. Rank 3’s minimum (+8) is the one funding decision of substance.

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6. Judgment calls disclosed (each a choice a reasonable marker could see differently, with where it was decided)

1. **Casebook author order.** ‘Andrew Robertson and Jeannie Paterson’, following the course slide’s full citation and the publisher; reading guide 1A’s surname order yields; title page not in the folder (R-X(1); SHEET Part 9 item 11). Moot in v4: casebook footnotes 0, every proposition cited to a case (R-Z(3)).
2. ***Eccles v Bryant* citation.** ‘[1948] Ch 93, 104’ in the ‘, quoting’ form after *Brambles* 176 (fn 24): the report as the Court in *Masters* prints it (CB3A 156) and as the official *Masters* text prints it; CB1B 77’s ‘[1948] 1 Ch 93’ is Heydon JA’s slip, faithfully reproduced by the casebook (R-X(2)). First-named parties only (‘and Pollock’ dropped; AGLC r 2.1.1; TRACER r2 P4(a) rejected).
3. ***Trident* with no pin.** Cited by report, judge named, no pin (fn 20, fn 44), because the course reading carries no CLR page markers (R-Y(1)). The verifier’s ‘report citation with no pinpoint’ lint is an accepted consequence; a real marker may still note it at R8 (SHEET Part 9 item 7).
4. **Brennan J, dissenting, for the routes around privity (fn 20).** He names agency, trust and estoppel in terms (TRI 115, 201); the dissent was on the result and is disclosed in the footnote (R-F). Mason CJ and Wilson J were checked first (v3 CHANGES §1). TRACER r3 P2 rated it a status-attribution risk with a zero-cost alternative; kept.
5. ***Port Jackson* for the agency elements (fn 15, fn 38).**

- Mason and Jacobs JJ at 269, quoting Lord Reid's conditions from *Midland Silicones* 474, used as the general elements of agency, as *The Eurymedon* and the joint judgment treat them, though framed for a Himalaya clause (v3 CHANGES §4.1).
- SHEET_v12 prefers 240 (Barwick CJ); 269 was accepted by M1 r3.
- The year (1978) follows the casebook heading although AustLII prints (1977) (AGLC r3, fn 15).
- v4 adds 'or ratification' at II.F2 from the same passage, without Lord Reid's 'perhaps', which R1 bars outside a quotation (II.F2 (i)).

6. ***Ermogenous* paragraph pins (fn 6, fn 33).** [25] to [26] and [26], not page pins: no course or saved official file carries 209 CLR page markers, and the textbook is never a page locator (R-Y(3)). His marked LAWS1061 answer pinned *Wicks* the same way without deduction. AGLC r 2.2.5 residual (AGLC r2 moderate 1; AGLC r3 residual 4).
7. ***Roscorla* with a QB pin and no ER pin (fn 50).** '(1842) 3 QB 234, 237; 114 ER 496', SHEET II.I3 Citation's exact form. No course file or saved official text gives the 114 ER page for 3 QB 237, and no page is guessed. AGLC r3's FIX (add a verified ER pin or drop both pins) is not applied. fn 27's ER pins come from the course page itself (McHugh JA at *Beaton* 181 prints '(1842) 2 QB 851, 859; 114 ER 330, 333-4', CB2A 107).
8. **Official-only footnotes at the cap of three.**
   - fn 15 and fn 38 (*Port Jackson* 269, read in OFF) and fn 32 (*Pao On* 632, read in OFF, the brief-verified pin), counted conservatively.
   - M1 r3 and M2 r3 treated *Port Jackson* as course-stated at [11.70] and so not counted; AGLC r3 counted it. *Pao On* 632's proposition is course-stated at [4.300].
   - Either way no fourth official-only footnote is possible: *Masters* 362 (*Crossley v Maycock*), *Godecke* 641 to 642 (Walsh J adopting Bray CJ) and *Godecke* 640 stay unused (R-H; R-L(5)).
9. ***Pao On* pins and judge.** 629 to 630 for past consideration and 632 for the third-party duty only, as verified for the brief (HANDOFF_BRIEF Part 3); the extract carries no AC page markers, hence the two CHECK PIN lines. The textbook's '631 to 632' was rejected (R-Y(3)). The Board, no judge named (R-P permits '(Lord Scarman for the Board)'; neither deducted).
10. **fn 9, ', discussing *Niesmann v Collingridge* (1921) 29 CLR 177'.** Kept against M2 r3. AGLC r 1.3 read as listing 'discussing' (round-1 AGLC introduced it; M1 r3 and AGLC r3 confirm). No course page prints Rich and Starke JJ's own pin, so the tail has none (lint accepted). *Niesmann* is cited only through *Masters* 361.
11. **fn 14 '(Gibbs J)'.** Added although the text names Gibbs J (the identity-apparent rule AGLC r3 relied on), because both round-3 markers required it, *Godecke*'s majority being Walsh J.
12. **fn 24 '(Lord Greene MR)'.** Kept although the text names him (AGLC r3 optional item 3), for consistency with fn 14.
13. ***Pace* as the short title (fn 10).** The second-named party; AGLC r 1.4.4 says 'generally' the first-named; optional (AGLC r3 item 2); kept.
14. **'Ipp AJA' (fn 40).** Per R-K (Mason P's words and the official heading); the casebook heading 'IPP JA' is its slip and is accepted by the sheet.
15. **'Rogers CJ' (fn 34).** As the casebook prints him; 'Comm D' not verifiable from permitted sources (SHEET Part 9 item 12).
16. ***Scammell* pin 268 (fn 35).** Sourced from the course itself, Mason J's recital at *Meehan* 587 (CB3B 184), not from outside knowledge (v3 CHANGES §3.1).
17. ***Sundell* paraphrased and cited by report alone (fn 30).** The court's words exist in the course only in the editors' note [4.190]; a paraphrase without quotation marks is cited by report, no judge named, and spends no casebook footnote (SHEET Part 9 item 18; R-Z(3)).
18. **Status words.**
    - Disclosed in footnotes where weight could matter: Windeyer J dissenting (fn 16, fn 37); Brennan J dissenting (fn 20).
    - Disclosed in the text: Gibbs J 'obiter' at I.E.
    - Undisclosed under R-F, weight unaffected for the point used:
      - McHugh JA at *Beaton* 181 and 185 (minority on the result; Patteson J's rule; Mason J's principle);
      - Kirby P at *Beaton* 168 (majority on the result; AGLC r3's contrary note is wrong at CB2A 109, 111);
      - Santow J at *Musumeci* 745 (first instance; 'long settled');
      - Rogers CJ at *Banque Brussels* 521 to 523 (first instance; descriptive contrast).
    - Heydon JA's own route at *Brambles* 179 marked only by '(Heydon JA)' (R-Y(4); TRACER r3 P5).
19. ***Masters* applied by analogy; *Winn v Bull* in the casebook's form.** The classes assume a contemplated formal contract, so they apply by analogy (S-4). Jessel MR is quoted around the official text's 'merely', which the casebook drops (R-K).
20. **Presumptions.** 'presumptions doubted' at I.D (the Court's own verb at [26]; TRACER r3 P3); 'No presumption governs cousins' at II.D (SHEET II.D Core (1); the editors at CB3A 146 [5.90]).
21. **Positions taken on open and moderate points, each with the opposite also capable of Excellent if best-reasoned (R-E; SHEET Part 9 item 16).**
    - Bullet 1 likely an offer in form (moderate).
    - The parties likely not intending to be bound (S-4, moderate).
    - The promise arguably illusory (S-5, weak to moderate).
    - Rocky likely gave consideration for the $10,000 (S-11, moderate to strong).
    - AMPL likely the promisor (S-7, moderate).
    - Reading A of 'the clause' (S-10).
    - The 12 months likely from 27 February, narrowly (S-1, open).
    - Rocky's own payment likely not meeting the condition (S-16; R-O).
    - Assent likely on the AMPL branch if he saw the words (S-9).
    - AMPL likely gave no consideration on the Pierre branch (S-12, S-13).
22. **Decide-once placements (R-B; R-Q; SHEET §5).**
    - The qualifier decided at I.D and carried to I.E by '(D)'.
    - The 12 months decided at II.G and carried to I.F2 by '(II.G)' and to II.I4 by the applied lean.
    - AMPL's call a further heading inside Part II ('I. Privity: AMPL's call'), never a Part III (S-29, Option 1).
    - Heading forms 'G. Construction', 'H. Condition precedent' and 'I. Privity: AMPL's call' (R-X(6)).
23. **Preliminary paragraph kept.** R-Z(1) permits omitting it. It is kept because it disposes of C3 and C4, which P grades wherever

they appear, in 28 words with no meta language.

24. **‘Word count: 1,498’.** Body 1,495 plus the line’s own three words (R-P); verify.py’s lint ‘Stated word count 1,498 does not match the count 1495’ is the expected consequence.
25. **Narrator statements (R-D, R-M).** Each inference beyond a narrated phrase is marked ‘arguably’:
    - the clause’s order after ‘Pierre agreed’ (II.C2);
    - AMPL’s call ‘arguably his undertaking’ (II.F2);
    - the 5 March demand ‘arguably premised on 27 February’ (I.F2);
    - ‘nothing shows interest paid after ’8 February 2025’’ (II.I4). ‘narrator’, ‘narrated’ and ‘narrative’ never appear (R-R(1)).
26. ***Empirnall* applied to a conditional promise.** McHugh JA’s criterion concerns goods or services taken on terms; the answer applies it to AMPL’s $10,000 promise as the benefit, with ‘arguably’ (SHEET Part 9 item 33; CRIT_round5 m14). The ticket-case ‘ought to have knowledge’ words are never stated as his rule.
27. **‘the clause’ read as the guarantee clause ‘named before it’.** Not ‘the only one named’: the problem also names the Development Agreement’s clause (round-2 MARK_1 upgrade 3, refined in v3).
28. **The invitation to treat named at I.A and II.A.** R7 needs the name once; II.A’s ‘likely an invitation to treat’ is the sheet’s accepted equal form.
29. **‘only’ removed at P.** The Development Agreement may have other terms; the problem says only that it ‘included’ the clause (TRACER r3 P7).
30. **Sources not opened.** The verifier’s crop q31_2, a page it indexes as ‘Textbook’ for the fact quotation ‘entered into’, was deliberately not opened. Nothing in the answer rests on the textbook, Studocu notes (R-I) or any Optional file.
31. **The *Trident* course-reading file’s heading defect.** Lines 206 to 290 under ‘DEANE J’ are Toohey J’s (TRACER r3). fn 44 relies only on line 203, Deane J’s opening sentence, confirmed in the official text.
32. ***Brambles* statuses.** Heydon JA’s construction principles at 163 to 168 are unanimous by adoption (Ipp AJA at 184; Mason P at 155; O-9), so fn 39 carries no status word. Ipp AJA at 191 is cited as the majority’s admissibility rule conditional on ambiguity, never as fixing a commencement date (S-3).
33. ***Gibson*’s ‘mortgage paragraph’.** Names the Council’s letter’s second paragraph, not Lord Diplock’s words (U27); fn 1 and fn 2 cite Lord Diplock for his reading of it at 298.
34. **Funding choices in v4 (v4 CHANGES §2).** Every addition was paid by a cut in the same text (net 0). Cuts declined because each would remove a core:
    - OPPOSING r3 F1 to F5;
    - VOICE r3 M7’s −8 form;
    - M1 r3’s ‘say that’ and ‘only for himself’ cuts.

3a. Latest marks: round-3 marker 1 (97/100, on v3)

MARK_1: MARKS/r3/in/ANSWER.md against SHEET_v12.md (blind, harsh)

Marker: fresh round-3 marker 1. Read in full before marking: question.txt; the Instructions (00 Assignment/Instructions.pdf, both pages); HANDOFF_BRIEF Parts 1, 4, 8, 9 and 10; RULINGS R-A to R-Z (R-Z applied as overriding); SHEET_v12.md (every line, including Parts 7 to 9 and Appendices A to C); VOICE.md as needed through voice_stats_v2.py; LAWS1061_feedback_sheet.txt; ISSUES_SETTLED S-13 (II.I3). No banned file opened.

Checks run on the exact text: - `verify.py check`: 62 quotations, 0 FAIL, 3 CHECK PIN (all resolved below); body 1,495 by the verifier's count; stated 'Word count: 1,498' = 1,495 + 3 (R-P: correct, not a D7 fault); lint 'no pinpoint' on fn 9 (*Niesmann* cited through *Masters* 361, the sheet's own form) and fn 20 (*Trident*, R-Y(1): accepted). - `voice_stats_v2.py`: 67 sentences; mean 21.6 [17.8 to 24.7]; under 12 words 10.4% [9.1 to 36.4], no adjacent short pair; semicolons 1.32 per 100 [0.85 to 2.02]; colons 0.90 [0.81 to 2.57]; sentences with ; or : 44.8% [36.4 to 72.7]; quoted words 16.1% [at most 20]; longest quotation 10 words; no sentence opening with a quotation; 0 dashes, 0 double quotation marks, 0 contractions. Every measure inside his range. - Meta and banned-word lint (week, slide, course, lecture, reading, syllabus, rubric, assignment, scope, narrat-, textbook, Paterson, Robertson, 'Here,', Moreover, Furthermore, clearly, question marks): no hit except the permitted mid-sentence locative 'absent here' (I.D). - Sources read at the page for anything in doubt: CHECK PIN 'entered into' (fn 19 context) is the problem's own words ('AMPL and Grace entered into a written loan agreement'), not a casebook quotation; CHECK PIN fn 52 and 53 (*Pao On* 629 to 630) are the extract's own pins, the sheet's required form. *Port Jackson* fn 15 and 38: OFF Port Jackson, Mason and Jacobs JJ paragraph 3, Lord Reid's four conditions quoted from *Scruttons* (1962) AC 446, 474, paragraph closing '(at p269)': the pin 269 and the 'quoting' tail are right; (2) 'in addition to contracting for these provisions on his own behalf, is also contracting as agent for the stevedore' and (3) 'the carrier has authority from the stevedore to do that' carry the answer's paraphrase 'with his authority, it contracted for him, not solely for itself'. *Trident* (course reading): Brennan J 'It was not suggested that agency, trust or estoppel availed McNiece' (fn 20; he dissented, so '(Brennan J dissenting)' is right); Deane J 'the general rule that only the parties to a contract are bound by, and entitled to enforce, its terms' (fn 44). *Brambles* CB1B 80 (179: Heydon JA applying *Empirnall*, 'The defendant, as offeree, had a reasonable opportunity to reject the offer … it soon took advantage of the benefit offered') and CB1B 81 (181, before the [182] marker: 'it was for the defendant to make plain …'). *Banque Brussels* CB3A 144: 'the facility was subject to BBL obtaining a suitable letter of comfort' (between 521 and 523) and 'made to induce another business person to enter into a business transaction' (523), so fn 34's 521 to 523 covers both. *Upper Hunter* fn 35's *Scammell* pin 268 is printed in the course at CB3B 184 (Mason J reciting at 587: '[1941] AC 251 at 268'), so it is course-sourced, not outside knowledge. *Australian Woollen Mills* (PC) fn 31: CB2A heading '(1955) 93 CLR 546 (Privy Council)', the passage 'The presence of a request does not, however, in itself establish a contract' at 550. *Godecke* CB3B 190: 'Perhaps it may be different …' under the heading GIBBS J at 647. AGLC r 1.3 'discussing' (fn 9) is one of the rule's listed linking phrases (UWA AGLC4 guide, rule 1.3, pp 8 to 9), so it is not a fault.

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1. Unit and row table

Multipliers: Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0. Each Excellent below quotes the sentence that earns it and names the core items it meets; each rule was checked at the source page the sheet cites.

Unit	Pts	Grade	Earned	Evidence (earning sentence; core items met; source checked)
P	2.0	Exc	2.000	'Nothing shows Grace promised to reimburse Rocky for paying AMPL; the 'legally binding' Development Agreement entitles Rocky to repayment only 'if the Project made a profit', which is not yet shown.' Core (1) C3 named in substance (reimbursement for paying AMPL) and disposed of; core (2) Development Agreement as stipulated, profit not yet shown. A fact claim, not a conclusion first; no excluded matter named.
I.A	3.0	Exc	3.000	'Grace's call 'proposed that Rocky offer', an invitation to treat, and bullets 2 and 3, 'Potential' and 'wait and see', promise nothing. On construction, 'I will lend' and 'Please confirm agreement', unlike *Gibson*'s 'may be prepared to sell', sought assent. Yet *Gibson*'s indicative paragraph could read as a firm offer only

				absent its disclaimer, which 'subject to satisfactory conditions' may resemble, a matter for intention and certainty. On balance, bullet 1 is likely an offer in form.' Core (1) call and bullets on deciding words; (2) construction; (3) *Gibson* distinguished on its words; (4) the second-paragraph similarity with the right direction (CB1A 42, 298: 'If the final sentence had been omitted …'), carried to D and E in the fuller credit form; (5) moderate tier with reason, 'in form' (credit) written.
I.B	2.0	Exc	2.000	'Acceptance requires an external manifestation of assent: Grace's 'Confirmed', sent '15 minutes later', added nothing, so it was no counter-offer. Grace therefore accepted the offer as made.' Criterion (CB1B 71, 534), deciding facts, counter-offer excluded and named, result 'as made' (the whole email, qualifier included; the sheet's accepted alternative form).
I.C	2.0	Exc	2.000	'Consideration is a price for the promise: Rocky's promise to lend was, in form, given for Grace's promise to repay at '5% interest', arguably implied by 'Confirmed'. Grace's promises to AMPL were likely given for its promise of '12 months' at '4% per annum'.' Core (1) criterion (CB2A 104, 168), inference marked, 'in form' (T20 avoided); core (2) AMPL's price named, 'likely'.
I.D	6.0	Exc	6.000	'Intention is assessed objectively, without presumptions, Rocky bearing the onus; the parties' status as 'project developers' favours it.' (core 1: [25], [26], status weighed). '*Masters*, asking whether a preliminary agreement was 'only a record of terms', assumed a contemplated formal contract, absent here, so applies by analogy.' (core 2, the +1 form; core 6 'preliminary agreement' named). 'Where none is stipulated, the question is whether terms 'should be put into form' or be subject to 'a new agreement' on terms 'not expressed in detail'.' (core 4, Jessel MR's own condition, CB3A 156, 363, the casebook form without 'merely' per R-K). 'As in *Niesmann*, where signing conditioned only 'the obligation to pay', 'Confirmed' settled amount, term and rate; yet 'satisfactory conditions' left further terms of the loan to Rocky.' (core 3, both best cases, Rocky's with its

				authority, CB3A 155, 361; T19 avoided). ‘On balance, the better view is that the parties likely did not intend to be bound, unless those terms were settled ’this morning’.’ (core 5, open tier, reason in the sentence before, further information with direction).
I.E	3.0	Exc	3.000	‘Rocky’s promise is illusory if its performance rests on his ’unfettered discretion’.’ (core 1, CB3B 166, 151). ‘*Meehan*, on ’satisfactory terms and conditions’, is distinguishable: there the discretion concerned only ‘the fulfilment of a condition upon which the contract depends’.’ (core 2, similarity named then distinguished on Gibbs CJ’s limit, CB3B 183, 581). ‘The conditions, as construed at D, are the loan’s own terms beyond its ’specified parameters’, terms Rocky would set and judge, so an implied duty of honesty confines nothing.’ (carry from D; core 2A, the honesty fetter put and met, *Meehan* 581 Gibbs CJ ‘No doubt it may be implied that the purchaser will act honestly’). ‘In *Godecke*, Gibbs J, obiter, doubted that terms left ’to be settled by one of the parties’ bind, ‘Perhaps’ excepting ‘subsidiary matters’, which the loan’s own conditions arguably exceed.’ (core 3, both hedges and the reason; CB3B 190, 646 to 647). ‘The promise is therefore arguably illusory.’ (core 4, ‘arguably’). fn 14’s missing judge is graded once, at R8.
I.F1	2.5	Exc	2.500	‘Even if the email bound, AMPL was Rocky’s agent only if, with his authority, it contracted for him, not solely for itself: though ’Rocky asked’, AMPL lent ‘$1,150,000’, not ‘$1 million’, and took his guarantee, so Rocky lent nothing.’ L order (hypothesis, criterion, facts, result); ‘Rocky asked’ met by the guarantee taken (U5); criterion cited to a case (*Port Jackson* 269, Mason and Jacobs JJ quoting Lord Reid; OFF ‘(at p269)’), the R-Z(3) preference met; the pin differs from the sheet’s 240 (Barwick CJ) but carries the same Lord Reid requisites from the joint judgment and is correct.
I.F2	7.5	Exc	7.500	‘Only a party can enforce a contract, and only if he provided consideration; whether one is a party turns on ’the written instrument itself’, not signature.’ (cores 1 and 2: both limbs, *Coulls* 494 to 495 alone, Windeyer J dissenting disclosed in the

				footnote; 487). ‘Mrs Coulls signed, yet the contract ‘purports expressly’ to be between her husband and the company; likewise AMPL and Grace ‘entered into’ the Loan Agreement.’ (core 3, no D4 ‘purports expressly’ assertion). ‘Nothing there makes Grace’s promise one to Rocky, so he is no joint promisee.’ (core 4). ‘Grace’s ‘I never signed anything’ is therefore right, though not for that reason, and the 5 March demand, arguably premised on the 12 months having run, fails.’ (core 5: planted line quoted and answered right in result, wrong in reason; consequence; premise marked ‘arguably’; the cross-reference is the verbal form R1 endorses, ‘the 12 months’). See comment 3 below on its thinness (no deduction).
I.F3	1.0	Exc	1.000	‘AMPL enforces its loan; agency having failed and no trust or estoppel appearing, nothing circumvents the privity rule.’ All routes disposed of on the facts; course term; fn 20 *Trident* (Brennan J dissenting) verified in the reading.
II.A	2.5	Exc	2.500	‘Pierre’s ’expected’ proposed nothing Rocky could accept, so it was likely an invitation to treat; Rocky’s ‘if you also promise’ sought a return promise, so he offered a bilateral contract.’ Criterion and deciding word for each; two markers (*Gibson* 298; *Brambles* 177 quoting McHugh JA).
II.B	3.0	Exc	3.000	‘Pierre ’agreed’, manifesting assent to Rocky’s offer, so he accepted for whomever he represented. AMPL would say nothing bound until execution; yet, as Lord Greene MR said of exchanges of contracts, parties are bound when and how they contemplate: nothing required a document or reserved a right to withdraw. Both promises therefore likely bound.’ Core (1) criterion and ‘agreed’, subject to who accepted; (2) AMPL’s argument put and met with the analogy disclosed (CB1B 77, 176; fn 24 ‘[1948] Ch 93’), *Masters* 361 on its own marker; (3) ‘likely’ and T8.
II.C1	1.5	Exc	1.500	‘The $10,000 promise, sought by ’if you also promise’, priced Rocky’s undertaking, which moved from him as promisee; if Pierre promised, Rocky’s detriment likely suffices, though AMPL benefits.’ Grammar right (the undertaking moves from Rocky); promisee named by name; ‘likely’; three markers

				(456 to 457; *Beaton* 181; *Musumeci* 745).
II.C2	5.5	Exc	5.500	‘The existing legal duty rule applies ’at least when’ a party to a pre-existing contract promises the promisee under it no more than it requires.’ (core 1, named, hedge kept, premises). ‘AMPL would say that ’also’ and the clause show a guarantee already given; as in *Sundell*, a promise to ensure performance already owed is no consideration.’ (core 2 and the rule’s content; *Sundell* paraphrased and cited by report, the v12 preferred form). ‘Yet no earlier promise binds Rocky: his 27 February request did not itself establish a contract, and the clause was arguably included after Pierre ’agreed’.’ (core 3 (i), (ii) tied to its fact and *AWM* (PC) 550, (iii) ‘arguably’). ‘If Pierre promised, Rocky’s promise to him to perform a duty owed to AMPL, a third party, can be consideration.’ (core 4, *Pao On* 632). ‘Ensuring ’all payments … promptly’ exceeds ‘repayment of the Loan’, so Rocky likely gave consideration, though an earlier clause would favour AMPL.’ (core 3 (iv) and core 5 with directional further information).
II.D	5.0	Exc	5.000	‘No presumption governs cousins; Rocky bears the onus.’ (core 1). ‘Against intention, the undertaking resembles a letter of comfort, which in *Banque Brussels* conditioned the facility it was made ’to induce’, whereas AMPL had already advanced.’ (core 2: the course term; the difference named with its reason, U28; its direction carried by ‘Against intention’). ‘Yet the undertaking was priced at’$10,000’ and given ‘at AMPL’s office’.’ (the answer). ‘Intention is therefore likely present on both sides, the price outweighing cousinhood even if Pierre promised.’ (core 3: Pierre re-weighed; ‘both sides’ is the consistency clause). See comment 4 (no deduction).
II.E	2.5	Exc	2.500	‘Ensuring ’all payments … promptly’, measured by the loan’s timetable, is not ‘so obscure’ that no intention can be attributed. AMPL’s promise, depending on Grace’s repayment, not its choice, is not illusory.’ Both sentences, each on its own marker (*Upper Hunter* 437 quoting Lord Wright; *Meehan* 581 to 582).

II.F1	1.0	Exc	1.000	‘Rocky, the promisee and payee ‘to me directly’, gave consideration, so privity does not bar him. The ‘included’ clause most naturally means the guarantee clause named before it; even a written $10,000 term would leave him the oral promise.’ Criterion, both readings, the reason for ‘most naturally’, *Coulls* 494 to 495 alone.
II.F2	4.0	Exc	4.000	‘Who promised turns on the doctrine of agency: whether Pierre, with AMPL’s authority, contracted for it, not solely for himself.’ (core 1, both questions as ‘whether’ clauses, a case cited). ‘AMPL, ’owned and controlled’ by Pierre, likely authorised him; his contracting for it is contested: Rocky asked ‘you’ to ‘also promise’.’ (core 2; core 3 opened with Pierre’s best fact). ‘Yet Pierre spoke ’at AMPL’s office’ about ‘payments under the Loan Agreement’, and AMPL called under the guarantee ‘provided by Rocky’, arguably his undertaking.’ (core 3 met, R-M inference marked). ‘On balance, AMPL likely promised, though ’you’ keeps Pierre’s promise arguable, decisively so if he spoke only for himself.’ (cores 4 and 5, alternative pleaded, further information with direction).
II.G	5.0	Exc	5.000	‘The ’12 months’ are construed objectively: pre-contractual conduct is admissible only if the words are ambiguous, and post-contractual conduct cannot show meaning.’ (cores 1 and 2; *Brambles* 163 to 164 and 167 to 168, Heydon JA). ‘The words are arguably ambiguous: the instrument ’recorded’ the sum ‘advanced’ on 27 February, the transaction’s ‘genesis’.’ (core 3, Ipp AJA 191). ‘Although the rate and term appear first on 8 April, the ’12 months’ attach to ‘the Loan’, whose use Grace had from 27 February, so the period likely ran from then, though narrowly, unless the agreement dates it otherwise.’ (core 4 both readings; core 5 lean with its own reason (U24), weak strength, further information with direction (U3)).
II.H	4.5	Exc	4.500	‘The bargain binding at once, ’once Grace repays the Loan’ conditions AMPL’s obligation, not formation; on 9 March Grace ‘had not yet repaid’, so nothing was payable.’ (core 1 with its reason; ‘condition precedent’ named in the heading; CB3B 184, 582). ‘Read literally or commercially, Rocky’s payment would not meet

				words naming Grace: the $10,000 falls due on what his undertaking secured, Grace's repayment.' (core 2, commercial reading put and met by the pricing point; *Upper Hunter* 437). 'Nor does the duty to co-operate, 'to do everything necessary' for Rocky's benefit, assist: nothing suggests AMPL's call prevents Grace repaying.' (cores 3 and 4: named, put, met on its own terms; 'Nor does … assist:' is on R1's list of his signposts; CB2A 109, 185 'citing' Mason J). 'Rocky's payment therefore likely does not meet the condition.' (core 5).
II.I1	4.0	Exc	4.000	'Only a contract's parties are bound by its terms: the guarantee clause binds Rocky only if he manifested assent, signature being neither necessary nor decisive. His 'I will do that' likely binds him, but to AMPL only if Pierre accepted for it; otherwise AMPL has only the clause.' Burden aspect (*Trident*, Deane J, verified); T10; one marker per proposition (534; 536; 487); 'likely'; the AMPL/Pierre dependency; nothing stated as settled.
II.I2	3.5	Exc	3.500	'Rocky promised what Pierre 'expected', ensuring 'all payments … promptly', whereas the clause concerns 'repayment of the Loan'.' (core 1, right speakers, no 'states'). 'He assented to the clause if, with 'a reasonable opportunity to reject', he took the benefit of AMPL's offer 'with knowledge of its terms'.' (core 2 criterion, the offer named, U13). 'If AMPL promised, the clause arguably recorded the bargain whose $10,000 he accepted at the meeting he 'attended', without the objection it was for him to make.' (benefit named; knowledge fact 'attended', inference marked). 'The guarantee 'provided by Rocky' proves he gave one, not that he knew the clause's words; he likely assented unless he never saw them.' (R-M line; core 3 with direction).
II.I3	4.0	Exc	4.000	'If AMPL promised the $10,000, that promise is its consideration. If Pierre promised, AMPL's advance was past consideration, sufficing under *Pao On* only if, besides Rocky's request, the parties 'understood that the act was to be remunerated'.' (core 1 conditional, doctrine named; core 2 first condition met on its fact). 'Nothing shows that understanding on 27 February, whereas in *Pao On*

				it existed ‘at the time of the main agreement’.’ (core 2 timing comparison). ‘AMPL would rely on entering the Loan Agreement; yet, having already advanced, it entered it for Grace’s promises, not Rocky’s, so it likely gave no consideration.’ (core 3: fallback put and met with the bargain requirement, *AWM* 456 to 457; ‘already advanced’ is one of ISSUES_SETTLED S-13’s own ‘against’ reasons). See comment 5 (no deduction; upgrade U1).
II.I4	5.0	**VG**	3.750	Cores (1) to (3) met: ‘As the 12 months likely ran from 27 February, the call was not premature; if from 8 April, it was premature as to principal. Interest shown paid only to ‘8 February 2025’ makes a March default arguable.’ Core (4) fails the tier rule on one clause: ‘if Pierre promised, AMPL’s call likely fails, and Rocky claims against Pierre and is likely liable to him.’ The ‘likely’ on AMPL’s call (S-13, moderate) has no reason in its sentence or the one before (the March-interest sentence), and the clause does not cross-refer to II.I3 in terms, which §1 and II.I4 Core (4) (R-V(1); CRIT_round10 m2) require. Comment 1.
Units	**80.0**		**78.750**	
R1	4.0	Exc	4.000	Every measure inside his range (above); flowing joins (‘Acceptance requires an external manifestation of assent: Grace’s ‘Confirmed’ …‘; ’Yet no earlier promise binds Rocky: his 27 February request did not itself establish a contract, and the clause was arguably included after Pierre ’agreed‘’); no meta language, no slide, no banned signpost, no question mark, no em dash, no double quotation mark, no contraction; short sentences are verdicts or frames and never adjacent; no note-form ellipsis, zeugma, wrong collocation or answer-external deictic found (‘AMPL enforces its loan’ is the v11 collocation; ‘Both promises therefore likely bound’ uses the intransitive ‘bound’ the sheet’s own I.F1 form uses, ‘Even if the email bound’).
R2	3.0	Exc	3.000	*Gibson* both ways; *Masters* with *Winn v Bull* and *Niesmann*; *Meehan* named then distinguished on Gibbs CJ’s limit; *Godecke* with its hedges; *Coulls* compared on its facts; *Sundell* met; *Banque Brussels* with the difference; *Pao On* on timing; *Empirnall* on its criterion; no authority cited for a proposition it does not

				support. Cap (R-C): no application grade below Excellent.
R3	2.0	Exc	2.000	Claimant v defendant Parts; A. Offer to F. Privity in order under each; G. Construction, H. Condition precedent, I. Privity: AMPL's call, lettered continuously inside Part II (course-vocabulary forms, R-X(6)); no conclusion first at any level (every colon carries a rule, a classification or a fact claim before it, or his 'Nor does … assist:').
R4	2.0	Exc	2.000	C1 to C8 all identified (C3 and C4 in the first line; C5 at I.A; C7 at II.F1; C8 at II.H and II.I); every deciding planted fact in Appendix B used in some unit; no unit Omitted; no non-issue argued without a planted fact.
R5	1.5	Exc	1.500	Counted: Part I 515 words, Part II 898; I.D plus I.E 218 against the sheet's guide of about 215; II.I 295; the one-liners one line.
R6	2.0	**VG** (cap)	1.500	On its own content Excellent: every further-information clause carries its direction ('unless those terms were settled 'this morning''; 'though an earlier clause would favour AMPL'; 'decisively so if he spoke only for himself'; 'unless the agreement dates it otherwise'; 'unless he never saw them'). Capped at VG by R-C, R6 being 'at most the lowest further-information or strength grade', and II.I4's tier fault is a strength grade.
R7	1.0	Exc	1.000	Each applied doctrine named once in the course's terms: invitation to treat; counter-offer; preliminary agreement; illusory; the doctrine of agency; joint promisee; circumventing the privity rule; bilateral contract; the existing legal duty rule; past consideration; letter of comfort; post-contractual conduct; condition precedent (heading); the duty to co-operate. No proxy or sheet label.
R8	2.5	**VG**	1.875	One minor non-compliance: fn 14 '*Godecke v Kirwan* (1973) 129 CLR 629, 646–7.' names no judge, where R8 requires the judge in brackets (the sheet's I.E Citation line: '646–7 (Gibbs J)'), and *Godecke*'s majority is Walsh J, so the bracket is not decorative. Everything else checked: short titles introduced after pin and judge; 'Ibid' only after single-source footnotes and '(n X)' after every 'quoting', 'citing' or 'discussing' footnote (fn 9, 23, 25, 33, 36, 41, 45); ', quoting' and ', citing' forms per r 1.3; *Eccles* '[1948] Ch 93';

				Roscorla pin before the ER parallel; *Pao On* 632 and 629–30 only; no slide, casebook or textbook footnote; every case name italicised in text and footnotes.
R9	1.0	Exc	1.000	‘Word count: 1,498’ = verifier body 1,495 + 3 (R-P); body at most 1,497; no bullets; longest quotation 10 words; quoted share 16.1%. (Font, spacing and page numbers are for the .docx build; nothing in the text breaches them.)
R10	1.0	Exc	1.000	T8 (‘Both promises therefore likely bound’); T10 (signature ‘not’ the test at I.F2 and ‘neither necessary nor decisive’ at II.I1); T11 (the II.F2 conclusion carried as ‘If Pierre promised’ into II.C1, II.C2, II.D, II.I1, II.I3, II.I4); T13 (‘if he pays, loses the $10,000’); T19 (‘amount, term and rate’); T20 (‘in form’); T2 reconciled by ‘Nothing there makes Grace’s promise one to Rocky’; T1 decided once at G; T17 not engaged (AMPL’s sequence rejected).
Global	**20.0**		**18.875**	

Automatic deductions: none. D1 lint clean; no D2 (every judicial quotation located at the cited page with the right speaker); no D3; no D4 (every derived fact marked ‘arguably’ or carried by ‘likely’; ‘Interest shown paid only to ’8 February 2025’’ is the sheet’s accepted form); no D5; no D6; D7 none (R-P); no D8; no D9; no D10; no D11; no D12; no D13 (*Trident* without pin is R-Y(1)’s accepted form; *Port Jackson* 269 is course-stated at [11.70], so it does not count toward R-H’s cap).

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2. Comments below Excellent (his marker’s style)

1. II.I4 (VG; 1.25 at stake, plus 0.5 at R6 through the cap). ‘Further analysis is required as your statement is conclusive.’ ‘AMPL’s call likely fails’ on the Pierre alternative states a consequence whose reason sits in the previous paragraph and is not carried; tell the reader why the call fails on that alternative. Exact fix: ‘if Pierre promised, AMPL’s call, lacking consideration, likely fails, and Rocky claims against Pierre and is likely liable to him’ (+2 words; ‘lacking consideration’ applies II.I3’s finding in terms, the fourth depth). Funding: II.C2 ‘AMPL would say that ’also’’ to ‘AMPL would say ’also’’ (−1, no loss); II.F2 ‘decisively so if he spoke only for himself’ to ‘decisively so if he spoke for himself’ (−1; the sheet’s own v11 form). Net 0; body stays 1,495.

2. R8 (VG; 0.625 at stake). ‘Ensure your citation precisely supports the proposition for which it is relied’: name the judge whose words you rely on; *Godecke* is Walsh J’s case on the result and Gibbs J’s dictum is obiter. Exact fix: fn 14 ‘*Godecke v Kirwan* (1973) 129 CLR 629, 646–7 (Gibbs J).’ (+2 footnote words, 0 body words). No funding needed.

Notes on Excellent units that a harsher real marker might still press (no deduction under SHEET_v12; listed so the reviser can decide whether spare words exist, which they do not at 1,495):

3. I.F2. The cross-reference is the verbal ‘the 12 months having run’, which R1 endorses, but the G heading reads ‘Construction’, so a reader in Part I is not told where the date is decided or which date the demand assumed. The sheet’s counted form ‘arguably premised on 27 February (II.G)’ is clearer. Swapping ‘the 12 months having run’ (5 words) for ‘27 February (G)’ (3 words) saves 2 words and is a zero-risk improvement; R1 tolerates about one parenthetical per Part.

4. II.D. The letter-of-comfort sentence gives the difference (‘whereas AMPL had already advanced’) and leaves its significance to ‘Against intention’. A marker who knows *Banque Brussels* enforced the letter may write ‘Name the difference and say which way it cuts’. The sheet’s ‘a mark of seriousness weaker here’ (+6) states it; unfunded at the ceiling.

5. II.I3. The fallback is met on ‘having already advanced, it entered it for Grace’s promises, not Rocky’s’, which is one of S-13’s ‘against’ reasons, so it meets the core. It does not confront AMPL’s best fact on that limb, that the guarantee clause sits in the very document AMPL entered, and it omits the pricing point the sheet prints as the core form (‘, though Rocky priced his undertaking at’$10,000’’). See upgrade U1.

6. Heading G. ‘G. Construction’ is course vocabulary and is not deducted (R3, §5), but it does not say what is construed; ‘G. Construction of the 12 months’ (+3) is the sheet’s accepted longer form. See upgrade U3.

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3. Total

Units: P 2.000 + Part I (3.0 + 2.0 + 2.0 + 6.0 + 3.0 + 2.5 + 7.5 + 1.0 = 27.000) + Part II (II.A to II.F 2.5 + 3.0 + 1.5 + 5.5 + 5.0 + 2.5 + 1.0 + 4.0 = 25.000; II.G 5.000; II.H 4.500; II.I1 4.000 + II.I2 3.500 + II.I3 4.000 + II.I4 5.0 × 0.75 = 3.750; Part II 49.750) = **78.750** of 80.

Global: R1 4.000 + R2 3.000 + R3 2.000 + R4 2.000 + R5 1.500 + R6 2.0 × 0.75 = 1.500 + R7 1.000 + R8 2.5 × 0.75 = 1.875 + R9 1.000 + R10 1.000 = **18.875** of 20.

Sum 78.750 + 18.875 = 97.625; automatic deductions 0; rounded down: **97 / 100**.

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4. Top fixes by marks per word, with funding

Rank	Fix	Marks recovered	Body word cost	Marks per word	Funding
1	fn 14 adds ‘(Gibbs J)’	0.625 (R8 to Exc)	0 (footnote)	unbounded	none needed
2	II.I4 ‘AMPL’s call, lacking consideration, likely fails’	1.75 (II.I4 1.25; R6 0.5 by lifting the cap)	+2	0.875	II.C2 ‘say that’ to ‘say’ (−1); II.F2 ‘spoke only for himself’ to ‘spoke for himself’ (−1)
3 (optional, no marks under v12)	I.F2 ‘arguably premised on 27 February (G), fails’ for ‘arguably premised on the 12 months having run, fails’	0 (risk reduction)	−2	n/a	self-funding; the 2 words saved can pay half of comment 4 or comment 6

With fixes 1 and 2 the answer grades 100 on SHEET_v12: every unit and row Excellent, no deduction, body 1,495, stated count 1,498.

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5. Proposed rubric upgrades (only where a real lecturer would demand what the sheet lacks)

U1. II.I3: the fallback must confront the clause in AMPL’s own document. On the alternative that Pierre promised, AMPL’s strongest fact for consideration is that the guarantee clause was part of the very Loan Agreement AMPL entered: ‘The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan’ and ‘the clause was included in the Loan Agreement before it was signed by Grace and AMPL’ (question.txt). The bargain test asks whether AMPL’s promise was ‘really done in consideration of a potential promise’ (*Australian Woollen Mills* 456 to 457, CB2A 101). A lecturer would ask of the answer’s meeting (‘having already advanced, it entered it for Grace’s promises, not Rocky’s’) why a guarantee written into the document AMPL signed was not part of what AMPL bargained for; nor does the sheet’s pricing point answer it, since AMPL may read ‘also’ as ‘in addition to entering the Loan Agreement’ (II.I3 Core (3), the sheet’s own words). Proposal: II.I3 Core (3)‘s meeting must name the clause-in-document fact and answer it (for example, that the clause recorded a bargain struck orally with Pierre for a $10,000 price, so AMPL’s entry was not given for it), or accept the fallback; a meeting that relies on ’already advanced’ or on the price alone is VG. Cost about +8; funding is the reviser’s under R-X(3). Material under R-S(5)(b).

U2. I.D: name the category the analogy points to. Reading guide 3A asks ‘What are the different categories of preliminary agreement? Which are binding on the parties?’, and *Masters* states the classes at CB3A 155 (360 to 361). An answer that applies *Masters* ‘by analogy’ (as this one does) but never says which class the email resembles leaves the reading guide’s own question unanswered; a lecturer would write ‘Which category?’. Proposal: where the answer relies on *Masters* by analogy, core (2) requires the class named in a clause (‘akin to the third class’, +4), the sheet’s current credit item (‘as the third class contemplates’, Part 9 item 36) moving to core. Material under R-S(5)(b), low cost.

U3. Further headings must name their subject. The Instructions mark ‘whether the layout and structure are logical and easy to follow’ (Instructions p 1). A bare ‘G. Construction’ in a Part with three further headings does not tell the reader what is construed, and Part I’s cross-reference to the 12 months then has no heading to land on. Proposal: R3 and §5 accept a G, H or I heading only if it names its subject in course or problem words (‘G. Construction of the 12 months’; ‘G. The 12 months’); a bare doctrinal word is one heading variant (VG at R3). Cost +2 to +3. Minor to material; the reviser may treat it as MINOR under R-S(5).

No other gap found: every other demand a harsh UNSW marker would make of this answer is already a core item in SHEET_v12.

Sources consulted outside the course files (citation form only, never cited in the answer): UWA Library AGLC4 guide, rule 1.3 (sources referring to other sources), confirming ‘discussing’ as a rule 1.3 linking phrase.

3b. Latest marks: round-3 marker 2 (96/100, on v3)

MARKS/r3 MARK_2: blind harsh mark of MARKS/r3/in/ANSWER.md against SHEET_v12.md

Marker 2 of round 3. Read in full before marking: question.txt; the Instructions (00 Assignment/text/Instructions.txt, both pages); HANDOFF_BRIEF.md Parts 1, 4, 8, 9 and 10; RULINGS.md R-A to R-Z; SHEET_v12.md (the grid, every unit descriptor, Part 7, Part 8, Appendices A and B; Part 9 consulted by item); VOICE.md (all sections); LAWS1061_feedback_sheet.txt. No banned file was opened. The textbook was never relied on (two verifier rows list a Textbook page as a secondary corpus hit for 'agent'; I did not read or use it).

Checks run on the exact text: - `verify.py check` (with facts and crops): 62 quotations, 0 FAIL, 3 CHECK PIN ('entered into', a problem quotation the corpus also finds in the casebook; the two *Pao On* quotations, the extract carrying no page numbers, 629 to 630 as verified for the sheet). Lint: body 1,495 by Word's rule; 'Stated word count 1,498 does not match the count 1495' is the R-P consequence (1,495 + 3), not a fault; 'fn 9' and 'fn 20' have no pinpoint (*Niesmann* cited through *Masters*; *Trident* by report, R-Y(1)), neither a fault. - `voice_stats_v2.py`: 67 sentences, 1,444 words; mean 21.6 [17.8 to 24.7]; under 12 words 10.4% [9.1 to 36.4]; semicolons 1.32 per 100 [0.85 to 2.02]; colons 0.90 [0.81 to 2.57]; sentences with ; or : 44.8% [36.4 to 72.7]; quoted words 16.1% [at most 20]; longest quotation 10 words; no sentence opens with a quotation; no adjacent short pair; 0 dashes, 0 double quotation marks, 0 contractions. Every measure inside his range. - Greps: no meta words (week, slide, class, lecture, course, reading, syllabus, rubric, assignment, scope, narrat); no textbook string; no banned signpost or intensifier ('Perhaps' appears only inside Gibbs J's quoted word); first-person hits only inside quoted words of the parties. - Source pages read by me for points I doubted: *Port Jackson* official text, Mason and Jacobs JJ paragraph 3, '(at p269)', quoting Lord Reid's four requisites from *Scruttons* at 474 (fn 15 and fn 38 are accurate); *Masters* 361 (CB3A, [5.160]): 'made it a condition of the obligation to pay' is the Court's report of Rich and Starke JJ, not a quotation from *Niesmann*; *Meehan* (CB3B): 'satisfactory terms and conditions' sits between the [580] and [581] markers and the limit sentence before [582], so 580 to 581 is exact; *Pace* 151 (CB3B 166) for 'unfettered discretion' and 'specified parameters'; *Brambles* 177 (CB1B 78, McHugh JA quoted, '(1988) 5 BPR 11,110 at 11,117–18'), 179 (Heydon JA applying *Empirnall* to a contractual right as a 'commercial benefit') and 181 ('it was for the defendant to make plain'); *Banque Brussels* 523 ('made to induce another business person'); *Upper Hunter* 437 and *Scammell* 268 (CB3B, the pin printed in Mason J's recital); *Trident* course reading (Brennan J: 'It was not suggested that agency, trust or estoppel availed McNiece'; Deane J: 'only the parties to a contract are bound by, and entitled to enforce, its terms'); *Australian Woollen Mills* (1955) 93 CLR 546 (CB2A heading, Privy Council); corpus `find` for *Musumeci* 745, *Coulls* 494 (and 495 per the official text), *Brambles* 164 and 168, *Meehan* 582, *Empirnall* 536, *Roscorla* 237, *Ermogenous* [25] and [26], *Beaton* 181 and 185.

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1. Margin notes (read cold, as the lecturer)

Preliminary paragraph. - 'reimburse Rocky for paying AMPL': Rocky has not paid; 'if he pays AMPL' is what you mean. Clear enough to a lawyer; not deducted. - The Development Agreement is disposed of on its stipulated words, 'legally binding' and 'if the Project made a profit', with 'not yet shown'. Good: a non-issue named and left.

I.A Offer. - 'an invitation to treat': the call is classified by the course's name on its own words. Good. - '*Gibson*'s indicative paragraph': which paragraph? It is the Council's letter's second paragraph, as Lord Diplock read it. A reader who knows *Gibson* follows; a weaker reader would not. Not a misattribution to Lord Diplock, so not deducted. - Direction of *Gibson* 298 is right: a firm offer 'only absent its disclaimer'.

I.B Acceptance. Clean L line: criterion, facts, 'so it was no counter-offer'.

I.C Consideration. 'in form' and 'arguably implied by 'Confirmed'' carry the two inferences. AMPL's price named. Good.

I.D Intention to create legal relations. - Onus, no presumption and the status factor applied to 'project developers': good. - *Masters* applied 'by analogy', the reason stated: good. - 'As in *Niesmann* … 'Confirmed' settled amount, term and rate': Rocky's best case with its authority, and the three settled terms named (so I.E's 'Perhaps' answer is not undercut). - 'yet 'satisfactory conditions' left further terms of the loan to Rocky': this is the crux, and it is asserted rather than argued; it carries *Winn v Bull*'s 'a new agreement' limb by application, which is enough here. - Further information with its direction ('unless those terms were settled 'this morning''): good.

I.E Certainty. - *Meehan* distinguished on Gibbs CJ's own limit, the shared 'satisfactory' formula named first: good. - 'so an implied duty of honesty confines nothing': terse to the point of being cryptic; the reason ('terms Rocky would set and judge') is there, so it meets the honesty fetter. - fn 14: no judge in the bracket. Gibbs J is named in the text, but every other footnote carries the judge; AGLC wants '(Gibbs J)'.

I.F1. Criterion in Lord Reid's form, 'Rocky asked' conceded and met by the guarantee taken, figures used. Model L line.

I.F2. - Both limbs, 487 for 'the written instrument itself', *Coulls* compared on its facts, joint promisee named and met: good. - 'right, though not for that reason': the planted line answered as it should be. - 'arguably premised on the 12 months having run': this is the cross-reference to G written in words, the form R1 prefers to '(II.G)'. Accepted.

I.F3. Three routes in one line, each on a fact. Good.

II.A to II.B. Classification on 'expected' with the criterion; bilateral contract on 'if you also promise'; *Eccles* analogy disclosed in the text; *Masters* 361 on its own marker. - 'Both promises therefore likely bound.': read cold, this parses as 'are likely bound' with the verb missing. Write 'Both promises therefore likely bind' or 'were therefore likely binding'. (R1 lapse 1.)

II.C1. Each proposition has its own marker; ‘Rocky’s detriment’ names the promisee. Good.

II.C2. - Rule named, hedge kept, *Sundell* put at full strength by holding, Rocky’s four answers with the request tied to ‘27 February’ and ‘arguably’ on the order. - ‘Yet no earlier promise binds Rocky … If Pierre promised, Rocky’s promise to him to perform a duty owed to AMPL … can be consideration.’: you have just said no duty bound him; the *Pao On* sentence only works as an alternative (‘even if a guarantee were already owed to AMPL’). As written the two sentences read against each other. (R1 lapse 2.)

II.D. Letter of comfort, the *Banque Brussels* difference with its reason (‘whereas AMPL had already advanced’), the price as the answer, Pierre re-weighed, ‘on both sides’ for Rocky bound likewise. Good. ‘to me directly’ is not used here (it is at F); the price carries the point.

II.E, II.F1. Clean.

II.F2. Both agency questions in one ‘whether’ clause; consent on ‘owned and controlled’; ‘you’ put; three facts met; ‘arguably his undertaking’; further information with its direction. K standard met.

II.G. Method, ambiguity decided with ‘arguably’, genesis, both readings, lean with its own reason (‘attach to ’the Loan’, whose use Grace had from 27 February’), ‘though narrowly’, ‘unless the agreement dates it otherwise’. Good.

II.H. Classification with its reason, condition precedent named in the heading, literal and commercial readings with the pricing answer, ‘Nor does the duty to co-operate … assist:’ met on its own terms. Good.

II.I1, II.I2. Burden aspect from Deane J; ‘neither necessary nor decisive’ on two markers; *Empirnall*’s criterion with the offer named, the benefit named and ‘attended’ as the knowledge fact; ‘provided by Rocky’ tested. - II.I2’s verdict (‘he likely assented unless he never saw them’) is unconditional, though its benefit sentence opens ‘If AMPL promised’. Keep that in mind at II.I3.

II.I3. - Conditional on F; past consideration named; *Pao On* first condition conceded on ‘Rocky’s request’, second contested on timing with the comparison: good. - ‘yet, having already advanced, it entered it for Grace’s promises, not Rocky’s’: AMPL executed an instrument that, on your own II.I2, contains a clause to which Rocky likely assented. Why was its entry not given, at least in part, for that clause? ‘Having already advanced’ answers why the advance was not bargained for, not why the entry was not. The unconditional II.I2 verdict and this sentence are not reconciled. (R10.)

II.I4. - Both readings, the March default ‘arguable’ in the accepted form, consequences on each alternative. Good. - ‘if Pierre promised, AMPL’s call likely fails’: why? The reason is two paragraphs up (no consideration from AMPL), and nothing here points to it. Same for ‘Rocky likely owes AMPL’ on the AMPL alternative, whose reason sits at II.I1. A verdict needs its reason in the sentence or a cross-reference to it.

Footnotes. fn 9 ‘*Masters* (n 7) 361, discussing *Niesmann* …’: ‘discussing’ is not an AGLC r 1.3 signal; the words quoted are the Court’s own report, so the form is ‘, citing’. fn 14 lacks ‘(Gibbs J)’. Everything else is in correct, consistent AGLC form, short titles introduced at first full citation, ‘Ibid’ never after a two-source footnote, case names italicised throughout.

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2. Grid: every unit and global row

Multipliers: Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0. Each Excellent below gives (a) the earning sentence quoted, (b) the core items it meets, (c) my check of the rule at the source page. Strengths are the sheet’s.

Unit	Pts	Grade	Score	Evidence (a) quoted; (b) core met; (c) source checked
P	2.0	Exc	2.000	(a) ‘Nothing shows Grace promised to reimburse Rocky for paying AMPL; the ’legally binding’ Development Agreement entitles Rocky to repayment only ‘if the Project made a profit’, which is not yet shown.’ (b) Core (1) C3 named as reimbursement for paying AMPL and disposed of; core (2) the stipulated Development Agreement with ‘not yet shown’; no meta, not conclusion-first (a fact claim, the sheet’s accepted form). (c) question.txt lines 11 to 15.
I.A	3.0	Exc	3.000	(a) ‘Grace’s call ’proposed that Rocky offer’, an invitation to treat, and bullets 2 and 3, ‘Potential’ and ‘wait and see’, promise nothing. On construction, ‘I will lend’ and ‘Please confirm agreement’, unlike *Gibson*’s ‘may be prepared to sell’, sought assent. Yet

				Gibson's indicative paragraph could read as a firm offer only absent its disclaimer, which 'subject to satisfactory conditions' may resemble, a matter for intention and certainty. On balance, bullet 1 is likely an offer in form.' (b) (1) call and bullets on deciding words; (2) construction; (3) *Gibson* distinguished on its words; (4) similarity with the right direction and carried to D and E; (5) moderate tier, reason preceding. (c) CB1A 42, 298: 'may be prepared to sell' fatal; the second paragraph 'might have been understood … as indicating a firm offer' only 'If the final sentence had been omitted'.
I.B	2.0	Exc	2.000	(a) 'Acceptance requires an external manifestation of assent: Grace's 'Confirmed', sent '15 minutes later', added nothing, so it was no counter-offer. Grace therefore accepted the offer as made.' (b) criterion, deciding facts, counter-offer excluded by name, result 'as made' (qualifier included). (c) CB1B 71, *Empirnall* 534.
I.C	2.0	Exc	2.000	(a) 'Rocky's promise to lend was, in form, given for Grace's promise to repay at '5% interest', arguably implied by 'Confirmed'. Grace's promises to AMPL were likely given for its promise of '12 months' at '4% per annum'.' (b) (1) price criterion, 'in form', inference marked; (2) AMPL's price named with 'likely'. (c) CB2A 104, *Beaton* 168 (Kirby P), 'a price in return for the promisor's promise'.
I.D	6.0	Exc	6.000	(a) 'Intention is assessed objectively, without presumptions, Rocky bearing the onus; the parties' status as 'project developers' favours it.' / '*Masters*, asking whether a preliminary agreement was 'only a record of terms', assumed a contemplated formal contract, absent here, so applies by analogy.' / 'Where none is stipulated, the question is whether terms 'should be put into form' or be subject to 'a new agreement' on terms 'not expressed in detail'.' / 'As in *Niesmann*, where signing conditioned only 'the obligation to pay', 'Confirmed' settled amount, term and rate; yet 'satisfactory conditions' left further terms of the loan to Rocky.' / 'On balance, the better view is that the parties likely did not intend to be bound, unless those terms were settled 'this morning'.' (b) (1) objective test, onus, no presumption,

				status weighed; (2) *Masters* 360 framed and the analogy disclosed; (3) both best cases, Rocky's with *Niesmann* and the three terms named; (4) *Winn v Bull* in Jessel MR's condition ('Where none is stipulated'); (5) open-point tier with direction; (6) 'preliminary agreement' named. (c) CB3A 137 [25], [26]; CB3A 154 to 156, 360, 361 ([5.160]), 363.
I.E	3.0	Exc	3.000	(a) '*Meehan*, on 'satisfactory terms and conditions', is distinguishable: there the discretion concerned only 'the fulfilment of a condition upon which the contract depends'. The conditions, as construed at D, are the loan's own terms beyond its 'specified parameters', terms Rocky would set and judge, so an implied duty of honesty confines nothing. In *Godecke*, Gibbs J, obiter, doubted that terms left 'to be settled by one of the parties' bind, 'Perhaps' excepting 'subsidiary matters', which the loan's own conditions arguably exceed. The promise is therefore arguably illusory.' (b) (1) criterion ('unfettered discretion'); (2) similarity named then Gibbs CJ's limit, reading carried from D; (2A) honesty fetter put and met; (3) dictum with both hedges and the 'Perhaps' answered with its reason; (4) 'arguably'. (c) CB3B 166 (*Pace* 151); CB3B 183 to 184 (*Meehan* 580 to 581, 581); CB3B 190 (*Godecke* 646 to 647). The fn 14 bracket is graded at R8.
I.F1	2.5	Exc	2.500	(a) 'Even if the email bound, AMPL was Rocky's agent only if, with his authority, it contracted for him, not solely for itself: though 'Rocky asked', AMPL lent '$1,150,000', not '$1 million', and took his guarantee, so Rocky lent nothing.' (b) hypothesis, criterion, 'Rocky asked' met by the guarantee, figures, result in L order (the colon joins a criterion to its application, not a verdict to its proof). (c) OFF *Port Jackson*, Mason and Jacobs JJ, paragraph 3 '(at p269)', quoting Lord Reid's requisites (2) and (3); course-stated at [11.70], so not an R-H official-only footnote.
I.F2	7.5	Exc	7.500	(a) 'Only a party can enforce a contract, and only if he provided consideration; whether one is a party turns on 'the written instrument itself', not signature. Mrs Coulls signed, yet the contract 'purports expressly' to be between her husband

				and the company; likewise AMPL and Grace 'entered into' the Loan Agreement. Nothing there makes Grace's promise one to Rocky, so he is no joint promisee. Grace's 'I never signed anything' is therefore right, though not for that reason, and the 5 March demand, arguably premised on the 12 months having run, fails.' (b) (1) both limbs on one source; (2) 487; (3) *Coulls* compared, no 'purports expressly' asserted of the Loan Agreement; (4) joint promisee named and met; (5) planted line right in result, wrong in reason, demand fails, the 12 months cross-referred in words (R1's preferred form). (c) CB4 330 to 331 (486, 487); CB4 333 (494; 495 per OFF).
I.F3	1.0	Exc	1.000	(a) 'AMPL enforces its loan; agency having failed and no trust or estoppel appearing, nothing circumvents the privity rule.' (b) all three routes on facts, L order, course term. (c) *Trident* course reading, Brennan J ('agency, trust or estoppel').
II.A	2.5	Exc	2.500	(a) 'Pierre's 'expected' proposed nothing Rocky could accept, so it was likely an invitation to treat; Rocky's 'if you also promise' sought a return promise, so he offered a bilateral contract.' (b) criterion and deciding word, hedged; bilateral on its words; two markers. (c) CB1A 42 (298); CB1B 78 (177).
II.B	3.0	Exc	3.000	(a) 'Pierre 'agreed', manifesting assent to Rocky's offer, so he accepted for whomever he represented. AMPL would say nothing bound until execution; yet, as Lord Greene MR said of exchanges of contracts, parties are bound when and how they contemplate: nothing required a document or reserved a right to withdraw. Both promises therefore likely bound.' (b) (1) criterion, fact, subject to F; (2) AMPL's argument put, analogy disclosed in text, *Masters* 361 on its own marker; (3) 'likely' with T8 ('Both promises'). (c) CB1B 71 (534); CB1B 77 (176, '[1948] Ch 93' correct per R-X(2)); CB3A 155 (361). The last sentence's grammar is graded at R1.
II.C1	1.5	Exc	1.500	(a) 'The $10,000 promise, sought by 'if you also promise', priced Rocky's undertaking, which moved from him as promisee; if Pierre promised, Rocky's detriment likely suffices, though AMPL benefits.' (b) bargain, moving from promisee (grammar correct), Pierre alternative named by

				name and hedged, three markers. (c) CB2A 101 (456 to 457); CB2A 107 (181); CB2B 122 (745).
II.C2	5.5	Exc	5.500	(a) 'The existing legal duty rule applies 'at least when' a party to a pre-existing contract promises the promisee under it no more than it requires. AMPL would say that 'also' and the clause show a guarantee already given; as in *Sundell*, a promise to ensure performance already owed is no consideration. Yet no earlier promise binds Rocky: his 27 February request did not itself establish a contract, and the clause was arguably included after Pierre 'agreed'. If Pierre promised, Rocky's promise to him to perform a duty owed to AMPL, a third party, can be consideration. Ensuring 'all payments … promptly' exceeds 'repayment of the Loan', so Rocky likely gave consideration, though an earlier clause would favour AMPL.' (b) (1) named, hedged, premises; (2) *Sundell* by holding, paraphrased and cited by report; (3)(i) to (iv); (4) Pierre alternative on the second premise; (5) tier, reason, direction. (c) CB2B 131 to 132 (594); CB2B 113 to 114 ([4.190], 327); CB2A 103 (550); OFF *Pao On* (632). The unsignposted alternative is graded at R1.
II.D	5.0	Exc	5.000	(a) 'No presumption governs cousins; Rocky bears the onus. Against intention, the undertaking resembles a letter of comfort, which in *Banque Brussels* conditioned the facility it was made 'to induce', whereas AMPL had already advanced. Yet the undertaking was priced at '$10,000' and given 'at AMPL's office'. Intention is therefore likely present on both sides, the price outweighing cousinhood even if Pierre promised.' (b) (1) onus, no presumption, cousinhood against objective features; (2) letter of comfort, difference with its reason and its direction (inside an 'Against intention' sentence); price as the answer; (3) Pierre re-weighed; 'on both sides' binds Rocky likewise. (c) CB3A 137 [26]; CB3A 144 (between 521 and 523; 523).
II.E	2.5	Exc	2.500	(a) 'Ensuring 'all payments … promptly', measured by the loan's timetable, is not 'so obscure' that no intention can be attributed. AMPL's promise, depending on Grace's repayment, not its choice, is not illusory.' (b) criterion applied; second

				sentence present. (c) CB3B 161 (437); CB3B 184 (581 to 582).
II.F1	1.0	Exc	1.000	(a) ‘Rocky, the promisee and payee ’to me directly’, gave consideration, so privity does not bar him. The ‘included’ clause most naturally means the guarantee clause named before it; even a written $10,000 term would leave him the oral promise.’ (b) both limbs on the oral promise; both readings with the reason (the sheet’s accepted ‘named before it’). (c) CB4 333 (494 to 495).
II.F2	4.0	Exc	4.000	(a) ‘Who promised turns on the doctrine of agency: whether Pierre, with AMPL’s authority, contracted for it, not solely for himself. AMPL, ’owned and controlled’ by Pierre, likely authorised him; his contracting for it is contested: Rocky asked ‘you’ to ‘also promise’. Yet Pierre spoke ‘at AMPL’s office’ about ‘payments under the Loan Agreement’, and AMPL called under the guarantee ‘provided by Rocky’, arguably his undertaking. On balance, AMPL likely promised, though ‘you’ keeps Pierre’s promise arguable, decisively so if he spoke only for himself.’ (b) (1) to (5) in full; R-M inference marked. (c) OFF *Port Jackson* 269 as at I.F1.
II.G	5.0	Exc	5.000	(a) ‘The ’12 months’ are construed objectively: pre-contractual conduct is admissible only if the words are ambiguous, and post-contractual conduct cannot show meaning. The words are arguably ambiguous: the instrument ‘recorded’ the sum ‘advanced’ on 27 February, the transaction’s ‘genesis’. Although the rate and term appear first on 8 April, the ‘12 months’ attach to ‘the Loan’, whose use Grace had from 27 February, so the period likely ran from then, though narrowly, unless the agreement dates it otherwise.’ (b) (1) to (5); the lean’s own reason (U24); direction (U3). (c) CB1B 73 (163 to 164), 76 (167 to 168), 82 (191, Ipp AJA).
II.H	4.5	Exc	4.500	(a) ‘The bargain binding at once, ’once Grace repays the Loan’ conditions AMPL’s obligation, not formation; on 9 March Grace ‘had not yet repaid’, so nothing was payable. Read literally or commercially, Rocky’s payment would not meet words naming Grace: the $10,000 falls due on what his undertaking secured, Grace’s repayment. Nor does the duty to co-operate, ‘to do everything necessary’ for

				Rocky's benefit, assist: nothing suggests AMPL's call prevents Grace repaying. Rocky's payment therefore likely does not meet the condition.' (b) (1) with its reason, condition precedent named in the heading; (2) both readings, pricing answer; (3) duty named and put; (4) met on its own terms; (5) tier; T13 at II.I4. (c) CB3B 184 (582); CB3B 161 (437); CB2A 109 (185).
II.I1	4.0	Exc	4.000	(a) 'Only a contract's parties are bound by its terms: the guarantee clause binds Rocky only if he manifested assent, signature being neither necessary nor decisive. His 'I will do that' likely binds him, but to AMPL only if Pierre accepted for it; otherwise AMPL has only the clause.' (b) (1) burden aspect, assent, signature on two markers; (2) 'likely', AMPL/Pierre dependency, exposure not stated as settled. (c) *Trident*, Deane J; CB1B 71 (534), 72 (536); CB4 331 (487).
II.I2	3.5	Exc	3.500	(a) 'Rocky promised what Pierre 'expected', ensuring 'all payments ... promptly', whereas the clause concerns 'repayment of the Loan'. He assented to the clause if, with 'a reasonable opportunity to reject', he took the benefit of AMPL's offer 'with knowledge of its terms'. If AMPL promised, the clause arguably recorded the bargain whose $10,000 he accepted at the meeting he 'attended', without the objection it was for him to make. The guarantee 'provided by Rocky' proves he gave one, not that he knew the clause's words; he likely assented unless he never saw them.' (b) (1) contents and speakers; (2) criterion with the offer named, benefit named, 'attended'; 'provided' tested; (3) tier and direction. (c) CB1B 72 (535 to 536); CB1B 79 to 81 (*Brambles* 179, 181, Heydon JA's reasoning, judge in the footnote, status not needing the text under R-F).
II.I3	4.0	Exc	4.000	(a) 'If AMPL promised the $10,000, that promise is its consideration. If Pierre promised, AMPL's advance was past consideration, sufficing under *Pao On* only if, besides Rocky's request, the parties 'understood that the act was to be remunerated'. Nothing shows that understanding on 27 February, whereas in *Pao On* it existed 'at the time of the main agreement'. AMPL would rely on entering the

				Loan Agreement; yet, having already advanced, it entered it for Grace's promises, not Rocky's, so it likely gave no consideration.' (b) (1) conditional, past consideration named; (2) first condition on Rocky's request, second on timing with comparison; (3) fallback put and met with the bargain requirement (fn 54, 456 to 457). (c) PO extract (629 to 630); CB2A 113 (237); CB2A 101. The reconciliation with II.I2 is graded once, at R10.
II.I4	5.0	**VG**	3.750	Core (4) consequences stated, but the 'likely' verdicts on each alternative carry no reason and no cross-reference: 'If AMPL promised, Rocky likely owes AMPL on Grace's default …; if Pierre promised, AMPL's call likely fails, and Rocky claims against Pierre and is likely liable to him.' §1 tier rule as applied to this clause by R-V(1) and CRIT_round10 m2 (sheet II.I4 core (4): the reason 'is carried by cross-reference to II.I3 … where the clause cross-refers in terms'). Cores (1) to (3) met: 'As the 12 months likely ran from 27 February, the call was not premature; if from 8 April, it was premature as to principal.' / 'Interest shown paid only to '8 February 2025' makes a March default arguable.'
Units	**80.0**		**78.750**	
R1 Style, voice	4.0	**VG**	3.000	All five measures inside his range; no dash, double quotation, contraction, meta word or banned signpost. Two lapses: 'Both promises therefore likely bound.' (reads as a missing verb, note-form); the II.C2 *Pao On* sentence states an alternative premise the previous sentence denied, with no 'even if'.
R2 Application	3.0	Exc	3.000	Every decisive and opposing authority applied by similarity and difference: *Gibson* both ways; *Masters* with *Winn v Bull*; *Meehan* on Gibbs CJ's limit; *Coulls* on its facts; *Sundell* by holding then distinguished ('no earlier promise binds Rocky'); *Banque Brussels* with direction; *Pao On* on timing ('whereas in *Pao On* it existed 'at the time of the main agreement''); *Empirnall* on its elements. No citation supports a proposition it does not. Cap: no unit's application item is below Excellent.
R3 Layout, IRAC	2.0	Exc	2.000	'I. ROCKY v GRACE'; 'II. ROCKY v AMPL (ALTERNATIVELY PIERRE)'; A to F exactly in each Part; 'G. Construction', 'H. Condition precedent', 'I. Privity: AMPL's call' (course

				forms, R-X(6)); the 12 months in Part II; no verdict before analysis; colons join a claim to its proof (II.C2 ‘Yet no earlier promise binds Rocky: …’ is a fact claim, not the unit’s verdict).
R4 Issues	2.0	Exc	2.000	C1 to C8 all identified (C3 and C4 in P; C5 at I.A; C7 at II.F1; C8 at II.H and II.I); non-issues (5 February call, bullets, Development Agreement) named; deciding facts attached (‘to me directly’ sits at II.F1, the price carrying II.D).
R5 Prioritisation	1.5	Exc	1.500	Part I 546 words, Part II 898; I.D and I.E 218 against the v11 core cost of about 215; II.I 295; one-liners are one line.
R6 Uncertainty	2.0	**VG**	1.500	Every further-information clause states its direction (I.D, II.C2, II.F2, II.G, II.I2). Capped at VG by R-C: II.I4’s strength item is VG. Credit gap, not deducted: whether Grace repays by 8 April 2025 is not addressed.
R7 Terminology	1.0	Exc	1.000	invitation to treat, counter-offer, bilateral contract, preliminary agreement, illusory, privity rule, joint promisee, doctrine of agency, existing legal duty rule, past consideration, letter of comfort, condition precedent (heading), duty to co-operate; no proxy or sheet label.
R8 Citation	2.5	**VG**	1.875	Two minor non-compliances: fn 14 lacks ‘(Gibbs J)’; fn 9 uses ‘discussing’, not an AGLC r 1.3 signal (‘, citing’). Otherwise correct: short titles introduced at first full citation; ‘, quoting’ and ‘, citing’ forms; ‘[1948] Ch 93’; *Roscorla* pin before the ER parallel; *Pao On* 629–30 and 632 only; one source per marker; italics throughout; no slide, casebook or textbook.
R9 Word count, format	1.0	Exc	1.000	‘Word count: 1,498’ = verifier body 1,495 + 3 (R-P); no bullets; longest quotation 10 words.
R10 Consistency	1.0	**VG**	0.750	One tension unremarked: II.I2’s unconditional ‘he likely assented unless he never saw them’ (to a clause of the Loan Agreement) against II.I3’s ‘it entered it for Grace’s promises, not Rocky’s’. T4, T8, T10, T11, T13, T19, T20 handled; T17 not engaged.
Global	**20.0**		**17.625**	

3. Comments below Excellent (his marker’s style), with the exact fix, word cost and funding

II.I4 (VG). ‘Further analysis is required as your statement is conclusive: give the reason for each consequence, or point to where you gave it.’ Fix: ‘If AMPL promised, Rocky, bound by his undertaking, likely owes AMPL on Grace’s default and, if he pays, loses the $10,000; if Pierre promised, AMPL’s call, unsupported by consideration, likely fails, and Rocky claims against Pierre and is likely liable to him.’ Cost +7 body words. Recovers 1.25 at II.I4 and lifts R6’s cap (+0.5): +1.75.

R1 (VG). ‘Avoid elliptical verdicts; signpost an alternative before arguing it.’ Fix 1: ‘Both promises therefore likely bind.’ (0 words).

Fix 2: ‘If Pierre promised, even a promise to him to perform a duty already owed to AMPL, a third party, can be consideration.’ (+1: ‘even’, ‘already’ in, ‘Rocky’s’ out). Cost +1. Recovers +1.0.

R8 (VG). ‘Ensure your citation precisely supports the proposition for which it is relied; name the judge in every pinpointed footnote.’ Fix: fn 14 ‘*Godecke v Kirwan* (1973) 129 CLR 629, 646–7 (Gibbs J).’; fn 9 ‘*Masters* (n 7) 361, citing *Niesmann v Collingridge* (1921) 29 CLR 177.’ Cost 0 body words (footnotes are excluded). Recovers +0.625.

R10 (VG). ‘Your positions at II.I2 and II.I3 must stand on one footing: if Rocky assented to the clause, say why AMPL’s entry into the very agreement that holds it was not given for it.’ Fix (II.I3, replacing ‘it entered it for Grace’s promises, not Rocky’s’, 8 words): ‘Rocky priced his undertaking at’$10,000’, not at AMPL’s entry’ (10 words). Cost +2. Recovers +0.25. (The fuller concession, adding ‘, though the clause’s place in that agreement keeps this arguable’, +9, is better advice but is not fundable without cutting a core.)

Funding at the 1,495 ceiling. Cut II.I2’s credit clause ‘without the objection it was for him to make’ and fn 50 (−10 body words): *Brambles* 181 is Heydon JA’s own route and is credit at II.I2, whose core is met without it by ‘with knowledge of its terms’, the $10,000 benefit and ‘attended’. The ten words pay R1 (+1), II.I4 (+7) and R10 (+2) exactly, leaving the body at 1,495 and ‘Word count: 1,498’ unchanged. Do not fund from ‘On construction,’ (I.A core (2)), ‘at AMPL’s office’ (II.D core) or ‘though narrowly’ (II.G core).

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4. Total, with arithmetic

Units: 80.0 − (5.0 × 0.25 at II.I4) = 80.0 − 1.25 = **78.750**. Global: R1 4.0 × 0.75 = 3.000; R2 3.000; R3 2.000; R4 2.000; R5 1.500; R6 2.0 × 0.75 = 1.500; R7 1.000; R8 2.5 × 0.75 = 1.875; R9 1.000; R10 1.0 × 0.75 = 0.750. Sum = **17.625**. Automatic deductions: none (D1 to D13 checked: no textbook; 0 FAIL quotations, no misattribution; statuses kept, ‘obiter’ for Gibbs J; no unmarked derived fact; no conclusion first; no D6 result; count correct; no bullets, quotation share 16.1%, longest 10; no dash, double quotation mark or contraction; every case italicised; *Pao On* pins correct; no proxy term; no *Trident* pin, no unchecked official quotation). Total = 78.750 + 17.625 = 96.375, rounded down: **96 / 100**.

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5. Top fixes by marks per word (body at 1,495)

Rank	Fix	Marks	Body words	Marks per word
1	R8: ‘(Gibbs J)’ in fn 14; ‘, citing’ in fn 9	+0.625	0	free
2	R1: ‘Both promises therefore likely bind.’; ‘even a promise … already owed’ at II.C2	+1.000	+1	1.00
3	II.I4: reasons in the consequence sentence (‘bound by his undertaking’; ‘unsupported by consideration’)	+1.750	+7	0.25
4	R10: II.I3 meets AMPL’s entry with Rocky’s pricing (‘Rocky priced his undertaking at’$10,000’, not at AMPL’s entry’)	+0.250	+2	0.13
Funding	Cut II.I2 credit clause ‘without the objection it was for him to make’ and fn 50	0	−10	

Net +0 body words (1,495); all four fixes recover 3.625, so the answer would mark 100 on this sheet if nothing else moves.

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6. Rubric upgrades a real lecturer would demand (proposed; none changes this mark)

1. **II.I3 core (3) and Appendix A: AMPL’s entry meets a clause in its own instrument.** The fallback’s strongest form is not ‘AMPL entered the Loan Agreement’ in the abstract but that AMPL executed an instrument that contained Rocky’s guarantee clause, ‘included in the Loan Agreement before it was signed by Grace and AMPL’ (question.txt lines 50 to 55), so its promises to Grace (‘12 months’ at ‘4% per annum’) are arguably the price of the package, the clause included. The bargain test is whether the act ‘was really done in consideration of a potential promise’ (CB2A 101, *Australian Woollen Mills* 456 to 457), and detriment to the promisee suffices though the benefit goes to Grace (CB2B 122, *Musumeci* 745; *Pao On* 632 for a promise to a third party). Proposed: core (3) requires the ‘gave none’ verdict to meet the clause’s place in the instrument (or to concede the fallback), and a new trap T21 (an unconditional II.I2 assent finding against a II.I3 ‘not for Rocky’s promise’ finding) is added to Appendix A, graded once at R10. Cost about +6 words.
2. **II.I2 core (3): the verdict on the same condition as its benefit.** Where the benefit named is AMPL’s $10,000 (‘If AMPL promised, …’), the verdict must carry that condition or the Pierre alternative must be addressed; otherwise the verdict reaches further than its reasoning. Source: CB1B 72, *Empirnall* 536 (‘taking the benefit of an offer with knowledge of its terms’: the benefit must be the offeror’s own). The sheet makes the Pierre weakening credit (S-18); a lecturer reading an unconditional verdict after a conditional premise would write ‘Answer with specificity to individual Ps’. Cost about +3 words.
3. **R8: name the only AGLC r 1.3 signals.** State that the second-hand forms are ‘, quoting’ and ‘, citing’ only, and that any other word (‘discussing’, ‘considering’, ‘applying’) is one minor non-compliance. The sheet’s I.D credit names ‘, citing’ for *Niesmann* but does not say other signals are faults. No body cost.
4. **R1 lapse types: (d) an unsignposted alternative and (e) an intransitive ‘bound’ verdict.** (d) a sentence that argues on a

premise the previous sentence denied, without ‘even if’ or ‘were’, is a clarity lapse (his own frame is ‘Even if a duty arose, …’, VOICE.md 2.1 item 8); (e) ‘X likely bound’ without an object or auxiliary reads as a missing verb and is note-form ellipsis under the existing type. No body cost.

4. The rubric in full (SHEET_v12)

LAWS1150/JURD7150: Principles of Private Law Mid-Term Assignment T3 2026 – Feedback Sheet

STUDENT NAME & zID: _____ Marked by: _____ Cross-marked: Yes / No

(NB: this sheet is the harshest standard the run marks against. A mark of 100 means that every graded unit and every global row is Excellent, each with the marker's quotation of the sentence that earns it and the marker's own check of the rule against the source page this sheet cites, and that no automatic deduction applies.)

How this sheet works (read before marking)

Version. SHEET_v12, the marking and drafting standard from this version: SHEET_v11.md carried whole, made consistent with RULINGS R-Y (*Trident* a Class 4A course reading; R-J and R-N superseded; the burden aspect of privity cited to *Trident* (Deane J) by report, judge named, no pin; the textbook never a source or page locator; guarantee-law statements such as 'only postpones liability' removed) and R-Z (the answer is advice to Rocky: no meta language in body or footnotes, never weeks, classes, lectures, slides, the course, the readings, the syllabus, the rubric or the assignment, and never 'outside the scope'; slides never cited; every proposition cited to a case; the casebook a last resort; a meta reference or slide citation an R1 and R8 fault, VG for one instance and Good for two or more; P's core no longer requiring excluded matters to be named). Every requirement or accepted form that put weeks, slides or the course into the answer is withdrawn or replaced by the case that states the point, each change listed in SHEET_v12_changes.md. No weight, multiplier, cap or grid unit changes. The sheet's own working text still names slides, weeks and the course where it locates a source for the marker or says what the answer must not do; those words never enter the answer.

v11 (carried). SHEET_v11, the marking and drafting standard from v11 to v12: SHEET_v10_1.md carried whole, with every UPGRADES_r1.md item decided ADOPT AS CORE or ADOPT AS GRADING FIX applied with its deciding passage, every credit-only item placed in its unit's credit list, R-X(1) to (7) applied, R-V(1)'s four grading tidies and CRIT_round10's minors m2 to m10 written as rule text, and every further-information clause required to state which way it would move the advice. Built by the Stage-5 rubric reviser from: HANDOFF_BRIEF.md (all); RULINGS.md R-A to R-X (binding; R-V(1), R-W and R-X new); SHEET_v10_1.md (all); CRIT_round10.md (M1 already applied in v10_1; minors m2 to m10); UPGRADES_r1.md (all 33 rows, the funding list and the special-care notes); PANEL/r1/AGLC.md and PANEL/r1/VOICE_TERMS.md, read only for the sheet-level rules (casebook author order, the *Eccles* report, AGLC r 1.4.4 for short titles, the course terms); every passage a change adds re-read at its source page (Appendix C, v11 paragraph). No answer, draft, mark file, NOT_FOR_DRAFTERS appendix or textbook was opened. The full grid of changes, each with its source and deciding passage, is SHEET_v11_changes.md.

What changed in v11 (summary). (1) The cores are the requirement and the floors are a feasibility record, not a quota (R-X(3); §1): the v11 cores cost about 1,571 words at the v10 counted forms, which no longer fits 1,495, so the answer, not the appendix, is now the feasibility proof, and Part 8's floor table is replaced by a statement of the v11 core costs and the funding order R-X(3) prescribes. (2) Five new core requirements (UPGRADES_r1 U1, U2, U4, U5, U32): I.E puts and meets Rocky's implied duty to judge 'satisfactory' honestly, its verdict hedged 'arguably' with I.D deciding the outcome (R-X(5)); II.I3 meets AMPL's fallback with Rocky's pricing of his undertaking and meets *Pao On*'s first condition on 'Rocky asked'; I.D weighs the parties' status as 'project developers' under *Ermogenous* [25]; I.F1 meets 'Rocky asked' on the purporting criterion with AMPL's taking of his guarantee. (3) Seventeen grading fixes (U3, U6, U7, U8, U10, U12 to U16, U20, U24, U26 to U29, U31), among them: every further-information clause states its direction (R6; Instructions p 1); R7 requires each doctrine the answer applies to be named once in the course's terms, listed with the slide or reading guide that uses it (R-X(4)); *Eccles v Bryant* is cited '[1948] Ch 93' (R-X(2)); the casebook is 'Andrew Robertson and Jeannie Paterson' (R-X(1)); short titles are introduced at the first full citation under AGLC r 1.4.4; R1 gains three lapse types (zeugma, wrong collocation, a deictic pointing outside the answer). (4) 'Frustration' leaves P's list of outside matters (R-X(7)); headings G, H and I may take course-vocabulary forms at no extra words (R-X(6)). (5) R-V(1)'s tidies and CRIT_round10 m2 to m10 are written into §1, §2, II.C2, II.H, II.I4, R1 and the deductions. No weight, multiplier or cap changes; the weights are reconciled to 100 with the arithmetic printed in Part 2.

Version history. SHEET_v10 (carried below), the drafting standard from v10 (R-U(7)): SHEET_v9.md carried whole, with every round-9 finding applied as R-U decides it. Built by the round-10 rubric reviser from: HANDOFF_BRIEF.md (all); RULINGS.md R-A to R-U (binding; R-U decides every round-9 finding; R-S(5) defines what is material); VOICE.md; SHEET_v9.md, its NOT FOR DRAFTERS appendix, SHEET_v9_changes.md and verify_appx9.json; the two round-9 critiques (CRIT_fidelity_9, one material, twelve minors; CRIT_round9, four material, fifteen minors), every passage a change touches re-read at the source page in full context before it was changed (dispositions, deciding passages and word costs in SHEET_v10_changes.md); question.txt; ISSUES_SETTLED.md (a map, not truth; read for S-13 and S-18); S4A PDF page 2 (text layer and page image); the official texts of *Port Jackson* (Mason and Jacobs JJ [5]) and *Brambles* ([116], [175], [176]) under `96 Official judgments/text/` (R-H); AGLC4 rr 1.3 and 1.4.3 (read for citation form only, outside the course files: Part 9 item 30); and the inputs of v9, carried (log in Appendix C). Nothing here rests on the textbook, any Optional file, BOOK_W4 Part 14 or any banned file.

What changed in v10 (carried; summary; the full grid of dispositions is SHEET_v10_changes.md). Every round-9 finding is applied as R-U decides it, each at zero cost; no floor, weight or multiplier changes, and the counted body stays at 1,494 of 1,495 (slack 1; 52 quotations, 0 FAIL). The five material findings: 'Class 4A Slides, slide 2' is no longer offered for both privity limbs, because it states only the party limb, so the rule's footnote is *Coulls* 494 to 495 alone at the grid lines, the I.F2 and II.F1 headings, I.F2's Core and Citation lines and II.F1's Rules, '[11.10]' is withdrawn at II.F1, a citation-fault (VG) Drop is added at I.F2 and II.F1, and slide 2 stays only as II.I1's option for the burden aspect (CRIT_fidelity_9 Finding 1; R-U(1)); II.I4's counted S3 reads 'If Pierre promised, claim and likely exposure lie against him' (ten words for ten), hedging the consequence II.I3's fallback leaves arguable, with II.I4 Core (4), II.I1 Core (2), II.I2 Credit and appendix section 7 reconciled (CRIT_round9 M1; R-U(2)); D6's signature entry and I.F2's Strength clause grading it Poor are deleted, signature reasoning with the right result being Good on both sides (CRIT_round9 M2; R-U(3)); II.G grades 'a confident date with no strength' once, Very Good, the Good Drop deleted and the advice-changing form

graded at II.I4 (CRIT_round9 M3; R-U(4)); the AGLC rule for a source quoting or citing another is cited as ‘AGLC r 1.3’ throughout, the rule having no sub-rules and v6 to v9 having printed a sub-rule number that does not exist (CRIT_round9 M4; R-U(5)). The zero-cost minors (R-U(6)): fn 8 and section-7 fn 107 cite Jessel MR’s words in the ‘, quoting *Winn v Bull*’ form, the following footnote taking the ‘(n X)’ form under AGLC r 1.4.3; fn 36 and fn 109 add *Brambles* 168 for the objective reading; the *Port Jackson* gloss at II.F2 Credit restates Mason and Jacobs JJ [5]; I.C’s *Brambles* [116] note corrected to [175] to [176]; Appendix C’s misquotation of the problem corrected; ‘arguably’ at II.D Core (2); identity row I.F2 (5) corrected; an R7 note on ‘intention’ as the Court’s short form; the section-7 II.C2 paragraph quotes ‘work … goods or services’ at its own count of 126; ‘Meehan 581’ for the honesty sentence; Part 2’s II.A to II.F block 25; item 40’s ‘six’; one deduction per error (D2, I.A, II.I3); ‘83.76’; the first-demotion descriptions at I.D and II.F2; II.C2 Core (3)’s limbs numbered; the section-7 I.D and II.G wording; Part 9 items 42 to 48 (the freeze note rewritten for R-U(7) and the residual risks of both critiques).

What changed in v9 (carried; summary; the full grid of dispositions is SHEET_v9_changes.md). Both round-8 critics found nothing material under R-S(5); the fifteen minors are applied or confirmed, each at zero cost, and none changes a core requirement, floor, weight, multiplier, cap or grading rule. The counted body is the v8 body word for word (1,494 of 1,495 with the headings, slack 1; 52 quotations, 0 FAIL). In the appendix’s section 7: the II.G 8 April paragraph reads ‘later conduct excluded on meaning’ (fidelity 1, five words for five, 76 of 76), and fn 107 in the I.D ‘bound’ paragraph sits directly after the *Winn v Bull* words it supports, the clause ‘Grace so reads ’satisfactory conditions’’ carrying no marker (fidelity 3, 122 of 122); both re-verified (0 FAIL) and the substitution table re-run, unchanged. In the sheet text: *The New York Star* [7] (the trial judge’s finding of agency ‘only by ratification’) and [8] (the Court of Appeal’s finding of agency ‘directly established by the evidence’) at II.F2 Credit, Appendix C and the carried v8 summary below (fidelity 2); ‘course-stated in substance only’ for the O-3 *Pao On* gloss at II.I3 Rules (fidelity 4); §1’s tier floor ranges corrected to K 95 to 126 and C 56 to 89, L 20 to 48 as counted (m1); ‘before it was signed by Grace and AMPL’ moved from II.B’s deciding facts to its supporting facts, matching Appendix B and the counted paragraph (m2); I.F2 Credit’s gloss on ‘here’ amended, and R1’s list glossed, so that only the sentence-initial ‘Here,’ is an R1 lapse and the model’s three mid-sentence uses are not (m3); the carried v8 summary and Part 8’s round-7 ledger say that two of the slack’s three words were spent, one remaining (m4); Part 9 item 38(h) reworded, with a note at II.C2 Core (3), so that neither II.C2 reading is a fact and both the counted ‘exceeds’ and the contrary ‘arguably adding nothing’ are accepted, the slack of 1 kept (m5); II.H Core (4) and Part 9 item 4 record that S2’s pricing point also meets the stronger form of the co-operation argument, the discharge question staying credit (m6); Part 9 items 40 and 41 name two residual risks with their credit forms, Grace’s planted line quoted at I.F2 (m7) and II.I3’s unmet fallback, the question a lecturer is likeliest to press (m8); ‘assumed a contemplated formal contract’ (+1) recorded as equally acceptable at I.D Core (2) and Part 9 item 36 (m9); Part 2 explains the I.A to I.E (16) and I.F (11) block weights (m10); R1’s ‘the counted model carries none’ confirmed (m11). Part 9 item 42 records the freeze status. Where carried text said ‘this revision’ of an earlier version, it now names that version, so that nothing in v9 is misdated.

What changed in v8 (carried; summary; the full grid of dispositions is SHEET_v8_changes.md). One material finding and eighteen minors, every one applied or recorded as R-T decides. The material finding (CRIT_round7 M1; R-T(1)): II.H’s construction question now puts and meets the commercial reading of ‘once Grace repays the Loan’ in a clause, AMPL’s pricing answer moving from credit to core; the counted S2 reads ‘would not literally meet it, nor commercially, the $10,000 pricing Grace’s repayment’ (+7, II.H 89), footnoted *Upper Hunter* 437, whose ‘no narrow or pedantic approach’ the sentence now meets in terms (*Ermogenous* [25] the accepted alternative, neither deducted: R-T(1); CRIT_round7 m15). Funded under R-R(7) by two of the slack’s three words (the slack falling from 3 to 1), by II.F2 S4’s ‘in the alternative’ (−3; ‘keeps Pierre arguable’ still pleads him) and by a zero-core-cost rewrite of I.D S2 (‘asking whether a document was ’only a record of terms’’, the form the counted I.D ’bound’ branch already uses and two critics graded Excellent: −3); the absorption of I.F3 into I.F2 that R-T(1) permitted was tested and NOT taken, because the critic’s form dropped ‘agency fails’ (I.F3’s first-demotion item, so it failed the identity test R-T(1) sets), and the form that keeps it nets only −1, lifts the counted mean to 24.5 and the II.C2-substituted mean to 24.9, outside his range (Part 8; Part 9 item 38). The two minors R-T(2) adopts: the II.C2 contrary paragraph now carries the ‘more than’ limb (126 of 126, 0 FAIL) and the conditional core and Strength line agree (m8); an I.E ‘bound’ paragraph is counted in the appendix (76 of 76, 0 FAIL), the false ‘already carries’ claim withdrawn, and the body with I.D and I.E both substituted is inside every range (m9). The fidelity correction R-T(3) adopts: II.F2’s credit gloss on *Port Jackson* and *The New York Star* now says what the official texts say (antecedent authority found on the evidence, Barwick CJ [21] and *The New York Star* [8], ratification the trial judge’s route, Barwick CJ [19] and *The New York Star* [7]; knowledge and reliance going to acceptance and consideration, Mason and Jacobs JJ [12]). In the counted model at zero cost: II.D S3 ends ‘Rocky being bound likewise’ (m4, his absolute form); II.G S1 reads ‘later conduct excluded on meaning’ (m5, the grid’s own words, so R1’s ‘the counted model carries none’ is now true); II.I3 S2 reads ‘remaining arguable consideration’ (m7, +1). Not funded, each credit with a Part 9 line: ‘In *Godecke*,’ before ‘Gibbs J’ at I.E (m2, +2; item 39); ‘the third class’ at I.D (m1, +2; item 36). In the sheet text: ‘in the next sentence’ at I.F2 and Appendix C (fidelity 1); ‘the $10,000 arguably sits outside AMPL’s document’ and ‘remains arguable’ in the II.F2 contrary paragraph (fidelity 3; 95 of 95); II.C2 Core (1)‘s note on the rule’s content (m3); the *Trident* no-pin residual risk stated at II.I1 and Part 9 item 7 (m6); II.G’s ’finely balanced’ and ‘no method’ Drops moved to Good to match §2 (m10); the Development Agreement (C4) reclassified in Appendix B as a stipulated non-issue, reconciling P’s first-demotion entry with R4 (m11); ‘floor 48’ at I.C (m12); ‘or a short Part III’ deleted at II.I (m13); II.I3’s ‘understanding formed on 8 April’ moved from Poor to Fair on the ladder item 37(d) adopted (m14). The grid remains 23 units, counted at 1,494 of 1,495 with the headings (slack 1), 0 FAIL, every voice measure inside VOICE.md’s ranges on the counted body and on every substitution (five contrary paragraphs, singly and together).

What changed in v7 (carried; summary). Nineteen minors, none material; every one applied or recorded with its reason, and none rejected outright. In the counted model (net 0 words; slack 3 untouched): I.C S2 reads ‘were likely given for its promise of ’12 months’’, the inference that the recorded term carries AMPL’s promise now marked in the tier word (fidelity 1, +1); II.I2 S3 reads ’included, arguably at the meeting he ’attended’’, the R-M inference marked exactly as the parallel inference at II.C2 is, and SHEET_v6_changes’ attribution of the earlier unmarked form to R-S(6) is corrected to a reviser’s judgment call (fidelity 2; round-6 m6, +1); II.D S2 drops ‘preceded’, which the *Banque Brussels* extract does not state in terms (fidelity 3, −2), and opens ‘Against intention, the undertaking resembles a letter of comfort’, the point no longer attributed to AMPL, whose call presupposes a binding undertaking (m5, 0); P’s absolute clause trails its main clause (m11, 0); fn 48 sits after the *Pao On* words it supports and the fallback clause carries no marker (m3, 0); fn 39 cites *Ermogenous* [25] for the objective meaning of Rocky’s own words, *Upper Hunter* 437 the accepted alternative (m4, 0); fn 30 carries the joint judges’ names as fn 6 does (a reviser’s consistency fix, 0). In the sheet text:

the *Roscorla* 237 credit quotation corrected to ‘no other promise than such as would be implied by law’ (fidelity 4); Windeyer J’s signature sentence pinned 490 (fidelity 5); II.B’s Strength line corrected to ISSUES_SETTLED S-15 and S-17 (m7); §1’s two-sentence L units named (m8) and II.E’s Drops mirror the first-demotion list (m8); II.A’s grid bracket no longer lists three different propositions as ‘eg’ alternatives (m9); II.G’s Poor for ‘for 1 year’ used as genesis without ‘mutually known’ moves to Fair, Poor being reserved for knowledge or ignorance asserted as fact under D4 (m10); R1’s quotation headroom figure corrected to about 50 words (m13); the Version paragraph’s ‘(−4)’ corrected to ‘(−6)’ (m1); *Ermogenous* [25]’s relationship factors at I.D recorded as a residual risk beside Part 9 item 23 (m12). In the appendix: section 7 counted every conditional core the sheet then named (II.C2, I.D, II.G and II.F2), with the whole-body substitution test as the operative voice test and the per-paragraph reading withdrawn (m2), ’one Glidewell LJ span’ (fidelity 6) and numeric footnote labels so that verify.py parses them. v7’s grid was 23 units, counted at 1,492 of 1,495 with the headings (slack 3).

What changed in v6 (carried; summary). Every round-5 finding was applied as R-S decides it. The seven material findings: fn 14 cites *Coulls* 494 to 495 (Windeyer J) alone for the general rule in relation to privity, 478 (Barwick CJ) moving to I.F2’s credit (M1; R-S(1)); II.D’s verdict re-weighs the Pierre alternative in a clause (‘the price outweighing cousinhood even if Pierre promised’: M2); II.H’s classification carries its reason (‘the bargain binding at once’, *Meehan* 582) and its verdict is hedged and sits after the counter (M3); I.E answers Gibbs J’s ‘Perhaps’ with the reason (‘which the loan’s own conditions arguably exceed’: M4); P identifies claim C3 in a clause (‘Grace having promised Rocky no reimbursement’: M5); II.I3 puts AMPL’s fallback consideration on the Pierre alternative (‘its entry into the Loan Agreement remaining arguable’) and its Strength line is corrected to ISSUES_SETTLED S-13 (M6, funded); the two elliptical clauses are full clauses (‘its promise of ’12 months’’; ’AMPL’s own promise suffices; if Pierre promised, the past advance’) and R1 carries a lapse type for note-form ellipsis (M7). Funding per R-S(4): *Mobil* 500 at II.H demoted to credit (−11), the duty to co-operate (Mason J via McHugh JA, *Beaton* 185) being the counter the core puts and meets; the restatements at II.C2 S6 (−6) and II.G S3 (−5) removed; and one further disclosed move named in Part 8, II.F2’s ‘for a payment outside the loan’ (−6; v6’s Version paragraph printed ‘−4’, a typo corrected here: CRIT_round6 m1), a fact the sheet’s own Facts list already rated credit; I.F3 is not absorbed, the words not being needed. The fidelity minors: CB1A 62; ‘appear first on 8 April’; ‘nothing suggests’ at II.H S4 (his form); *Upper Hunter* 437 and *Meehan* 581; every footnote marker now carries one source (fn 14 single; fn 18, 20, 30 and 40 of v5 split). The round-5 minors: R3 and R5 read ‘I’ and ‘II.I’; the Part III option is deleted (decide-once); the AGLC r 1.3 ‘, quoting’ form is adopted and recorded as a Part 9 judgment call; the per-unit first-demotion list with grades is printed in Part 8 (R-R(5)); the II.C2 contrary-branch paragraph is counted in the appendix (123 words, inside its floor); the T2 reconciling clause (‘as to that clause only’) is credit text at I.F2 and II.I1; m10 (joining II.B’s counter-frame) is rejected because the voice statistics forbid it; m4 is recorded as an accepted R-M inference; m9 is credit; m5, m7, m8, m13 and m14 are noted in Part 9 and R1. R-S(5)’s definition of a material finding is in Part 9 so that later markers know what counts.

What changed in principle (R-L). The standard is the best possible 1,495-word answer, not the best possible answer. The grid is cut from 34 graded units to 23 by the disclosed merges in Part 8. Each unit’s Excellent core is defined once, as a short list of requirements that a real paragraph in his voice, at the unit’s floor length, has been shown to satisfy (the paragraphs are in `SHEET_v10_appendix_NOT_FOR_DRAFTERS.md`; their counts total 1,494 with the headings, a v10 record that from v11 no longer proves the v11 cores fit: R-X(3), §1, Part 8; their voice statistics sit inside VOICE.md’s Part ranges; the appendix also carries the identity table, core item by core item against the sentence that carries it, so that a critic can check R-L(2) line by line, the five counted contrary-branch paragraphs (II.C2, I.D, I.E, II.G and II.F2) with the whole-body substitution test, and the per-unit first-demotion list). Everything the core does not list is credit: it earns nothing extra and loses marks only if stated wrongly. The Drops at each unit trigger only on core items. Official-only passages (*Masters* 362 on *Crossley v Maycock*; *Godecke* 641 to 642, Walsh J adopting Bray CJ) are credit, never core, because the marker reads against the course materials (R-L(5)). The mandatory quoted facts are reduced to those that decide a unit’s core (Appendix B); every other fact is credit.

Locator form. [CB4 331 | 487 | Taylor and Owen JJ | majority, ratio] = casebook file, printed casebook page, report pin, speaker, status. Unit codes in this version: Part I units are I.A to I.F3; Part II units are II.A to II.F2, II.G (the 12 months), II.H (the condition ‘once Grace repays the Loan’) and II.I1 to II.I4 (AMPL’s call); v3’s G, II.G1, II.G2 and II.H1 to II.H5 are those units under their old codes. CB1A Offer; CB1B Acceptance; CB2A Consideration 1; PO the Pao On extract; CB2B Consideration 2; CB3A Intention; CB3B Certainty; CB4 Privity; S1A to S4A the slide decks (slide numbers are the PDF page where the deck prints none, as in 4A; a slide locator in this sheet tells the marker where the course states a point and is never a citation the answer may use: R-Z(2)); OFF = the official judgment text under `96 Official judgments/text/` (R-H). ‘RG skip’ marks a reading-guide skip range, recorded for the register and never required or deducted in the answer (R-F).

1. Core and credit (R-B as made precise by R-L)

Every graded unit lists its **Core** as numbered requirements and its **Credit** as everything else. Excellent = every core item present and correct, and no credit item wrongly stated. A core item missing or wrong drops the unit as the Drops say; a credit item is graded only if stated wrongly (then by the Drops’ ‘credit wrong’ line, never above Very Good for a wrong rule and never above Fair for a wrong status or speaker that matters). Until v10 the core was exactly what the unit’s appendix paragraph carried, so the floor in the grid was the measured cost of the core; from v11 that is no longer so (next paragraph).

The cores are the requirement; the floors are a feasibility proof, not a quota (R-X(3)). The 1,495-word ceiling is binding, and every unit’s Core, as this version states it, is what Excellent requires. The floors printed in the grid and in each unit heading are the v10 counted paragraphs: a record that the v10 cores fitted in his voice, never a word quota a drafter must hit or may not exceed at a unit. The v11 cores cost more than the v10 floors (Part 8 states each unit’s v11 core cost at the v10 counted forms; about 1,571 words in all), so no appendix now proves feasibility: the answer itself is the proof, and the answer reviser re-allocates words by marks at risk per word, funding first every certain error, every UPGRADES_r1 ADOPT AS CORE item and every core this sheet adds, by (a) zero-cost rewrites; (b) cutting duplication, cross-references, restatements and credit text; (c) compressing units whose result is not in doubt (Rocky lent nothing on 12 February, I.F1; the preliminary paragraph, P; I.F3; II.E; II.F1), never dropping any unit’s core. A core item still unfunded is recorded in the map as a residual risk and graded by the unit’s Drops (or Part 8’s first-demotion list); it is never dropped silently, and this sheet never relaxes a descriptor to make the words fit. A marker grades each unit on its Core whatever its length: a unit longer than its v10 floor is not over-length, and one shorter is not short, unless R5’s prioritisation or

R1's conciseness is engaged. References in the descriptors and Part 9 to 'the slack', 'not funded at slack 1', 'the counted form' or 'credit, written where words allow' record the v10 word budget and the v10 counted model; from v11 the counted forms are examples of wording that meets the core, never the only accepted wording, and the answer reviser may fund any credit item under R-X(3) once the cores are funded.

Four accepted depths (R-B), three of them the tiers in the grid and the fourth a cross-reference (the floor figures in this paragraph are the v10 records; Part 8 gives the v11 core costs). **K** (core full IRAC; three units; floors 95 to 126, being II.F2 95, I.D 122 and II.C2 126: CRIT_round8 m1): the issue in course terms; the governing rule as the source states it with authority, pin and speaker; the deciding facts quoted; the opposing side's best point put and met; the decisive reason; a conclusion in the tier for the strength with its consequence; further information where it changes the advice. **C** (compact; eleven units; floors 56 to 89, II.I1 56 the lowest and II.H 89 the highest: CRIT_round8 m1): the issue; the rule's operative words with authority; the deciding fact; the opposing point in a clause; the decisive reason; the conclusion with strength. **L** (one-line disposition; nine units; floors 20 to 48, I.F3 20 the lowest and I.C 48 the highest, as counted; I.C, II.C1 and II.E are two-sentence L units, at 48, 26 and 35: CRIT_round6 m8): one or two sentences in which the quoted deciding fact and the operative words of the rule precede the result, joined by 'so', 'therefore' or a colon, with the authority footnoted; it is NOT a conclusive statement and is NOT caught by D5. A bare verdict, or a verdict followed by its reasons in a later sentence, remains conclusion-first (D5). A colon-joined claim-then-proof sentence is his form (VOICE.md 1.3: 'Colon = claim, then its proof') ONLY where the claim before the colon is a classification or a fact claim that the words after the colon prove ('The words are arguably ambiguous: the instrument 'recorded' the sum 'advanced' on 27 February …';'*Meehan* is distinguishable: …'; 'Purporting is contested: …'); a unit's verdict stated before its proof ('Rocky lent nothing: AMPL was his agent only if …') is conclusion-first at any level (brief R6; VOICE.md section 4 item 10, 'Verdict first, proof after a colon', a feature not to copy) and is never licensed, whatever follows the colon (R-R(2); CRIT_round4 M8, adopted; v4's wider carve-out is withdrawn and I.F1's counted sentence is rewritten in the L order). **The fourth depth**: a cross-reference to a doctrine decided in another unit or Part, graded on the clause that applies the earlier finding to the unit's own question (§4), as at II.I4 ('turns on the 12 months (G)') and I.F2 ('(II.G)').

'The operative words of the rule' means the criterion the governing authority itself applies (its test, not its label): 'an external manifestation of assent' (*Empirnall* 534), not 'an acceptance'; 'purporting to act on behalf of the principal and not solely on the agent's own behalf' ([11.70]; in a case's words, the agent 'contracted for the [principal's] protection as well as for his own', Lord Reid's requisite (2) as Barwick CJ states it at *Port Jackson* 240, the case form R-Z(3) prefers), not 'an agent'; 'so obscure and so incapable of any definite or precise meaning' (*Upper Hunter* 437), not 'certain enough'; 'the fulfilment of a condition upon which the contract depends' (*Meehan* 581; the words sit before the [582] marker), not 'a condition'. A line that names a category ('an unqualified acceptance'; 'objectively intended to bind'; 'capable of meaning'; 'the promisee') without the criterion is conclusive, however short, and is graded Good (CRIT_harsh_2 F2, adopted); 'communicated assent' or 'manifested assent' states the *Empirnall* 534 criterion in substance and passes (CRIT_round3 m8, adopted).

'Conclusive' (the marker's own usage). A statement is conclusive if it (a) asserts a result without reasons, or (b) quotes facts and asserts that they meet a test without applying the criterion the governing authority itself uses, or without naming the fact that satisfies each element of that criterion. Calibration: his LAWS1061 marker graded 'Jia is partially paralysed, in 'ongoing pain', and 'can no longer work in the tech industry': lasting impairment and lost livelihood apt to produce MDD, an RPI, in a person of NF' Good, with 'Further analysis is required as your statement is conclusive', because *Tame* and *Lederer* were not applied. A sentence of that shape is Good here, however fluent. A sentence of three or more semicolon-joined clauses each of which is a conclusion without its reason is conclusive (the unit capped at Good) and an R1 lapse.

Verdict tiers (core item at every K and C unit; the L result follows from its line). Unhedged, 'therefore' after the subject, where strong or uncontested; 'likely' before the verb where moderate to strong; 'On balance, the better view is that … likely …, [reason], though …' where moderate, weak or open. 'Likely' on a strong point is understatement (VG); 'clearly' or an unhedged verdict on a moderate or open point is overstatement (VG). 'Likely' alone on a moderate, weak or open point is a tier fault (VG) only where the sentence also omits the decisive reason; with the reason in the sentence or the one before it, it is accepted (CRIT_harsh_2 F13, adopted; the C and L forms carry strength by the single word 'likely'). Two limits on 'the one before it' (v11): that sentence counts only if it states a reason FOR THE LEAN, so a preceding sentence that states only the opposing point, or only that a category of evidence is admissible, supplies no reason, and a lean whose only preceding sentence is the counter has no reason (VG; UPGRADES_r1 U24, the deciding passage being *Brambles* 191, which makes 'the genesis of the transaction' admissible and says nothing of which date it favours); and a reason given in another unit counts where the sentence cross-refers to that unit in terms (a parenthetical or 'as at …'), the fourth depth applied to a reason (R-V(1); CRIT_round10 m2: II.I4's 'likely exposure' on the Pierre alternative takes its reason from II.I3 by cross-reference).

Required authorities. The authorities in brackets on each grid line, without 'eg', are required for Excellent: one missing is VG; none is Good. Authorities after 'eg' are alternatives, one of which suffices. Credit authorities are named in the descriptors and are never required.

No meta language; no slide citations; a case for every proposition (R-Z; v12). The answer is advice to Rocky. Its body and footnotes never mention weeks, classes, lectures, slides, the course, the readings, the syllabus, the rubric or the assignment, and never frame anything as 'outside the scope' (or 'outside Weeks 1 to 4', or 'not covered by this advice' in course terms); the restrictions that came from the task still govern what the answer covers, and the answer simply does not say so (R-Z(1), (4)). No slide is ever cited (R-Z(2); R-A(3) and R-P's slide limb are withdrawn): wherever this sheet's Rules at source, Credit or R7's term list names a slide (S1A to S4A), that is the marker's locator only, and the answer states the point in its own words with a case or omits it. Every proposition is cited to a case, *Trident* included (R-Y(1)); the casebook is a last resort, used only where no case in the readings states the proposition (R-Z(3)). Grading (R-Z(5)): a meta reference or a slide citation is an R1 and an R8 fault, each row capped at Very Good for one instance and at Good for two or more; it is graded at those rows and not again at the unit (one error, one deduction: Part 7). Every earlier line of this sheet to the contrary is superseded, whether or not v12 edits it.

Decide-once rules. (i) The meaning of 'subject to satisfactory conditions' is decided once, at I.D (the reading of 'conditions' and whether the parties intended to be bound), with I.E compact on its one decisive authority applied to that reading. (ii) The 12 months

is decided once, at II.G, and carried by cross-reference at II.H and II.I4. (iii) The $10,000 bargain and AMPL's call are one bargain whose elements are run once under II.A to II.F; I (AMPL's call) is confined to the burden aspect, the content of what Rocky promised and his assent to the written words, AMPL's consideration, timing and consequences; intention and certainty of the undertaking are carried by the clause at II.D ('Rocky being bound likewise'; the onus flip to AMPL is credit). (iv) The objective test of intention is stated once (I.D) and cross-referred. (v) Each aspect of the general rule in relation to privity is stated once where it bites: the benefit aspect and the two limbs at I.F2; the burden aspect at II.I1. (vi) The consistency traps a position engages are stated once where they bite (Appendix A). (vii) The minor claims (the Development Agreement; the Eastwood and Bowral items; any reimbursement by Grace; the $10,000 as a clause of the Loan Agreement) are satisfied in a clause each. (viii) The condition 'once Grace repays the Loan' is one unit (II.H): whether it is a condition of AMPL's obligation and nothing is yet payable, and whether Rocky's own payment meets it.

2. Tilt rule and strength caps (R-E; symmetric)

Each unit states the settled strength of the better conclusion. **Strong** (authority decides): a contrary conclusion is Poor and, where listed in D6, carries that deduction. **Moderate to strong**: a contrary conclusion is capped at Very Good. **Moderate, weak or open**: either conclusion can be Excellent if best-reasoned, and the unit says what best-reasoned requires on each side; required items and downstream consequences are stated conditionally on whichever conclusion the answer reaches. Overstating strength (an open or moderate point called clear or stated without a lean) and understating it ('finely balanced' where authority decides) carry the same cap, Very Good; where the misstatement changes the advice to the client (eg 'the call was clearly premature, so do nothing'; 'the call was clearly valid, so pay now'), Good. The rule runs both ways: a tilt toward Rocky beyond the sources (eg 'Rocky can enforce the Loan Agreement'; 'the $10,000 is payable now'; 'the call was premature' as clear; 'Rocky can pay AMPL and still recover the $10,000' as clear) and a tilt against him beyond the sources (eg 'Rocky is bound as guarantor of the principal' as clear while II.I2 is open; 'the call was not premature, so pay now') are graded alike. Correct advice that is bad news for Rocky is rewarded exactly as good news is. **At any moderate or open unit** (I.A, I.D, I.E, II.B, II.F1, II.F2, II.G, II.I2, the fallback limb of II.I3 and the timing limb of II.I4), a paragraph with no lean and no method is Good; with the method applied and no lean, Very Good; this rule is general and not confined to II.G (CRIT_round3 m15, adopted). Three disclosed departures from ISSUES_SETTLED's ratings, each with its reason stated at the unit as R-R(9) requires (CRIT_round10 m6: v10 printed 'Two' and omitted the I.D departure): at I.D an answer that deploys *Crossley* 362 and concludes 'bound' can reach Excellent, although S-4 rates the point moderate to strong where *Crossley* is deployed, because the Court's own hedges at 362 ('no special form of words is essential'; 'Nor is any formula … so intractable') and the absence of any contemplated formal contract are reasons the passage itself admits (I.D Strength; Part 9 item 5); at II.F1 either reading of 'the clause' is Excellent if both are run and the result is shown unchanged, although S-10 rates the guarantee reading 'moderate to strong', because the ambiguity is textual and the legal result is the same on both readings (Part 9, item 17; CRIT_round3 m14, adopted); at II.D the AMPL alternative is 'moderate to strong', not S-33's 'strong', because *Ermogenous* [25] and [26] make the point an objective weighing with the onus on Rocky and no High Court authority in the materials decides a family-and-company weighing on these facts (II.D Strength; Part 9, item 6; CRIT_round4 m12).

3. Narrator statements (R-D as clarified by R-M; one rule, applied identically everywhere)

A narrator's description in the problem is a fact to be taken as proven under the Instructions ('You may assume the facts provided in the scenario to be proven'), in its exact words and no further; what it implies beyond its words is argued as 'arguably', and the inference is drawn for each side. The three phrases, in R-M's words, applied the same way whichever party they help: - 'the clause was included in the Loan Agreement before it was signed by Grace and AMPL' proves inclusion before signing and no more; its order relative to 'Pierre agreed' and which clause it was are 'arguably' each way (II.C2, II.F1). - 'the personal guarantee provided by Rocky' proves that a personal guarantee was provided by Rocky and that AMPL called under it, and no more; what 'provided' consisted of (an oral undertaking, assent to the written words, or both) is 'arguably' each way (II.I1, II.I2). - 'appropriate monthly repayments of the interest' between 8 April 2024 and 8 February 2025 proves that interest was paid monthly, as the Loan Agreement required, in that period, and no more; what that implies about the commencement of the 12 months is 'arguably' each way (II.G). Likewise: 'AMPL and Grace entered into a written loan agreement' proves who entered into it and no more (the heading and parties clause are not narrated: I.F2); 'a letter of demand to Grace requiring repayment of the principal amount under the Loan Agreement with AMPL' is the narrator's description of what the demand required, not Rocky's quoted words nor the letter's, so 'the Loan Agreement with AMPL' is usable as the proven content of the demand and never as Rocky's admission (CRIT_fidelity_3 M7, adopted; I.F2; T5); 'AMPL called for payment of the Loan under the personal guarantee provided by Rocky' proves the call and that a guarantee was provided, so that AMPL called 'on the undertaking' (the oral promise) is the R-M inference and is written 'arguably' at II.F2 exactly as at II.I1 and II.I2 (CRIT_round3 M8, adopted); 'The Loan Agreement also included a clause that Rocky personally guaranteed repayment of the Loan' is the narrator's description of the clause's effect, not the clause's words, so the answer says 'the clause is described as' or quotes the narrator's 'that Rocky personally guaranteed repayment of the Loan', never 'the clause states' or 'records' (II.I1, II.I2; D4). The words 'ensure that Grace made all payments under the Loan Agreement promptly' are the narrator's report of what Pierre 'expected'; Rocky's words are 'I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan.' Attributing 'ensure … promptly' to Rocky as his words is a D4 speaker fault. An answer that uses any narrator phrase as evidence, says which use it makes, and marks the inference 'arguably', is eligible for Excellent whichever party the inference helps. **The words 'narrator', 'narrated', 'narrative' and 'the facts narrate' are this sheet's analytic labels and never words of the answer** (R-R(1); CRIT_round4 M2): they join R7's banned list, appear in no core requirement's prescribed wording and nowhere in the counted model; the drafter writes 'nothing suggests', 'appears', 'is shown', 'the facts arguably place', 'the clause described first', 'as described', as his Part A does ('nothing suggests SPC knew or ought to have known').

4. Evidence rule

A grade of Excellent is valid only if the marker (a) quotes the sentence or sentences of the answer that earn it, (b) names which core items those sentences meet, and (c) confirms each rule the sentence states against the source page cited in this sheet (not against this sheet's paraphrase). A grade without that evidence is void. A sentence earns its full requirement in one unit only; where a later unit cross-refers, that unit is graded on the clause that applies the earlier finding to its own question. For every grade below

Excellent the marker records the missing core item and a comment in the marker's style.

5. Placement

Substance is marked, and so is the one placement a ruling fixes. Rocky v Grace may run one A to F walk covering the 12 February email and the Loan Agreement (the counted structure) or two walks; AMPL's call is a further heading inside Rocky v AMPL ('I. AMPL's call'), never a Part III: the decide-once rule (§1 (iii)) runs the bargain's elements once under II.A to II.F, so a Part III would carry A to F headings with nothing under them or repeat Part II's analysis, and v5's Part III option is withdrawn (CRIT_round5 m2, adopted; R-S(6)). The 12 months sits in Part II (Rocky v AMPL) as 'G. The 12 months', where it decides whether AMPL's call was premature, with a one-clause cross-reference from Part I where Rocky's 5 March demand on Grace assumed the earlier date (R-Q; CRIT_round3 M9, adopted: two headings lettered G and a bare 'turns on G' are removed); headings are lettered continuously within each Part, so Part II runs A to F, G (the 12 months), H (the condition) and I (AMPL's call). A 12 months placed under Part I is graded on its substance but costs at R3 (VG), because its relevance to Rocky's claim against Grace is then unstated and the cross-reference crosses Parts. What is marked: headings exactly 'A. Offer', 'B. Acceptance', 'C. Consideration', 'D. Intention to create legal relations', 'E. Certainty', 'F. Privity' under each Part, in that order; further headings in course words or in the problem's own words ('G. The 12 months'; 'H. The condition' (the v10 counted form; 'condition' is Gibbs CJ's word at 581 to 582) or 'H. The condition 'once Grace repays the Loan''; 'I. AMPL's call' or 'I. AMPL's call of 9 March 2025'); from v11 headings G, H and I may take a course-vocabulary form where it costs no more words than the counted form (R-X(6)): 'H. Condition precedent' (three words for three; Gibbs CJ at *Meehan* 582, CB3B 184: 'not a condition precedent to contract', and 'a condition precedent to completion'), which also names that doctrine once for R7; a longer course form ('G. Construction of the 12 months', +2; 'I. Privity: AMPL's call', +1) is accepted and not deducted, but its words must be found inside the answer's own allocation under §1; the brief's required A to F headings are unchanged; the sheet's own labels ('the payment condition', 'prevention', 'the Pierre branch') are never headings or text (R7; CRIT_fidelity_3 m13, adopted); a heading that adopts the narrator's 'personal guarantee' presupposes the content decided at II.I2 and is a VG at R3.

Part 1. The grid (units, tiers, floors, weights)

80 points for the substantive units, 20 for the global rows. Tier: K core, C compact, L line. v10 floor = the counted words of the unit's v10 appendix paragraph, a feasibility record and not a quota (§1; R-X(3)); the v11 core cost of each unit is in Part 8. Required authorities in brackets.

Item	Tier	v10 floor	Pts	Exc	VG	Good	Fair	Poor	Omit'd
PRELIMINARY (2%)			2						
• P Preliminary: claim C3 identified in substantive terms as reimbursement for paying AMPL; the Development Agreement as stipulated; excluded matters never named as excluded (R-Z(1), (5): v11's 'named as outside Weeks 1 to 4' withdrawn)	L	34	2.0						
I. ROCKY v GRACE: the 12 February 2024 email and the Loan Agreement (27%)			27						
• I.A Offer: the 5 February call and bullets 2 and 3; bullet 1 offer or invitation to treat; the second-paragraph similarity with its direction (*Gibson* 298, both ways)	C	73	3.0						
• I.B Acceptance: 'Confirmed' takes the email as sent (*Empirnall* 534; eg *Butler* 404)	L	21	2.0						
• I.C Consideration: a promise for a promise; the Loan Agreement's fresh	L	48	2.0						

terms, AMPL's price named with the inference marked (eg *Beaton* 168, *Australian Woollen Mills* 456 to 457; *Roscorla* 237 credit, required at II.I3)									
• I.D Intention to create legal relations: objective test and onus; 'subject to satisfactory conditions' decided once; Rocky's best case named with its authority (*Ermogenous* [25] to [26]; *Masters* 360, 361 (*Niesmann*) and 363)	K	122	6.0						
• I.E Certainty: illusory promise on the reading carried from D; the implied duty to act honestly put and met; Gibbs J's dictum with its hedges and the 'Perhaps' exception answered with its reason; the verdict 'arguably', D deciding the outcome (*Meehan* 580 to 582; *Godecke* 646 to 647 (Gibbs J); *Pace* 150 to 151 by footnote; for the honesty fetter eg *Meehan* 581 (Gibbs CJ), 589 to 590 (Mason J) or *Pace* 151)	C	76	3.0						
• I.F1 Privity: Rocky lent nothing; the doctrine of agency, 'Rocky asked' met on purporting (one source: a case first under R-Z(3): for the criterion *Port Jackson* 240 (Barwick CJ, Lord Reid's requisites (2) and (3)), *Trident* (Brennan J or Deane J, by report, no pin) serving only for the bare route; the casebook [11.70] only as a last resort, per R-A(4) as amended by R-X(1), never stacked: R-R(3); either *Port Jackson* 240 or [11.70] suffices for the criterion and neither is deducted)	L	30	2.5						
• I.F2 Privity: the general rule, benefit aspect and both limbs; who is a party; the joint-	C	81	7.5						

promisee argument; 'I never signed anything with you'; the cross-reference to II.G (*Coulls* 486 to 487; for the rule *Coulls* 494 to 495 (Windeyer J) alone, never a slide (R-Z(2)); 478 credit)									
• I.F3 Privity: circumventing the privity rule, in a line (cited to a case: eg *Trident* (Brennan J) or *Trident* (Mason CJ and Wilson J) by report, no pin: R-Y(1), (2); R-Z(2), (3))	L	20	1.0						
II. ROCKY v AMPL (ALTERNATIVELY PIERRE): the $10,000, the 12 months, the condition and AMPL's call (51%)			51						
• II.A Offer: Pierre's 'expected' a request; Rocky's words an offer of a bilateral contract (*Gibson* 298; *Brambles* 177 (Heydon JA quoting McHugh JA), or *Mobil* 500 by contrast, for the bilateral contract; *Butler* 404 credit)	L	33	2.5						
• II.B Acceptance: 'Pierre agreed'; the oral bargain bound without the document; Lord Greene MR's analogy disclosed (*Empirnall* 534 or *Brinkibon* 41; *Brambles* 176 quoting Lord Greene MR; *Masters* 361)	C	62	3.0						
• II.C1 Consideration: the price of Rocky's promise, which moved from him; if Pierre promised, Rocky's detriment (*Australian Woollen Mills* 456 to 457; *Beaton* 181 (McHugh JA, quoting Patteson J); *Musumeci* 745)	L	26	1.5						
• II.C2 Consideration: the existing legal duty rule, conditional on who promised (*Wigan* 594; *Sundell* 327; *Pao On* 632 if Pierre promised, the casebook [4.300] never needed, *Pao*	K	126	5.5						

On stating the point: R-Z(3))									
• II.D Intention to create legal relations: cousins and a company; the letter of comfort point with its direction ('weaker here'); the Pierre alternative re-weighed in a clause; binds Rocky likewise (*Ermogenous* [25] to [26]; *Banque Brussels* 521 to 523)	C	80	5.0						
• II.E Certainty: 'all payments … promptly' measurable; 'once Grace repays' not illusory (*Upper Hunter* 437 quoting Lord Wright; *Meehan* 581 to 582)	L	35	2.5						
• II.F1 Privity: Rocky the promisee; 'the clause' both ways with the reason (*Coulls* 494 to 495 alone)	L	38	1.0						
• II.F2 Privity: who promised, AMPL through Pierre or Pierre; the further information (whom Pierre spoke for) with its direction (the doctrine of agency, one source: a case first under R-Z(3): for the criterion *Port Jackson* 240 (Barwick CJ, Lord Reid's requisites (2) and (3)), *Trident* (Brennan J or Deane J, by report, no pin) serving only for the bare route; the casebook [11.70] only as a last resort, per R-A(4) as amended by R-X(1), never stacked: R-R(3); either *Port Jackson* 240 or [11.70] suffices for the criterion and neither is deducted)	K	95	4.0						
• II.G The 12 months: method (objective; ambiguity; genesis; later conduct excluded on meaning), both readings, lean with strength and further information (*Brambles* 163 to 164 and 191; for the objective	C	76	5.0						

reading eg *Brambles* 168 or *Ermogenous* [25])									
• II.H The condition ‘once Grace repays the Loan’: a condition precedent to AMPL’s obligation, not to contract, with its reason, nothing payable on 9 March 2025; Rocky’s own payment and the words, the commercial reading put and met; the duty to co-operate named, put and met (*Meehan* 582; *Upper Hunter* 437 or *Ermogenous* [25]; *Beaton* 185 met; *Mobil* 500 credit)	C	89	4.5						
• II.I1 AMPL’s call: the burden aspect; the clause alone; Rocky bound by his own undertaking, to AMPL only if Pierre acted for it (*Trident* (Deane J) by report, judge named, no pin: R-Y(1), (2), never a slide: R-Z(2); *Empirnall* 534 and 536; *Coulls* 487)	C	56	4.0						
• II.I2 Content: what Pierre ‘expected’ against the clause as described; assent to the written words on *Empirnall* 535 to 536; the benefit named; ‘attended’ as the knowledge fact, the inference marked; ‘provided by Rocky’ (*Empirnall* 535 to 536)	C	80	3.5						
• II.I3 Consideration moving from AMPL, conditional on II.F2; past consideration named; *Pao On*’s first condition met on ‘Rocky asked’ and its second on timing; AMPL’s fallback put and met or accepted (*Pao On* 629 to 630; *Roscorla* 237)	C	73	4.0						
• II.I4 Timing on both readings of the 12 months; the arguable March instalment; consequences conditional on II.F2	C	68	5.0						
GLOBAL ROWS (20%)			20						
R1 Style, clarity of expression,			4.0						

conciseness, grammar & spelling, persuasiveness of argument (his voice)									
R2 Application of law (cases) to facts to come to conclusion, using authority			3.0						
R3 Layout and structure: claimant v defendant Parts; A to F headings; strict IRAC			2.0						
R4 Identification of issues and non-issues			2.0						
R5 Prioritisation			1.5						
R6 Areas of uncertainty and further information			2.0						
R7 Terminology (the lecturer's terms; no proxy terms)			1.0						
R8 Citation: References according to AGLC4			2.5						
R9 Word count and format			1.0						
R10 Consistency across Parts (one doctrinal footing)			1.0						

NB: marks are allocated for identification of issues/non-issues, knowledge of relevant law (cases), and application to facts. Not all dot points are of equal complexity or value. Mark for the assignment: Σ(points × grade multiplier) − automatic deductions (Part 7). Points: 2.0 + 27.0 + 51.0 + 20.0 = 100 (Part 2 prints the unit-by-unit arithmetic). The v10 floors sum to 1,442 words with 52 heading words, 1,494 of 1,495; that total is the v10 record only. The v11 cores cost about 1,571 at the v10 counted forms (Part 8), so the floors are no longer a proof that the cores fit, and the answer is (§1; R-X(3)).

Part 2. Weights and the reason for each (a disclosed judgment call)

ISSUES_SETTLED ranks the issues by marks at stake (S-28): (1) the 8 April bargain, Rocky v AMPL for the $10,000, with AMPL's call as its other side; (2) Rocky v Grace on the Loan Agreement (privity); (3) the 12 February email; (4) the 12 months; (5) the payment condition. The v2 weights are carried, with each merged unit taking the sum of the units it absorbs: I.A takes I.A1, I.A2 and the former I.E2 (3.0); I.F2 takes the general rule (1.5), who is a party and the planted line (5.0) and the Loan Agreement's formation (1.0) (7.5); I.D takes I.D2 and I.D3 (6.0); II.B takes II.B1 and II.B2 (3.0); II.D takes II.D1 and II.D2 (5.0), the onus-flip clause of the former II.H5 (v2 numbering) being folded in at no weight; II.I4 takes v2's II.H5, II.H6 and II.H7 (5.0); II.H takes v3's II.G1 (1.5) and II.G2 (3.0) (4.5). The 12 months (5.0) now sits inside Part II (R-Q), so Part II carries 51 and Part I 27.

Block	Pts	Reason
Preliminary	2	Claim C3 (reimbursement for paying AMPL) and the stipulated Development Agreement (a non-issue to be identified as one), in substantive terms; from v12 no excluded matter is named as excluded (R-Z(1), (5)); weight unchanged.
I.A to I.E	16	The setter's planted formation sequence; it gives Rocky nothing (he lent nothing), so it ranks below privity, but I.D (6.0) is the heaviest formation unit because it decides the qualifier once for D and E. The block's sum (16) exceeds I.F's (11) only because the block carries five elements (A to E) while privity is one element run in three units: each formation element weighs less than privity (I.D, the heaviest, 6.0 against I.F's 11), and less than I.F2 alone (7.5), so the ranking 'below privity' holds element for element (CRIT_round8 m10).
I.F	11	Rank 2: 'I never signed anything with you' names the doctrine; *Coulls* 486 to 487 decides it; I.F1

		(2.5) decides the 12 February claim on any view of formation; I.F2 (7.5) answers the planted line, states the rule and puts and meets Rocky's best privity argument (RG4A-Q3).
II.A to II.F	25	Rank 1: every element live; consideration (the existing legal duty rule, planted in 7 of 8 past papers) and privity (who promised) carry most.
II.G	5	Rank 4: the one central point open on the materials (S-1); it decides the timing of AMPL's call and of the $10,000, which is why it sits in Part II (R-Q); it does not decide Rocky's claim against Grace. A C unit under R-L.
II.H	4.5	Rank 5: whether the claim is presently enforceable (it is not) and whether Rocky loses it by paying AMPL (moderate to strong against him under R-O); one unit, two questions.
II.I	16.5	The other side of the same bargain and the setter's final fact: burden aspect, content and assent, AMPL's consideration, timing, consequence.
Global rows	20	His LAWS1061 sheet grades style, application and citation on separate rows; the Instructions add issues and non-issues, prioritisation, uncertainty and layout. Voice is weighted highest (4) because the answer must be in his voice; citation 2.5 because his marker deducted for it. Each global row is capped at the lowest grade, among the units, of the core item it summarises (R-C; Part 7).

Reconciliation to 100 (v11; no weight changed). UPGRADES_r1 U17 proposed raising II.F1's weight; the proposal was rejected at source because the weights are R-C calibrated and fixed since v2, and no ruling or upgrade changes any other weight, multiplier or cap. The arithmetic, unit by unit: - Preliminary: P 2.0 = **2.0**. - Part I: I.A 3.0 + I.B 2.0 + I.C 2.0 + I.D 6.0 + I.E 3.0 = 16.0 (the I.A to I.E block); I.F1 2.5 + I.F2 7.5 + I.F3 1.0 = 11.0 (the I.F block); 16.0 + 11.0 = **27.0**. - Part II: II.A 2.5 + II.B 3.0 + II.C1 1.5 + II.C2 5.5 + II.D 5.0 + II.E 2.5 + II.F1 1.0 + II.F2 4.0 = 25.0 (the II.A to II.F block); II.G 5.0; II.H 4.5; II.I1 4.0 + II.I2 3.5 + II.I3 4.0 + II.I4 5.0 = 16.5 (the II.I block); 25.0 + 5.0 + 4.5 + 16.5 = **51.0**. - Substantive units: 2.0 + 27.0 + 51.0 = **80.0**. - Global rows: R1 4.0 + R2 3.0 + R3 2.0 + R4 2.0 + R5 1.5 + R6 2.0 + R7 1.0 + R8 2.5 + R9 1.0 + R10 1.0 = **20.0**. - Total: 80.0 + 20.0 = **100.0**. Block table check: 2 + 16 + 11 + 25 + 5 + 4.5 + 16.5 + 20 = 100.

The multipliers (Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0), the global-row cap (R-C) and the R7 and D-item caps are unchanged, so the calibration in Part 7 (83.5% of the dot points; 81.8 and 81.4 whole-sheet; 83.76 on the alternative assumption) is unchanged.

Part 3. Descriptor: PRELIMINARY

P. Preliminary: claim C3 and the Development Agreement (2.0; L; floor 34)

- **Issue.** What the advice covers: 'advise Rocky on the success of any contractual claims he could make', considering 'only … the course materials from weeks 1 to 4'. The restriction governs what the answer covers; the answer never says so, never names weeks or the course, and never frames anything as outside the scope (R-Z(1), (4)).
- **Core (v12; R-Z(1) and (5)).** P's core no longer requires excluded matters to be named: v11's core (1), a clause naming breach, damages and guarantee law as 'outside Weeks 1 to 4', is withdrawn, and any such clause is from v12 a meta reference graded at R1 and R8 under R-Z(5), not here. Breach (including Rocky's own 'promptly' exposure), damages, guarantee law and frustration are simply not argued, and an answer that says nothing of them loses nothing. (1) Claim C3 identified and disposed of in substantive terms: any reimbursement or indemnity by Grace if Rocky pays AMPL under 'the personal guarantee provided by Rocky', the claim NAMED so that a cold reader can follow it (reimbursement for paying AMPL: UPGRADES_r1 U31, three of six cold readers in Stage-5 round 1 having been unable to identify C3 from 'no reimbursement' alone), and disposed of because no promise by Grace to Rocky to that effect appears. An accepted form is 'Grace promised Rocky no reimbursement for paying AMPL' (eight words); the v11 absolute clause 'Grace having promised Rocky no reimbursement for paying AMPL' is equally accepted where it trails a substantive main clause (CRIT_round6 m11's order), never one that names matters as excluded; the critic's 'Grace promised Rocky nothing' is equally acceptable, though 'no reimbursement' does not read against I.C's inference that 'Confirmed' arguably implied a promise to repay (CRIT_round5 M5; R-S(2); Part 9 item 29). (2) The Development Agreement as stipulated ('legally binding'), Rocky's entitlement arising only 'if the Project made a profit', which is not yet shown (the counted form; never 'not yet narrated': R-R(1)), so no present claim. Placement: both items may sit in a preliminary paragraph that states only what the advice covers in substantive terms, or, where the answer omits a preliminary paragraph (R-Z(1) permits it), wherever the answer first disposes of them (eg C3 in a clause at II.I4, the Development Agreement in a line at the head of Part I); they are graded here wherever they appear. A sentence restating the question's own scope ('assessed in New South Wales on the Weeks 1 to 4 materials') is from v12 a meta reference graded under R-Z(5) at R1 and R8 (v3's core (1), withdrawn by CRIT_round3 M15, stays withdrawn).
- **Credit.** 'a valid and binding clause' quoted; 'minimal' is still a profit, so the condition may be met on completion (further information, written with its direction, eg 'unless the 'minimal' profit, once realised, triggers it': R6; UPGRADES_r1 U22 records this as credit, first among credit if words remain; a drafter who writes 'not narrated' without 'yet' risks a marker reading the planted 'minimal' as missed: CRIT_round3 m17); NSW matters because the *Electronic Transactions Act 2000*

(NSW) governs the emails (stated in substantive terms, never as the task's choice of law). Naming a doctrine no fact raises (eg estoppel with no reliance narrated; duress; the postal rule; adequacy) is a conciseness fault (R1), not a non-issue to be rewarded (CRIT_harsh_2 F10, adopted). Withdrawn from credit in v12 (R-Z(1)): 'each outside matter tied to its planted fact in a bracket' (it named matters as excluded) and 'agency is live because no 'assume … authorised' note is given' (it speaks about the question, not the law; the sheet keeps it as its own reason that agency is live).

- **Drops.** VG: claim C3 not identified anywhere in the answer (R4 then caps at Good: a claim missed), or C3 gestured at without saying what the reimbursement would be for ('no reimbursement' alone: UPGRADES_r1 U31); breach, damages or guarantee law argued rather than left alone. (Naming any matter, frustration included, as outside Weeks 1 to 4, the course or the scope, or restating the question's scope, is graded at R1 and R8 under R-Z(5), not here: v11's 'outside matter argued rather than flagged', 'one of the three not named' and frustration credit-wrong lines are withdrawn, CRIT_round4 m17 and R-R(10) carried.) Good: the answer opens with a conclusion ('Rocky has no claim against Grace …'), or the Development Agreement walked through formation. Fair: guarantee law or damages argued as governing law. Poor: textbook or non-course law applied; a breach claim on the Development Agreement asserted on facts not narrated; assignment or subrogation stated as a rule. Omitted: neither claim C3 nor the Development Agreement addressed anywhere in the answer.
- **Marker comments.** 'Identify the non-issue and move on.' 'Name the claim you dispose of: reimbursement for what?' 'Do not open with a conclusion.' 'This is advice to the client: do not refer to weeks, slides or the course.' (D5 on the first line is this sheet's rule, stricter than his LAWS1061 marker, who graded his conclusive one-line preliminary Excellent: Part 9, item 14.)

Part 4. Descriptors: PART I. ROCKY v GRACE (27%)

Settled results this Part reaches (ISSUES_SETTLED header table): the 12 February email gives Rocky no claim (strong on the result; the formation route moderate, intention deciding); the Loan Agreement claim fails on privity (strong). One A to F walk for both is the counted structure.

I.A Offer: the 5 February call and bullets 2 and 3; bullet 1 offer or invitation to treat (3.0; C; floor 73) [*Gibson* 298, distinguished and the similarity named with its direction]

- **Issue.** Whether 'I will lend $1 million to you by 15 February for 1 year at a rate of 5% interest subject to satisfactory conditions' is an offer capable of acceptance by 'Confirmed'; and whether anything else in the call or the email could be.
- **Rules at source.** 'you must manifest an intention to be bound by acceptance' and 'Cannot be an offer if there is not an intention to create legal relations' [S1A slide 11 | slide only: the elements 'overlap']; 'Invitation to treat | An invitation for others to make an offer or enter into a negotiation.' [S1A slide 27 | slide only]; correspondence is read by 'the conventional approach of looking at the handful of documents relied upon as constituting the contract sued upon and seeing whether upon their true construction there is to be found in them a contractual offer … and an acceptance of that offer' [CB1A 41 | 297 | Lord Diplock, *Gibson v Manchester City Council* | ratio; Lord Keith agreeing, Lord Fraser agreeing with Lord Diplock and Lord Russell]; 'The words "may be prepared to sell" are fatal to this; so is the invitation, not, be it noted, to accept the offer, but "to make formal application to buy"' [CB1A 42 | 298 | Lord Diplock | ratio]; the second paragraph: 'If the final sentence had been omitted the wording of the second paragraph, unlike that of the first, with its use of the indicative mood in such expressions as "the interest rate will change", might have been understood by council tenants to whom it was addressed as indicating a firm offer of a mortgage' [CB1A 42 | 298 | Lord Diplock | ratio: the paragraph that is Grace's analogy]. The direction matters and is a D2 fault if reversed (CRIT_fidelity_3 M1; CRIT_round3 M1, adopted): the indicative paragraph might have read as a firm offer only WITHOUT its final sentence ('This letter should not be regarded as firm offer of a mortgage'); with the disclaimer it could not. An answer that says a disclaimed indicative promise might be read as a firm offer states the opposite of the page; 'The terms of the first sentence ("we have more work to do", "where we're at [499] the moment", "maybe") are not those of a present offer.' [CB1A 57 | 498 to 499 | the Court, *Mobil Oil Australia Ltd v Wellcome International Pty Ltd*] (credit).
- **Facts (deciding).** 'proposed that Rocky offer'; 'I will lend'; 'Please confirm agreement'; 'subject to satisfactory conditions' (deciding here as well as at D, because the similarity cannot be named without it; Appendix B now agrees). Supporting (credit): 'Potential project over in Eastwood subject to success of Hail Mary Project'; 'wait and see at present'; 'long-term'; 'Confirming discussions from our meeting this morning'.
- **Core.** (1) Grace's 5 February call classified in a clause on its deciding words, by the course's name for it ('proposed that Rocky offer': an invitation to treat, the course's 'invitation for others to make an offer or enter into a negotiation', S1A printed slide 27; RG1A (2): 'How is an offer distinguished from an invitation to treat?'; the v11 form, 'Grace's call 'proposed that Rocky offer', an invitation to treat', replaces v10's 'a request', −3: UPGRADES_r1 U7; R-X(4)), and bullets 2 and 3 disposed of in a clause ON THEIR DECIDING WORDS as not promissory (the v11 form: 'bullets 2 and 3, 'Potential' and 'wait and see', promise nothing', +5, 'wait and see' quoted on one side of the problem's dash as D9 requires: UPGRADES_r1 U15, the deciding passages being the problem's 'Potential project over in Eastwood subject to success of Hail Mary Project.' and 'wait and see at present.' against S1A slide 11, 'you must manifest an intention to be bound by acceptance'; v10's core asked only that the bullets be 'disposed of in a clause as not promissory' while the Drops graded 'the bullets not classified on a deciding word' VG, a contradiction now removed; Part 9 item 44). (2) The issue framed as construction of the exchange. (3) *Gibson* distinguished on its operative words ('may be prepared to sell' and an invitation 'to make formal application', against 'I will lend' with amount, date, term and rate and 'Please confirm agreement', which invites the assent that concludes a bargain). (4) The similarity named with its direction: the Council's letter's second paragraph, written in the indicative mood, which Lord Diplock construed (the v11 form is 'the letter's indicative paragraph', or 'the mortgage paragraph', for v10's 'Lord Diplock's indicative paragraph', which misattributed the letter to the judge: UPGRADES_r1 U27, the deciding passage being CB1A 42, *Gibson* 298, 'the wording of the second paragraph, unlike that of the first, with its use of the indicative mood … might have been understood by council tenants to whom it was addressed as indicating a firm offer of a mortgage'; zero words), an indicative promise, might have been understood (his words, or an accurate paraphrase such as 'could read') as 'a firm offer' only absent its disclaimer; 'subject to satisfactory conditions' may be the disclaimer's analogue, which is why the qualifier is carried to D and E rather than decided here (S1A slide 11: the elements overlap), and the cross-reference '(D, E)' is written. The bare parenthetical is the accepted minimum for the carry (CRIT_round4 m2: a marker may read it as a cross-reference rather than a

reason); the fuller ‘a question for intention and certainty (D, E)’ (+8 words) is credit, written where words allow. (5) A classification (an offer in form, or an invitation to treat) in the moderate tier, with the reason in the same or the preceding sentence; the counted form is ‘it is likely an offer’, and ‘it is likely an offer in form’ (+2), which says what A decides and leaves bindingness to D and E, is credit, written where words allow (CRIT_round5 m9, not funded).

- **Credit.** The Eastwood condition failing on the narrator’s projection (S1A slide 21, ‘A failure of a condition’, slide only); Rocky would be the Eastwood promisor in any case; Rocky’s reply states no terms, so it invites negotiation, not a counter-offer; ‘long-term’ explains ‘1 year’; ‘Confirming discussions’ as framing a record; the Restatement definition via [3.10] (editors’ text, attributed to the Restatement if used); Willes J’s alternative construction in *Felthouse* at 876 (a memorandum of a prior bargain; ‘the former is the more likely’ [CB1B 70 | 876]); the bullets as ‘discussions’ items that would not be terms of any bargain (the former I.E2 severance point is credit: severance presupposes terms, and *Whitlock* 461 (Knox CJ’s principle as adopted by Taylor, Menzies and Owen JJ) must never be stated as the joint judgment’s own words: D2). Further information: what was said at the meeting ‘this morning’.
- **Strength and tilt.** Moderate. Either classification earns Excellent if the qualifier is carried to D and E and the result for Rocky is the same; an answer calling it an invitation to treat must meet ‘I will lend’ and ‘Please confirm agreement’; an answer calling it an offer must name the second-paragraph similarity.
- **Consistency.** The qualifier is dealt with once (I.D) and carried; the answer must not hold the email an offer accepted by ‘Confirmed’ and then advise Rocky to sue on it without D, E and F (I.F1).
- **Citation.** *Gibson v Manchester City Council* [1979] 1 WLR 294, 298 (Lord Diplock) (297 for the conventional approach if stated). No slide is cited (R-Z(2); v11’s ‘Slide statements cited by deck and slide number’ is withdrawn): the slide-only points in this unit’s Rules (S1A slides 11 and 27) are stated, if at all, in the answer’s own words and footnoted to *Gibson* where *Gibson* carries them, the invitation-to-treat classification resting on *Gibson* 298 (‘to make formal application to buy’).
- **Drops.** VG: *Gibson* not distinguished on its words, or the second-paragraph similarity not named, or the qualifier not carried to D and E, or the 5 February call or the bullets not classified on a deciding word (for the bullets, ‘Potential’ and ‘wait and see’ or equivalent words quoted: U15), or the letter’s paragraph described as Lord Diplock’s own (a misattribution of the document, graded once here and not also under D2, the words being the letter’s and quoted correctly: U27). The call classified as ‘a request’ without the course’s name is graded at R7 (an applied doctrine unnamed), not here. Good: ‘the email is an offer’ with no reasons. Fair: offer rules stated generally (definition only); the bullets ignored while the email is treated as wholly promissory. Poor: the direction of Lord Diplock’s second paragraph reversed (a disclaimed promise said to read as a firm offer: D2); the qualifier ignored and a binding loan contract declared at A; ‘Confirmed’ treated as the offer; a contract found on 5 February or a claim on either bullet. Omitted: no offer analysis of the email. Credit wrong (VG): Rocky’s 5 February reply called a counter-offer (a credit item stated wrongly, graded by this line and never at Good: CRIT_round4 m17; R-R(10)). Credit wrong, Poor (D2): Knox CJ’s severance words as the joint judgment’s own, a wrong speaker, which D2 grades Poor with its −3 and §1 caps at Fair in any event, so v9’s listing of it on the VG line is withdrawn and the fault is graded once, by D2 (CRIT_round9 m4; R-U(6)).
- **Marker comments.** ‘Further analysis is required as your statement is conclusive.’ ‘Distinguish *Gibson* on its words, ’may be prepared to sell’ against ‘I will lend’, and meet the paragraph that resembles the email.’ ‘The second paragraph is the Council’s letter, not Lord Diplock’s.’ ‘Name the category: an invitation to treat.’ ‘The qualifier belongs to intention and certainty; carry it forward rather than deciding it twice.’

I.B Acceptance: ‘Confirmed’ takes the email as sent (2.0; L; floor 21) [*Empirnall* 534; eg *Butler* 404]

- **Rules at source.** ‘The objective theory of contract requires an external manifestation of assent to an offer.’ [CB1B 71 | 534 | McHugh JA (Samuels JA agreeing; Kirby P to substantially the same effect), *Empirnall Holdings Pty Ltd v Machon Paull Partners Pty Ltd* | ratio]; ‘To form a contract, the acceptance must be made in response to the offer.’ [CB1B 66 | [3.100] | editors]; a reply with ‘such additions … that it was in law a rejection of the offer and constituted a counter-offer’ [CB1B 94 | 404 | Lord Denning MR, *Butler Machine Tool Co Ltd v Ex-Cell-O Corp (England) Ltd* | the traditional analysis shared by Lawton and Bridge LJJ; ‘the counter-offer kills the original offer’ is Megaw J’s, quoted]; ‘the offeror may always prescribe the method of acceptance’ [CB1B 68 | 233 | Isaacs ACJ, *The Crown v Clarke* | Higgins and Starke JJ concurring in the result] (credit); receipt ‘when the electronic communication becomes capable of being retrieved by the addressee at an electronic address designated by the addressee’ [CB1B 90 | *Electronic Transactions Act 2000* (NSW) s 13A(1)(a)] (credit).
- **Facts (deciding).** ‘Confirmed’; ‘15 minutes later’; ‘Please confirm agreement.’
- **Core.** One sentence: the operative criterion (an external manifestation of assent) and the deciding facts (‘Confirmed’, ‘15 minutes later’, in the mode the email asked for, adding nothing, so no counter-offer, the doctrine named in the course’s term: RG1B (2), ‘What is the legal effect of a counter-offer?’; S1B PDF page 42; the v11 form adds ‘so no counter-offer’, +3: UPGRADES_r1 U7; R-X(4)) preceding the result that the reply took the email as sent, qualifier included, so that whatever ‘subject to satisfactory conditions’ does it does to the whole bargain (D, E). A form that says what ‘Confirmed’ did rather than what a word did (‘Grace’s ’Confirmed’ added no term, so it was assent to the whole email, not a counter-offer’) is equally Excellent; ‘qualifier included’ must have an antecedent the reader can see in the unit or the cross-reference (R1).
- **Credit.** Lapse and revocation (nothing suggests either on a fifteen-minute reply; not required: CRIT_harsh_2 F10); receipt under s 13A(1)(a) when retrievable at Rocky’s address, ‘arguably’ designated by his using it (one clause is neither required nor over-citation; a citation of s 13A for a point it decides nothing on invites ‘the reference should not include’); if anything formed, it formed on 12 February 2024; whether ‘Confirmed’ assented to a bargain or confirmed a record of ‘discussions’ is the *Masters* 360 question decided at D; Grace’s private need and anger irrelevant (objective test). Lord Westbury’s ‘a term of the assent’ (*Masters* 362) concerns an assent given ‘subject to a provision as to a contract’ and is not the rule for an unqualified ‘Confirmed’.
- **Strength.** Strong on correspondence; bindingness turns on D and E.
- **Drops.** VG: the criterion stated without the deciding facts, or counter-offer not excluded. Good: ‘Grace accepted’ bare. Fair: ‘Confirmed’ treated as accepting an unqualified loan. Poor: the postal acceptance rule applied to the email (law wrong: S1B slide 35; *Brinkibon* 41 to 42); ‘Confirmed’ treated as a counter-offer; Lord Westbury’s words applied to Grace’s unqualified assent as the rule. Omitted.
- **Marker comment.** ‘Ensure your citation precisely supports the proposition for which it is relied: the postal rule has no

relevance to an email reply.'

I.C Consideration: a promise for a promise; the Loan Agreement's fresh terms (2.0; L; floor 48; AMPL's price named) [eg *Beaton* 168, *Australian Woollen Mills* 456 to 457; *Roscorla* 237 credit here, required at II.I3]

- **Rules at source.** 'consideration must be satisfied in the form of a price in return for the promisor's promise or a quid pro quo. The price can be in the form of an act, forbearance or promise.' [CB2A 104 | 168 | Kirby P, *Beaton v McDivitt* | majority on the result; alone on the consideration question]; 'there must subsist, so to speak, [457] the relation of a quid pro quo' [CB2A 101 | 456 to 457 | the Court, *Australian Woollen Mills Pty Ltd v Commonwealth* | ratio; said 'In cases of this class']; 'a consideration past and executed will support no other promise than such as would be implied by law' [CB2A 113 | 237 | Lord Denman CJ delivering the judgment of the Court, *Roscorla v Thomas* | ratio]; a new contractual entitlement as consideration: 'The effect of accepting the 19 September 1991 offer was to give a contractual entitlement. That is a benefit capable of amounting to consideration' [CB1B 81 | 182 | Heydon JA, *Brambles Holdings Ltd v Bathurst City Council* | his reasoning alone: Ipp AJA (Mason P agreeing) found consideration in practical benefits (OFF Brambles [116], where Ipp AJA holds the 20 February 1990 letter 'a contractual offer … accepted by conduct', against the premise Heydon JA calls 'crucial' at 182, that the 1990 letters 'did not create a contract'; [175] to [176] for the benefits as consideration, 'The benefits which I have outlined were adequate consideration for the October 1991 contract': CRIT_fidelity_9 Finding 5, v9's '[116], [176]' corrected)] (credit).
- **Facts (deciding).** 'at a rate of 5% interest'; '4% per annum'. Supporting (credit): 'Confirmed'; 'repayable at the expiry of 12 months'; 'the $1,150,000 was advanced by AMPL on the same day'.
- **Core.** (1) One sentence: the operative criterion (a price given in return for the promise) and the deciding fact: Rocky's promise to lend was given for Grace's promise to repay, 'arguably' implied by assenting to a loan 'at a rate of 5% interest' (the inference marked: CRIT_harsh_2 F14), the result stated as a bargain IN FORM ('in form', +2: UPGRADES_r1 U10), because whether Rocky's promise is illusory, and so whether the consideration is good, is decided at E: 'A contract made for a consideration which is illusory is unenforceable' and 'A consideration is illusory if its payment or fulfilment depends upon an unfettered discretion vested in the promisor' (CB3B 166, *Pace* 150 to 151, McHugh JA), so an I.C that finds consideration without qualification and an I.E that finds Rocky's promise illusory stand on two footings (brief Part 8 item 9; trap T20, Appendix A). (2) One sentence on the Loan Agreement with AMPL's price identified and the inference marked: Grace's promises to AMPL were likely given for AMPL's promise of the term ('12 months') at '4% per annum' (the counted form is 'were likely given for its promise of '12 months' at '4% per annum'', footnoted to the price criterion: CRIT_round4 m3 and CRIT_round5 M7, adopted under R-S(2), because 'given for its '12 months'' elided the noun the price criterion needs and read as note form; 'likely' added in v7 because the problem states only that the Loan 'was repayable at the expiry of 12 months' and 'recorded' the rate, so that AMPL's promise of the term is an implication from the recorded term (§3) and the legal point is moderate to strong (S-21), the tier 'likely' marks at II.A, II.C1 and II.I1: CRIT_fidelity_6 Finding 1, adopted, +1; 'for its arguable promise of' is equally acceptable; a drafter who writes 'for AMPL's promise of '12 months'' is graded the same). The words 'not the past advance', with *Roscorla* 237 footnoted, are CREDIT since v5 (moved from core under R-L(3) to fund the round-4 corrections, disclosed in Part 8 and Part 9 item 25): the one-line disposal of the Loan Agreement's consideration survives with its authority, and the past-consideration point about the 27 February advance is decided at II.I3, where it bites and where *Roscorla* 237 remains required. The words 'a bargain rather than a conditional gift' are credit (moved in v4; the criterion 'a price for the promise' already states the distinction).
- **Credit.** 'not the past advance' in terms, with *Roscorla* 237 (never stated wrongly: a past advance supports 'no other promise than such as would be implied by law', the Court's contiguous words at CB2A 113; v6's 'no promise 'other than such as'' split them: CRIT_fidelity_6 Finding 4, corrected); 'a bargain rather than a conditional gift' in terms; 'with interest' as the content of Grace's promise; whether the 12 February promise is illusory is decided at E; Rocky's motive irrelevant ('Motive is not the same thing with consideration.' [CB2A 107 | 181 | Patteson J in *Thomas v Thomas*, quoted by McHugh JA]); past consideration and the existing legal duty rule not engaged on 12 February (both promises executory and simultaneous); no bona fide compromise narrated; executory against executed contract (RG1A-Q4); Heydon JA's 'crucial' qualifier with his status; *Pao On*'s first condition for Grace's promises doubtful because the advance was at Rocky's request, not Grace's; the consideration for Grace's promise moved from AMPL, not Rocky (I.F2); Rocky should not run the past-advance point, needing Grace bound for the $10,000 'once Grace repays the Loan' (trap T12, credit).
- **Strength.** 12 February: strong that a bargain was struck in form; the Loan Agreement's consideration moderate to strong (S-21), a contrary conclusion capped at Very Good.
- **Drops.** VG: the price not identified, or the inference of Grace's promise asserted as fact without 'arguably' (D4 applies if quoted facts are altered); Rocky advised to run the argument that the Loan Agreement fails for want of consideration (the legal point is moderate to strong, S-21, so R-E caps the contrary conclusion at VG here; the strategic inconsistency, T12, is graded once at R10: CRIT_round4 m13; R-R(10)). An unqualified finding of consideration beside an I.E finding that Rocky's promise is illusory (T20) is graded once, at R10, not here (UPGRADES_r1 U10). Good: 'consideration is present' bare. Fair: consideration found in Grace's anger or the Development Agreement. Poor: consideration said to be lacking because Grace's reply contained no express promise; Heydon JA's route stated as the Court's. Omitted.
- **Citation.** *Beaton v McDivitt* (1987) 13 NSWLR 162, 168 (Kirby P) is the counted citation for 'a price for the promise' in an exchange of promises (Kirby P's words, 'a price in return for the promisor's promise'; CRIT_fidelity_4 Finding 5 identifies 168 as the price-for-a-promise form); *Australian Woollen Mills* 456 to 457 (the Court, 'the relation of a quid pro quo', said 'In cases of this class', unilateral contracts) is the accepted alternative; neither is deducted (CRIT_round4 m4, rejected as a swap: Kirby P's statement of the orthodox bargain requirement is not a minority view of the law, though he was alone on the consideration question's result, and 168 fits the proposition more precisely).
- **Marker comment.** 'Identify the price on both sides: what did Grace give for Rocky's promise, and what did AMPL give for Grace's?'

I.D Intention to create legal relations: objective test and onus; 'subject to satisfactory conditions' decided once; Rocky's best case named with its authority (6.0; K; floor 122) [*Ermogenous* [25] to [26]; *Masters* 360, 361 (*Niesmann*) and 363]

- **Issue.** Whether the parties objectively intended to be bound immediately by the email exchange, or exchanged only 'a record of terms … as a basis for the negotiation of a contract'.
- **Rules at source.**
  - The inquiry 'requires an objective assessment of the state of affairs between the parties … (as distinct from the identification of any uncommunicated subjective reservation or intention that either may harbour)' and 'may take account of the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances' [CB3A 137 | [25] | Gaudron, McHugh, Hayne and Callinan JJ, *Ermogenous v Greek Orthodox Community of SA Inc* | majority, ratio]; 'we doubt the utility of using the language of presumptions in this context. At best, the use of that language does no more than invite attention to identifying the party who bears the onus of proof.' [CB3A 137 | [26] | same].
  - The question *Masters* asked: 'whether … this document on its true construction constitutes a binding contract … or only a record of terms upon which the signatories were agreed as a basis for the negotiation of a contract'; 'All the essentials of a contract are there; but whether there is a contract depends entirely upon the meaning and effect of the final sentence' [CB3A 154 to 155 | 360 | the Court (Dixon CJ, McTiernan and Kitto JJ), *Masters v Cameron* | ratio].
  - The three classes, framed for parties who 'also agree that the matter of their negotiation shall be dealt with by a formal contract' [CB3A 155 | 360]; class 2 requires parties who 'intend no departure from or addition to that which their agreed terms express or imply' [360]; *Niesmann* (Rich and Starke JJ, as the Court reports them): signing 'did not make the signing of a contract a condition of agreement, but made it a condition of the obligation to pay' [CB3A 155 | 361]; class 3 where parties 'have dealt only with major matters and contemplate that others will or may be regulated by provisions to be introduced into the formal document' or 'wish to reserve to themselves a right to withdraw' [CB3A 155 | 361]; Lord O'Hagan, adopted: 'if any prospective contract, involving the possibility of new terms … remains to be adopted, matters must be taken to be still in a train of negotiation' [CB3A 155 | 361].
  - 'no special form of words is essential' and 'Nor is any formula, such as "subject to contract", so intractable as always and necessarily to produce that result.' [CB3A 156 | 362 | the Court]; Lord Westbury in *Chinnock*, adopted for the natural sense of 'subject to contract' [CB3A 156 | 362] (said of an assent given subject to a formal contract; not a rule for an unqualified 'Confirmed': I.B).
  - Jessel MR in *Winn v Bull*, adopted, for a qualifier not referring to a formal contract: 'When it is not expressly stated to be subject to a formal contract it becomes a question of construction, whether the parties intended that the terms agreed on should be put into form, or whether they should be subject to a new agreement the terms of which are not expressed in detail' [CB3A 156 | 363 | the Court adopting Jessel MR; the official text reads 'should merely be put into form', the casebook dropping 'merely' (R-K): quote the casebook's form or paraphrase]. This is the course passage nearest the planted qualifier and is the mandatory decisive authority.
  - Official-only, CREDIT, never core (R-L(5)): the sentence the casebook elides at 362: 'Again, Sir George Jessel M.R. said in Crossley v. Maycock (1874) LR 18 Eq 180: "if the agreement is made subject to certain conditions then specified or to be specified by the party making it, or by his solicitor, then, until those conditions are accepted, there is no final agreement such as the Court will enforce"' [OFF Masters | paragraph 12, '(at p362)' | the Court | the Court's own second illustration of 'the natural sense of such words' | official-only (O-10)]. The Court adopted Jessel MR's words as showing 'the natural sense of such words'; *Crossley*'s own facts are not in the materials (gap: Z9), so the answer must not characterise them (CRIT_fidelity_2 M1, adopted); the limit to be disclosed if used is that the paragraph is framed on 'subject to contract' and 'expressions of similar import' and keeps the hedges 'no special form of words is essential' and 'Nor is any formula … so intractable'.
  - Fourth class: parties 'content to be bound immediately and exclusively by the terms which they had agreed upon whilst expecting to make a further contract in substitution' [CB3A 157 | [5.190] | McLelland J in *Baulkham Hills* quoting *Sinclair, Scott & Co v Naughton* | editors' note; S3A slide 24]; the categories 'are intellectual aids, but whether parties have come to a binding agreement is a matter of their objectively ascertained intention' [CB3A 157 | [26] | Giles JA (McColl JA and Young CJ agreeing), *Tasman Capital Pty Ltd v Sinclair* | editors' note quoting] (credit).
  - Later conduct (credit): 'post-contractual conduct is admissible on the question of whether a contract was formed … not admissible on the question of what a contract means' [CB1B 73 | 164 | Heydon JA, *Brambles* | unanimous by adoption: Ipp AJA at 184, Mason P at 155 | RG skip (register only)]; Rocky's 'cure by later conduct' argument ('too uncertain or too illusory to enforce at a particular time … may by reason of the parties' subsequent conduct become sufficiently specific') and its limit ('must be capable of proving all the essential elements of an express contract') [CB1B 78 to 79 | 177 to 178 | McHugh JA in *Integrated Computer Services*, quoted by Heydon JA].
- **Facts (deciding).** 'subject to satisfactory conditions'; 'Please confirm agreement'; 'Confirmed'; 'project developers' (from v11, the status factor under *Ermogenous* [25]: UPGRADES_r1 U4). Supporting (credit): 'Confirming discussions'; 'by 15 February'; no formal document mentioned; 'since 2017' and the parties' relationship; '$1 million'; '5% interest'; 'this morning'; 'I never signed anything with you' (post-formation; the planted line is answered at I.F2).
- **Core.** (1) The objective test stated once with the onus on Rocky as the party alleging the contract, no presumption running ([25], [26]); the question framed as whether the parties meant to be bound at once; and the *Ermogenous* [25] factors WEIGHED ON THESE PARTIES in a clause, at least their status: 'the inquiry about this last aspect may take account of the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances' (CB3A 137, [25], Gaudron, McHugh, Hayne and Callinan JJ), against the problem's first sentence, 'Mr Grace and Mr Rocky are both project developers who pursued various projects together since 2017 to stellar success' (the v11 form, after the onus clause: ', their status as 'project developers' favouring intention', +7, 'intention' as the short form under R7's note: UPGRADES_r1 U4, adopted as core because a marker applying [25] expects its factors applied to the parties before the email's words are construed; 'since 2017' and the relationship are credit; v10 recorded this as a residual risk at Part 9 item 36, now funded into core). (2) The *Masters* question at 360 ('only a record of terms') framed for this email, with the analogy disclosed: *Masters* and its classes assume a contemplated formal contract, absent here, so they apply by analogy (the counted form from v8 is '*Masters*, asking whether a document was 'only a record of terms', assumed a formal contract, absent here, so applies by analogy', the words 'a contract or' before the quotation removed (−3) to fund CRIT_round7 M1 under R-R(7)'s first tier; 'assumed a contemplated formal contract' (+1), which removes the misreading 'assumed that there was a formal contract' and uses the Court's own 'the contemplated formal document' (CB3A 155, 360), is equally acceptable and is not funded, the slack of

1 being kept (CRIT_round8 m9; Part 9 item 36); the question at 360 is whether the document was a binding contract ‘or only a record of terms’, so the quoted alternative frames it, and the I.D ‘bound’ branch counted in the appendix has carried this form since v7 and was graded Excellent on it by two critics; the fuller ‘was a contract or ’only a record of terms’’ (+3) is equally acceptable: Part 8; Part 9 item 38). The *Masters* categories need not be named (‘the third class’; ‘class 3’): the reasoning runs through *Winn v Bull* at 363, which is the decisive authority for a qualifier that mentions no formal contract, and the reading guide’s ‘different categories of preliminary agreement’ are credit here, ‘as the third class contemplates’ (+2) being written where words allow (CRIT_round7 m1; Part 9 item 36). (3) Both best cases from the email’s words, each in a clause, either as their own sentence or as the clauses of the verdict sentence, Rocky’s named WITH ITS AUTHORITY (CRIT_round4 M6, adopted in part; R-R(7)): Rocky’s case is *Niesmann* as the Court reports it at 361, where ‘all the essential terms of a contract had been agreed upon’ and the one further stipulation was ‘a condition of the obligation to pay’, not ‘of agreement’, so that ‘Confirmed’ settled the essentials and ‘satisfactory conditions’ arguably conditions only the obligation to lend (the v11 form: ‘despite ‘Confirmed’ settling amount, term and rate, as in *Niesmann*’, footnoted *Masters* 361, the three settled terms named in place of v10’s ‘settling the essentials’, +2: UPGRADES_r1 U26, because ‘the essentials’ concedes the premise of Gibbs J’s ‘Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties’ (CB3B 190, *Godecke* 647), which I.E core (3) then resists, the two units otherwise standing on two footings (trap T19, Appendix A); the analogy must attach to ‘Confirmed’ settling those terms and never read as authority for the verdict, *Niesmann* having found a binding agreement (CB3A 155, 361: ‘all the essential terms of a contract had been agreed upon’); credit: ‘Please confirm agreement’, the absence of any formal document in terms, and the fuller statement of the analogy, ‘a loan conditioned only in performance’); Grace’s (‘satisfactory conditions’ reserved the loan’s terms to Rocky). The fuller form of Rocky’s case (+13 words, the analogy stated in terms with ‘arguably’) could not be funded in any revision from v5 to v9; Part 9 item 23 records the residual risk and names *Niesmann* 361 as the authority a drafter uses if words allow. (4) The decisive authority applied in Jessel MR’s own condition, ‘When it is not expressly stated to be subject to a formal contract’ (so ‘where no formal contract is stipulated’ or ‘where none is stipulated’, never ‘absent a formal contract’, which could be read as ‘no formal contract was executed’: CRIT_fidelity_3 m14 and CRIT_round3 m19, adopted): the question is whether the terms ‘should be put into form’ or be ‘subject to a new agreement the terms of which are not expressed in detail’ (*Winn v Bull* as adopted at 363), applied to unspecified conditions of the loan itself. (5) A verdict in the open-point tier (‘On balance, the better view is that … likely …, [reason], though …’) with the further information that decides it (what ‘conditions’ were discussed ‘this morning’ and whether Rocky specified them and Grace accepted them) in the trailing clause, STATED WITH THE DIRECTION IN WHICH IT WOULD MOVE THE ADVICE, in the ‘unless X’ or ‘if X, Y’ form (the v11 form on the ‘not bound’ verdict: ‘unless the conditions were settled ’this morning’’, −2 against v10’s ’though the conditions discussed ’this morning’ would decide it’; on the ‘bound’ verdict the mirror, eg ‘unless conditions remained to be agreed’): UPGRADES_r1 U3, the deciding passage being the Instructions p 1, ‘you may indicate what further information you require and how it would impact your conclusion’, and brief Part 8 item 8, ‘and how it would change it’; ‘would decide it’ names the information and not its effect (VG, below; R6). (6) Where the answer relies on *Masters*’ classes or names one, it calls them by the course’s name, the categories of preliminary agreement (RG3A: ‘What are the different categories of preliminary agreement? Which are binding on the parties?’; S3A PDF page 22, ‘What are preliminary agreements?’; CB3A 154 heading ‘PRELIMINARY AGREEMENTS’), once; an answer that reasons through *Winn v Bull* at 363 without relying on the categories need not name them (R-X(4); R7).

- **Credit.** The consequence spelled out (no 12 February contract to sue on, which also answers any counterclaim by Grace for a failure to lend: trap T4; or, if bound, Rocky still recovers nothing (I.F1) and faces the counterclaim, damages outside); Lord O’Hagan at 361 and class 3’s first rationale; *Crossley v Maycock* at 362 (official-only; at most 20 quoted words; the Court, no judge named; the facts never characterised); *Niesmann* distinguished (class 2 needs parties who ‘intend no departure from or addition to’ their terms) and the fourth class; *Masters* 364 (‘whatever else the solicitors may fairly consider appropriate’); *Tasman* [26]; *Delaney* [60] (slide only, S3A slide 28; never cited to the slide, R-Z(2), and usable only if the answer can cite the case’s own report); Mayo J’s ‘details subject to further negotiation’ [CB3A 149 | 78 | first instance, SA]; the S3A slide problem; Walsh J’s indicators at *Godecke* 640 (official-only); the argument that ‘satisfactory conditions’ is an expression ‘of similar import’ to ‘subject to contract’ (362 to 363), with the difference (no formal document) disclosed; later conduct on formation (the former I.D3: Rocky lent nothing ‘by 15 February’, AMPL lent its own money on its own terms, Grace’s ‘I never signed anything with you’ as weak corroboration, Heydon JA 164 with his ‘points strongly against it’ at 182 weighed not transplanted, the ‘cure’ counter met on its own limit, ‘no protest by Grace’ marked ‘arguably’); Kirby P’s ‘Usually, there is no objectively right decision in these cases’ belongs to I.E, not here. From v11 (credit only): *Niesmann* met in the fuller form (+13), Jessel MR’s ‘a new agreement the terms of which are not expressed in detail’ (CB3A 156, 363) set against *Niesmann*’s ‘a condition of the obligation to pay’ (CB3A 155, 361), core (3) already meeting it (UPGRADES_r1 U25; Part 9 item 23); *Niesmann* given its own citation in the ‘, citing’ form, ‘*Masters* (n 7) 361, citing *Niesmann v Collingridge* (1921) 29 CLR 177’, the report as CB3A 155 prints it, optional and never deducted either way (UPGRADES_r1 U23; AGLC r 1.3, read outside the course files).
- **Strength and tilt.** Moderate on the course materials (S-4); moderate to strong where the answer deploys *Masters* 362 (*Crossley v Maycock*) against the qualifier, which is credit and never required. Either conclusion can be Excellent if best-reasoned. Best-reasoned for ‘not bound now’: items (1) to (5) with *Winn v Bull* 363 applied to a qualifier that reserves unspecified loan terms to the proposer and Rocky’s best case met from the email’s words. Best-reasoned for ‘bound’: items (1) to (5) with *Winn v Bull* 363 met with a reason from the email’s words (eg the qualifier conditions only the obligation to lend, as in *Niesmann* at 361, the conditions being Rocky’s to specify and ‘Confirmed’ having accepted the proposal with its qualifier), Grace’s best case met, and the advice that Rocky still recovers nothing (I.F1). An answer that deploys *Crossley* 362 (credit) and still concludes ‘bound’ is graded as any other best-reasoned contrary conclusion on a moderate point and loses marks only if *Crossley* is misstated (R-L(3); CRIT_round3 M12, adopted: v3’s cap on that answer is withdrawn, because it penalised engaging a credit authority and because the Court’s own hedges at 362, ‘no special form of words is essential’ and ‘Nor is any formula … so intractable’, and the absence of any contemplated formal contract are reasons the passage itself admits).
- **Consistency.** The same reading of ‘conditions’ governs E; the answer must not use class 3 to escape the counterclaim while asserting a binding contract to sue Grace (T4); the email and the Loan Agreement stay analytically separate.
- **Citation.** *Masters v Cameron* (1954) 91 CLR 353, 360, 361 or 363, each footnote carrying only the pin for its own sentence (no judge named: the whole Court); *Niesmann* is cited through *Masters* 361 (the Court’s report of Rich and Starke JJ), never by its own report, which is not in the course materials; 362 for *Crossley* counts as an official-only footnote (R-H; at most three in the

answer). *Ermogenous v Greek Orthodox Community of SA Inc* (2002) 209 CLR 95, [25] or [26] (Gaudron, McHugh, Hayne and Callinan JJ), the footnote placed on the sentence that states the objective test and the onus, not on a later framing sentence (CRIT_round3 m2, adopted). A second-hand quotation (Lord O'Hagan, Jessel MR, Lord Westbury) in AGLC 'quoting' form: the counted fn 8 reads 'Ibid 363, quoting *Winn v Bull* (1877) 7 Ch D 29, 32 (Jessel MR)', the citation as CB3A 156 prints it ('(1877) 7 Ch D 29 at 32'), and the next footnote, its predecessor now carrying two sources, reads '*Masters* (n 7) 361', never 'Ibid', AGLC r 1.4.3 barring 'ibid' 'where there are multiple sources in the preceding footnote' (CRIT_fidelity_9 Finding 2; R-U(6); v9's bare 'Ibid 363' contradicted this line, R8 and D2). The casebook's 'three classes' is the course's name; the official text prints 'three cases' at 360, so 'any of three classes' is not quoted.

- **Drops.** VG: the classes applied without disclosing that they assume a formal contract; *Winn v Bull* 363 not applied, or applied as 'absent a formal contract'; onus missing; one best case absent, or Rocky's put without its authority (a bare concession); strength overstated ('clearly class 3') or understated; further information missing, or given without the direction it would move the advice (U3); no lean with the method applied; the [25] factors not weighed on these parties (the status of 'project developers' or an equivalent factor absent: U4); 'settling the essentials' or 'all essential terms' written at I.D where I.E resists the 'Perhaps' exception (T19; graded once, at R10, not here). Good: 'this is a class 3 Masters agreement' or 'the parties intended to be bound' with no reasons (conclusive); presumption language used as the test ('commercial parties are presumed to intend legal relations'). Fair: *Masters*' classes recited with no application to 'satisfactory conditions'; presumptions stated without *Ermogenous*. Poor: *Masters* said to require a signed document as a rule of law; *Masters* misattributed (eg to Dixon CJ alone); the email treated as if it said 'subject to contract' with no reason; a binding loan contract on which Rocky recovers $1,150,000; no intention because Grace sought 'assistance' on a family presumption. Omitted: no preliminary-agreement analysis. Credit wrong: *Crossley*'s facts asserted (Poor: a fact outside the materials stated as fact); *Crossley* quoted as the casebook's text; *Todd v Nicol* preferred to Heydon JA in NSW without Mayo J's status; later conduct used to construe the email's meaning (Fair).
- **Marker comments.** 'Further analysis is required as your statement is conclusive.' 'The *Masters* classes assume a formal contract to follow; say so and apply them by analogy, and use the Court's adopted words at 363 for a qualifier that mentions no formal contract.' 'Put Rocky's best case and meet it.' '*Ermogenous* doubts the language of presumptions; identify who bears the onus.' 'Weigh the status of the parties and their relationship, as *Ermogenous* directs.' 'Identify the further information and how it would change your conclusion.'

I.E Certainty: illusory promise on the reading carried from D; Gibbs J's dictum with its hedges and the 'Perhaps' exception answered with its reason (3.0; C; floor 76) [*Meehan* 580 to 582; *Godecke* 646 to 647 (Gibbs J); *Pace* 150 to 151 by footnote]

- **Issue.** Whether a promise to lend 'subject to satisfactory conditions' is too uncertain to bind because it leaves the lender a discretion whether to perform, or leaves an essential matter to future agreement.
- **Rules at source.**
  - 'A particular promise may be illusory because the contract effectively gives the promisor an unfettered discretion as to whether to perform the promise.' [CB3B 159 | [6.10] | editors]; S3B slide 3 (the categories 'often overlap'; 'courts will strive to give effect to a contract if possible').
  - 'A consideration is illusory if its payment or fulfilment depends upon an unfettered discretion vested in the promisor.' and 'even when no objective criterion of measurement is available, it may still be possible to infer a promise to act honestly and/or reasonably … the consideration will not be illusory if the discretion must be exercised within specified parameters.' [CB3B 166 | 150 to 151 | McHugh JA, *Biotechnology Australia Pty Ltd v Pace* | majority in result with Kirby P; Hope JA dissenting].
  - Kitto J in *Placer*, quoted by Gibbs CJ [CB3B 183 | 581 | Gibbs CJ quoting *Placer Development Ltd v Commonwealth* at 356 | cite as quoted, never as if read].
  - Gibbs CJ's limit: 'that principle does not apply where the discretion or option of the contracting party relates, not to the performance of the contractual obligations themselves, but only to the fulfilment of a condition upon which the contract depends' and 'There is a concluded agreement as to the terms of the contract which, if the condition is satisfied, leaves no discretion in either party as to whether he shall carry them out.' [CB3B 183 to 184 | 581 to 582 | Gibbs CJ, *Meehan v Jones* | his reasoning; unanimous result; Aickin J died before judgment]; a clause 'which speaks of "satisfactory terms and conditions"' requires the purchaser's satisfaction; 'No doubt it may be implied that the purchaser will act honestly in deciding whether or not he is satisfied.' [CB3B 183 | 581 (the sentence sits wholly after the [581] marker) | Gibbs CJ]; Mason J: 'subject to an implied obligation that he will act honestly, or honestly and reasonably, in endeavouring to obtain finance and in deciding whether to accept or reject proposals for finance' [CB3B 185 | 588 | Mason J], and 'The limitation that the purchaser must act honestly, or honestly and reasonably, takes the case out of the principle that' a promise accompanied by a discretion whether to perform is no contract [CB3B 185 | 589 to 590 (the sentence sits before the [590] marker, which falls inside the quoted principle; OFF Meehan paragraph 23 closes '(at p590)') | Mason J]; 'it must be reached honestly, or honestly and reasonably' [CB3B 186 | 590 | Mason J]; Wilson J: 'the court will imply no greater obligation on the purchaser than that he is obliged to act honestly in determining whether the available finance is satisfactory', 'I am inclined to think there is force in this view', and 'it is sufficient for me, like Mason J, to refrain from expressing a concluded view' [CB3B 188 | 597 to 598 | Wilson J, who agreed with Mason J 'that each of the issues in the appeal should be resolved' alike (597) but inclined to honesty alone]; no majority on honest against reasonable (v10 printed 'Mason J (Wilson J agreeing)' against the 'honestly, or honestly and reasonably' words, which Wilson J did not adopt, and printed 580 to 581 for Gibbs CJ's sentence; both corrected in v11 from the source page). The meeting of the honesty fetter, same judge and same page: 'This point would have force if the contract left the court at large to assess what is "finance on satisfactory terms and conditions", yielding no indication as to what the parties meant by that expression.' [CB3B 185 | 587 (before the [588] marker; UPGRADES_r1 U1 printed 588) | Mason J | inner quotation never reproduced (D9): quote only 'left the court at large' or paraphrase]. The official text of 578 reads 'subject to finance, or to suitable finance, or to satisfactory finance'; the casebook drops the second and third limbs (R-K).
  - The course passage squarely on terms reserved to one contracting party, now CORE (CRIT_round3 M11, adopted as a swap funded by P and I.F2): Gibbs J, obiter: 'it does not necessarily follow from what I have said that an agreement which

left further terms to be settled by one of the parties, rather than by his solicitors, would be treated as a concluded contract'; 'it seems to me that there would be no binding contract in such a case, which would fall within the principle' in *Thorby v Goldberg* (quoted); 'Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties'; 'it is unnecessary to express any concluded opinion on these matters' [CB3B 190 | 646 to 647 | Gibbs J, *Godecke v Kirwan* | obiter, hedged both ways; never spliced (D2)]. Both hedges travel with it: 'obiter' (or the hedge 'doubted') and 'Perhaps' for subsidiary matters; the loan's unspecified 'conditions' may be subsidiary (amount, date, term and rate being fixed) or essential, which is why the dictum tips but does not decide.
    - Rocky's counter, course-extracted (credit): Walsh J (Mason J agreeing) in *Godecke*, construing cl 6: what the solicitors could require 'must be reasonable in an objective sense, and in case of [643] dispute this is a matter which the court can decide'; the purchaser 'is agreeing presently to accept as part of the bargain such additional provisions, if any, as are required' [CB3B 188 to 189 | 642 to 643 | Walsh J, Mason J agreeing at 648 | majority reasoning]. Official-only, credit (R-L(5)): Walsh J's adoption of Bray CJ, 'there is no reason in principle for holding that there cannot be any binding contract if some matter is left to be determined by one of the contracting parties', 'subject to the qualifications to which he refers' (not reproduced in any file) [OFF Godecke | paragraph 16, '(at p642)' | official-only (O-11)]. Gibbs J also disagrees with Bray CJ's observation and finds *Sweet & Maxwell* rested on 'the familiar and objective standard of reasonableness' [CB3B 190 | 647 | Gibbs J] (credit).
    - Kirby P (3) 'the court will not accept for itself a discretion which the parties have, by their agreement, reserved to one or other of them' and (4) 'Usually, there is no objectively right decision in these cases' [CB3B 163 to 164 | 135 | Kirby P, *Pace*]; McHugh JA's *Thorby* line at 154 to 155 (points toward Rocky; never cited as holding *Meehan* inapplicable); Murphy J at 596 to 597 (alone); *Whitlock* 461 and *Hall v Busst* 222 (analogies only); *MacRobertson Miller* 132 to 133 (Barwick CJ; the slide's 'we promise to fly you unless we choose not to' is the slide's own words, S1A slide 18).
- **Facts (deciding).** 'subject to satisfactory conditions' (Rocky both promisor and judge of 'satisfactory'). Supporting (credit): no 'reasonably'; no object named; bullet 2's 'subject to success of Hail Mary Project'.
- **Core.** (1) The issue framed on the illusory-promise criterion (the promisor's 'unfettered discretion'; *Pace* 150 to 151 or *Placer* via *Meehan* 581 in the footnote). (2) *Meehan*, the opponent's best authority, distinguished on Gibbs CJ's own limit, not on its result: 'satisfactory terms and conditions' bound there because the discretion related only to 'the fulfilment of a condition upon which the contract depends' (finance from a third party) and there was 'a concluded agreement as to the terms', whereas here, on the reading decided at D and CARRIED in terms ('(D)' or 'on the reading at D'; the counted form: 'whereas here (D) the conditions are the loan's own terms'), the conditions are terms of Rocky's own loan (or, on the external reading, the email is *Meehan*-shaped and not illusory); *Meehan*'s similarity is NAMED before it is distinguished (its clause, like the email, turned on what was 'satisfactory' to the party who would perform: UPGRADES_r1 U1, special care 1). (2A) ROCKY'S BEST ANSWER PUT AND MET in a clause (UPGRADES_r1 U1, adopted as core; R-X(5)): an implied duty to act honestly in judging what is 'satisfactory' would fetter the discretion and so save the promise, as Gibbs CJ, Mason J and Wilson J in *Meehan* each implied at least honesty (Murphy J, alone, apart: implying 'honest' 'adds nothing', CB3B 187, 597; UPGRADES_r1's 'all three … judges in the extract' omits him) (Gibbs CJ 581, 'No doubt it may be implied that the purchaser will act honestly'; Mason J 588 to 590, for whom honesty 'or honestly and reasonably' is what 'takes the case out of the principle'; Wilson J 597) and as McHugh JA allowed at *Pace* 151 ('even when no objective criterion of measurement is available, it may still be possible to infer a promise to act honestly and/or reasonably'); met on the reading decided at D: an honest judgment fetters a choice WITHIN agreed terms and cannot supply terms never agreed, which is what 'satisfactory conditions' leaves to Rocky (Mason J's own limit at 587, the point 'would have force if the contract left the court at large … yielding no indication as to what the parties meant'; Gibbs J's doubt at *Godecke* 646 about 'an agreement which left further terms to be settled by one of the parties, rather than by his solicitors'). The v11 form, after 'whereas here (D) the conditions are the loan's own terms': ', which Rocky's implied duty to judge 'satisfactory' honestly cannot supply' (+10), footnoted *Meehan* 581 (Gibbs CJ) or 589 to 590 (Mason J), either accepted. Honesty only is core: 'or honestly and reasonably' is credit and is never stated as settled by a majority (the credit-wrong line below stands). On the external reading at D the fetter is accepted and the promise is not illusory, and that branch is equally Excellent. Asserting the reading at E as fact, with no carry from D, where D reached it only as 'the better view … likely', is overstatement (VG: CRIT_round4 M7, adopted). (3) Gibbs J's dictum applied with both hedges in the same sentence AND the 'Perhaps' exception answered: he doubted, obiter, that terms left to one party bind, 'Perhaps' excepting 'subsidiary matters', which the unspecified 'conditions' arguably exceed WITH THE REASON STATED (Gibbs J's own contrast at 647 is a 'vital matter (such as price or rental)' left to one party against 'subsidiary matters'; the reason is that the matters left to Rocky are conditions of the loan itself, its own terms, not a subsidiary means of carrying a settled bargain into effect, so they are arguably vital rather than subsidiary; the counted form is 'which the loan's own conditions arguably exceed', the words 'the loan's own conditions' carrying the reason, and 'which conditions of the loan itself arguably exceed' (+1) is the same reason in the critic's words: CRIT_round5 M4, adopted under R-S(2)); so the promise is arguably illusory (or, on the external reading at D, not). A sentence that states the 'Perhaps' and then concludes 'so … illusory' without saying why the conditions are not subsidiary is a non sequitur, the decisive reason missing (VG: CRIT_round4 M7, adopted); v5's 'which these arguably exceed' was that shape, marking the inference without its reason (CRIT_round5 M4). (4) A conclusion consistent with D, HEDGED TO THE STRENGTH THE SOURCE SUPPORTS, 'arguably', with I.D deciding the outcome (R-X(5): certainty alone is weak to moderate, O-11, and the honesty fetter is a real answer on the materials; v10's 'likely' is from v11 one tier too strong for this unit, an overstatement graded VG under §2), the reason in the same sentence, and the outcome for Rocky left to D (on either reading the 12 February result stands on I.F1). The case is named in fn 12 (*Godecke* 646–7 (Gibbs J)); naming it in the text as well ('In *Godecke*, Gibbs J, obiter, doubted …', +2) is credit, written where words allow, because the counted S3 follows a *Meehan* sentence footnoted to Gibbs CJ and a marker reading the text alone could take 'Gibbs J' for the *Meehan* judge and then read 'obiter' as wrong for a judgment just applied as ratio (CRIT_round7 m2; not fundable at slack 1; Part 9 item 39).
- **Credit.** Walsh J (Mason J agreeing) at 642 to 643 as the counter for Rocky, met (the clause there imported an objective reasonableness standard and left the matter to solicitors, whereas 'satisfactory' names no standard and leaves the terms to the promisor himself) or accepted (with Mason J's 'honestly, or honestly and reasonably' as the fetter); Walsh J at 641 to 642 (official-only); whether the loan's 'conditions' are subsidiary or essential argued in terms; Kirby P (3) and (4); McHugh JA's *Thorby* line; Gibbs CJ at 579 (the objective reading he did not prefer); Murphy J and waiver (met: waiver protects a party who is not the promisor of the performance in issue, and gives Rocky nothing, he having lent nothing); *Hall v Busst* and *Milne* [6.20];

Pace's two qualifications; *MacRobertson Miller* by analogy; '5% interest' without 'per annum' and '1 year' without a start answered by *Upper Hunter* 436 to 437; 'the better view' form with a 'though' concession.

- **Strength and tilt.** Weak to moderate on certainty alone (O-11), decided at D; presented as contested, the verdict 'arguably' (R-X(5)). Either conclusion can be Excellent if it identifies that the point turns on the meaning of 'conditions', takes the reading decided at D, applies Gibbs CJ's limit (not merely *Meehan*'s result) and deals with the honesty fetter: met on the internal reading (it cannot supply terms never agreed), accepted on the external reading (the promise then not illusory). The *Pace* result and Hope JA's dissent (CB3B 168 to 169) are credit.
- **Consistency.** E and D decided once each and consistently; either way the 12 February result for Rocky (no claim) stands on I.F1.
- **Citation.** *Meehan v Jones* (1982) 149 CLR 571, 580–2 (Gibbs CJ); for the honesty fetter 581 (Gibbs CJ) or 589–90 (Mason J), on its own marker, one source per marker (R-R(3)); 587 (Mason J) if the meeting is footnoted; 590 (Mason J); *Biotechnology Australia Pty Ltd v Pace* (1988) 15 NSWLR 130, 150–1 (McHugh JA) or 135 (Kirby P); *Godecke v Kirwan* (1973) 129 CLR 629, 646–7 (Gibbs J) with 'obiter' (or 'doubted') and 'Perhaps' in the text; 642–3 (Walsh J, Mason J agreeing) if used, 641–2 as an official-only footnote.
- **Drops.** VG: the implied duty to act honestly not put, or put and not met (a promise held illusory with Rocky's best answer unanswered: U1; R-X(5)); the verdict stated 'likely' or unhedged rather than 'arguably' (R-X(5); §2); *Meehan*'s similarity not named before it is distinguished; *Meehan* distinguished on its result only, not on Gibbs CJ's limit; Gibbs J's dictum absent, or stated without 'Perhaps' (D3 and Poor if stated as a holding), or the 'Perhaps' exception stated and not answered; the reading asserted at E without the carry from D; the issue framed without the criterion; a conclusion inconsistent with D. Good: 'the clause is illusory' or '*Meehan* applies' stated. Fair: certainty heads listed with no application; *Meehan* not mentioned. Poor: McHugh JA at 154 to 155 cited as holding *Meehan* inapplicable (a misreading: S-5); the Gibbs J splice (D2); Murphy J's 'unlimited' discretion stated as the Court's holding; *Placer* quoted as if from its own extract; the slide's 'unless we choose not to' attributed to Barwick CJ. Omitted. Credit wrong: honest/reasonable treated as settled by a majority (VG); Walsh J 641 to 642 quoted as the casebook's text.
- **Marker comments.** '*Meehan* is the closest authority and it cuts for Rocky: distinguish it on Gibbs CJ's own limit.' 'Rocky's best answer is the implied duty to act honestly: put it and meet it.' 'This is arguable at most; certainty turns on the reading you reached at D.' 'Keep the hedge: Gibbs J's 'Perhaps' is obiter; Walsh J, with Mason J, is the majority, and the extract rests him on 'reasonable in an objective sense'.'

I.F1 Privity: Rocky lent nothing; the doctrine of agency (2.5; L; floor 30) [the doctrine of agency, one source per marker (R-R(3)): a case first under R-Z(3), *Port Jackson* 240 (Barwick CJ) for the criterion stated in Lord Reid's form; the casebook [11.70] only as a last resort, per R-A(4) as amended by R-X(1); either suffices for the criterion]

- **Issue.** Even if the 12 February email bound, whether Rocky has anything to recover under it: whether the 27 February advance was Rocky's performance through an agent (Rocky and Grace are the email's only parties, so privity of the email is not the question).
- **Rules at source.** 'A party not directly involved in acts of contract formation is nevertheless a party to the contract when: 1. One of the parties acts as agent for the noninvolved party' and 'Privity rule does not apply if a person promised a benefit under the contract can show that one of the parties was acting as their agent' [S4A slide 16 (PDF page 16; the deck prints no numbers) | slide only]; the course's statement of what must be shown: the principal 'expressly or impliedly consented to the agent acting on the principal's behalf so as to effect the principal's relations with third parties' and, 'with respect to the particular transaction under consideration, the agent was purporting to act on behalf of the principal and not solely on the agent's own behalf' [CB4 336 | [11.70] | editors' note; the note cites no case for these two elements, only *Port Jackson* for ratification]. Citation, from v12 under R-Z(2) and (3), an ORDER OF PREFERENCE and never a cumulative stack (R-R(3); CRIT_fidelity_4 Finding 2; CRIT_round4 M10, adopted): (1) a case first: *Port Jackson* 240 (Barwick CJ) states Lord Reid's requisites as the Privy Council adopted them, (2) 'the carrier by the bill contracted for the stevedore's protection as well as for his own' and (3) 'the authority of the carrier to act for the stevedore in this respect whether antecedently or by ratification was made out' (OFF Port Jackson [18] '(at p240)', read verbatim for v12), which are the purporting and consent elements in a case's words, so a sentence stating the criterion in that form ('AMPL was Rocky's agent only if it contracted for him as well as for itself, with his authority') is footnoted to *Port Jackson* 240, which does not count toward R-H's cap of three because the proposition is course-stated at [11.70] (CRIT_fidelity_2 m2's 'analogues only' is superseded by R-Z(3)); *Trident* (Brennan J: 'If a putative promisee is merely an agent for a third party, the third party is the promisee and is privy to the contract'; or Deane J: 'If the promisee contracts as agent for a disclosed or undisclosed principal, the principal will ordinarily himself be, for the purposes of the requirement of privity, a party to the contract'; both verified in the course reading, by report, judge named, no pin: R-Y(1)) states the agency route but neither element, so it is cited only for the bare route; *The New York Star* states only the authority point (the carrier's 'authority to act on the stevedore's behalf', OFF New York Star) and is never the citation for purporting; (2) the case the editors' note cites, *Port Jackson*, is (1) already; (3) withdrawn: no slide is ever cited (R-Z(2)), S4A slide 16 remaining the marker's locator only; (4) last resort (R-Z(3)): Andrew Robertson and Jeannie Paterson, *Contract: Cases and Materials* (Lawbook Co, 15th ed, 2025) [11.70], at most twice in the answer, accepted without deduction where the sentence states the elements in the editors' own form ('purporting to act on behalf of the principal and not solely on the agent's own behalf'), which no case states in those words; the v11 counted citation (fn 13) used it, the later reference being 'Robertson and Paterson (n 13) [11.70]' (R-A(4) as amended by R-X(1): the author order is the course slide's own full citation, S1A PDF page 7, printed slide 8, 'Andrew Robertson and Jeannie Paterson, Contract: Cases and Materials (Lawbook Co, 15th ed, 2025) (known as the Contracts Casebook)', which the publisher's listing matches; reading guide 1A's 'Paterson and Robertson' is an informal definition by surname and yields to the full citation; the title page is not in the folder, so the order is a disclosed judgment call: Part 9 item 11; UPGRADES_r1 U14). The course's words are 'the doctrine of agency' ([11.10]) and 'non-application of the privity rule: agency' ([11.70]); 'the agency route' is a sheet label, never the answer's (R7). Novation and assignment: S4A slide 16 words only; *Coulls* at 485 to 486 holds only that the paragraph there could not operate as an equitable assignment 'having regard both to its terms and to the fact that … it was not supported by consideration'.
- **Facts (deciding).** '$1,150,000'; '$1 million'; 'Rocky asked' (Rocky's best agency fact, met: UPGRADES_r1 U5); the guarantee

clause (AMPL took Rocky's guarantee, the fact that answers purporting: moved back from credit to core in v11 under U5). Supporting (credit): 'by 15 February'; '4%' against '5%'; 'Pierre agreed to provide the money'; 'the $1,150,000 was advanced by AMPL'; interest 'to AMPL'.

- **Core.** One sentence in the L ORDER, the hypothesis, the criterion and the deciding facts preceding the result (the v11 form: 'Even if the email bound, AMPL was Rocky's agent only if purporting to act for him, not solely for itself; though 'Rocky asked', it advanced '$1,150,000', not '$1 million', and took his guarantee, so Rocky lent nothing', +7 against v10's form: UPGRADES_r1 U5): the hypothesis ('even if the email bound'), the operative criterion (AMPL was Rocky's agent only if it purported to act for him and not solely for itself: 'with respect to the particular transaction under consideration, the agent was purporting to act on behalf of the principal and not solely on the agent's own behalf', CB4 336, [11.70]; in a case's words, Lord Reid's requisite (2), the agent 'contracted for the [principal's] protection as well as for his own', *Port Jackson* 240 (Barwick CJ), the form R-Z(3) prefers; either footnote earns the criterion), ROCKY'S BEST FACT MET ON THAT CRITERION ('Rocky asked' AMPL 'to advance $1,150,000 to Grace' is conceded as going to consent; it says nothing of whom AMPL purported to act for, whereas a lender that takes its supposed principal's guarantee in its own document, 'a clause that Rocky personally guaranteed repayment of the Loan', acts for itself; a different sum shows only that the email was not performed and says nothing of purporting, so it cannot carry the point alone: §1(b), the fact must satisfy the element), the deciding facts ('$1,150,000', not '$1 million'; the guarantee taken), and the result that Rocky lent nothing and has nothing to recover. Under R-X(3)(c) I.F1 is a unit whose result is not in doubt and may be compressed, but never below these items. v4's form, the verdict 'Rocky lent nothing' before a colon and its proof after it, is withdrawn as conclusion-first (R-R(2); CRIT_round4 M8, adopted; VOICE.md section 4 item 10). v10 carried the sum mismatch as the one deciding fact and the guarantee as credit (CRIT_round4 m5, a disclosed choice); from v11 the guarantee is core, because the sum mismatch alone does not go to purporting and leaves 'Rocky asked' unanswered (U5; Part 9 item 45, now funded into core); that AMPL also took Grace's promises in its own name remains credit.
- **Credit.** That AMPL took Grace's promises in its own name; the further differences (27 February, not 'by 15 February'; '4%', not '5%'; the loan documented as AMPL's own); further information, with its direction (why '$1,150,000'; whether the advance was arranged as Rocky's loan funded by AMPL, a yes reopening agency); novation named only, its requirements never stated (no case in the readings states them; never cited to a slide: R-Z(2)); the consequence that any claim by Grace for not lending is nominal (T4).
- **Strength and tilt.** Strong. A conclusion that Rocky recovers under the 12 February email is Poor with the D6 deduction.
- **Drops.** VG: the figures not used, or the criterion not stated, or 'Rocky asked' not met on the purporting criterion, or the result rested on the sum mismatch alone with no fact going to purporting (U5). Good: 'AMPL lent, not Rocky' bare; 'Rocky lent nothing' stated before its proof (D5 also). Fair: the 12 February claim said to fail for want of privity (Rocky is a party to the email); novation asserted with requirements stated. Poor: Rocky held entitled to repayment under the email; assignment presented as available on non-course requirements. Omitted: the claim walked through D and E with no conclusion on whether Rocky has anything to recover.
- **Marker comment.** 'Answer the client's question: even if the email bound, what did Rocky lend?'

I.F2 Privity: the general rule, benefit aspect and both limbs; the Loan Agreement's parties; the joint-promisee argument; 'I never signed anything with you'; the cross-reference to II.G (7.5; C; floor 81) [*Coulls* 486 to 487; for the rule *Coulls* 494 to 495 (Windeyer J) alone, never a slide (R-Z(2); S4A slide 2 also states the party limb only: R-U(1)); 478 credit]

- **Issue.** Whether Rocky is a party to Grace's promise to repay in the Loan Agreement and gave consideration for it; whether his best argument (a joint promisee with AMPL) succeeds; and whether Grace's reason ('I never signed anything with you') is the law.
- **Rules at source.** 'Rule: only a person who is a party to a contract can enforce the contract and incur obligations under it … A contract cannot confer an enforceable benefit on a nonparty' [S4A slide 2 | slide only; read at PDF page 2, text layer and page image: it states the party limb ('only a person who is a party to a contract can enforce the contract') and the two aspects, and nothing about consideration, so it is never the citation for the general rule, which *Coulls* 494 to 495 states (R-P; R-U(1); CRIT_fidelity_9 Finding 1)]; the editors' two limbs, '(a) are a party to (ie, privy to) the contract, and (b) have provided consideration', and 'The privity rule is separate from the rule that consideration must move from the promisee.' [CB4 327 | [11.10] | editors' note]; 'a person not a party to a contract may not himself sue upon it so as directly to enforce its obligations' [CB4 329 | 478 | Barwick CJ, *Coulls v Bagot's Executor & Trustee Co Ltd* | dissenting on construction; a statement of accepted law, cited at [14] by Mason CJ and Wilson J in *Trident* as part of what the Court 'has hitherto accepted' (OFF Trident; they then departed from the rule for liability insurance at [32]); 478 carries the PRIVITY limb only: in the same passage Barwick CJ says 'That C provided no part of the consideration seems to me irrelevant. Questions of consideration and of privity are not always kept distinct', so 478 must never be pinned for the consideration limb (CRIT_fidelity_3 M4, adopted)]; 'only those who are parties to a contract can sue upon it. For us that statement is incontrovertible' [CB4 333 | 494 | Windeyer J | dissenting on construction]; 'For us the rule prevails that a plaintiff who sues on a promise must show a consideration for it provided by him' [CB4 333 | 495 (OFF Coulls paragraph 18 '(at p495)'; the casebook prints no [495] marker, so '494–9' is accepted as the casebook-only form) | Windeyer J]; 'The question to be determined, then, is whether the testator's wife was a party to the contract and whether, upon its true construction, the contract contains a promise by the company to pay to her'; 'the contract purports expressly to be one made between Arthur Leopold Coulls and O'Neil Construction Pty Ltd' [CB4 330 | 486 | Taylor and Owen JJ | majority, ratio on who is a party]; 'there was no express promise by the company to pay royalties to the wife nor is it possible to imply such a promise' and 'the mere fact that her signature appears does not make her a party; this is a question to be resolved upon a consideration of the written instrument itself' [CB4 331 | 487 | Taylor and Owen JJ | majority, ratio]; the joint-promisee rule, conditional: 'If, however, the correct conclusion is that the widow was a party to the contract it is, to our minds, clear that she is entitled to receive the royalties payable after her husband's death notwithstanding that she, personally, gave no consideration for the company's promise' and 'at common law an action to recover must have been brought by both promisees and that it would fail if brought by one alone' [CB4 330 | 486 | Taylor and Owen JJ | majority; the course's answer to RG4A's 'multi-party agreement where privity is satisfied but one party has not given consideration' question]; McTiernan J: the words 'including its heading … countervail against the inference that Mrs Coulls is a party, sought to be drawn from the fact that she signed it' [CB4 331 | 482 to 483]; Windeyer J, dissenting, inferred an interest from her signature at 490 ('I can see no

reason for her signature except upon the basis that she had an interest in the performance of the contract') [CB4 332 | 490 | dissenting on construction; the sentence sits before the [491] marker, which falls in the next sentence, so the pin is 490 and not '490 to 491' (CRIT_fidelity_6 Finding 5, adopted: a range one page too wide invites 'the reference should not include'); the tie to joint-promisee status at 493 is official-only (OFF Coulls paragraph 13)] (credit); a party may be bound without signing: 'Since Empirnall has taken the benefit of the work with knowledge of the terms on which it was offered, an objective bystander would conclude that Empirnall had accepted the offer' [CB1B 72 | 536 | McHugh JA] (credit); formation of the Loan Agreement between parties present: 'In the common case of contracts, whether oral or in writing inter praesentes, there is no difficulty' [CB1B 88 | 41 | Lord Wilberforce, *Brinkibon*] (credit; *Gibson* 297 for construction of the document).

- **Facts (deciding).** 'AMPL and Grace entered into a written loan agreement'; 'I never signed anything with you'. Supporting (credit): 'signed by Grace and AMPL'; interest 'to AMPL'; 'under the Loan Agreement with AMPL' (the narrator's description of what the demand required, not Rocky's quoted words nor the letter's; usable under R-D as the proven content of the demand, never as Rocky's admission: CRIT_fidelity_3 M7, adopted); 'Best, Grace'; the heading and parties clause are not narrated (further information: they decided *Coulls* at 482 to 483 and 486).
- **Core.** (1) The general rule in the course's words, benefit aspect, with the two requirements distinct (a party; and consideration provided), footnoted to ONE source that carries both: *Coulls* 494 to 495 (Windeyer J dissenting), where 494 states the party limb ('only those who are parties to a contract can sue upon it. For us that statement is incontrovertible') and 495 the consideration limb ('a plaintiff who sues on a promise must show a consideration for it provided by him'); no slide is ever that source (R-Z(2); slide 2 also states only the party limb: CRIT_fidelity_9 Finding 1; R-U(1)), a slide citation here being graded at R1 and R8 under R-Z(5); a footnote that adds Barwick CJ 478 for the party limb cites two sources for one proposition and is over-citation under R8 (CRIT_round5 M1, adopted; R-S(1); v5's fn 14 did so and is corrected). (2) The test for who is a party: 'the written instrument itself', not signature (487). (3) *Coulls* compared on its facts: Mrs Coulls signed, yet the contract 'purports expressly to be one made between' her husband and the company, whereas AMPL and Grace 'entered into' the Loan Agreement (the formation of the Loan Agreement between them, offer, acceptance by execution and intention, being carried by that clause; the answer never asserts that the Loan Agreement 'purports expressly' to be between AMPL and Grace as a narrated fact: D4). (4) Rocky's strongest argument named and met in a clause: his joint-promisee argument presupposes a promise made to both, and nothing narrated makes Grace's promise one to Rocky (the counted form names the argument by its course name and meets it; its content, recovery 'notwithstanding that she, personally, gave no consideration' (486), is credit, moved from core to fund I.E's Gibbs J swap on the critic's own ranking: CRIT_round3 m1 and Part 3.4; even joint promisees must sue together, credit). (5) Grace's planted line answered: right in result, wrong in reason, signature being neither necessary nor decisive; the consequence that Rocky's 5 March demand fails in his own name, with the one-clause cross-reference R-Q requires (the demand, made on 5 March 2025 for 'the principal', was ARGUABLY premised on the 12 months having run from 27 February: '(II.G)'; the premise is an inference from the demand's timing against 'repayable at the expiry of 12 months', nothing being narrated about the date the demand assumed, so it is written 'arguably' under R-M and §3 exactly as every other derived fact, whichever party it helps: CRIT_fidelity_4 Finding 1, adopted; the counted form is 'the 5 March demand, arguably premised on 27 February (II.G), fails').
- **Credit.** Barwick CJ at 478 ('a person not a party to a contract may not himself sue upon it so as directly to enforce its obligations'; dissenting on construction; the privity limb only, never the consideration limb, the same passage saying 'That C provided no part of the consideration seems to me irrelevant'), usable as the citation for the party limb ONLY where Windeyer J 494 to 495 is not cited for it (moved from the grid's alternatives to credit: R-S(1)); the T2 reconciliation in four words where words allow, 'as to that clause only' at II.I1 (Rocky's assent, if found, makes him party to the guarantee promise and not promisee of Grace's promise to repay, so I.F2 and II.I2 do not contradict: CRIT_round5 m12, credit, +4); limb (b) applied in a clause (no consideration moved from Rocky, AMPL having lent: 'and Rocky gave Grace nothing for it', +6, where words allow: CRIT_round4 m6); 'whereas' is kept in the counted *Coulls* comparison because the sentence contrasts the instrument's named parties in *Coulls* with the Loan Agreement's, and a sentence opened with the connective 'Here,' would use a signpost on R1's list of those he never uses (CRIT_round4 m6, second limb, rejected); R1's list bans only that sentence-initial 'Here,', so a mid-sentence locative 'here', as in the counted model's 'absent here' (I.D S2), 'whereas here (D)' (I.E S2) and 'weaker here' (II.D S2), is not an R1 lapse (his Part A uses neither form, so the locative is neither his signpost nor a banned one: CRIT_round8 m3); McTiernan J's heading reasoning; the difference from Mrs Coulls (Rocky is named as promisor of the guarantee, which goes to the burden aspect, II.I1); Windeyer J at 490 as Rocky's analogy, dissenting; *Empirnall* 536 as positive authority that a party may be bound without signing; 'anything' too wide as to 12 February (Grace did confirm the email, though it gives Rocky no claim); the lay reading of Grace's line; the a fortiori point (the only clause naming Rocky burdens him) confined to the guarantee reading of 'the clause' (T18); 'Best, Grace' described as a sign-off, never asserted to be a signature in law (the materials state no rule); the Loan Agreement's acceptance and intention in a clause each (a company's written interest-bearing loan objectively intended to bind; presumption language never the test). From v11 (UPGRADES_r1 U18, credit only): the rule stated with the joint-promisee qualification ('Only a party who provided consideration, joint promisees aside, can enforce a contract', +3) is credit, the course's general rule being '(a) are a party to (ie, privy to) the contract, and (b) have provided consideration' (CB4 327, [11.10]) and the exception being put and met by core (4); rule then exception is the IRAC order, not a misstatement.
- **Strength and tilt.** Strong; authority decides. Rocky held a party able to enforce the Loan Agreement is Poor with the D6 deduction. Grace's defence accepted because Rocky did not sign is Good (right result, wrong reason: R-R(4)), the grade II.I1 gives the mirror error; v9's Poor with the D6 deduction for it is withdrawn, the result being right (*Coulls* 486 to 487) and D6 being confined to confidently wrong conclusions (CRIT_round9 M2; R-U(3)).
- **Consistency.** The same rule (signature not the test) applies to Rocky's own non-signature at II.I1 (T10); an answer that tells Grace signature is irrelevant and then lets Rocky escape the guarantee because he 'never signed' is not Excellent on either unit.
- **Citation.** *Coulls v Bagot's Executor & Trustee Co Ltd* (1967) 119 CLR 460, 486 or 487 (Taylor and Owen JJ), each footnote pinned to its own sentence (486 for 'purports expressly' and the joint-promisee rule; 487 for signature and 'no express promise'); for the general rule, 494–5 (Windeyer J dissenting) ALONE, 494 carrying the party limb and 495 the consideration limb ('For us the rule prevails that a plaintiff who sues on a promise must show a consideration for it provided by him', the official text marking the page as 495), never a slide (R-Z(2); slide 2 states the party limb only in any event: R-U(1)) (the counted fn 14 reads '*Coulls v Bagot's Executor & Trustee Co Ltd* (1967) 119 CLR 460, 494–5 (Windeyer J dissenting)'); 478 (Barwick CJ

dissenting) stacked with 494–5 for the one sentence is over-citation (VG: CRIT_round5 M1; R-S(1)); 478 for the consideration limb is a citation fault (VG; the passage argues the contrary); a pin of 494 alone for the consideration sentence is a citation imprecision (VG at item 10; 'the reference should not include'), not a Fair (CRIT_fidelity_2 m11, adopted). The AGLC form for a dissent is '(Barwick CJ dissenting)', no comma and no qualifier; 'on construction' belongs in the text if wanted (CRIT_round3 m13, adopted).

- **Drops.** VG: *Coulls* not compared on its facts; the joint-promisee argument not named, or named without the 'promise to both' answer; Grace's reasoning neither corrected nor read as the privity reason; only one limb; a dissent relied on without its status; the II.G cross-reference missing; [11.10] cited for the rule where *Coulls* 494 to 495 states it (a citation fault: R-Z(3); R-U(1)); a slide cited for either limb or for the rule is graded at R1 and R8 under R-Z(5), not here (v11's slide-2 citation-fault line is withdrawn). Good: 'Rocky is not a party' bare; 'Grace is right because Rocky did not sign' (right result, wrong reason, conclusive); the rule stated without application. Fair: party status argued from Rocky's interest or presence; the Loan Agreement asserted to 'purport expressly' to be between AMPL and Grace as a narrated fact (D4); formation of the Loan Agreement omitted while its privity is argued. Poor: Rocky held a party able to enforce the Loan Agreement; *Coulls*'s majority misattributed (eg to Barwick CJ or Windeyer J); 'Best, Grace' asserted to be a signature on a stated rule; *Trident* or a statutory exception stated as Australian contract law for Rocky. Omitted: Grace's planted line not answered.
- **Marker comments.** 'Answer the planted line: Grace is right in result, wrong in reason.' 'Put Rocky's best argument, the joint promisee, and meet it from *Coulls* 486.' 'Ensure your citation precisely supports the proposition: 487, not 486, for signature; 494 to 495 for both limbs of the rule, and the reference should not include 478 as well.'

I.F3 Privity: circumventing the privity rule, in a line (1.0; L; floor 20) [cited to a case: eg *Trident* (Brennan J) or *Trident* (Mason CJ and Wilson J), by report, judge named, no pin (R-Y(1), (2); R-Z(2), (3))]

- **Rules at source.** The five ways: 'First, the contracting party may enforce the contract … Secondly, it might be possible to argue that the privity doctrine has no application … by virtue of the doctrine of agency … Thirdly, C may be able to establish that … B was acting as a "trustee" for C … Fourthly, C may be able to establish an estoppel against B … Fifthly … damages under the Australian Consumer Law' [CB4 328 | [11.10] | editors]; S4A slide 3 (point 1 cites *Beswick v Beswick*; point 3 reverses the trustee formulation; a locator only, never cited: R-Z(2)). Citation from v12 (R-Y(1), (2); R-Z(2), (3); R-J and R-N superseded, so there is no cap of one *Trident* footnote and no allocation between units): a *Trident* judge who states the routes, by report, judge named, no pin, one source per marker. Verified in the course reading (corpus 'Trident (course reading)', by judge): Brennan J names the three principles that might avail a non-party, 'It was not suggested that agency, trust or estoppel availed McNiece', and sets out trust and agency each as a 'so-called exception' ('The first so-called exception is found in the law of trusts. A promisee may be or become a trustee of the promise for a third party'; 'A second so-called exception is found in the law of agency'), adding that 'Neither the principles of trust nor the principles of agency are exceptions to the doctrine of privity' (they operate around it, which is why the answer calls them routes around the rule, never exceptions to it); Mason CJ and Wilson J name trust and agency, the third party being 'dependent on the willingness of the promisee to exercise his rights, in the absence of a trust, an agency relationship or an enforceable agreement between the promisee and the third party', and recount the equitable principle that 'a party to a contract can constitute himself a trustee for a third party of a right under a contract so that the third party can enforce the promise'; Toohey J refers to 'the various ways in which third parties have been permitted to sue, whether by way of trust, agency or the like'. Brennan J is the fullest single source for a line naming agency, trust and estoppel; Mason CJ and Wilson J serve for trust and agency; either is accepted and neither is deducted. The first route, the contracting party (AMPL) enforcing, needs no separate footnote, being the fact that AMPL 'contacted Grace directly'. The casebook [11.10] is a last resort only (R-Z(3)) and is not needed here, *Trident* stating the routes; a slide is never cited (R-Z(2)). Windeyer J at 502 ('I am not persuaded that C could force A to seek redress from B') [CB4 335 | 502 | dissenting on construction; on the hypothesis of a non-party] (credit).
- **Facts (deciding).** 'AMPL contacted Grace directly'. Supporting: 'AMPL required the $1,150,000'; no representation by Grace to Rocky.
- **Core.** One sentence in the L form, the facts preceding the result ('AMPL enforces its own loan, agency fails and no trust or estoppel appears, so no route around the rule assists'; v10's 'AMPL enforces its own money' is a wrong collocation, money not being enforced, and is from v11 an R1 lapse: UPGRADES_r1 U29, zero words; 'AMPL, the contracting party, would enforce for itself' (+3), which names the first route in the casebook's words ('First, the contracting party may enforce the contract', CB4 328), is equally Excellent; never 'is narrated': R-R(1)), disposing of the routes: the contracting party (AMPL) is already enforcing its own loan; agency fails (F1); no trust for Rocky or assumption he relied on appears on the facts.
- **Credit.** Windeyer J at 502; assignment and novation named only, with no stated requirements (no case in the readings states them). The statutory route is not covered and is never named as outside Weeks 1 to 4 or any scope (R-Z(1), (4)); v11's credit 'The statutory route named as outside Weeks 1 to 4' is withdrawn, and writing it is graded at R1 and R8 under R-Z(5).
- **Drops.** VG: one route missing. Good: 'no exception applies' bare, or a verdict followed by its reasons (D5 also). Fair: *Trident*'s trust stated as the route with no facts. Poor: assignment presented as available on stated non-course requirements; Rocky said able to sue as trustee beneficiary. Omitted.
- **Marker comment.** 'Try every route for the non-party, briefly, on the facts.'

Part 5. (Retired.) The 12 months, v3's Part 5, is now unit II.G inside Part 6 (R-Q); the number is kept so that cross-references to Parts 6 to 9 stay stable.

Part 6. Descriptors: PART II. ROCKY v AMPL (ALTERNATIVELY PIERRE) (51%)

Settled results (ISSUES_SETTLED header table; S-7, S-9, S-11, S-15 to S-18): a binding oral contract for the $10,000 at the 8 April meeting (moderate to strong against AMPL or Pierre; moderate as to AMPL); consideration given (moderate to strong); intention and certainty present (moderate to strong if AMPL promised, under B-4; certainty strong); not payable on 9 March 2025 (strong); whether Rocky's own payment meets the condition moderate to strong against him (R-O); as a present claim weak (premature), as a contingent right moderate to strong. The clause in the Loan Agreement alone cannot bind Rocky (strong); Rocky probably bound by his oral undertaking to whoever accepted it (moderate as to AMPL); its content as a guarantee of repayment moderate on the guarantee reading of 'the clause'; timing open. **'Answer with specificity to individual Ps'**: AMPL and Pierre are dealt with separately wherever the promisor, the promisee or the onus differs (II.C1, II.C2, II.D, II.F2, II.I1, II.I3, II.I4); the required items and consequences are stated conditionally on the answer's II.F2 conclusion.

II.A Offer: Pierre's 'expected' likely a request; Rocky's words an offer of a bilateral contract (2.5; L; floor 33) [*Gibson* 298 for the criterion applied to 'expected'; *Brambles* 177 (Heydon JA quoting McHugh JA), or *Mobil* 500 by contrast, for the bilateral contract; *Butler* 404 credit (the counter-offer point); S1A slides 11 to 12 are not the citation. The three are authorities for three different propositions and were never alternatives for one another, so v6's 'eg' list, which §1 reads as alternatives one of which suffices, is withdrawn: CRIT_round6 m9]

- **Rules at source.** The criterion of an offer in a course case: a letter is an offer only if it is 'a contractual offer capable of being converted into a legally enforceable open contract … by Mr Gibson's written acceptance of it' [CB1A 42 | 298 | Lord Diplock, *Gibson*]; the bilateral contract in a course case: 'In classical theory, the typical contract is a bilateral one and consists of an exchange of promises by means of an offer and its acceptance' [CB1B 78 | 177 | McHugh JA in *Integrated Computer Services Pty Ltd v Digital Equipment Corp (Aust) Pty Ltd*, quoted by Heydon JA in *Brambles*]; 'A unilateral contract is one in which the act of acceptance of the offer is also an executed consideration for the promise offered.' [CB1A 59 | 500 | the Court, *Mobil*]; the slides' wording, 'Must contain an invitation/ a proposal/ an option that the other party can accept or reject' [S1A slide 11 | slide only] and 'Bilateral contract – contract is made by exchange of promises to do something – then the parties do what they agreed' [S1A slide 12 | slide only; the slide's dashes never reproduced], may be paraphrased but is NOT cited, because course cases state the point and a slide citation where a course case states the point is over-citation (R-P; CRIT_round3 M6, adopted in substance); a reply adding a term 'was in law a rejection of the offer and constituted a counter-offer' [CB1B 94 | 404 | Lord Denning MR, *Butler*]; the request test: 'whether there has been a request by the alleged promisor that the promisee shall do the act on which the latter relies. Such a request may, of course, be expressed or implied.' [CB2A 101 to 102 | 458 | the Court, *Australian Woollen Mills*]; 'the language of command' [CB1B 76 | 171 | Heydon JA | obiter] (credit).
- **Facts (deciding).** 'expected'; 'I will do that if you also promise'.
- **Core.** One sentence: the operative criterion (a proposal the other party can accept so as to bind the proposer) and the deciding word: Pierre's 'expected' proposed nothing Rocky could accept so as to bind Pierre, so it was LIKELY a request (relevant to consideration), not an offer, the hedge matching the moderate-to-strong tier (§1; CRIT_round4 M4, adopted: v4's unhedged 'so it was a request' was its own VG); Rocky's 'I will do that if you also promise', seeking a return promise rather than an act, offered a bilateral contract (strong; unhedged). 'Likely an invitation to treat, not an offer' (+2) is equally Excellent at II.A, Pierre's expectation inviting the offer Rocky then made; R7 requires the course's name for an invitation to treat once in the answer, and the counted structure gives it at I.A, so 'a request' here (whose function is the consideration point at II.C2) is not an R7 lapse (R-X(4); UPGRADES_r1 U7).
- **Citation.** Two propositions, two markers (R-R(3); the counted form): *Gibson* 298 (Lord Diplock) on the criterion applied to 'expected' ('so it was likely a request'), and *Brambles* 177 (Heydon JA), quoting McHugh JA in *Integrated Computer Services*, on the bilateral contract; v5's single footnote listing both is withdrawn (CRIT_fidelity_5 Finding 5).
- **Credit.** The definite terms ('$10,000'; 'to me directly'; 'once Grace repays the Loan'); the request test in *Australian Woollen Mills* 458 named for 'so it was a request'; if Pierre's words were an offer, Rocky's '$10,000' term made his reply a counter-offer (*Butler* 404), the operative offer still being Rocky's; the unilateral reading named and rejected on 'if you also promise', with *Mobil* 506 stated in its own terms (no 'universal proposition' against revocation after commencement).
- **Strength.** Moderate to strong that Pierre's words were not the accepted offer (S-31); strong that Rocky's offer was of a bilateral contract. A conclusion that Pierre's words were the accepted offer is capped at Very Good; a unilateral contract found against 'if you also promise' is Poor.
- **Drops.** VG: either classification without its deciding word, or the criterion absent; 'a request' unhedged (the tier). (A slide cited for the criterion is graded at R1 and R8 under R-Z(5), not here; v11's 'a citation fault at R8' line is superseded.) Good: 'not an offer' or 'Rocky made an offer' bare. Fair: 'expected' treated as an enforceable promise by Pierre; offer elements recited generally. Poor: Pierre's words held an offer accepted by 'I will do that' with the $10,000 ignored; a unilateral contract with Rocky's performance as acceptance. Omitted.
- **Marker comments.** 'Classify Pierre's words with the deciding word: 'expected'.' 'Read the requested act or promise from the offer's own words.'

II.B Acceptance: 'Pierre agreed'; the oral bargain bound without the document; Lord Greene MR's analogy disclosed (3.0; C; floor 62) [*Empirnall* 534 or *Brinkibon* 41; *Brambles* 176 (Heydon JA, quoting Lord Greene MR); *Masters* 361]

- **Rules at source.** 'The objective theory of contract requires an external manifestation of assent to an offer.' [CB1B 71 | 534 | McHugh JA, *Empirnall*]; 'In the common case of contracts, whether oral or in writing inter praesentes, there is no difficulty' [CB1B 88 | 41 | Lord Wilberforce, *Brinkibon* | reasoning on where a contract is formed]; *Masters* class 1: parties who 'have reached finality in arranging all the terms of their bargain and intended to be immediately bound … but at the same time propose to have the terms restated in a form which will be fuller or more precise but not different in effect' [CB3A 155 | 360 | the Court]; Lord Blackburn, as the Court reports him: a stipulated formal agreement 'does not, by itself, show that they continue merely in negotiation' [CB3A 155 | 361]; Heydon JA's examples where 'Offer and acceptance analysis does not work well': exchanges of contracts to sell land, of which Lord Greene MR observed 'Parties become bound by contract when, and in the manner in which, they intend and contemplate becoming bound. It is a question of the facts of each case', and, in the next paragraph, 'contracts between numerous parties, or even two parties, negotiated at meetings but not assented to until each

party executes counterparts' [CB1B 77 | 176 | Heydon JA, *Brambles*, quoting Lord Greene MR in *Eccles v Bryant* (cited there as '[1948] 1 Ch 93 at 104', Heydon JA's slip for '[1948] Ch 93': R-X(2)) of the land-exchange practice | his reasoning on acceptance; neither example states that meetings bind only on execution; Lord Greene MR's words never attributed to the meetings example (D2); 'in the next paragraph', not 'two sentences later': CRIT_fidelity_3 m15, adopted]. *Masters* 360 to 361 states that in the first two classes 'there is a binding contract' and class 3's 'wish to reserve to themselves a right to withdraw'; it does not state the 'when and how they contemplate' formula, which is Lord Greene MR's alone (CRIT_fidelity_3 M5, adopted).

- **Facts (deciding).** 'Pierre agreed'. Supporting (credit): 'before it was signed by Grace and AMPL' (the one fact AMPL's execution argument could cite; moved from deciding to supporting in v9 to match Appendix B and the counted paragraph, which quotes only 'agreed' and puts AMPL's argument without a fact, the argument being weak because the document was 'signed by Grace and AMPL' and nothing suggests that Rocky was to sign it: CRIT_round8 m2); Rocky not a signatory; 'Rocky would check in consistently with Grace via email' (post-formation conduct, admissible on formation).
- **Core.** (1) One sentence: the criterion (an external manifestation of assent in response) and the deciding fact: Pierre 'agreed' (the counted form: 'Pierre 'agreed', communicating unqualified assent in response'; never 'the narrator's 'Pierre agreed'': R-R(1), CRIT_round4 M2, adopted), so the bargain formed on 8 April 2024, subject to who accepted (F). (2) AMPL's argument put in a clause (nothing bound until the document was executed, by analogy with contracts negotiated at meetings and assented to on execution) and met with the analogy disclosed in the text: 'as Lord Greene MR said of exchanges of contracts', parties are bound when and how they contemplate becoming bound, footnoted *Brambles* 176 in the AGLC r 1.3 form, '*Brambles* (n X) 176 (Heydon JA), quoting *Eccles v Bryant* [1948] Ch 93, 104 (Lord Greene MR)' (R-X(2); UPGRADES_r1 U8: the report is '[1948] Ch 93', as the Court prints it in *Masters* at CB3A 156, 'Eccles v Bryant and Pollock [1948] Ch 93 at 94', and as the official *Masters* text prints it; the '[1948] 1 Ch 93' at CB1B 77 is Heydon JA's own slip, faithfully reproduced by the casebook, the 1948 Chancery volume carrying no volume number; only the first-named party on each side is cited, so 'and Pollock' is dropped; v10's '1 Ch' form is withdrawn and is a citation fault (VG at R8) from v11; R8; Part 9 item 30); and nothing in the exchange made the bargain subject to a document or reserved a right to withdraw (*Masters* 361 for the reservation of a right to withdraw, on its own marker: the counted form carries two markers inside the sentence, one per proposition, and no sentence-end marker). Stating the formula as a general rule, footnoted to *Masters* 360 to 361 or to Heydon JA as his own, is the D2 fault (CRIT_fidelity_3 M5; CRIT_round3 M2 at II.B, adopted). (3) A conclusion in the moderate tier ('likely'), with the consistency consequence that the $10,000 and the undertaking stand or fall together (T8).
- **Credit.** Only AMPL and Grace were to sign; the record in the Loan Agreement as class 1 at most; ten months of check-ins as conduct confirming a bargain; Heydon JA's test for cases where offer and acceptance cannot be found ('can an agreement be inferred?' [CB1B 80 | 179], his route); Pierre's private view of whom he spoke for not decisive.
- **Strength and tilt.** Acceptance in response strong on 'agreed'; formation of a binding contract with someone moderate to strong (ISSUES_SETTLED S-15; v6's 'Formation strong' departed from S-15 without a reason, which R-R(9) forbids, and is corrected: CRIT_round6 m7; no Drop depended on it, so no grade changes); the oral bargain binding without the document moderate (S-17). Either conclusion can be Excellent if the parties' contemplated mode of becoming bound is applied to the stated facts and T8 is drawn; a 'no oral contract' conclusion must advise that the undertaking falls with it.
- **Drops.** VG: AMPL's analogy not met; Lord Greene MR's words used without the disclosure; T8 not drawn; the criterion absent at (1). Good: 'an oral contract formed' bare. Fair: a writing requirement asserted (none in the materials). Poor: Lord Greene MR's words attributed to the meetings example or stated as Heydon JA's rule that meetings bind only on execution (D2); *Masters* class 3 found to defeat the $10,000 while the undertaking is held binding. Omitted.
- **Voice note.** The one-clause counter-frame 'AMPL would say nothing bound until execution.' is kept as a frame under R1 (his 'On the other hand, only SPC knew its finances and that GR would rely'); CRIT_round5 m10's proposal to join it to the next sentence at no cost was REJECTED in v6, and remains so, because the body's under-12 share would fall to 8.5%, below his Parts' floor of 9.1% (the round-5 additions removed two short verdicts), so the frame now carries the voice statistics as well as the counter.
- **Marker comment.** 'Consider how these parties contemplated becoming bound; the same answer governs both sides of the bargain.'

II.C1 Consideration: the price of Rocky's promise, which moved from him; if Pierre promised, Rocky's detriment (1.5; L; floor 26) [*Australian Woollen Mills* 456 to 457; *Beaton* 181 (McHugh JA, quoting Patteson J); *Musumeci* 745]

- **Rules at source.** 'it should be made to appear that the statement or announcement which is relied on as a promise was really offered as consideration for the doing of the act, and that the act was really done in consideration of a potential promise inherent in the statement or announcement' and 'the relation of a quid pro quo' [CB2A 101 | 456 to 457 | the Court, *Australian Woollen Mills* | ratio; said of unilateral contracts, adopted as the bargain requirement by Kirby P in *Beaton* at 168]; consideration 'must be moving from the plaintiff' [CB2A 107 | 181 | Patteson J in *Thomas v Thomas*, quoted by McHugh JA]; 'It is of course long settled that detriment to the promisee suffices as consideration' [CB2B 122 | 745 | Santow J, *Musumeci v Winadell Pty Ltd* | first instance, NSW]; 'Must flow between the parties in both directions' [S2A slide 2 | slide only]; RG2A: 'Must consideration be of benefit to the other party?'.
- **Facts (deciding).** 'if you also promise'. Supporting: '$10,000' against '$1,150,000'.
- **Core.** One or two sentences: the criterion (the price of the promise, moving from the promisee) and the deciding words: the $10,000, given 'if you also promise', priced Rocky's promise, WHICH (Rocky's promise, his undertaking) moved from him as promisee; the $10,000 moves from AMPL or Pierre, and a sentence whose grammar makes the $10,000 move from Rocky is a confused statement of 'consideration must move from the promisee' (Good; CRIT_round3 M2, adopted); on the alternative that Pierre promised personally ('If Pierre promised', never 'the Pierre branch': R7), ROCKY'S detriment (undertaking to procure another's performance) LIKELY suffices though the benefit runs to AMPL: the promisee is named by name, never by a pronoun whose nearest antecedent is Pierre (v4's 'his detriment' read as Pierre's and stated the wrong promisee's detriment: CRIT_round4 M3, adopted), and the verdict carries 'likely' for the moderate-to-strong tier (CRIT_round4 M4). Each proposition carries its own footnote marker (CRIT_round3 m2; R-R(3)): *Australian Woollen Mills* 456 to 457 on 'priced Rocky's promise' (the bargain relation); *Beaton* 181 (McHugh JA, quoting Patteson J in *Thomas v Thomas*: consideration 'must be moving from

the plaintiff') on 'which moved from him as promisee' (CRIT_fidelity_4 Finding 5, adopted: 456 to 457 states the bargain requirement, not the 'moving from' rule in terms); *Musumeci* 745 on the detriment sentence.

- **Credit.** Adequacy not weighed ([4.150]); not McHugh JA's first situation in *Beaton* at 182 to 183 (minority on the result); the practical benefit exception, the bona fide compromise and the deed (S2B slide 4) belong at II.C2 and only on AMPL's sequence.
- **Strength.** Strong if AMPL promised; moderate to strong if Pierre promised.
- **Drops.** VG: the Pierre alternative run without saying why a benefit to a third person is no objection, or the criterion absent; 'suffices' unhedged on the Pierre alternative; 'moving from the promisee' footnoted to 456 to 457 alone (a citation imprecision). Good: 'there is consideration' bare; the $10,000 said to move from Rocky; the wrong party's detriment named or implied by a pronoun. Fair: consideration found in the 27 February request; the practical benefit exception used as the main route. Poor: the exception said to apply because AMPL benefits (element (ii) ignored). Omitted.

II.C2 Consideration: the existing legal duty rule, conditional on who promised (5.5; K; floor 126) [*Wigan* 594; *Sundell* 327; *Pao On* 632 if Pierre promised (the casebook [4.300] never needed, *Pao On* stating the point: R-Z(3))]

- **Issue.** Whether Rocky's 'I will do that' was consideration, or only a promise to do what he was already bound to do; and to whom any prior duty was owed.
- **Rules at source.** 'The general rule is that a promise to perform an existing duty is no consideration, at least when the promise is made by a party to a pre-existing contract, when it is made to the promisee under that contract, and it is to do no more than the promisor is bound to do under the contract. The rule expresses the concept that the new promise, indistinguishable from the old, is an illusory consideration.' [CB2B 131 to 132 | 594 | Mason J, *Wigan v Edwards* | majority reasoning (Walsh and Gibbs JJ agreeing; Menzies J and McTiernan ACJ reaching the same conclusion)]; AMPL's best authority: 'the only consideration which was suggested in argument as being given in exchange for the alleged promise was that the [defendant] would do what was necessary to ensure that the goods were delivered. But we are satisfied that the [defendant] was bound to do so under the original contract. In our view every promise allegedly given to the plaintiff by the defendant under the so called second agreement was identical with a promise given under the original agreement.' [CB2B 113 to 114 | 327 | the court in *TA Sundell & Sons Pty Ltd v Emm Yannoulatos (Overseas) Pty Ltd*, quoted in the editors' note [4.190]; no judge named; S2B slide 8]; 'The presence of a request does not, however, in itself establish a contract.' [CB2A 103 | 550 | the Privy Council in *Australian Woollen Mills*]; the course's exception for a duty owed to a third party: 'A promise to perform an act which the promisor is under an existing duty to a third party to perform may constitute good consideration.' [CB2B 125 | [4.300] | editors' note]; 'Their Lordships do not doubt that a promise to perform, or the performance of, a pre-existing contractual obligation to a third party can be valid consideration.' [[1980] AC 614, 632 | the Board | verified in the official text; course-stated at [4.300] and S2B slides 5 and 9 ('promises to third parties')]; the practical benefit exception: Glidewell LJ's elements, (i) 'if A has entered into a contract with B to do work for, or to supply goods or services to, B in return for payment by B', (ii) 'at some stage before A has completely performed his obligations under the contract B has reason to doubt whether A will, or will be able to, complete his side of the bargain' (B, the party promising the extra payment, doubts A, the performing party; v3's 'whether B will perform' reversed the parties: CRIT_fidelity_3 M3, adopted), (v) 'B's promise is not given as a result of economic duress or fraud on the part of A' [CB2B 119 | 15 to 16 | Glidewell LJ, *Williams v Roffey Bros & Nicholls (Contractors) Ltd*], Santow J's recast [CB2B 123 | 747 | first instance]; the bona fide compromise qualification [CB2B 132 | 594 to 595 | Mason J]; *Wigan* 595 ('the additional promise should be regarded as an element of the bargain') as an analogy only, never a rule of interdependence; *Stilk* via Glidewell LJ at 11 (Lord Ellenborough CJ's passage is printed after the [11] marker and the extract elides before [13]; no [12] is printed: CRIT_fidelity_3 m16, adopted) (an analogy for promising more).
- **Facts (deciding).** 'also'; 'Pierre agreed and the clause was included'; 'ensure that Grace made all payments … promptly' (the narrator's report of Pierre's expectation); 'repayment of the Loan'. Supporting: the clause narrated before the exchange; on 27 February Rocky only 'asked'; 'the personal guarantee provided by Rocky'.
- **Core.** (1) The rule NAMED in the course's term, the existing legal duty rule (RG2B: 'What is the existing legal duty rule?'; S2B PDF page 8 heading 'Existing Legal Duty Rule'; the v11 form opens 'The existing legal duty rule' for v10's 'The general rule', +2: UPGRADES_r1 U7; R-X(4)), and stated in Mason J's words with its hedge ('at least when'), applied to its own premises: was Rocky a party to a pre-existing contract with the promisee when he promised, and was the promise 'made to the promisee under that contract'? The rule's content ('a promise to perform an existing duty is no consideration') must appear in the paragraph, in S1 or carried by the *Sundell* clause of S2 ('a promise to ensure performance already owed is … no consideration'), as the counted paragraph carries it; a paragraph that quotes only the hedge and never states what the rule does is conclusive under §1(b) (CRIT_round7 m3, a note at no cost). (2) AMPL's strongest argument at full strength: 'also' and the clause described before the exchange presuppose a guarantee already given, and *Sundell* denied consideration to a promise to ensure performance already owed (paraphrased without quotation marks and cited by report, or quoted in the 'quoted in' form: see Citation; the counted form is 'AMPL would say 'also' and the clause described first presuppose an existing guarantee: a promise to ensure performance already owed is, as in *Sundell*, no consideration'). (3) Rocky's answers, numbered as limbs (i) to (iv) so that the conditional core and the Strength line refer to them without ambiguity (CRIT_round9 m10; R-U(6)): (i) no earlier binding promise by Rocky appears; (ii) Rocky's 27 February request 'does not … in itself establish a contract', the limb TIED TO ITS FACT ('Rocky asked' AMPL on 27 February 'to advance $1,150,000 to Grace'), never 'a request' or 'his request' without saying whose and when, three cold readers in Stage-5 round 1 having been unable to tell whose request (the v11 form 'Rocky's 27 February request' for 'a request', +2: UPGRADES_r1 U20, the deciding passage being CB2A 103, *Australian Woollen Mills* (PC) 550, 'The presence of a request does not, however, in itself establish a contract'; a limb applied to no fact is conclusive under §1(b)); (iii) the sequence 'Pierre agreed and the clause was included' arguably places the clause after the exchange ('arguably': R-M; the counted form is 'The facts arguably place the clause after the exchange', never 'the narrative' or 'is narrated': R-R(1)); and (iv) ensuring 'all payments … promptly' exceeds 'repayment of the Loan' (the defined principal), a promise to do more (whether it does is a construction of the two quoted phrases, not a fact either way: the counted 'exceeds', unhedged because it compares the words on their face, 'all payments' taking in the monthly interest and 'repayment of the Loan' naming the defined principal, 'arguably exceeds' (+1, not funded) and, on the contrary branch, 'arguably adding nothing to a guarantee' are all accepted, the verdict's 'likely' carrying the strength: Part 9 item 38(h); CRIT_round8 m5) (credit, in terms: *Sundell*'s promisor owed an identical duty to the same promisee under a prior contract,

whereas no prior contract bound Rocky). (4) The alternative that Pierre promised, conditional on II.F2 (CRIT_harsh_2 F4, adopted): if Pierre promised personally, the rule's second premise fails on its own words, the promise being made to Pierre while any prior guarantee was owed to AMPL, and the course's exception for a promise to perform a duty owed to a third party (*Pao On* 632, the Board: 'a promise to perform, or the performance of, a pre-existing contractual obligation to a third party can be valid consideration'; the editors' [4.300] states it too but is never the citation, a case stating it: R-Z(3)) supplies consideration. (5) A conclusion in the tier for the strength, carrying its reason in the verdict sentence without restating (3) and (4) (the counted form: 'On balance, Rocky likely gave consideration, his promise exceeding anything that bound him, though the order of clause and $10,000 would settle it'; v5's verdict restated S3's and S4's reasons at a cost of six words and was shortened under R-S(4), the reason surviving in the clause 'his promise exceeding anything that bound him'), with the further information that settles it (the order in which the clause and the $10,000 were agreed) in the trailing clause, STATED WITH ITS DIRECTION (the v11 form: 'though a clause agreed first would favour AMPL', −2 against v10's 'though the order of clause and $10,000 would settle it', which names the information and not its effect: UPGRADES_r1 U3; R6; Instructions p 1, 'how it would impact your conclusion').

- **Conditional core (the contrary branch, R-E; CRIT_complete_bias_2 A-3, adopted).** An answer that concludes Rocky was arguably already bound to the same promisee must then run 'the exceptions to the general rule' with 'the exact elements of those exceptions' (RG2B-Q1): the practical benefit exception named and set aside in a clause on Glidewell LJ's elements (i) and (ii) (a guarantee is not 'work … goods or services'; B's 'reason to doubt' is doubt whether A will complete, and Pierre's doubt was about Grace, who 'was experiencing significant financial difficulties', not about Rocky), the bona fide compromise excluded (no disputed claim narrated), and the consequence drawn for the $10,000 and the undertaking (T8). Two drafting rules on this branch (CRIT_round10 m4 and m5, adopted as rule text): elements (i) and (ii) are footnoted *Williams v Roffey* 15 (Glidewell LJ), both sitting before the [16] marker (CB2B 119), never '15–16', which is the pin only where element (v) is also stated ('the reference should not include …'); and element (ii) is written as doubt ABOUT Grace ('doubt arguably about Grace'), never 'Grace's doubt' or a possessive that makes Grace the doubter, B's 'reason to doubt' being doubt held by the promising party about the performing party. On that branch those items replace core item (3)(iii) (the order of clause and $10,000, which the branch accepts, marked 'arguably'); the 'more than' limb, (3)(iv), is NOT replaced, because Mason J's rule applies only where the promise 'is to do no more than the promisor is bound to do under the contract' (594), so a 'no consideration' conclusion must address whether ensuring 'all payments … promptly' exceeded a guarantee of 'repayment of the Loan', and on this branch it does so in a clause marked 'arguably' (the counted form: ''all payments … promptly' arguably adding nothing to a guarantee'); v7's 'replace … the fourth limb' contradicted the Strength line below and is withdrawn (CRIT_round7 m8, adopted; R-T(2)). The floor is the same, and the appendix (section 7) carries a counted contrary-branch paragraph of 126 words, at the 126 floor, with its own verifier run (3 quotations, 0 FAIL), so that R-L(2) holds on both branches.
- **Credit.** The practical benefit exception named and set aside on the preferred conclusion too; *Wigan* 595 as an analogy with its compromise context named; *Stilk*'s qualification; whether the guarantee was executed as a deed (S2B slide 4); *Mobil* 508 (the words 'extant obligation' are the trial judge's, quoted by the Full Court, which then decides in its own words that the franchisees' performance 'did not attract the rule that performance of an existing contractual obligation owed to the promisor cannot qualify as valuable consideration'; a drafter who quotes 'extant obligation' attributes it to the trial judge, never to the Court: CRIT_fidelity_4 Finding 7, adopted); the consistency point that AMPL cannot both say Rocky was bound from 27 February and rely on that advance as consideration for the undertaking (T17, stated once here or at II.I3).
- **Strength and tilt.** Consideration given for the $10,000 (moderate to strong, S-11). A contrary conclusion is capped at Very Good (its ceiling on this branch), and reaches it only if it rests on the order of clause and $10,000 and 'also' marked 'arguably', addresses the 'more than' limb, answer (3)(iv) (marked 'arguably' on this branch), and meets answers (3)(i) and (ii) (on that branch by the reading that 'also' and the clause described first presuppose an earlier assent, so that Rocky was arguably bound, the counted contrary paragraph's S2: appendix section 7), and runs the conditional core; it is Poor only where an earlier binding promise by Rocky is asserted as a narrated fact (D4). The preferred conclusion must itself mark 'the clause followed the agreement' as 'arguably'. The Fair drop for the practical benefit exception applies only where it is run without first asking whether there was a pre-existing contract.
- **Consistency.** T8 (the $10,000 and the undertaking are one bargain) stated here or at II.B; T17 as above.
- **Citation.** *Wigan v Edwards* (1973) 47 ALJR 586, 594 (Mason J) (the casebook heading's ALJR report, not the slide's ALR). *Sundell*: ONE rule (CRIT_fidelity_3 M8 and CRIT_round3 m3, adopted, option (b)): the court's words exist in the course only in the editors' note at [4.190] ('said (at 327)'), so the court's words, if QUOTED, take the AGLC 'quoted in' form (which cites the casebook and spends one of its two permitted footnotes); if PARAPHRASED without quotation marks ('a promise to ensure performance already owed'), the report alone, (1955) 56 SR (NSW) 323, 327, no judge named, is the citation and is not a second-hand quotation fault. From v12 the paraphrase by report is the preferred form, a case then carrying the proposition and the casebook being a last resort (R-Z(3)); the 'quoted in' form remains accepted, the court's words existing in the course only in the note. The counted paragraph paraphrases. *Pao On v Lau Yiu Long* [1980] AC 614, 632, as the Board or '(Lord Scarman for the Board)' (R-P), is the only citation for the third-party exception: v11's alternative 'Class 2B Slides, slide 9' is withdrawn (R-Z(2)), and [4.300] is not cited, *Pao On* stating the point (R-Z(3)).
- **Drops.** VG: *Sundell* not met, or its words quoted and cited by report alone; *Sundell* named without its holding (a promise to ensure performance already owed is no consideration), the case cited bare as if its name were the reason (UPGRADES_r1 U6, the deciding passage being CB2B 114, [4.190], the court 'said (at 327)': 'the only consideration which was suggested in argument as being given in exchange for the alleged promise was that the [defendant] would do what was necessary to ensure that the goods were delivered. But we are satisfied that the [defendant] was bound to do so under the original contract.'); limb (ii) applied to no fact ('a request' with no 'Rocky's' or '27 February': U20); the further information given without its direction (U3); the 'more than' limb missing; the order of clause and $10,000 asserted without 'arguably'; the Pierre alternative not run on the rule's second premise; the exceptions not named on AMPL's sequence where the answer accepts it. Good: 'no existing duty because Rocky had no prior contract' bare. Fair: the rule stated generally with no reference to 'a party to a pre-existing contract'; the practical benefit exception run without first asking whether there was a pre-existing contract. Poor: *Wigan*'s rule stated without 'at least when' as an absolute rule and applied to defeat the $10,000; *Sundell* attributed to a named judge or to *Wigan*; *Wigan* 595 cited as a general rule that two promises stand or fall together; an earlier binding promise asserted as narrated fact. Omitted.

- **Marker comments.** ‘Ask first whether there was a pre-existing contract at the moment Rocky promised, and to whom any duty was owed.’ ‘Keep Mason J’s hedge: ’at least when’.’ ‘Meet AMPL’s best authority, *Sundell*.’ ‘Answer with specificity to individual Ps: to whom was the promise made?’ ‘Glidewell LJ’s element (ii) is B’s reason to doubt whether A will complete.’

II.D Intention to create legal relations: cousins and a company; the letter of comfort point with its direction (‘weaker here’); the Pierre alternative re-weighed in a clause; binds Rocky likewise (5.0; C; floor 80) [*Ermogenous* [25] to [26]; *Banque Brussels* 521 to 523]

- **Rules at source.** *Ermogenous* [25] and [26] (I.D), including ‘it was for the appellant to demonstrate that there was such a contract’ [CB3A 137 | [26]]; ‘no presumption should be made about the enforceability of agreements made in a social or domestic context … although the nature of the relationship between the parties and the context in which the agreement was made remain important considerations’ [CB3A 146 | [5.90] | editors’ note; stated via *Ermogenous*]; ‘it was made quite clear to both Spedley and ANI that the facility was subject to BBL obtaining a suitable letter of comfort or some other indication of commitment from ANI’ [CB3A 144 | between 521 and 523 | Rogers CJ (so the casebook prints him; ‘Comm D’ is outside knowledge and is not used: CRIT_fidelity_3 m3, adopted), *Banque Brussels Lambert SA v Australian National Industries Ltd* | first instance, NSW, 1989]; ‘If the statements are appropriately promissory in character, courts should enforce them when they are uttered in the course of business and there is no clear indication that they are not intended to be legally enforceable.’ [CB3A 144 | 523 | Rogers CJ; S3A slide 14 misprints ‘no clear intention’]; ‘if the paragraph is read as follows: “it is our practice to ensure that Spedley is at all times in a position to repay all loans made to it by your Bank”, its promissory nature is much clearer. I see no relevant difference between that and saying that “we promise to ensure that” …’ [CB3A 146 | 525 to 526 | Rogers CJ | the hedge ‘far more thorny’ kept; inner quotations never nested]; ‘The letter of comfort developed as an alternative to a guarantee or surety’ [CB3A 143 | 520 | Rogers CJ recounting]; S3A slide 13 (‘No invariable rule’); S3A slide 4 (the traditional presumptions, stated as traditional only); *Todd v Nicol* 78 (Mayo J, first instance; presumption language read with *Ermogenous*).
- **Facts (deciding).** ‘Rocky’s cousin’; ‘promise’; ‘to me directly’; ‘at AMPL’s office’; ‘I will do that’. Supporting: AMPL ‘owned and controlled’ by Pierre; on 27 February Rocky ‘asked’ and Pierre ‘agreed’ with no stated terms; a company’s ‘$1,150,000’ loan; ten months of check-ins.
- **Core.** (1) No presumption either way ([26]); the onus on Rocky as the party alleging the contract; the relationship (‘cousins’) a factor weighed against the objective features (‘promise’, a fixed sum ‘to me directly’, ‘at AMPL’s office’ in the course of a company’s loan). (2) AMPL’s best point met in a clause whose shape is claim, then the point that helps AMPL, then the answer (CRIT_round3 M14, adopted; v3’s ‘the analogy fails: … yet …’ announced failure before the point that helps AMPL and read as muddled): the point against intention is that the undertaking resembles a LETTER OF COMFORT (the course term, CB3A 143 [5.70], S3A slide 13; the counted form is ‘Against intention, the undertaking resembles a letter of comfort’; v6’s ‘AMPL would call the undertaking a letter of comfort’ attributed to AMPL an argument that defeats its own call, AMPL having ‘called for payment of the Loan under the personal guarantee provided by Rocky’, and a marker could write ‘Answer with specificity to individual Ps’, so the point is now put without a party: CRIT_round6 m5, adopted at no cost (nine words for nine); a drafter who attributes it to AMPL loses nothing where the one-bargain clause (‘Rocky being bound likewise’) follows, which answers the attribution, and ‘liken the undertaking to a letter of comfort’ is equally acceptable; v4’s ‘a cousin’s comfort’ remains withdrawn as a coined label: CRIT_fidelity_4 Finding 3 and CRIT_round4 m7); in *Banque Brussels* the letter conditioned the facility (‘the facility was subject to BBL obtaining a suitable letter of comfort’; the counted form says ‘conditioned’, ‘preceded’ being an inference from ‘subject to … obtaining’ that the extract does not state in terms, CB3A 144 between [521] and [523]: CRIT_fidelity_6 Finding 3, adopted, −2), a mark of commercial seriousness WEAKER here, not absent, AND THE REASON FOR ‘WEAKER’ STATED (the difference named, not only its direction: in *Banque Brussels* ‘the facility was subject to BBL obtaining a suitable letter of comfort’ (CB3A 144, between 521 and 523), so the comfort was a condition of the lending, whereas here ‘the $1,150,000 was advanced by AMPL on the same day’, 27 February, before the 8 April undertaking; the v11 form adds ‘, AMPL having already advanced’ after ‘weaker here’, +4: UPGRADES_r1 U28, core (2) having required ‘the difference stated with its direction’ while the counted form gave the direction only) (Rocky’s undertaking arguably also preceded the signing, ‘before it was signed’, the order and which clause being ‘arguably’ each way under R-M (CRIT_fidelity_9 Finding 7; R-U(6)), and was ‘expected’ by Pierre; ‘absent’ overstated the difference: CRIT_round4 m7, adopted; the difference stated with its direction: CRIT_harsh_2 F8); yet the undertaking was priced (‘$10,000 … to me directly’) and given ‘in the course of business’ at a company’s office, which supplies what the timing lacks. (3) A conclusion on the AMPL alternative and, in a clause, whether it holds if Pierre promised, RE-WEIGHED and not merely named: if Pierre promised personally the relationship (‘cousins’) bears directly on the promisor and ‘at AMPL’s office’ bears less, so the clause must say what still carries the finding, which is the price (‘$10,000 … to me directly’); the counted form is ‘the price outweighing cousinhood even if Pierre promised’ (CRIT_round5 M2, adopted under R-S(2): v5’s ‘against either’ named the alternative in two words and re-weighed nothing, the shape his marker graded Good with ‘Answer with specificity to individual Ps’); and the consistency clause that the same finding binds Rocky to his undertaking (T3; the former II.H5 (v2) carried here; the counted form from v8 is the absolute clause ‘Rocky being bound likewise’, his construction (VOICE.md 2.7, example 42), replacing v7’s ‘and binds Rocky likewise’, whose grammatical subject was ‘Intention’, which binds no one (CRIT_round7 m4, adopted at no cost; ‘and the finding binds Rocky likewise’ or ‘the same finding binding Rocky’, +2, are equally acceptable: Part 9 item 38); credit: the onus then on AMPL as the party asserting it, *Ermogenous* [26]). Rocky’s ‘I will do that’, given for a price, being more plainly promissory than the ‘practice to ensure’ paragraph Rogers CJ held promissory (v3’s core (3)) is CREDIT (moved to fit the count; the counted paragraph does not carry it: CRIT_round3 M10).
- **Credit.** The ‘practice to ensure’ comparison (525 to 526); *Banque Brussels* 523 for what is ‘appropriately promissory’; the ten months of check-ins; Rogers CJ’s 520 (recounting, not finding); Proscour (‘It is not a full-sized guaranty … Refusal of such performance opens a case for damages’, a commentator’s account of French law called ‘refreshingly honest and sensible’ at 521, the [521] marker preceding that sentence: CRIT_fidelity_3 m12, adopted), used only to frame the difference between a guarantee and an undertaking to ensure, never as the Australian remedies rule; S3A slide 13’s ‘a guarantee enforceable as a matter of contract law’; the content of the undertaking being certain on either reading (II.E, II.I2).
- **Strength and tilt.** Moderate to strong if AMPL promised, a disclosed departure from ISSUES_SETTLED’s ‘strong’ (S-33; header C6) with its reason stated here from the source page as R-R(9) requires (CRIT_round4 m12): *Ermogenous* [25] makes

the inquiry ‘an objective assessment of the state of affairs between the parties’ that ‘may take account of the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances’, and [26] puts the onus on the party alleging the contract; the casebook’s own note at [5.90] says ‘the nature of the relationship between the parties and the context in which the agreement was made remain important considerations’; *Banque Brussels* 523 is a first-instance NSW judgment about a commercial letter between companies, not a cousin’s oral undertaking. No High Court authority in the materials decides a family-and-company weighing on these facts, so a well-reasoned contrary conclusion that applies [25] and [26] to the onus, the relationship, the unpriced request of 27 February and ‘expected’ is a reasoned application of the governing authority, not law wrong, and R-E’s ‘strong’ consequence (Poor) would misgrade it; it is capped at Very Good (CRIT_complete_bias_2 B-4; Part 9 item 6). A contrary conclusion resting on a family presumption is Poor and D6. Moderate to strong if Pierre promised, likewise.

- **Consistency (T3).** Rocky cannot argue family honour to escape the undertaking while claiming the $10,000.
- **Citation.** *Ermogenous* [25]–[26] (Gaudron, McHugh, Hayne and Callinan JJ); *Banque Brussels Lambert SA v Australian National Industries Ltd* (1989) 21 NSWLR 502, 521–3 or 523 (Rogers CJ), 525–6 for the ‘practice to ensure’ passage.
- **Drops.** VG: the *Banque Brussels* difference named without its direction, or ‘weaker here’ stated without its reason (AMPL having already advanced, or an equivalent fact: U28), or the price not used as the answer, or the counter put in a self-contradicting shape (‘the analogy fails: [the point that helps AMPL]’); onus missing; the Pierre alternative not addressed; the consistency clause (‘Rocky being bound likewise’) missing. Good: ‘commercial context, so intention’ with presumption language; a cross-reference without re-weighing for Pierre, including ‘against either’ or ‘against AMPL or Pierre’ with no clause saying what carries the finding if Pierre promised (CRIT_round5 M2). Fair: traditional presumptions applied as the test. Poor: ‘cousins are presumed not to intend legal relations’; Rocky’s undertaking held a mere honourable assurance while the $10,000 is enforced. Omitted. Credit wrong: Proscour stated as Australian law on damages (Fair); *Banque Brussels* cited as appellate (D3).
- **Marker comments.** ‘*Ermogenous*: no presumption; assess the objective features and the onus.’ ‘Name the difference from *Banque Brussels* and say which way it cuts.’ ‘Answer with specificity to individual Ps as required: AMPL and Pierre.’

II.E Certainty: ‘all payments … promptly’ measurable; ‘once Grace repays’ not illusory (2.5; L; floor 35) [*Upper Hunter* 437 (Barwick CJ, quoting Lord Wright); *Meehan* 581 to 582]

- **Rules at source.** ‘So long as the language employed by the parties … is not “so obscure and so incapable of any definite or precise meaning that the court is unable to attribute to the parties any particular contractual intention”, the contract cannot be held to be void or uncertain or meaningless.’ [CB3B 161 | 437 | Barwick CJ, ‘to use Lord Wright’s words in G Scammell & Nephew Ltd v Ouston’, *Upper Hunter* | the inner quotation never nested; the quoted words are Lord Wright’s, so the footnote reads ‘(Barwick CJ, quoting Lord Wright in *G Scammell & Nephew Ltd v Ouston*)’ and R8’s second-hand list includes him; Mason J RECITES the same words at 587 as the respondents’ first proposition (‘The respondents’ case rests on three propositions: (1) a contract which is expressed in language “so obscure …” is void for uncertainty’), which he does not dispute, so 587 is a recited submission and not a second adoption; *Upper Hunter* 437 is the adoption and the citation (CRIT_fidelity_4 Finding 4, adopted; CRIT_fidelity_3 m8)]; contrast *Mobil*: ‘find a way’ ‘is simply too vague and uncertain to be capable of giving rise to contractual obligation’ [CB1A 58 | 499 | the Court] (credit); ‘The fact that the condition is one whose performance [582] lies wholly or partly within the power of one of the parties to the contract does not mean that there is no binding contract once the condition is fulfilled.’ [CB3B 184 | 581 to 582 | Gibbs CJ, *Meehan*].
- **Facts (deciding).** ‘all payments … promptly’; ‘once Grace repays the Loan’. Supporting: ‘$10,000’; ‘to me directly’.
- **Core.** One or two sentences: the criterion (a term fails only if ‘so obscure’ that no contractual intention can be attributed to it) applied to ‘all payments … promptly’, which takes its content from the Loan Agreement’s own timetable (monthly interest; principal at the expiry of 12 months); and AMPL’s promise not illusory, its condition depending on a third party’s act, Grace’s repayment (credit: ‘once Grace repays the Loan’ quoted here; AMPL has no discretion once it is met). The counted form is two sentences, each carrying its own footnote (*Upper Hunter* 437 on the first; *Meehan* 581 to 582 on the second), the second a ten-word element sub-verdict with its reason in an absolute clause (‘AMPL’s promise is not illusory, its condition depending on Grace’), which is his form under R1; v5’s single sentence carried one marker for two sources (CRIT_fidelity_5 Finding 5).
- **Credit.** *Mobil* compared (similar: ‘find a way’ and ‘ensure’ both leave the means to the promisor; different: *Mobil*’s result was itself undefined, whereas Rocky’s result is defined by the timetable); the contrast with I.E (the same doctrine, opposite result, the discretion there lying with the promisor); any dispute about the 12 months is construction, not certainty (II.G); the sum, payee and trigger stated.
- **Strength.** Strong; a contrary conclusion is Poor.
- **Drops.** VG: the criterion absent (a bare ‘capable of meaning’); AMPL’s promise not addressed for illusoriness (the second sentence, the first-demotion item in Part 8, mirrored here: CRIT_round6 m8). Good: bare. Fair: the condition called uncertain. Poor: ‘ensure’ held void for vagueness; AMPL’s promise held illusory because Grace might never repay. Omitted.

II.F1 Privity: Rocky the promisee; ‘the clause’ both ways with the reason (1.0; L; floor 38) [*Coulls* 494 to 495 (Windeyer J dissenting) alone; never a slide (R-Z(2)) or [11.10] (R-Z(3); R-U(1)); *Coulls* 487 is not the citation]

- **Rules at source.** The two limbs (I.F2): Windeyer J at 494 (‘only those who are parties to a contract can sue upon it’) and 495 (‘a plaintiff who sues on a promise must show a consideration for it provided by him’), dissenting on construction, alone: S4A slide 2 states only the party limb, and [11.10] is an editors’ note for a rule a course case states, so neither is the citation (R-Z(2), (3); R-U(1); CRIT_fidelity_9 Finding 1, v9’s ‘or S4A slide 2, or [11.10]’ withdrawn); *Coulls* 487 decides that signature does not make one a party and that there was no express or implied promise to the wife, and does not state the two-limb rule, so it is not the citation for ‘promisee for consideration, not barred’ (CRIT_fidelity_3 m6 and CRIT_round3 m6, adopted); example 1: ‘If A and B enter into a contract under which A promises B (for consideration) to pay $1,000 to C, and A fails to honour this promise, C has no right to sue A to recover the money.’ [CB4 327 | [11.10] | editors]; *Coulls* 487; *Trident* [14] (Mason CJ and Wilson J: ‘a stranger to the consideration cannot maintain an action at law upon it’; by report, no pin; [15] asks whether the two rules are one) (credit; CRIT_complete_bias_2 A-7 adopted).
- **Facts (deciding).** ‘to me directly’; ‘the clause’. Supporting: ‘Pierre agreed and the clause was included in the Loan Agreement

before it was signed by Grace and AMPL.'

- **Core.** One sentence: Rocky is the promisee and named payee ('to me directly') of an oral promise made to him for his own consideration, so he is a party who gave consideration and privity does not bar the oral claim; and, in a clause, both readings of 'the clause' (CRIT_harsh_2 F7, adopted): it most naturally means the guarantee clause named before it (the reason stated in a few words: the definite article refers back to the only clause previously named; v10's 'just named' pointed at a place in the answer rather than in the problem, an answer-external deictic a cold reader could not resolve, and is from v11 an R1 lapse; the v11 form is 'the guarantee clause named before it', +1: UPGRADES_r1 U29; 'the guarantee clause the problem names first' is equally Excellent; v3's floor gave no reason, which the harsh critic graded VG: CRIT_round3 table 1.1), and even a written $10,000 term leaves him the oral promise made to him (accepted bare in the counted form; its reason, that Rocky is party to neither document and the materials state no rule displacing an oral promise by a later written record (gap G8), is credit, 'he being party to neither document' (+6) where words allow: CRIT_round4 m8, disclosed; credit also: example 1 named, Rocky being then a non-party to the Loan Agreement; the order of clause and $10,000 weighed in terms).
- **Credit.** The gap disclosed if relied on (no rule in the materials on an oral promise and a later written record); Grace is not a party to the $10,000 bargain; the order of the clause and the $10,000 weighed in terms, marked 'arguably' (R-M). From v11 (UPGRADES_r1 U17, credit only; its proposed weight change REJECTED, the weights being R-C calibrated): the written-term reading's reason, 'he being party to neither document' (+6), stays credit, example 1 at [11.10] ('C has no right to sue A to recover the money', CB4 327) supporting it.
- **Strength and tilt.** Either reading of 'the clause' is Excellent if both are run, the preferred reading carries its reason (the definite article for the guarantee reading; the order of clause and $10,000, marked 'arguably', for the written-term reading), and the result is shown unchanged; weighing the other reading's reason in terms is credit (CRIT_round10 M1) (CRIT_complete_bias_2 B-5, adopted: the ambiguity is textual, not legal); one reading only is Good.
- **Drops.** VG: the criterion (party plus consideration) absent; 'most naturally' with no reason; *Coulls* 487 cited for the two-limb rule (a citation fault); [11.10] cited for the rule where *Coulls* 494 to 495 states it (a citation fault: R-Z(3); R-U(1)); a slide cited for either limb or for the rule is graded at R1 and R8 under R-Z(5), not here (v11's slide-2 citation-fault line is withdrawn). Good: bare; one reading only. Fair: the written-term reading adopted and the claim said to fail on privity with the oral contract ignored. Poor: Rocky treated as a third-party beneficiary of the Loan Agreement for the $10,000. Omitted.
- **Marker comment.** 'Identify the planted ambiguity in 'the clause' and run both readings.'

II.F2 Privity: who promised, AMPL through Pierre or Pierre personally (4.0; K; floor 95) [the doctrine of agency, one source per marker (R-R(3)): a case first under R-Z(3), *Port Jackson* 240 (Barwick CJ) for the criterion stated in Lord Reid's form; the casebook [11.70] only as a last resort, per R-A(4) as amended by R-X(1); either suffices for the criterion; *Ermogenous* [24] credit]

- **Issue.** Whether the $10,000 promise (and so Rocky's counterparty, and the promisee of his undertaking) is AMPL or Pierre.
- **Rules at source.** The doctrine of agency: S4A slide 16 (as at I.F1; a locator only, never cited: R-Z(2)); the course's statement of what must be shown: the principal 'expressly or impliedly consented to the agent acting on the principal's behalf so as to effect the principal's relations with third parties' and, 'with respect to the particular transaction under consideration, the agent was purporting to act on behalf of the principal and not solely on the agent's own behalf. Ratification refers to the principal's adoption or confirmation of a contract made without prior authorisation.' [CB4 336 | [11.70] | editors' note; cited from v12 as at I.F1: a case first, *Port Jackson* 240 (Barwick CJ) for the elements stated in Lord Reid's form ('contracted for the stevedore's protection as well as for his own'; authority 'antecedently or by ratification'), *Trident* (Brennan J or Deane J) by report only for the bare route, *The New York Star* only for authority; the casebook [11.70] a last resort (R-Z(3)), at most twice in the answer, never stacked with a case for the same proposition (R-R(3)); no slide (R-Z(2))]; 'To be a legally enforceable duty there must, of course, be identifiable parties to the arrangement' [CB3A 137 | [24] | *Ermogenous*] (credit); Windeyer J's 'the company (by its agent O'Neil) promised' [CB4 332 | 492 | dissenting on construction] (illustration only). No court in the set states a rule of ratification in terms (O-7): ratification is not used to supply the purporting element.
- **Facts (deciding).** 'owned and controlled'; 'you'; 'at AMPL's office'; 'payments under the Loan Agreement'; 'the personal guarantee provided by Rocky' (AMPL's later call, quoted in the narrator's words, the inference that it was a call on the undertaking marked 'arguably': R-M; CRIT_round3 M8, adopted). Supporting (credit): 'Pierre agreed to provide the money to Grace and the $1,150,000 was advanced by AMPL' (the narrator's own 27 February usage, Pierre agreeing and AMPL advancing: moved from core to credit to fit the count); the $10,000 a payment outside the loan; 'a cousin' at 'you'; on the guarantee reading of 'the clause' the $10,000 is nowhere in AMPL's document.
- **Core.** (1) The issue framed on the doctrine of agency, and the two factual questions the course's statement requires put in the answer's own words as 'whether' clauses, never as a direct question with a question mark (his Part A has none; the counted form: 'turns on agency: whether AMPL consented to Pierre acting on its behalf, and whether Pierre purported to act for AMPL or solely for himself': CRIT_round4 m9, adopted), with one footnote for the criterion (*Port Jackson* 240 where the clause states it in Lord Reid's form, as 'whether Pierre contracted for AMPL as well as, or instead of, himself, with its authority'; [11.70] as the last resort where it states the editors' form: R-Z(3)). (2) Consent answered on 'owned and controlled' (the counted form: 'AMPL being 'owned and controlled' by Pierre supplies consent'; credit: the problem's own 27 February usage, 'Pierre agreed' preceding an advance 'by AMPL'). 'Purporting is contested' is accepted as the counted opening of (3) (CRIT_round4 m9, second limb: 'Whether Pierre so purported is contested' (+2) is equally acceptable); the counted form now joins (2) and the opening of (3) in one sentence ('AMPL being 'owned and controlled' by Pierre supplies consent; purporting is contested: 'if you also promise' was put to 'you''), because the removal of the credit fact left a ten-word sentence beside a nine-word one, which R1 forbids (no two under-12 sentences adjacent). (3) Purporting contested with the other side's best fact met: for an AMPL conclusion, 'if you also promise' put to 'you' (the deciding fact for Pierre; that the $10,000 was a payment outside the loan is a supporting fact, credit, as this unit's Facts list has always rated it, and v5's counted sentence carried it as 'for a payment outside the loan' against R-L(2); it was removed in v6, a disclosed move under R-S(4) named in Part 8, and a drafter who adds it is graded the same), met with 'at AMPL's office', 'payments under the Loan Agreement' and AMPL's later call under 'the personal guarantee provided by Rocky', 'arguably' his undertaking (never 'AMPL called on the undertaking' as fact: R-M); for a Pierre conclusion, those facts met with 'you', the cousinhood and, on the guarantee reading, the absence of the $10,000 from AMPL's document. The three facts may be weighed inside one or two sentences, his stacked-facts form (VOICE.md 2.3,

examples 14 and 15), or as ‘Firstly … Secondly, however … Thirdly …’ sentences; neither is required (R1 as restated; CRIT_round3 m9, adopted in part). (4) A conclusion in the open-point tier (‘On balance … likely …, because …, though …’) whose ‘because’ is Pierre’s dealing throughout about AMPL’s loan (v3’s ‘AMPL asserted its other side’ deleted as cryptic and as restating the R-M inference: CRIT_round3 M8); the other party pleaded in the alternative, which the trailing clause ‘though ‘you’ keeps Pierre arguable’ does (the counted form from v8; v7’s ‘keeps Pierre arguable in the alternative’ carried three words the clause did not need, removed under R-R(7) to fund CRIT_round7 M1: Part 8; the words ‘in the alternative’ are not required and a drafter who writes them loses nothing) (credit: the consequence stated here that whoever promised the $10,000 is the person to whom Rocky’s undertaking ran, which II.I1 draws in any event). (5) The further information that decides it, with its direction, in the trailing clause (from v11 CORE, a K unit carrying none being the contradiction five of six Stage-5 round-1 markers graded at R6: UPGRADES_r1 U3): what Pierre said about whom he spoke for, and which way it cuts; the v11 form adds ‘, decisively so if he spoke for himself’ after ‘though ‘you’ keeps Pierre arguable’ (+7); a form naming AMPL’s later adoption of the $10,000 promise, with its direction, is equally Excellent.

- **Credit.** Ratification named and set aside (it concerns a contract ‘made without prior authorisation’, and prior authorisation is not the difficulty); in *Port Jackson* the carrier’s antecedent authority to contract for the stevedore was found as a fact on the evidence of their course of dealing (OFF Port Jackson, Barwick CJ [2] ‘(at p236)’: the stevedore ‘had for years acted as stevedore in the discharge of the carrier’s ships’ and ‘was aware of the use by the carrier of a form of bill of lading’ including the Himalaya clause; [21] ‘(at p241)’: the appellate Court ‘having reviewed the evidence’ found the carrier ‘was acting with the appellant’s authority’, ‘i.e. with its antecedent authority’, which Barwick CJ held ‘a correct conclusion of fact’; the trial judge had found ratification, [19]), and in *The New York Star* the Board records that the trial judge found agency ‘only by ratification’ while the Court of Appeal ‘found that the necessary agency was directly established by the evidence, so that reliance on ratification was not necessary’ (OFF New York Star [7] ‘(at p303)’ for Sheppard J’s finding that ‘the necessary agency was established only by ratification’, and [8] ‘(at p303)’ for the Court of Appeal’s; v8 labelled both [8]: CRIT_fidelity_8 Finding 2); the stevedore’s knowledge of the offer and its reliance on it go to acceptance and consideration (OFF Port Jackson, Mason and Jacobs JJ [12] ‘(at p274)’: ‘the evident probability of the appellant acting in reliance on the shipper’s promise or offer when he discharges the goods so long as he has knowledge of the existence of that promise or offer’), and, in the authority finding Mason and Jacobs JJ adopted from Glass JA (OFF Port Jackson [5] ‘(at p271)’: the stevedore ‘proved that it was familiar with the terms of the bill of lading in general and with the clauses purporting to exempt independent contractors in particular’, and claims had been ‘rejected in reliance upon the exemption clauses’, from which there was ‘a clear implication’ that the carrier acted ‘as agent with the authority of its principal the stevedore’; ‘On this point we need do no more than state our agreement with what Glass J.A. has said’), the stevedore’s familiarity with the clauses and its reliance on them in rejecting earlier claims were part of the course of dealing from which authority was implied (CRIT_fidelity_9 Finding 3; R-U(6): v9’s ‘not to authority’ was too wide and is withdrawn); so the cases support inferring Pierre’s authority from AMPL’s ownership and control, as a course of dealing supported it there, but neither addresses ‘purporting’ (v7’s gloss, ‘infer authority from the principal’s knowledge of and reliance on the clauses’, was imprecise rather than wrong, naming the familiarity and reliance without the course of dealing they formed part of, and is replaced by the statement above: CRIT_fidelity_7 Finding 2 and CRIT_fidelity_9 Finding 3, adopted as corrections under R-T(3) and R-U(6); every span above checked verbatim against the saved official texts, which are credit, never cited for a course-stated proposition, and never quoted in the answer); *Ermogenous* [24]; intention re-weighed if Pierre promised (II.D); a second further-information item beyond core (5) (AMPL’s later adoption of the $10,000 promise, or what Pierre said, whichever core (5) does not use), with its direction.
- **Strength and tilt.** AMPL likely the promisor (moderate, S-7); Pierre in the alternative. Either conclusion can be Excellent if both questions are answered from the stated facts, the other side’s best fact is met, the alternative is pleaded, and the consequences for II.C2, II.D, II.I1, II.I3 and II.I4 are drawn conditionally on the conclusion (T11).
- **Citation.** For the two elements, from v12 a case first (R-Z(3)): *Port Jackson Stevedoring Pty Ltd v Salmond & Spraggon (Aust) Pty Ltd* (1978) 139 CLR 231, 240 (Barwick CJ), where the sentence states the criterion in Lord Reid’s form (requisites (2) and (3), OFF Port Jackson [18] ‘(at p240)’); it does not count toward R-H’s cap of three, the proposition being course-stated at [11.70]; *Trident General Insurance Co Ltd v McNiece Bros Pty Ltd* (1988) 165 CLR 107 (Brennan J), or (Deane J), by report, no pin (R-Y(1)), only for the bare agency route. The casebook as the last resort, in the R-A(4) form as amended by R-X(1), *Contract: Cases and Materials* [11.70] ALONE (at most twice in the answer, counting I.F1; the v11 counted fn 35 read ‘Robertson and Paterson (n 13) [11.70]’; v10’s ‘Paterson and Robertson’ order is withdrawn), accepted without deduction where the sentence states the editors’ own ‘purporting … not solely’ form, which no case states in those words. No slide is ever cited (R-Z(2)): v11’s acceptance of ‘Class 4A Slides, slide 16’ for the bare route is withdrawn, and a slide citation is graded at R1 and R8 under R-Z(5). A footnote stacking a case and [11.70] for the same proposition is over-citation under R8 (CRIT_fidelity_4 Finding 2; CRIT_round4 M10; R-R(3)). An answer that states the two elements as law with no source is Good on the citation item; one that footnotes the editors by name outside R-A(4) is a D1 fault.
- **Drops.** VG: one question not answered from the facts; the alternative not pleaded; the other side’s best fact not met; the further information absent or given without its direction (core (5): U3); ‘AMPL called on the undertaking’ stated as fact (D4 also). Good: ‘Pierre acted for AMPL’ bare; the elements stated as law with no source; no method and no lean (§2). Good also: ratification said to settle that AMPL promised (ratification is a course concept at [11.70], so using it as the decisive reason on a unit where either conclusion can be Excellent is a wrong decisive reason, not law wrong: CRIT_round4 m13; R-R(10); v4’s Poor exceeded R-E). Fair: agency assumed without the questions; corporate law beyond the course applied. Poor: ‘AMPL’ and ‘Pierre’ treated as interchangeable throughout. Omitted.
- **Marker comments.** ‘Answer with specificity to individual Ps as required: AMPL and Pierre.’ ‘Ask both questions the doctrine of agency requires, from the facts.’

II.G The 12 months (5.0; C; floor 76) [*Brambles* 163 to 164 and 191; for the objective reading eg *Brambles* 168 or *Ermogenous* [25]]

Why it is here (R-Q). ‘repayable at the expiry of 12 months’ states no start; it decides (i) whether AMPL’s 9 March 2025 call was premature, (ii) whether Rocky’s undertaking was broken on 27 February 2025 (breach exposure, which the answer does not argue and never frames as outside any scope: R-Z(1), (4)), (iii) when the $10,000 condition can be met. It does not decide Rocky’s claim against Grace (privity defeats it on either reading), which is why it sits in Part II after F, with Part I carrying only the one-clause

cross-reference at I.F2 (the 5 March demand assumed the earlier date). The reader of II.I4's 'turns on the 12 months (G)' is then in the same Part (CRIT_round3 M9, adopted).

- **Issue.** Whether 'the expiry of 12 months' ran from the advance of 27 February 2024 or the agreement of 8 April 2024: a question of construction on which no reading or slide states when such a period begins (gap disclosed: Z9), and of construction, not uncertainty (*Meehan* 578: 'It is only if the court is unable to put any definite meaning on the contract that it can be said to be uncertain'; the former I.E2 point, now carried here).
- **Rules at source.**
  - Objective meaning: *Ermogenous* [25] (I.D; 'in the same sense as it is used in other contractual contexts') (eg).
  - Ambiguity and genesis: 'if the language of a contract is ambiguous, evidence of surrounding circumstances is admissible for the purposes of construing the contract … Where ambiguities exist, mutually known facts establishing the commercial purpose of the contract, the genesis of the transaction, the background and the context in which the parties are operating will be admissible … the shared beliefs of the parties as to their respective rights as they existed immediately before the contract was entered into are admissible' [CB1B 82 | 191 | Ipp AJA (Mason P agreeing on the contractual claim), *Brambles* | majority; conditional on ambiguity throughout; RG skip (register only); 'Ipp AJA' per R-K, the casebook heading 'IPP JA' accepted and not deducted]; 'pre-contractual conduct is only admissible on questions of construction if the contract is ambiguous and if the pre-contractual conduct casts light on the genesis of the contract, its objective aim, or the meaning of any descriptive term' [CB1B 73 | 163 | Heydon JA | unanimous by adoption (O-9) | RG skip]; 'whatever might flow from the factual matrix, it cannot be resorted to unless the 12 July 1990 contract is ambiguous' [CB1B 76 | 167 | Heydon JA].
  - Exclusion: post-contractual conduct 'not admissible on the question of what a contract means' [CB1B 73 | 164 | Heydon JA, unanimous by adoption]; 'the actual opinions of the parties are irrelevant' absent rectification or estoppel by convention [CB1B 76 | 168 | Heydon JA]. Contra, older (credit): Mayo J admits subsequent conduct 'where meaning is in doubt … to explain, but not to contradict, the language used' [CB3A 147 | 74 | Mayo J, *Todd v Nicol* | first instance, SA, 1957; the passage sits after the [74] marker and before any [75] marker: CRIT_fidelity_3 m11, adopted].
  - Construction technique (credit): Lindley LJ declined to push 'the doctrine of taking language most strongly against the person using it' too far [CB1A 45 | 263 | *Carlill* | one of three concurring judgments]; 'It is for the defendants to shew what it does mean' is a step against a maker pleading vagueness, not a rule that the user of words bears a burden; Bowen LJ's 'two constructions … each of which is good sense' [CB1A 46 | 267].
- **Facts (deciding).** 'recorded'; 'advanced by AMPL on the same day'; 'the expiry of 12 months'; 'appropriate' (R-M: compliance in that period, no more). Supporting (credit): '4% per annum'; 'Interest was to be paid by Grace monthly'; 'I have until 8 April 2025'; AMPL's argument that 'the 12 months had begun then'; Rocky's 13 February 2025 email and 5 March demand; the drafter not stated.
- **Core.** (1) The issue framed as construction. (2) The method: objective meaning; surrounding circumstances admissible only if the words are 'ambiguous'; later conduct excluded on meaning (Heydon JA 163 to 164 for the ambiguity gate and the exclusion of later conduct, and 168 ('the actual opinions of the parties are irrelevant') or *Ermogenous* [25] for the objective reading, the counted fn 36 reading '*Brambles* (n 19) 163–4, 168 (Heydon JA)', because 163 to 164 do not state the objective limb (CRIT_fidelity_9 Finding 4; R-U(6)); Ipp AJA 191 in the footnote; the counted form from v8 is 'later conduct excluded on meaning', the grid line's own words, replacing v7's 'later conduct never on meaning', a clause whose predicate ('admissible') had to be supplied from the clause before it, the note-form ellipsis R1 names and said the model did not carry: CRIT_round7 m5, adopted at no cost; 'later conduct never admissible on meaning' (+1) is equally acceptable). (3) Ambiguity decided, not assumed, with the reason and the inference marked: the instrument 'recorded' as the 'Loan' the sum 'advanced' on 27 February, so it is 'arguably' ambiguous (the counted form is the classification-then-proof colon §1 and R-R(2) permit: 'The words are arguably ambiguous: the instrument 'recorded' the sum 'advanced' on 27 February, that advance its 'genesis''; 'recorded an earlier advance without a commencement' is a derived fact: CRIT_fidelity_3 m1, adopted; the stated terms give no commencement, and a drafter who says so says 'as stated' or 'as described', never 'as narrated': R-R(1)); if ambiguous, the admissible 'genesis' is the advance 'on the same day'; if held unambiguous, the circumstances are excluded and the result follows from the words (either path applies the method: CRIT_complete_bias_2 B-6, adopted; 'ambiguity assumed' and 'ambiguity denied without reasons' are graded alike, VG). (4) Both readings, the opposing one in a clause: for 27 February the term attaches to 'the Loan', the defined sum advanced that day; for 8 April the terms (the rate, monthly interest, the 12 months) first APPEAR then (the counted form is 'though the terms appear first on 8 April'; v5's 'were fixed on 8 April' stated a derived fact as fact, when the terms were first fixed being nowhere stated and 'recorded' being the problem's word: CRIT_fidelity_5 Finding 2 and CRIT_round5 m3, adopted; 'were arguably first fixed' (+1) and 'were recorded on 8 April' (0) are equally acceptable) (credit: Grace's 'appropriate' payments from 8 April fit that timetable, though equivocally; the fuller 8 April clause with 'appropriate' (+6) was not fundable and stays credit: CRIT_round4 m10, disclosed). (5) A verdict in the open-point tier with a lean, its reason, 'though only slightly' placed directly after the lean it qualifies ('it likely ran from 27 February, though only slightly, the known starting point being …': CRIT_round4 m10's dangle fixed at no cost; the marker is the honest weak-strength marker and is not redundant with 'likely', which alone is the moderate tier: CRIT_round3 Part 3.4's proposed saving rejected on the sheet's own tier rule), and the further information that decides it (the Loan Agreement's words; credit: its drafter; whether interest ran from 27 February) in the same sentence (credit: the readings cross-referred to II.H and II.I4, where they are applied). The v10 counted verdict was 'On balance, it likely ran from 27 February, though only slightly, on that genesis; the agreement's words would decide it', its reason carried by reference to the sentence before ('that advance its 'genesis''); v5's verdict restated the genesis in a seven-word clause and was shortened under R-S(4) (Part 8). Two v11 requirements on that verdict. (i) THE LEAN'S REASON says why the date is preferred, not only that the genesis is admissible: Ipp AJA's passage makes 'the genesis of the transaction' admissible where 'ambiguities exist' (CB1B 82, *Brambles* 191) and says nothing about which date it favours, so admissibility is no reason for either date, and a lean whose only preceding sentence is the counter has none (§1; UPGRADES_r1 U24); the reason is that the term attaches to 'the Loan', the sum 'advanced' on 27 February (eg ', the Loan having been 'advanced' then', about +6 where a draft lacks it; 'that advance its 'genesis'' followed by 'on that genesis' carries it only where the preceding sentence ties the term to the advance). (ii) THE FURTHER INFORMATION WITH ITS DIRECTION: 'unless the agreement's words date the term from 8 April' (+4 against 'the agreement's words would decide it', which names the information and not its effect: UPGRADES_r1 U3; R6); on an 8 April lean,

the mirror (‘unless the agreement’s words date it from the advance’).

- **Credit.** The three excluded statements named (Grace’s ‘I have until 8 April 2025’; AMPL’s ‘the 12 months had begun then’; Rocky’s 2025 emails); the NSW preference for Heydon JA (Court of Appeal, unanimous by adoption) over Mayo J (SA, first instance); the 12 February email ‘arguably’ not mutually known to AMPL (never asserted as ignorance; if admitted it points to about 15 February 2025); Bowen LJ’s technique; Walsh J in *Godecke* 643 (more than one view of timing ‘does not itself require a conclusion that the agreement is void’); the parties’ shared beliefs immediately before 8 April and the contents of Rocky’s 28 February and 2 March 2025 emails as further information; whether an 8 April 2024 payment was interest in arrears. The *Masters* class 1 ‘restatement’ analogy must not be used for 27 February (S-50); Kitto J’s ‘commencing date’ in *Whitlock* (456) is too weak to tip it (S-26).
- **Strength and tilt.** Open (S-1); the best-reasoned answer a slight lean to 27 February 2024 (weak), with 8 April a real alternative. Either conclusion can be Excellent if it applies the method, meets the other side’s best fact (‘the Loan’ advanced on 27 February; or terms first fixed on 8 April with ‘appropriate’ payments from 8 April), states weak strength honestly and carries both readings. ‘Finely balanced’ with no lean and no method is Good (the general rule in §2); a date stated ‘clearly’ or with no strength is Very Good, its one grade at this unit (§2; R6; R-E: overstating and understating carry the same cap); where the overstatement is carried into advice (‘so the call was valid; pay now’), that is graded once, at II.I4, whose Strength line grades it Good (CRIT_round9 M3; R-U(4): v9 graded the same answer Good in this unit’s Drops).
- **Consistency (T1).** Rocky’s 5 March demand arguably presupposes 27 February (the I.F2 cross-reference, written ‘arguably’: CRIT_fidelity_4 Finding 1); his best defence to AMPL’s call presupposes 8 April. The answer decides the point once and says so (credit: his own conduct is inadmissible on meaning but damaging in practice; he loses nothing by preferring 8 April, his claim against Grace failing on privity either way).
- **Citation.** *Brambles Holdings Ltd v Bathurst City Council* (2001) 53 NSWLR 153, 163–4, 168 (Heydon JA) and 191 (Ipp AJA; ‘Ipp JA’, the casebook’s heading, accepted); *Ermogenous* [25] if used; *Todd v Nicol* [1957] SASR 72, 74 (Mayo J) if used. Skip-range status never stated in the text (R-F).
- **Drops.** VG: one reading absent; ambiguity assumed or denied without reasons, or asserted as fact without ‘arguably’; further information missing, or given without its direction (U3); a lean with no reason for its date (admissibility of the genesis alone, or a preceding sentence that states only the counter: U24; §1); strength overstated or understated. Good: method stated without application; ‘finely balanced’ with no lean and no method (§2’s general rule and R6, which v7’s Drops contradicted by printing Fair: CRIT_round7 m10, adopted); a date chosen with no method at all (a conclusive statement, Good on the brief’s ladder; not Omitted: a unit that reaches a conclusion is addressed: CRIT_round4 m13; R-R(10)). Fair: contra proferentem applied as decisive (the drafter is unknown); the parties’ 7 March positions used to decide meaning. Fair also: the 12 February email’s ‘for 1 year’ used as admissible genesis without addressing ‘mutually known’ (an element of Ipp AJA’s criterion omitted in applying it, which is the ladder’s misapplied criterion, not law wrong; S-14 treats Pierre’s knowledge as ‘an inference either way’: CRIT_round6 m10, moved from Poor). Poor: a course rule asserted that a period runs from the date of the instrument or from drawdown (no such rule in the materials); Ipp AJA’s passage described as fixing the commencement; Lindley LJ’s ‘It is for the defendants to shew what it does mean’ stated as a rule that the user of words bears a burden of construction; ‘Pierre did not know of the email’ or ‘Pierre knew of the email’ asserted as fact (D4); the Loan Agreement said void for uncertainty. Omitted: the 12 months not addressed. Credit wrong: Mayo J preferred to Heydon JA in NSW without statuses (VG); a payment ‘on the 8th’ asserted as fact (D4).
- **Marker comments.** ‘This is an area of uncertainty: state the better view, its strength, both readings and what would decide it.’ ‘Post-contractual conduct goes to formation, not meaning: Grace’s and AMPL’s 7 March positions cannot decide the date.’ ‘’appropriate’ is the narrator’s proven fact about compliance, not party conduct.’

II.H The condition ‘once Grace repays the Loan’: a condition of AMPL’s obligation with its reason, nothing payable on 9 March 2025; whether Rocky’s own payment meets it, the commercial reading put and met; the duty to co-operate put and met (4.5; C; floor 89) [*Meehan* 582; *Upper Hunter* 437 or *Ermogenous* [25]; *Beaton* 185 met; *Mobil* 500 credit]

One unit (v3’s II.G1 and II.G2 merged to fit the count, R-L(1); the heading in the answer is ‘H. The condition’, ‘H. The condition ’once Grace repays the Loan’’ or, from v11, ‘H. Condition precedent’ (R-X(6), three words for three, naming the doctrine once for R7), never ‘the payment condition’, a sheet label: R7).

- **Issue.** Whether ‘once Grace repays the Loan’ is a condition of AMPL’s obligation rather than of formation, so that nothing was payable on 9 March 2025; and whether the condition can be met if Rocky, not Grace, pays AMPL (so that Rocky could pay $1,150,000 and lose the $10,000: T13).
- **Rules at source.** ‘Once the condition is fulfilled, within the time allowed by the contract for its fulfilment, the contract becomes completely binding.’ and ‘It is clear that the condition in Special Condition 1(b) is not a condition precedent to contract. Certain obligations under the contract attached immediately the contract was signed although the condition had not been fulfilled.’ [CB3B 184 | 582 | Gibbs CJ, *Meehan*]; time for fulfilment (credit): ‘In the absence of specification of time, the implication would be, I think, that it should take place within a reasonable time.’ [CB2A 110 | 176 | Mahoney JA, *Beaton* | obiter]; Walsh J, ‘within a reasonable time’ [CB3B 189 | 643 | on the hypothesis ‘If, contrary to my view’]. Objective meaning of Rocky’s words: ‘The question becomes one of construction, of ascertaining the intention of the parties, and of applying it’ and ‘no narrow or pedantic approach is warranted, particularly in the case of commercial arrangements’ [CB3B 161 | 437 | Barwick CJ, *Upper Hunter* | both sentences sit after the [437] marker, so the pin is 437, not 436 to 437 (CRIT_fidelity_5 Finding 4, adopted); the course’s construction passage (CRIT_fidelity_3 m10, adopted in part), and the same page, read on, says ‘In the search for that intention, no narrow or pedantic approach is warranted, particularly in the case of commercial arrangements’, which leans toward a commercial reading of Rocky’s words (CRIT_round5 m5, noted; CRIT_round6 m4; CRIT_round7 M1 and m15, adopted): from v8 the counted S2 puts and meets that commercial reading in terms, so *Upper Hunter* 437 is again the COUNTED citation on S2 (fn 39), the marker who checks it finding the very passage the sentence answers, and *Ermogenous* [25] (‘it is used in the same sense as it is used in other contractual contexts. It describes what it is that would objectively be conveyed by what was said or done, having regard to the circumstances in which those statements and actions happened’)

[CB3A 137 | [25] | Gaudron, McHugh, Hayne and Callinan JJ | majority, ratio] is the accepted ALTERNATIVE, neither deducted (R-T(1))]. The duty to co-operate: 'The McDivitts have a contractual duty to do everything necessary on their part to enable the plaintiff to have the benefit of the contract: Secured Income Real Estate (Aust) Ltd v St Martins Investments Pty Ltd (1979) 144 CLR 596 at 607 per Mason J.' [CB2A 109 | 185 | McHugh JA, *Beaton*, citing Mason J | the principle is Mason J's in the High Court, applied by McHugh JA; McHugh JA was in the minority on the RESULT in *Beaton*, which does not touch the principle's weight, so 'a minority view' misdescribes it and is never written (CRIT_fidelity_3 M6; CRIT_round3 M4, adopted); R8's second-hand list includes 'Mason J via *Beaton* 185']; prevention (CREDIT from v6, R-S(4)): 'There may also be a case (it is, perhaps, difficult to imagine one) in which the offeror may prevent the offeree from completing the act of acceptance … yet the offer will be held not to have been revoked.' [CB1A 59 | 500 | the Court, *Mobil* | reasoning on an assumed ('supposed') unilateral offer about revocation, hedged by the Court itself ('perhaps, difficult to imagine one'); it states no rule that a party who prevents a condition cannot rely on its non-fulfilment, so it is Rocky's weaker argument and, if used, is used only as a disclosed analogy with its status in the text, never bare (CRIT_fidelity_3 m9, adopted); demoted from core to credit to fund the round-5 corrections (CRIT_round5 lens 3 move 1; R-S(4)), the duty to co-operate being the course's real counter]; implication: 'only when it is clearly necessary [86] to introduce the term in order to make the contract operative according to the intention of the parties as indicated by the express terms' [CB3A 151 | 85 to 86 | Mayo J, *Todd v Nicol*, citing Latham CJ in *Scanlan's New Neon* | first instance, SA]; Mason J quoting *Butts v O'Dwyer* and 'The consequence would be that he had an obligation to do all that was reasonable on his part to obtain that finance' [CB3B 186 | 591 | Mason J (Wilson J agreeing at 597 to 598) | the hedge in the next sentences kept: 'However, I have no need to decide the question' (CRIT_fidelity_2 m6, adopted)]; against: 'it does not seem to me necessary, in order to give business efficacy to a contract, that a condition should be implied that the purchaser will make reasonable efforts to obtain finance' [CB3B 183 | 581 | Gibbs CJ | stated against Mason J (591) and Wilson J (598) in the extract; cited only with that status]. Lindley LJ's 'It is for the defendants to shew what it does mean' (*Carlill* 263) is not a rule placing a burden on Rocky as the user of the words; Mahoney JA's 'under no obligation to procure it' (*Beaton* 177) does not touch a promisor's own election.

- **Facts (deciding).** 'once Grace repays the Loan' (Rocky's own words); 'had not yet repaid the Loan'. Supporting: AMPL 'called for payment of the Loan under the personal guarantee provided by Rocky'.
- **Core.** (1) One sentence in the L form: the criterion WITH ITS REASON (a condition of the obligation, not of formation, BECAUSE the bargain bound at once, B, so that obligations attached before the condition was fulfilled: 'Certain obligations under the contract attached immediately the contract was signed although the condition had not been fulfilled', 582; the doctrine NAMED once in the course's term, condition precedent, in the heading or the text (Gibbs CJ at 582: 'It is clear that the condition in Special Condition 1(b) is not a condition precedent to contract' and 'Whether the condition is described as a condition precedent to completion, or as a condition subsequent, seems largely a matter of words', CB3B 184; R-X(4); the text form 'a condition precedent to AMPL's obligation, not to contract' costs about +5 against v10's 'qualifies AMPL's obligation, not formation', and the heading 'H. Condition precedent' costs nothing, either sufficing); the v10 counted form was 'The condition, the bargain binding at once, qualifies AMPL's obligation, not formation': CRIT_round5 M3, adopted under R-S(2), v5 having asserted the sheet's own moderate-to-strong classification with no reason, the shape §1 grades Good; CRIT_round4 m11's second limb is thereby funded), THE CONTRACT becoming 'completely binding' once it is fulfilled (Gibbs CJ's subject at 582 is the contract, 'the contract becomes completely binding', so the participle attaches to 'the contract', never to 'the condition' or 'AMPL's obligation': CRIT_fidelity_4 Finding 6 and CRIT_round4 m11, adopted) and the deciding fact: on 9 March 2025 Grace 'had not yet repaid the Loan', so nothing was payable and the claim is premature. (2) The second question framed on the objective meaning of Rocky's own words, 'once Grace repays the Loan', which name Grace and which repayment by Rocky does not satisfy on their face, stated as the LITERAL reading and not as the unit's verdict (v5's 'objectively would not meet it' was the verdict stated unhedged before the counter and then restated hedged after it, which brief R6 forbids: CRIT_round5 M3, adopted; 'on its face would not meet it' (+1) is equally acceptable), AND the commercial reading put and met in a clause of the same sentence (CRIT_round7 M1, adopted; R-T(1)): the opponent's best construction argument is that a commercial term is not read narrowly or pedantically (*Upper Hunter* 437) and that the term's evident purpose was to reward Rocky when AMPL was repaid, by whomever; AMPL's answer, now CORE and no longer credit, is the pricing point, that the $10,000 priced Grace's repayment, the outcome Rocky undertook to procure, not Rocky's own payment after her default; the counted form is 'Rocky's payment, 'once Grace repays the Loan' naming Grace, would not literally meet it, nor commercially, the $10,000 pricing Grace's repayment' (+7; 'nor on a commercial reading, the $10,000 pricing Grace's repayment, not his' is equally acceptable where words allow); a paragraph that writes 'literally' and never says why the literal reading governs leaves the construction counter unput, the shape his marker graded 'Further analysis is required as your statement is conclusive' (VG); the verdict proper sits at (5), after the counters; the counted footnote on this sentence is *Upper Hunter* 437 (Barwick CJ), placed at the end of the sentence because 437 carries both the construction test and the 'no narrow or pedantic approach' words the clause meets (CRIT_round7 m15), *Ermogenous* [25] being equally acceptable (R-T(1)). (3) Rocky's best argument put in a clause: the duty 'to do everything necessary' for his (the promisee's) benefit (footnoted *Beaton* 185, McHugh JA citing Mason J in *Secured Income*, in the AGLC r 1.3 'citing' form; no status word in the text, because McHugh JA's minority on the result does not change the weight a court gives Mason J's principle: R-F); the doctrine NAMED once in the course's term, the duty to co-operate (CB2A 109, the heading 'The duty to co-operate' over McHugh JA's passage; S2A PDF page 14, 'McD have contractual duty to do everything they can to provide B with benefit of the contract'; R-X(4)); the v11 form is 'Rocky would invoke the duty to co-operate, 'to do everything necessary' for his benefit' (+2 against v10's twelve-word counter-frame, 'Rocky would invoke the duty 'to do everything necessary' for his benefit'). *Mobil*'s offeror preventing completion is CREDIT since v6 (R-S(4); Part 8), usable only with its status in the text ('reasoning on an assumed offer'). (4) AMPL's answer in a clause, the DECISIVE REASON that meets the duty on its own terms (CRIT_round4 M9, adopted; R-O): nothing in the facts suggests that AMPL's call on Rocky stops Grace repaying AMPL, so AMPL has omitted nothing the duty 'to do everything necessary' requires (the counted form: 'Yet nothing suggests AMPL's call stops Grace repaying, so AMPL has omitted nothing necessary', the words 'nothing necessary' answering the duty in its own words; 'nothing suggests' is his form for an inference from the facts' silence, VOICE.md 2.5 example 29, adopted from CRIT_fidelity_5 Finding 3, the proposition being an inference that nothing stated impedes Grace rather than a stated fact, which R-O licenses as a fact and not as guarantee law); a drafter who also runs *Mobil* (credit) meets it with the same clause ('which prevented nothing'); the pricing point (a promise priced on Grace's repayment is no reward for the very failure the undertaking was meant to prevent) is from v8 core (2)'s answer to the commercial reading, not an answer to the co-operation argument in its call form (that AMPL's call stops Grace repaying), which

(4) meets on its own terms; the two counters are distinct and each is met separately. The co-operation argument has a stronger form, that AMPL, by calling on Rocky and accepting his payment, would end any possibility that 'Grace repays the Loan'; S4 meets the call form, and S2's pricing point is in substance the answer to the stronger form too, because the duty is one 'to do everything necessary on their part to enable the plaintiff to have the benefit of the contract' (CB2A 109, 185), the benefit of this contract being, on S2's construction, a reward priced on Grace's repayment, the outcome Rocky undertook to procure, so the duty does not require AMPL to forgo payment under the undertaking in order to preserve a reward that the contract conditions on Grace's own repayment; a marker who presses the stronger form therefore finds its answer in the paragraph, and no further words are required (CRIT_round8 m6, recorded at no cost). What Rocky's payment does to Grace's debt (whether she can still 'repay the Loan') is guarantee law, which the answer does not argue or rely on and never frames as outside any scope (R-Z(1), (4); v11's 'flagged as credit' is withdrawn). (5) A conclusion in the tier for the strength (moderate to strong against Rocky: 'likely'), naming what it decides, placed after the counter (the counted form: 'His payment therefore likely does not meet it'); the consequence, T13 (Rocky could pay $1,150,000 and lose the $10,000), is required once where it bites (Appendix A: II.H or II.I4) and the counted structure states it at II.I4 ('and, paying, likely loses the $10,000'), so its restatement here is CREDIT since v5 (moved from core under R-L(3) to fund the round-4 corrections; Part 8; Part 9 item 25).

- **Credit.** *Mobil* 500's offeror preventing completion, as a disclosed analogy with its status in the text ('reasoning on an assumed offer'), met by the same decisive reason (the call prevents nothing); 'repays the Loan' (the defined $1,150,000) implies full repayment of principal; on the 8 April reading payable if Grace repays by 8 April 2025 (II.G); no time is stated and the course's only statements point to a reasonable time (weak to moderate); AMPL's argument that Rocky's own breach of 'promptly' bars the claim is dependent-promise and breach law, not argued and never flagged as outside any scope (R-Z(1), (4); v11's 'flagged in a line' is withdrawn from credit); Mason J at 591 with its hedge, as the course's strongest support for an implied term, and the 'clearly necessary' test it must meet (*Todd* 85 to 86; Gibbs CJ 581 with his status); what Rocky's payment does to Grace's debt (whether Grace can still 'repay the Loan' to AMPL, or to Rocky) is guarantee law, not argued, never relied on and never flagged as outside any scope (R-Z(1), (4)); contra proferentem noted only with Lindley LJ's refusal to push it; the purposive reading in his 'not whether' form; 'a minority judgment on the result' as a footnote status for *Beaton* if wanted (never 'a minority view' of the principle). From v11 (UPGRADES_r1 U33, credit only): a fuller statement of the term's purpose than core (2)'s pricing answer is credit; core (2) already puts the commercial reading by name and meets it, footnoted *Upper Hunter* 437 ('no narrow or pedantic approach', CB3B 161).
- **Strength and tilt.** Condition of the obligation (moderate to strong); not payable now (strong): 'The $10,000 is payable now' is Poor with the D6 deduction. Rocky's own payment: moderate to strong against Rocky (R-O; CRIT_complete_bias_2 B-3, adopted): a best-reasoned contrary conclusion (the purpose of the term; prevention by analogy; the duty to co-operate as Mason J's principle) is capped at Very Good; a contrary conclusion stated as clear ('Rocky can pay AMPL and still recover the $10,000') is Good, the misstatement changing the advice. Reliance on the narrated fact that AMPL's call does not itself stop Grace repaying is a fact, not guarantee law, and is never graded Fair (R-O).
- **Drops.** VG: the criterion at (1) absent, or stated without its reason (the bargain binding at once), or 'completely binding' attached to the condition rather than the contract; the verdict on Rocky's own payment stated unhedged before the counter (conclusion-first: D5 also); the commercial reading not put, or put and not met with the pricing answer (the literal reading stated and then left as if it decided the point: CRIT_round7 M1); the duty to co-operate not put, or not met on its own terms (a construction point about what the $10,000 rewards, standing alone, does not meet it); the consequence (T13) drawn neither here nor at II.I4. Good: 'not yet payable' bare; 'Rocky would lose the $10,000' bare; Lindley LJ's sentence relied on as the decisive reason. Credit wrong: *Mobil* 500 run without its status in the text (VG); *Mobil* 500 cited bare as a prevention rule (Fair: D3, a wrong status on a point that matters). Fair: the condition treated as a condition of formation (so no contract yet); a fixed deadline asserted; contra proferentem asserted as decisive either way; the effect of Rocky's payment on Grace's debt stated as a course rule. Poor: 'the $10,000 is earned whoever repays' with no engagement with the words, BECAUSE it restates Rocky's term as one it is not, 'once Grace repays the Loan' (the source misstated: R-V(1); CRIT_round10 m8); a contrary conclusion that engages the words and is stated as clear is Good (Strength line), and Poor is never available for it on a moderate-to-strong point unless the term's words are misstated (R-E); the duty to co-operate called 'a minority view' or McHugh JA's own invention (D3: wrong status on a point that matters); Gibbs CJ at 581 cited as the majority against Mason and Wilson JJ. Omitted.
- **Marker comments.** 'Further analysis is required as your statement is conclusive.' 'Keep the statuses: the duty to co-operate is Mason J's principle as McHugh JA applied it; *Mobil*'s prevention passage, if used, is reasoning on an assumption.' 'Give the classification its reason before relying on it.' 'Name the doctrines: a condition precedent; the duty to co-operate.'

II.I AMPL's call of 9 March 2025 (16.5; a further heading inside Part II; the Part III option was withdrawn in v6, §5)

Why it is in the advice: it is the setter's final fact and the reason advice is sought now; it is the other side of the bargain Rocky sues on, so every argument on it is an argument on the $10,000; the 12 months (II.G) decides its timing. The elements of the bargain are not re-run here; I is confined to the burden aspect, the content of what Rocky promised and his assent to the written words, AMPL's consideration, timing and consequences; intention and certainty of the undertaking are carried by the II.D clause. The four paragraphs sit under the one heading 'I. AMPL's call' (the Part III option is withdrawn: §5; CRIT_round5 m2); they may open 'Whether …' or with a classification; II.I2's counted opening ('Rocky promised what Pierre 'expected', whereas …') is a classification of the two contents and is not a conclusion first (CRIT_round3 Part 3.5 noted the visible inconsistency; it is not a fault).

II.I1 The burden aspect; the clause alone; Rocky likely bound by his own undertaking, to AMPL only if Pierre acted for it (4.0; C; floor 56) [*Trident* (Deane J) by report, judge named, no pin (R-Y(1), (2)), never a slide (R-Z(2)); *Empirnall* 534 and 536; *Coulls* 487]

- **Issue.** Whether a clause in a contract between AMPL and Grace, described by the narrator as one 'that Rocky personally guaranteed repayment of the Loan', can by itself bind Rocky; and, if not, whether he is bound by his own undertaking, and to whom.
- **Rules at source.** 'Nor can it impose an enforceable burden on a non-party.' [S4A slide 2 | slide; a locator only, never cited: R-

Z(2)]; ‘nor can it impose an enforceable burden on a non-party’ [CB4 327 | [11.10] | editors; ‘This chapter will focus on the benefit aspect of the rule’; a last resort only, never needed here: R-Z(3)]; the case statement of both aspects, the preferred source from v12 (R-Y(2)): ‘the general rule that only the parties to a contract are bound by, and entitled to enforce, its terms’ [*Trident*, course reading (R-Y(1)) | Deane J, his opening sentence | verified in the corpus’s Deane J segment | by report, judge named, no pin, the reading carrying no CLR page markers], and Deane J’s further statement, ‘a contract between two or more parties does not, of itself, directly confer rights or impose liabilities upon persons who are not parties to it’ [same | Deane J | verified likewise]; either may be quoted or paraphrased; *Trident* being a course reading, the footnote never counts toward the R-H cap of three and there is no cap of one *Trident* footnote (R-J and R-N superseded: R-Y(1)); ‘The objective theory of contract requires an external manifestation of assent to an offer.’ [CB1B 71 | 534 | McHugh JA, *Empirnall*]; signature NOT NECESSARY: ‘Eric does not sign contracts’ and ‘Since Empirnall has taken the benefit of the work with knowledge of the terms on which it was offered, an objective bystander would conclude that Empirnall had accepted the offer’ [CB1B 72 | 536 | McHugh JA, *Empirnall* | a party bound without signing]; signature NOT DECISIVE: ‘the mere fact that her signature appears does not make her a party; this is a question to be resolved upon a consideration of the written instrument itself’ [CB4 331 | 487 | Taylor and Owen JJ, *Coulls* | signature not sufficient; whether it is necessary was not in issue, so 487 is never cited for ‘not necessary’: CRIT_fidelity_3 m7, adopted].

- **Facts (deciding).** ‘that Rocky personally guaranteed repayment of the Loan’ (the narrator’s description); ‘I will do that’. Supporting: ‘signed by Grace and AMPL’; ‘the personal guarantee provided by Rocky’ (R-M).
- **Core.** (1) The burden aspect stated: a contract cannot impose an enforceable burden on a non-party, so ‘the clause as described’ (the narrator’s description is quoted or paraphrased at II.I2, whose unit it is: Appendix B; never ‘the clause states’ or ‘records’: D4) binds Rocky only if he manifested assent to it (*Empirnall* 534), the question for II.I2; the reason is not that Rocky did not sign, signature being ‘neither necessary nor decisive’ (not necessary: *Empirnall* 536; not decisive: *Coulls* 487; T10), each footnoted to its own authority. (2) Rocky is LIKELY bound by his own ‘I will do that’, a promise in a bargain to which he was party (the hedge matching ‘bound to someone (moderate to strong)’: CRIT_round4 M4, adopted; the counted form is ‘His own ’I will do that’ likely binds him’); AMPL may enforce it only if Pierre accepted for AMPL (II.F2); if Pierre accepted for himself, AMPL is a non-party to the undertaking and can enforce only the clause, on II.I2’s assent and II.I3’s consideration, its entry into the Loan Agreement remaining arguable consideration on that alternative (S-13, moderate), so Rocky’s exposure to AMPL is then likely absent but arguable and is never stated as settled (CRIT_round9 M1; R-U(2): v9’s ‘has nothing to enforce’ stated as settled a consequence II.I3 leaves arguable).
- **Credit.** The T2 reconciliation in four words, ‘as to that clause only’, after ‘binds him only if he assented’ (Rocky’s assent, if found, makes him party to the guarantee promise alone, not promisee of Grace’s promise to repay, so I.F2’s ‘not a party’ and II.I2’s ‘likely assented’ do not contradict: CRIT_round5 m12, credit, +4, written where words allow); Rocky differs in kind from Mrs Coulls (named as promisor, not payee); (v12: v11’s credit ‘the gap disclosed (no extracted judgment develops the burden aspect …)’ is withdrawn, *Trident* being a course reading that states it (R-Y(1)) and a statement about what the readings extract being meta language (R-Z(1))); joint promisees on the undertaking (if given to Pierre and AMPL jointly, ‘an action to recover must have been brought by both promisees’: *Coulls* 486; weak for Rocky); the Loan Agreement’s text not narrated (the answer never asserts it ‘purports expressly’ to be between AMPL and Grace: D4). From v11 (UPGRADES_r1 U11, credit only): ‘as to that clause only’ remains the first credit to write here; R10 accepts the T2 reconciliation without it only where I.F2’s joint-promisee clause states that no promise by Grace runs to Rocky, Taylor and Owen JJ framing two questions, ‘whether the testator’s wife was a party to the contract and whether, upon its true construction, the contract contains a promise by the company to pay to her’ (CB4 330, *Coulls* 486).
- **Strength and tilt.** The clause alone cannot bind Rocky (strong, S-8): ‘Rocky is bound because the clause is in the Loan Agreement’ is Poor with the D6 deduction; so is ‘Rocky is not bound to anyone because he never signed’. Bound to someone (moderate to strong); bound to AMPL (moderate, capped by the II.F2 conclusion and stated conditionally on it).
- **Citation.** *Trident General Insurance Co Ltd v McNiece Bros Pty Ltd* (1988) 165 CLR 107 (Deane J), by report with the judge named and no pin (R-Y(1), (2)): *Trident* is a Class 4A reading, so it is cited as any course case is, one source per marker, with no cap on the number of *Trident* footnotes; the reading carries no CLR page markers, so no pin can be verified, and the verifier’s lint ‘report citation with no pinpoint’ is an accepted, disclosed consequence, not a fault (R-Y(1); Part 9 item 7). v11’s alternative ‘Class 4A Slides, slide 2’ is withdrawn (R-Z(2)); a slide citation here is graded at R1 and R8 under R-Z(5). Residual risk, disclosed (CRIT_round7 m6, carried): the real marker reads the footnote, not this sheet, and may record a report citation with no pinpoint as a minor non-compliance at R8; the slide form that once removed that risk is barred, so the risk stands, and this sheet grades the no-pin form as no fault (Part 9 item 7); *Empirnall* 534 for assent; *Empirnall* 536 for ‘not necessary’; *Coulls* 487 only for ‘not decisive’ and ‘the written instrument itself’. One footnote marker per proposition inside the sentence (CRIT_round3 m2, adopted): the counted form reads ‘neither necessary[fn *Empirnall* 536] nor decisive[fn *Coulls* 487]’, two markers; v5’s single marker listing both sources is withdrawn (CRIT_fidelity_5 Finding 5, adopted).
- **Drops.** VG: the AMPL/Pierre dependency not drawn; signature-not-the-test absent (T10); *Coulls* 487 cited for ‘not necessary’ (a citation fault); ‘binds him’ unhedged (the tier). Good: ‘the clause cannot bind a non-party’ bare; ‘Rocky is bound by his oral promise’ bare; ‘a fortiori because he did not sign’ as the reason for the right result (right result, wrong reason, conclusive: the same grade as I.F2’s ‘Grace is right because Rocky did not sign’, because the same signature reasoning with the same right result carries the same grade whichever party it helps: CRIT_round4 M11; R-R(4); v4’s Poor was asymmetric). Fair: the benefit aspect only; the oral route missed and liability rested on the clause; the clause said to ‘state’ or ‘record’ a guarantee as a stated fact (D4). Poor: either D6 conclusion. Omitted.
- **Marker comments.** ‘Privity has two aspects: the burden aspect decides whether the clause alone binds Rocky; signature is not the test either way.’ ‘Answer with specificity to individual Ps: to whom was Rocky’s undertaking given?’

II.I2 Content: what Pierre ‘expected’ against the clause as described; assent to the written words on *Empirnall* 535 to 536; the benefit named; ‘attended’ as the knowledge fact, the inference marked; ‘provided by Rocky’ (3.5; C; floor 80) [*Empirnall* 535 to 536]

- **Rules at source.** ‘A more accurate statement is that where an offeree with a reasonable opportunity to reject the offer of goods or services takes the benefit of them under circumstances which indicate that they were to be paid for in accordance with the offer, it is open to the tribunal of fact to hold that the offer was accepted according to its terms. A useful analogy is to

be found in the “ticket cases” where an offeree, who has or ought to have knowledge of the terms of a contract of carriage or bailment, is generally bound unless he raises objection’ [CB1B 72 | 535 | McHugh JA (Samuels JA agreeing; Kirby P to substantially the same effect), *Empirnall* | ratio. McHugh JA’s OWN criterion has three elements: an offeree with a reasonable opportunity to reject the offer of goods or services; who takes the benefit of them; under circumstances which indicate that they were to be paid for in accordance with the offer; and his holding at 536 rests on actual knowledge (‘taking the benefit of an offer with knowledge of its terms and knowledge of the offeror’s reliance’). The ‘has or ought to have knowledge of the terms’ words are the ANALOGY (‘A useful analogy’), confined by its own words to ‘a contract of carriage or bailment’ (*MacRobertson Miller* is the course’s ticket case, CB1A 48); v3 spliced the analogy’s words into the rule as its second limb and deducted for omitting an ‘ought to have’ limb the rule does not contain: CRIT_fidelity_3 M2 and CRIT_round3 M3, adopted]; ‘Since Empirnall has taken the benefit of the work with knowledge of the terms on which it was offered, an objective bystander would conclude that Empirnall had accepted the offer on those terms and conditions’ [CB1B 72 | 536]; ‘The ultimate issue is whether a reasonable bystander would regard the conduct of the offeree, including his silence, as signalling to the offeror that his offer has been accepted’ [535]; contra: ‘an offeror cannot erect a contract between himself and the offeree by the device of stating that unless he hears from the offeree he will consider the offeree bound’ [CB1B 71 | 534 | McHugh JA]; *Felthouse* 876 (uncommunicated assent); ‘In all the circumstances it was for the defendant to make plain that its conduct amounted only to taking advantage of the proposal but not to submitting to the disadvantages’ [CB1B 81 | 181 | Heydon JA, *Brambles* | his route] (credit). Lord Denning MR’s ‘last shot’ (*Butler* 404 to 405) is his alone and concerns standard forms: a remote analogy at most.

- **Facts (deciding).** ‘expected’ (and the narrator’s ‘ensure that Grace made all payments … promptly’); ‘that Rocky personally guaranteed repayment of the Loan’ (the narrator’s description); ‘the personal guarantee provided by Rocky’ (R-M); ‘attended’ (Rocky, Grace and Pierre ‘attended a meeting at AMPL’s office’, at which the Loan Agreement was entered into and the clause ‘was included … before it was signed’: the attendance is the one fact in the problem that goes to McHugh JA’s knowledge element, so it is DECIDING and is quoted in the counted paragraph, ‘included at the meeting he ’attended’‘: CRIT_round4 M5, adopted; Appendix B). That the inclusion happened at the meeting rather than in a draft before it is itself an inference from ’At the meeting … entered into’ and ‘included … before it was signed’; the counted form is now ‘included, arguably at the meeting he ’attended’’ (CRIT_fidelity_6 Finding 2 and CRIT_round6 m6, adopted, +1 from the slack), so that the inference that helps AMPL is marked exactly as the inference that helps Rocky at II.C2 (‘The facts arguably place the clause after the exchange’) is, §3’s one rule applied identically whichever party it helps. v6 carried the unmarked form ‘included at the meeting he ’attended’’ and its changes file attributed that acceptance to words in R-S(6) that the ruling does not contain; the acceptance was a reviser’s judgment call (CRIT_round5 m4, recorded rather than funded), disclosed as such in SHEET_v7_changes.md and now moot. A drafter who writes the unmarked form is graded as the identity table graded v6: Excellent, the inference being carried by the quoted word and by ‘likely’ in the verdict, though the marked form is the counted one. Supporting: ‘included … before it was signed’; his presence at the inclusion is an inference from attendance, so ‘in his presence’ is written ‘arguably’ or as ‘at the meeting he attended’ (CRIT_fidelity_3 m2, adopted); no objection shown; nothing narrated says Rocky read or was shown the clause’s words; ten months of check-ins (admissible on formation of the oral bargain and on Rocky’s assent, inadmissible on the meaning of ‘ensure’ or of the clause).
- **Core.** (1) The two contents distinguished with the right speakers: what Rocky promised is what Pierre ‘expected’, reported by the narrator as ensuring ‘all payments … promptly’ (interest included; procuring performance), whereas the clause is described as one ‘that Rocky personally guaranteed repayment of the Loan’ (the defined principal; ‘on default’ is guarantee law and is not said). (2) Assent to the written content decided on McHugh JA’s own criterion as the source states it: whether, with ‘a reasonable opportunity to reject’, Rocky took the benefit of AMPL’s written offer ‘with knowledge of its terms’, THE OFFER NAMED so that ‘its’ keeps its antecedent (McHugh JA at 536: ‘taking the benefit of an offer with knowledge of its terms’, CB1B 72; v10’s prescribed ‘took the benefit ’with knowledge of its terms’’ detached ‘its’ from ‘an offer’; the v11 form ‘took the benefit of AMPL’s written offer ’with knowledge of its terms’‘, +4: UPGRADES_r1 U13; knowledge of the offeror’s reliance, which describes *Empirnall*’s facts and appears in no statement of the rule, and the disclosure of the analogy (Part 9 item 33) remain credit) (535 to 536; the ’under circumstances which indicate’ element may be stated in terms, credit); the BENEFIT NAMED, because the criterion has a benefit element and a paragraph that names none is conclusive under §1(b): the $10,000 promise, taken as the other side of the clause recording the bargain he had just proposed (CRIT_round3 M3, adopted: moved from credit to core); the KNOWLEDGE ELEMENT APPLIED TO A FACT, because the holding at 536 rests on ‘taking the benefit of an offer with knowledge of its terms’ and a paragraph that states the knowledge element and names no fact going to it before concluding ‘assented’ is the conclusive shape his marker graded Good (§1(b); CRIT_round4 M5, adopted: moved from credit to core): the fact is Rocky’s attendance at the meeting where the clause was included, carried by the quoted word (‘included, arguably at the meeting he ’attended’‘, the counted form from v7), the inference from attendance to knowledge being marked by ’arguably’, by the quotation and by ‘likely’ in the verdict, and a drafter who wants the knowledge inference itself explicit writes ‘arguably knew’; the ticket-case analogy (‘has or ought to have knowledge’) is CREDIT, usable only with its confinement to ‘a contract of carriage or bailment’ disclosed; for AMPL, the clause was included without objection shown (never ‘without narrated objection’: R-R(1)), to record the bargain he had just proposed (credit), and the narrator’s ‘the personal guarantee provided by Rocky’ proves that he provided one; for Rocky, that stipulation establishes neither the clause’s words nor that he saw them (R-M) (credit: ‘provided’ arguably describes the oral undertaking; he was the offeror of ‘that’). (3) A conclusion in the tier for the strength, with the further information named in the trailing clause (the clause’s words; whether Rocky saw them; whether he objected) AND ITS DIRECTION (eg on a ‘likely assented’ verdict, ‘unless he never saw its words’; on a ‘likely did not assent’ verdict, ‘unless he saw and accepted its words’; a same-count rewording of the counted trailing clause, which named the information without its effect: UPGRADES_r1 U3; R6), which is also the answer to Rocky’s strongest counter, that the $10,000 was the price of his own completed oral offer and not of the written clause (Kirby P at 170 by analogy: an additional term arising after acceptance ‘cannot represent consideration’; credit in terms, met by the trailing clause because whether he assented to the written content turns on the words he saw: CRIT_round4 M5).
- **Credit.** Heydon JA’s ‘make plain’ (his route); the oral bargain complete before the clause was written (Kirby P at 170, by analogy: an additional term arising after acceptance ‘cannot represent consideration’); Proscour only to frame the difference; on either content Rocky is exposed if Grace defaults on a due date, the measure (a debt on call or damages) being remedies law, which the answer does not argue and never frames as outside any scope (R-Z(1), (4)); whether the clause was in the draft before the conversation; on the Pierre alternative the benefit taken was Pierre’s promise, not AMPL’s, which weakens assent to AMPL’s written content (S-18, weak to moderate; CRIT_round9 M1, credit: the counted ‘the $10,000 promise being his benefit’

names the promise whoever made it, and a drafter who states the weakening in a clause loses nothing).

- **Strength and tilt.** Assent to the written 'personally guaranteed' content moderate on the guarantee reading of 'the clause', weak to moderate on the other (S-9). Either conclusion can be Excellent if it applies McHugh JA's criterion with the benefit named, meets the other side's best fact (including 'provided by Rocky' on the R-M line), and names the further information; no method and no lean is Good (§2). An answer that treats 'provided by Rocky' as stipulated evidence of assent is eligible for Excellent provided it says what the stipulation does and does not establish (not the clause's exact words).
- **Drops.** VG: further information missing, or given without its direction (U3); the offer whose benefit was taken not named, so that 'its terms' has no antecedent (U13); 'provided by Rocky' neither used nor tested; the 'reasonable opportunity to reject' or the knowledge element omitted so that AMPL's best words are understated. Good: 'Rocky is bound as guarantor' bare; the benefit taken not named (§1(b)); the knowledge element stated and applied to no fact before 'assented' (§1(b); 'attended' or an equivalent fact absent). Credit wrong: the ticket-case 'ought to have' words stated as McHugh JA's rule without the confinement (VG; a wrong rule). Fair: 'ensure' and 'guarantee' treated as the same with no reasons; 'ensure … promptly' attributed to Rocky as his words (D4); the clause said to 'state' or 'record' a guarantee (D4). Poor: Proscour's damages statement applied as the Australian rule; Rocky's silence held acceptance on *Felthouse*'s facts; *Butler*'s 'last shot' used as more than a remote analogy. Omitted.
- **Marker comment.** '*Empirnall* asks whether an offeree with a reasonable opportunity to reject took the benefit with knowledge of the terms: what benefit did Rocky take, and what does the problem tell us he knew of the clause?'

II.I3 Consideration moving from AMPL, conditional on II.F2; *Pao On*'s second condition on timing; AMPL's fallback put (4.0; C; floor 73) [*Pao On* 629 to 630; *Roscorla* 237]

- **Issue.** Whether AMPL, as promisee calling on Rocky's undertaking, gave consideration for it.
- **Rules at source.** 'Must flow between the parties in both directions' [S2A slide 2 | slide only]; past consideration: 'a consideration past and executed will support no other promise than such as would be implied by law' [CB2A 113 | 237 | Lord Denman CJ delivering the judgment of the Court, *Roscorla*]; *Pao On*: 'An act done before the giving of a promise to make a payment or to confer some other benefit can sometimes be consideration for the promise. The act must have been done at the promisors' request: the parties must have understood that the act was to be remunerated either by a payment or the conferment of some other benefit: and payment, or the conferment of a benefit, must have been legally enforceable had it been promised in advance.' and its application, 'The parties understood at the time of the main agreement that the restriction on selling must be compensated for by the benefit of a guarantee against a drop in price' [PO | [1980] AC 614, 629–30 | the Board (Lord Scarman delivering) | ratio on the First Question]; the Board's gloss, read in the official text; course-stated in substance only (*Roscorla* 237; *Australian Woollen Mills* (PC) 550, 'The presence of a request does not, however, in itself establish a contract'), the words themselves sitting in the casebook's omitted pp 126 to 130; never quoted, unpinnable (CRIT_fidelity_8 Finding 4; ISSUES_SETTLED's register line, 'course-stated in substance'): the recital of a prior request 'is not sufficient in itself' and the second precondition 'is simply one of the construction of the words of the contract in the circumstances of its making' (O-3); a duty owed to a third party: *Pao On* 632 (II.C2); Glidewell LJ: 'Pao On is a case of a tripartite relationship' [CB2B 119 | 15]; *AWM* 'really offered as consideration … really done in consideration' (456 to 457); Asquith LJ's whole sentence [CB2A 102 | 460 | quoted by the Court | never cut to 'an agreement to forbear … is a good consideration' (D2)]; detriment to the promisee suffices (*Musumeci* 745).
- **Facts (deciding).** '27 February' as the date of the advance; 'Rocky asked' (from v11 the first condition, the request, met on that word: UPGRADES_r1 U32, reversing CRIT_round3 M5 option (a)'s move to credit); 'I will do that if you also promise to pay $10,000' (the pricing that meets AMPL's fallback: U2). Supporting (credit): Pierre's expectation narrated only on 8 April and AMPL's return being Grace's interest (the two reasons why nothing shows a 27 February understanding; credit for the same reason); nothing narrated on 27 February about a guarantee; AMPL entered the Loan Agreement with Grace at the same meeting.
- **Core.** (1) The point stated conditionally on II.F2: if AMPL promised the $10,000, that promise is fresh consideration moving from AMPL (strong on that view); if the $10,000 was Pierre's, AMPL needs its own consideration and the 27 February advance is past (*Roscorla* 237 footnoted on the words 'the past advance', its own marker, with *Pao On* 629 to 630 on the exception carrying a second marker: one source for one proposition, R-R(3); the counted form is 'AMPL's own promise suffices; if Pierre promised, the past advance,[fn] under *Pao On*, suffices only where the parties 'understood that the act was to be remunerated'[fn]'; from v11 the doctrine is NAMED once in the course's term, past consideration (RG2A: 'What is the rule with respect to past consideration? Are there any exceptions to the general rule?'; S2A PDF page 20, 'Past consideration'; S2A PDF page 23, 'Exception to past consideration rule'; the v11 form 'the past advance, past consideration,' +2: UPGRADES_r1 U7; R-X(4)); v5's 'if AMPL, that promise suffices; if Pierre, the past advance' elided the verb of each 'if' clause and read as note form, an R1 lapse under the type added in v6: CRIT_round5 M7, adopted under R-S(2)). (2) *Pao On*'s FIRST condition met on its fact, as the Board itself runs each condition on its fact ('The act must have been done at the promisors' request … All three features are present in this case. The promise given to Fu Chip under the main agreement not to sell the shares for a year was at Lau's request', Pao On extract, [1980] AC 614, 629 to 630): the advance was made at Rocky's request, 'Rocky asked' (the v11 form 'the past advance, made at Rocky's request,', +4: UPGRADES_r1 U32, folded into this item because the 'similar shape' below is a guarantee given after an act done at the guarantor's request); the third condition is credit to state; and the SECOND condition as the contest: nothing narrated shows that the parties understood on 27 February that the advance was to be remunerated by a benefit from Rocky, whereas in *Pao On* the understanding existed 'at the time of the main agreement' (the comparison named: similar shape, different timing; credit: the two reasons, Pierre's 'expected' narrated only on 8 April and AMPL's return being Grace's interest). (3) A conclusion in the tier for the strength on the alternative that Pierre promised ('likely'), written 'if Pierre promised', never 'on that branch' (R7), WITH AMPL'S FALLBACK PUT in a clause (CRIT_round5 M6, adopted in the 'put' form under R-S(3)): AMPL's entry into the Loan Agreement at the same meeting, tied by Pierre's expectation to 'payments under the Loan Agreement', is the course's second candidate for consideration moving from AMPL (ISSUES_SETTLED S-13, moderate), and a verdict that AMPL 'gave none' without naming it overstates the tier and leaves a C unit's counter unput; the counted form is the absolute clause 'its entry into the Loan Agreement remaining arguable consideration' after 'AMPL likely gave none' (the noun 'consideration' added in v8, +1, so that the clause says what the entry is arguable as: CRIT_round7 m7, adopted; v7's 'remaining arguable' is not deducted, the sentence being about consideration

throughout); and, from v11, the fallback MET, not only put, or ACCEPTED with the bargain requirement applied (UPGRADES_r1 U2, adopted as core and as a grading fix, §2 already listing 'the fallback limb of II.I3' among the units where a paragraph with no lean and no method is Good while v10's 'remaining arguable consideration' gave that limb neither): the bargain test asks whether AMPL's entry was 'really done in consideration of' the undertaking ('it should be made to appear that the statement or announcement which is relied on as a promise was really offered as consideration for the doing of the act, and that the act was really done in consideration of a potential promise inherent in the statement', CB2A 101, *Australian Woollen Mills* 456 to 457, the Court), and Rocky's own words name another price, 'I will do that if you also promise to pay $10,000 to me directly'; the v11 form adds ', though Rocky priced his undertaking at'$10,000'' after 'remaining arguable consideration' (+7), on its own marker to *Australian Woollen Mills* 456 to 457. Accepting the fallback with the bargain requirement applied (AMPL may read 'also' as 'in addition to entering the Loan Agreement') is equally Excellent (S-13, moderate). Meeting it in the fuller form (the critic's +12, the entry not 'really done in consideration of' the undertaking stated in terms) is credit.

- **Credit.** AMPL's fallback met or accepted in a fuller form than core (3) requires: its entry into the Loan Agreement is arguably 'really done in consideration of' the undertaking (or, if AMPL was already bound to Grace from 27 February, a promise to perform a duty owed to a third party: *Pao On* 632), a detriment sufficing though the benefit went to Grace; against which the express words price the undertaking at $10,000 and AMPL had already advanced (S-13; either conclusion Excellent if the bargain requirement is applied and the pricing point met or accepted); *Lampleigh*'s 'request' and Bowen LJ's 'implication that at the time it was rendered it was to be paid for' (the extract; cited as quoted by Lord Scarman without an AC page pin); the recital of consideration in the guarantee clause as further information (O-3); the *AWM* creditor-forbearance example labelled an analogy; the consistency points (T7: Rocky cannot say his undertaking was given only for past consideration while claiming the $10,000 was given for it; T17), each stated once; the further information that would reverse it (evidence of an understanding on 27 February).
- **Strength and tilt.** Two limbs, each with its own rating (corrected to ISSUES_SETTLED S-12 and S-13: CRIT_round5 M6; R-S(3)): the past advance as consideration, unproven under *Pao On*'s second condition (moderate to strong against AMPL; S-12), a contrary conclusion on that limb capped at Very Good; AMPL's consideration on the Pierre alternative taken as a whole, once the fallback is live, MODERATE (S-13), so that a conclusion that AMPL gave consideration which rests on the fallback with the bargain requirement applied and the pricing point met or accepted is Excellent, and 'AMPL gave none' is Excellent only with the fallback put and met (from v11: U2). v5's single 'moderate to strong against AMPL' line rated the whole question by its first limb and tilted the unit against AMPL beyond the settled ratings, which on the Pierre alternative was bad advice to Rocky (told that AMPL has nothing to enforce). An answer that uses Pierre's 'expected' as evidence, marked 'arguably', that an understanding existed on 27 February (the narrator's past tense permits the inference) is that capped contrary conclusion; an answer that places the understanding on 8 April misapplies the second condition's timing (the condition's own words do not state the time; the timing is read from the Board's application, 'at the time of the main agreement') and is Fair on the brief's ladder (a criterion misapplied, not law wrong), as the parallel item at II.G was moved in v7 (Part 9 item 37(d)); v7's Poor (CRIT_complete_bias_2 B-7) is withdrawn to that extent, Poor being kept for the textbook (D1) and for Asquith LJ cut (D2), a *Pao On* pin or report error being VG with D11 from v10 (CRIT_round7 m14, adopted; Part 9 item 38; CRIT_round9 m5; R-U(6)). Not academic: live whenever the $10,000 is not AMPL's promise.
- **Citation.** *Pao On v Lau Yiu Long* [1980] AC 614, 629–30 and 632 only, as the Board (no judge) or '(Lord Scarman for the Board)', the course extract being headed 'Judgement delivered by Lord Scarman' and Glidewell LJ at 14 naming him as 'delivering the judgment of the Judicial Committee' (R-P; CRIT_round3 M7, adopted: naming him is not deducted). *Roscorla v Thomas* (1842) 3 QB 234, 237; 114 ER 496 (the QB pin after the QB report, before the ER parallel, so that it does not read as an ER pinpoint: CRIT_fidelity_3 m5, adopted; the ER pin is not in the course materials); naming Lord Denman CJ, who 'delivered the judgment of the Court', is accepted (R-P). A *Pao On* pin other than 629–30 or 632, or a wrong report, is a D11 deduction. Marker placement: the *Pao On* marker on the timing sentence sits directly after 'at the time of the main agreement', the words it supports, and the fallback clause that follows ('its entry into the Loan Agreement remaining arguable consideration') carries no marker, because *Pao On* does not support it and it states an arguable fact, not a rule (CRIT_round6 m3, adopted at no cost; v6's fn 48 closed the sentence and so appeared to cite *Pao On* for the fallback); a drafter who footnotes the fallback clause to *Australian Woollen Mills* 456 to 457 on its own marker, the bargain requirement it invokes, is graded the same.
- **Drops.** VG: the AMPL alternative not stated conditionally; the second condition applied without the 'at the time' comparison; the fallback (AMPL's entry into the Loan Agreement) not put on the Pierre alternative, or put and neither met nor accepted (U2); the first condition stated without its fact ('Rocky asked': U32); 'AMPL gave none' stated as clear; *Pao On* cited as [1980] AC 615 (the slide misprint), with the D11 deduction, a citation slip graded once, as his marker graded a citation slip VG ('the reference should not include ss 28 and 32(1)'), R8 then capped by R-C at the lowest citation grade (CRIT_round9 m5; R-U(6): v9's Poor triple-counted it). Good: '*Pao On* applies' or 'past consideration fails' bare. Fair: *Pao On*'s three conditions recited and declared met without the 'understood … at the time' requirement applied. Fair also: *Pao On* said satisfied by an understanding formed on 8 April (the timing of the second condition misapplied: CRIT_round7 m14). Poor: *Pao On* cited to the textbook (D1); Asquith LJ cut (D2). Omitted. Credit wrong: the fallback stated without the bargain requirement; *Lampleigh* given an AC pin (D11). The doctrine applied without its course name, past consideration, is graded at R7, not here.
- **Marker comments.** 'Apply *Pao On*'s conditions to the facts; the second is the contest, and the timing is the difference.' 'Ensure your citation precisely supports the proposition: 629–30 for past consideration, 632 for the third-party duty.'

II.I4 Timing on both readings of the 12 months; the arguable March instalment; consequences conditional on II.F2 (5.0; C; floor 68)

- **Facts (deciding).** 'repayment of the Loan'; 'repayable at the expiry of 12 months'; '8 February 2025'. Supporting: 'when Grace had not yet repaid the Loan'; 'I have until 8 April 2025'; 'you won't see a cent before then'; 'AMPL required the $1,150,000 as soon as possible' (motive; cannot accelerate the term: *Ermogenous* [25]); AMPL called on 9 March 2025, 'arguably' the day after a monthly date if the instalments fell on the 8th (an inference: R-M).
- **Core.** (1) Whether the call was premature turns on the 12 months, cross-referred as 'the 12 months (G)' within the same Part (R-Q; never a bare 'turns on G'), not on any rule of guarantee law (credit: the clause as described concerns 'repayment of the

Loan', and the Loan was 'repayable at the expiry of 12 months', quoted again here). (2) Both readings applied: from 27 February the call was not premature; from 8 April it was premature as to principal (v12: v11's 'which only postpones liability' is a guarantee-law statement and is removed from the core and from credit under R-Y(4), the answer not arguing guarantee law) (credit: if Grace does not repay by 8 April 2025 the 12 months will then have run on either reading, and if Rocky then pays, the $10,000 condition fails: T13, II.H). (3) On the 8 April reading the bad news in a clause: the payment record ends at '8 February 2025', which makes an unpaid March 2025 instalment arguable (the hedged form is required: 'appropriate monthly repayments of the interest' between 8 April 2024 and 8 February 2025 'proves that interest was paid monthly, as the Loan Agreement required, in that period, and no more' (R-M), so 'payments end at '8 February 2025'' or 'Grace stopped paying after 8 February' states more than the problem proves and is a D4 fault: UPGRADES_r1 U16; 'interest is shown paid only to '8 February 2025'' is equally Excellent; the uncertainty and its effect being stated in this 'arguable' clause, 'whether the March 2025 instalment was paid' is not an R6 further-information item: U3) (credit: that it engages the oral content, ensuring 'all payments … promptly', and not the clause's principal-only content as described; whether it was paid as further information). (4) The client's position stated conditionally on II.F2: if AMPL promised the $10,000, Rocky likely owes AMPL under his undertaking when Grace defaults and, if he pays, likely loses the $10,000 (II.H); if Pierre promised, his $10,000 claim lies against Pierre and his exposure likely does too, AMPL's fallback consideration (II.I3) keeping a claim on the clause arguable (the v11 form is 'If Pierre promised, the claim lies against him and the exposure likely runs to him' (+5: UPGRADES_r1 U29), because v10's 'If Pierre promised, claim and likely exposure lie against him' joined two nouns to a verb that fits only one (a claim lies against a person; an exposure does not, and no possessor was named), a zeugma and wrong collocation that cold readers flagged and that is from v11 an R1 lapse; 'Rocky both claims against and is likely liable to Pierre' is equally Excellent; the hedge on the exposure is kept in every form. The reason for 'likely' on the exposure is carried by cross-reference to II.I3 (AMPL's fallback consideration, S-13), which satisfies §1's adjacency condition for this clause where the clause cross-refers in terms ('(II.I3)', 'as at I', or an equivalent): R-V(1); CRIT_round10 m2. v10's counted form was ten words for v9's ten: v9's 'exposure and claim both lie against him' stated unhedged a consequence II.I3 leaves arguable on a moderate point (S-13), which §1 grades VG as overstatement, so the identity row's 'stated' in v9 certified an Excellent the tier rule did not give: CRIT_round9 M1; R-U(2); 'both' is written with its nouns, and no pronoun has a wrong or unclear antecedent (R1 as amended by R-V(1) and CRIT_round10 m3; CRIT_round3 m11); II.I1: AMPL is then a non-party to the undertaking, the clause alone cannot bind Rocky, and AMPL can enforce only the clause, on II.I2's assent and II.I3's consideration; credit: the chain through II.I3 stated, AMPL likely having given none on that alternative (II.I3), its entry into the Loan Agreement remaining arguable consideration).

- **Credit.** Grace's 'you won't see a cent before then' as the second fact supporting the March default; AMPL's need as motive only; the Pierre position as Rocky's best consistent position though the weaker view (S-18); he cannot have AMPL as promisor of the $10,000 and deny AMPL gave consideration (T11); quantification ($10,000 contingent; exposure the $1,150,000 principal on the clause as described; interest under 'all payments' if the oral content governs); the content turning on his knowledge of the clause (II.I2). From v11 (UPGRADES_r1 U19, credit only): a closing line of advice drawing the units together (about +30) is credit, the Instructions asking for 'conclusions or tentative conclusions' and every unit's core already carrying its conclusion with its consequence for Rocky (core (4) here).
- **Strength and tilt.** Timing open (S-1), carried from II.G. 'The call was premature' or 'the call was valid' stated as clear is Very Good; advised as Rocky's complete answer ('so do nothing'; 'so pay now'), Good; no lean and no method, Good (§2). Consequences conditional: the Pierre alternative weak to moderate because AMPL is the better view; on that alternative Rocky's $10,000 claim lies against Pierre, while his exposure to AMPL under the clause is likely absent but arguable (II.I3's fallback, S-13, moderate), so the exposure is stated with 'likely', and stated as settled it is overstatement (VG: §1; CRIT_round9 M1).
- **Drops.** VG: the arguable March default not drawn (v11's 'the postponement point missing' is withdrawn with the guarantee-law statement it required: R-Y(4); a draft that still states that the call 'only postpones liability' states guarantee law as law, graded Fair below); the Pierre position missing where II.F2 is left open; one reading only ('both' without its nouns is a grammar lapse graded at R1, not here: CRIT_round4 m17; R-R(10)); on the Pierre alternative, Rocky's exposure stated as settled against Pierre alone, or AMPL said to have 'nothing to enforce' (II.I3's fallback unanswered: §1; CRIT_round9 M1), EXCEPT where that consequence only carries forward an error already graded at II.I3 (eg 'AMPL clearly gave none' there): one error carried into a later unit is deducted once, at the unit where it is made (R-V(1); CRIT_round10 m9), so II.I4 is then graded on its own question and drops only for a new error of its own. Good: consequence bare; 'Rocky owes nothing yet' advised on the 8 April reading without the March qualification. Fair: a rule of the law of guarantees stated as law; AMPL's need treated as relevant to construction; inconsistent positions advised. Poor: advice that Rocky owes nothing to anyone and keeps the $10,000 regardless of who repays. Omitted.
- **Marker comments.** 'Advise the client on the consequence, including the bad news.' 'Both readings of the 12 months, briefly, with what each does to the call and to the $10,000.'

Part 7. Global rows (20%), scoring rule and automatic deductions

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Global-row cap (R-C). A global row cannot be graded above the lowest grade, among the units, of the core item it summarises: R2 at most the lowest application grade (the authority applied by its own criterion; the comparison named at K and C units); R4 at most Very Good if any unit is Omitted and at most Good if a claim is missed; R6 at most the lowest further-information or strength grade; R8 at most the lowest citation grade; R10 at most the lowest consistency grade; R1, R3, R5, R7 and R9 are graded independently. Reason: his real marker left the global rows ungraded in Part A, so the global block must compound unit failures, never offset them.

R1. Style, clarity of expression, conciseness, grammar & spelling, persuasiveness of argument: his voice (4.0)

Measured against his LAWS1061 Part A (the authority) and VOICE.md (the measurement), with `python3 -I voice_stats_v2.py` on the body (headings, footnotes and the count line are stripped by the script). - **Excellent requires all of:** flowing multi-clause sentences joined by semicolons (the next step) and colons (claim, then proof); whole-answer measures within the range of his Parts I to VI (mean sentence length 17.8 to 24.7 words; sentences under 12 words 9.1% to 36.4%, all verdicts or one-line frames and never two in

a row inside a paragraph; semicolons 0.85 to 2.02 per 100 words; colons 0.81 to 2.57 per 100 words; sentences containing a semicolon or colon 36.4% to 72.7%); the ranges apply to the whole body, not per unit, so K and C units are written in his 20 to 25-word sentences and the one-sentence L forms are balanced by short verdicts (the appendix shows the balance: mean 24.0; 10.0% under 12 words; 1.04; 0.90; 41.7%; the mean sits near the top of his range, so a drafter who lengthens sentences further falls out of it: every fix that adds a clause to an existing sentence pushes the mean up, so additions go in as new sentences or by splitting a long one, never as a further clause: CRIT_round4 m14); a short counter-frame ('AMPL would say nothing bound until execution') and an element sub-verdict ('AMPL being 'owned and controlled' by Pierre supplies consent'; 'His payment therefore likely does not meet it') count as his frames and verdicts under VOICE.md F9 (his Part A: 'On the other hand, only SPC knew its finances and that GR would rely'), so a drafter does not merge them to be safe and fall below the 9.1% floor (CRIT_round4 m14, adopted); the rule-then-proof join written as a colon, because the L form ('fact, rule, so result') produces semicolons and 'so' but few colons; every semicolon joins a step to the step it follows from (a sentence of three or more semicolon-joined clauses each a conclusion without its reason is conclusive and an R1 lapse); his signposts ('Firstly', 'Secondly, however,', 'Decisively,', 'Nor does … assist:', '… is distinguishable:', '… is analogous because …', 'The strongest counter is …', 'On balance,', 'the better view is that … likely …') used where they fit and never at a required rate: the requirement is 'no signpost he never uses', 'Whether … turns on' as an opener in at most about 1 in 6 sentences, ordinals where three or more factors are weighed as separate sentences (his stacked-facts sentence, VOICE.md 2.3 examples 14 and 15, weighs three or four quoted facts inside one sentence without ordinals and is equally his form), valence tags only on factor sentences (CRIT_round3 m9, adopted in part: the appendix uses 'Decisively', 'On balance', 'the better view', 'Yet', 'whereas', 'distinguishable' and no ordinals, which is within his usage); no signposts he never uses ('Moreover', 'Furthermore', 'Additionally', 'Here,', 'In this case,', 'Notably'; 'Here,' and 'In this case,' as sentence openers only, a mid-sentence locative 'here' not being a lapse: I.F2 Credit; CRIT_round8 m3); no direct question with a question mark in the body (his Part A has none; a question is put as a 'whether' clause: CRIT_round4 m9); none of this sheet's analytic words ('narrator', 'narrated', 'narrative', 'the facts narrate': R-R(1)); NO META LANGUAGE AND NO SLIDE CITATION (R-Z(1), (2), (5)): body and footnotes never mention weeks, classes, lectures, slides, the course, the readings, the syllabus, the rubric or the assignment, and never frame anything as 'outside the scope' (or 'outside Weeks 1 to 4'), the answer being advice to Rocky; one such instance, or one slide citation, caps this row at VG, and two or more cap it at Good, whatever the rest of the row earns (the same instances are graded at R8; §1); parenthetical cross-references ('(D, E)', '(D)', '(II.G)', '(G)') are not in his register (his Part A carries none, writing 'likewise' and 'again'), so at most about one per Part is his form, the rest written as 'a question for intention and certainty' or 'the 12 months' where words allow; the counted model spends four because the count forbids the longer forms, and they are counted words, not free (CRIT_round4 m19, adopted as the rule); 'both' written with its nouns, and no pronoun whose antecedent is wrong or unclear, that is, whose nearest antecedent is a different person or noun from the one meant ('Rocky's detriment', never 'his' after an 'If Pierre' clause: CRIT_round4 M3, m17); a pronoun whose antecedent is right and clear is never a lapse, wherever the antecedent sits ('it is likely an offer'; 'meet it'; 'Rocky likely gave none' after a sentence about consideration), v10's wider wording ('written with its … antecedent in the same sentence') being withdrawn because the counted model itself breached it without any loss of clarity (R-V(1); CRIT_round10 m3); the scope of the question never restated at length (a conciseness fault here, not at P: CRIT_round4 m17); verdict tiers matched to contest (Part 1); fact quotations short (median about 3 words), mid-sentence, inside his own grammar, the legal word outside the quote; no sentence beginning with a quotation; quoted words in the body at most 20% of the body and no single quotation over 20 words (R-G; the appendix spends 17.3%, 249 words against a ceiling of 299, so drafters have about 50 words of headroom and must paraphrase credit facts: CRIT_round6 m13 corrects v6's 'about 40'); an accurate paraphrase of a judge's hedge ('could read as', for Lord Diplock's 'might have been understood') is accepted where the quoted words would cost the count; no sentence whose only reasoning is a quoted phrase followed by 'so' or 'thus' and a result; present tense for law, past for facts; third person; zero em dashes, en dashes as punctuation, double quotation marks, contractions, first person, metaphor or figurative idiom, rhetorical or corporate framing ('It is important to note', 'Ultimately', 'Crucially', 'Overall', 'In conclusion'), intensifiers ('clearly', 'very', 'significantly'), distanced hedges ('It could be argued that', 'perhaps'); no doctrinal initialisms; defined short names only for parties and documents ('AMPL', the 'Loan Agreement', 'Loan'); no semicolon after a subordinate clause or before a fragment; no comma splice; NO NOTE-FORM ELLIPSIS, that is, no clause whose subject or finite verb must be supplied from an earlier clause ('if AMPL, that promise suffices'; 'given for its '12 months''), the Instructions marking 'the quality of the writing and the clarity of expression' and a UNSW marker reading such a clause as note form (CRIT_round5 M7, adopted; R-S(2)): each instance is a lapse under the VG line below, two make VG, and the counted model carries none. THREE FURTHER LAPSE TYPES from v11 (UPGRADES_r1 U29; the Instructions' criterion 'the quality of the writing and the clarity of expression'; four of six Stage-5 round-1 cold readers flagged instances in forms this sheet had prescribed): (a) ZEUGMA, one verb governing two nouns it fits differently ('claim and likely exposure lie against him': a claim lies against a person, an exposure does not); (b) WRONG COLLOCATION, a verb or noun that cannot take the object it is given ('AMPL enforces its own money': money is not enforced, a loan or a contract is); (c) an ANSWER-EXTERNAL DEICTIC, a pointer whose referent is outside the answer or cannot be found from the sentence ('the guarantee clause just named', where nothing in the answer has just named it). Each is a lapse counted with the others under the VG line; v10's claim that the counted model carried none of these was untrue for the three forms quoted, each now corrected at its unit (I.F3, II.F1, II.I4). Hedge density (CRIT_round5 m7, noted): the model carries 'likely' at about 12 per 1,000 words against his 7.0, 'arguably' at 5.5 against 3.2 and 'though' at 5.5 against 3.2 (8 in 1,442 words is 5.5 per 1,000, as the v10 appendix printed: CRIT_round10 m10), because the tier rule and R-M drive them; none is a checked range, but 'likely' is for the moderate-to-strong tier only and a strong point takes the unhedged 'therefore' form, so a drafter does not hedge a strong point to be safe. Colon margin (CRIT_round5 m8, noted): the model's colons (0.90 per 100 words) and semicolons (1.04) sit near the floors of his ranges (0.81; 0.85) because the L form yields 'so' rather than a colon, so a drafter writes an L unit's rule-then-application join as a colon where it reads naturally ('Acceptance requires an external manifestation of assent: 'Confirmed' …') and does not remove one to be safe. Cross-reference parentheticals ('(F)','(II.G)') count as words and are not free. - **VG:** one measure outside his range, or up to two lapses (eg a single one-clause run; one stacked-assertion sentence); one meta reference or one slide citation (R-Z(5)). **Good:** a pattern of one-clause runs, or two measures outside range; a quotation mosaic (quoted words over 20%); two or more meta references or slide citations, in any combination (R-Z(5)). **Fair:** condensed, note-like or relabelled prose; repetition across Parts. **Poor:** prose that reads as generated (metaphor, rhetoric, stacked assertions without reasons). - **Marker comments.** 'Avoid one-clause sentences in runs; join steps with semicolons and colons.' 'No metaphor or rhetorical framing.' 'This is advice to the client: never refer to weeks, slides or the course.' 'Quote facts briefly and keep the legal characterisation outside the quotation.'

R2. Application of law (cases) to facts to come to conclusion, using authority (3.0)

- **Excellent:** every decisive authority and every opponent's best authority at a K or C unit applied by naming what is similar and what is different (*Gibson* both ways, *Masters* with *Winn v Bull*, *Meehan*, *Coulls*, *Sundell*, *Banque Brussels* with its direction, *Pao On* on timing, *Empirnall* on its two limbs); an authority cited for a rule applied by its own criterion to the quoted fact (the L units); every conclusion follows from the application; no authority cited for a proposition it does not support (eg *Pace* 154 to 155 as defeating Rocky; Ipp AJA 191 as fixing a commencement date; *Carlill* 263 as a burden of construction; *Wigan* 595 as a rule of interdependence). **VG:** one key authority applied without the distinction. **Good:** authorities cited, facts stated, little matching. **Fair:** law recited, then conclusions. **Poor:** authorities misapplied.
- **Marker comment.** 'Further analysis should be developed rather than conclusive statements.'

R3. Layout and structure: claimant v defendant Parts; A to F headings; strict IRAC (2.0)

- **Excellent:** Parts are claimant v defendant ('Rocky v Grace'; 'Rocky v AMPL (alternatively Pierre)'; AMPL's call a lettered heading inside Part II, never a Part III: §5; CRIT_round5 m2); under each Part the headings exactly 'A. Offer', 'B. Acceptance', 'C. Consideration', 'D. Intention to create legal relations', 'E. Certainty', 'F. Privity', in that order, every element run for every claim (briefly where uncontested; the Loan Agreement's offer, acceptance and intention may be a clause under F; the bargain's elements run once under II.A to II.F for both promises, with I confined to the burden aspect, content, AMPL's consideration, timing and consequence: 'H' in v5 was a stale letter, CRIT_round5 m1); further headings only where a distinct issue needs one, in course words or the problem's words, lettered continuously within the Part ('G. The 12 months'; 'H. The condition' or 'H. The condition 'once Grace repays the Loan''; 'I. AMPL's call'; or, from v11, a course-vocabulary form of G, H or I, eg 'H. Condition precedent', 'G. Construction of the 12 months' or 'I. Privity: AMPL's call', R-X(6), none of which is a 'heading variant' for the VG line below), the 12 months inside Part II (R-Q; §5); every sub-issue in order: issue, rule with authority, facts, counter, decisive reason, conclusion; nothing after a verdict except a trailing 'though' or 'unless' concession; never a conclusion first at any level, including the first line of the answer (a classifying first sentence is the issue, not a conclusion: D5). **VG:** one heading variant (a departure from 'A. Offer' to 'F. Privity', which R-X(6) leaves unchanged), or a heading that adopts the narrator's 'personal guarantee', or the 12 months placed under Part I, or two headings with the same letter, or a bare cross-reference to a letter in another Part. **Good:** a single 'Agreement' heading for offer and acceptance, or two conclusion-first sub-issues. **Fair:** issue-based headings instead of the course elements. **Poor:** no structure by claimant v defendant.
- **Marker comments.** 'Use the course's elements as headings.' 'Do not state the conclusion before the analysis.'

R4. Identification of issues and non-issues (2.0)

- **Excellent:** every claim the facts raise identified (Appendix B: C1 to C8, with C3, C5 and C7 in a clause each, and C4, the Development Agreement, a stipulated non-issue named in a clause, so that its omission is 'a non-issue unnamed' (VG) and not 'a claim missed' (Good): CRIT_round7 m11, reconciled with P's first-demotion entry), every deciding planted fact attached to a unit (Appendix B; supporting facts are credit), and every non-issue a planted fact invites named in a clause (the Development Agreement; the 5 February call; bullets 2 and 3; Grace's non-response to the 2025 emails as silence with no offer pending, credit). Excluded matters (breach, damages, guarantee law, frustration, statute) are never named as excluded and are not non-issues to be identified: v11's 'the outside-scope list' is withdrawn, and naming any matter as outside Weeks 1 to 4, the course or the scope is graded at R1 and R8 under R-Z(5), never credited here (R-Z(1), (5)); C3 and C4 count wherever in the answer they are disposed of (P). A non-issue is named only where a planted fact invites it; naming the postal rule or adequacy is a conciseness fault, not credit. **VG:** one deciding planted fact unused; any unit Omitted. **Good:** one claim missed (eg the Pierre alternative; the other reading of 'the clause'). **Fair:** AMPL's call or the 12 February email missed. **Poor:** two or more claims missed.
- **Marker comment.** 'Marks are allocated for identification of issues/non-issues.'

R5. Prioritisation (1.5)

- **Excellent:** word allocation follows the issues' difficulty and the marks at stake, the Part 8 v11 core costs and the Part 1 points being the guide (the v10 floors are a record, not a quota: §1; R-X(3)), with the compression R-X(3)(c) names (I.F1, P, I.F3, II.E, II.F1, whose results are not in doubt) never cutting a core: the 8 April bargain and the call, being one bargain, are given the depth; privity against Grace is complete but brisk because authority decides it; the 12 February email gets depth at I.D and I.E only, and the two together do not much exceed their v11 core costs (I.D 129 and I.E 86, about 215 words); one-liners are one line; a reasoned allocation that treats the call more briefly as Rocky's answer to it is not penalised if every II.I unit is met (CRIT_round5 m1: 'II.H' in v5 was stale). **VG:** one minor issue over-treated. **Good:** the 12 February email outweighs the 8 April bargain. **Fair:** a non-issue argued at length. **Poor:** the central bargain treated in a paragraph.

R6. Areas of uncertainty and further information (2.0)

- **Excellent:** every genuinely open or moderate point (the 12 months; the reading of 'conditions' and the 12 February intention; who promised the $10,000; Rocky's assent to the written content; the order of the clause and the $10,000; whether Rocky's own payment meets the condition; whether Grace repays by 8 April 2025) presented as open with the better view and its honest strength; further information given where it changes the advice, and EVERY further-information clause, core or credit, STATES WHICH WAY THE INFORMATION WOULD MOVE THE ADVICE (the Instructions p 1: 'Where you decide that further information beyond that provided in the scenario would clarify your advice, then you may indicate what further information you require and how it would impact your conclusion'; brief Part 8 item 8: 'and how it would change it'; UPGRADES_r1 U3), in the 'unless X' or 'if X, Y' form or an equivalent, placed before the verdict or in its trailing clause; 'X would decide it' or 'X would settle it' names the information and not its effect and is the VG fault below. The unit cores that carry a further-information item, each with its direction (reconciled with R6's list in v11: U3): I.D (the 'conditions' discussed 'this morning': 'unless the conditions were settled 'this morning''); II.C2 (the order of the clause and the $10,000: 'though a clause agreed first would favour AMPL'); II.F2 (whom Pierre spoke for: ', decisively so if he spoke for himself', CORE from v11, the K unit having carried none); II.G (the Loan Agreement's words: 'unless the agreement's words date the term from 8 April'); II.I2 (whether Rocky saw the clause and its words, with the direction on the verdict reached). The Loan Agreement's drafter and whether interest ran

from 27 February are credit at II.G, not core; 'whether the March 2025 instalment was paid' is struck from this list, because II.I4's 'arguable' clause states the uncertainty and its effect (U3). **VG:** one open point stated as settled, or one further-information item without its direction (core or credit), or the method applied with no lean. **Good:** a generic 'more facts are needed' line; a paragraph with no lean and no method at any open unit (§2). **Fair:** 'finely balanced' used where authority decides. **Poor:** no uncertainty addressed.

- **Marker comment.** 'Identify the further information and how it would change your conclusion.'

R7. Terminology: the lecturer's terms (1.0)

- **Excellent:** every concept named in the course's words (brief Part 4): offer, invitation to treat, bilateral and unilateral contract, executory and executed contract, counter-offer, communication of acceptance, post-formation conduct (the reading guide) or post-contractual conduct (Heydon JA), electronic communications, the bargain requirement, conditional gift, adequacy of consideration, past consideration and the exceptions to the general rule, the existing legal duty rule and its exceptions (the practical benefit exception; promises to third parties; genuine compromise), intention to create legal relations (in full: 'in full' governs the element's heading and any naming of it as a concept; 'intention' as the subject of a sentence under the full heading, or 'intended legal relations' where the full term is the heading, is the High Court's own short form, the Court writing at *Ermogenous* [25] (CB3A 137) that 'the word … is used in this context … in the same sense as it is used in other contractual contexts', and is not a proxy term: CRIT_fidelity_9 Finding 9; R-U(6)), presumptions, letter of comfort, preliminary agreements and the categories of preliminary agreement (*Masters*' three classes), certainty, incompleteness, uncertainty, illusory promise, discretion as to its terms, implying objective standards, severance, privity, the general rule in relation to privity, the two aspects of the rule, the relationship between privity and consideration, circumventing the privity rule, the doctrine of agency (or 'non-application of the privity rule: agency'). **Proxy terms penalised** (0.5 each to a maximum of 1.0 within this row): 'Agreement' as a heading in place of offer and acceptance; 'gap-filling test' for implying objective standards; 'ICLR' or other initialisms; 'meeting of the minds'; 'deal' for contract; 'pre-existing duty doctrine' as a heading where the course says 'the existing legal duty rule'; 'third-party beneficiary rule' as an invented RULE label (the description 'a third party beneficiary' is the editors' own at CB4 329 and S4A page 15 and is not penalised: CRIT_round3 m4, adopted); 'collateral contract' (not a Weeks 1 to 4 term); the sheet's own labels ('the agency route', 'the oral route', 'the payment condition', 'prevention' or 'prevention reasoning' as a doctrine name (*Mobil*'s passage is described in words: 'the offeror who prevents completion'), 'the Pierre branch', 'the AMPL branch', 'branch', 'Reading A', 'Reading B', 'Option 1', 'trap', claim codes, 'S-' numbers, 'class 3' without *Masters*, and the sheet's analytic words 'narrator', 'narrated', 'narrative' and 'the facts narrate' (R-R(1); CRIT_round4 M2: a student writes 'nothing suggests', 'appears', 'is shown', 'the facts arguably place', 'as described', never 'the narrator's 'Pierre agreed''), a coined label such as 'a cousin's comfort' for the course's 'letter of comfort' (CRIT_fidelity_4 Finding 3); 'the burden aspect' is acceptable, being [11.10]'s 'two aspects'; 'the condition' and 'conditional agreement' are Gibbs CJ's: CRIT_fidelity_3 m13, adopted).
- **Every doctrine the answer applies is named once in the course's terms (v11; R-X(4); UPGRADES_r1 U7, the deciding rule being brief R4, 'every rule, test, element and exception named in the exact words of the reading guides, slides and casebook').** Stating a rule in the source's words without the course's name for it, or describing the doctrine in the answer's own words ('a request that Rocky make an offer'; 'adding nothing'; 'the general rule'; 'the past advance'; 'qualifies AMPL's obligation, not formation'; 'the duty 'to do everything necessary''), is from v11 one proxy instance under this row (0.5 each, within the row's cap of 1.0), unless the course name appears once elsewhere in the answer for the same doctrine; the name costs no quotation marks and no extra quoted words. The terms, with the slide, reading guide or casebook passage that uses each:
  - **invitation to treat** (I.A; II.A equally): RG1A (2), 'How is an offer distinguished from an invitation to treat?'; S1A PDF page 26 (printed slide 27), 'Invitation to treat … An invitation for others to make an offer or enter into a negotiation.'
  - **counter-offer** (I.B): RG1B (2), 'What is the legal effect of a counter-offer?'; S1B PDF page 42 (the same question).
  - **past consideration** (II.I3): RG2A, 'What is the rule with respect to past consideration? Are there any exceptions to the general rule?'; S2A PDF page 20, 'Past consideration'; S2A PDF page 23, 'Exception to past consideration rule'.
  - **the existing legal duty rule** (II.C2): RG2B, 'What is the existing legal duty rule? What are the exceptions to the general rule?'; S2B PDF page 8, the heading 'Existing Legal Duty Rule'.
  - **condition precedent** (II.H, in the heading or the text): no slide or reading guide uses the term; the course source is Gibbs CJ in *Meehan* at 582 (CB3B 184), 'not a condition precedent to contract' and 'a condition precedent to completion' (disclosed: the casebook is the only course source).
  - **the duty to co-operate** (II.H): CB2A 109, the casebook's heading 'The duty to co-operate' over McHugh JA's passage in *Beaton* at 185; S2A PDF page 14 states the duty ('McD have contractual duty to do everything they can to provide B with benefit of the contract') without the name; no reading guide names it.
  - **preliminary agreement**, and the categories of preliminary agreement (I.D), ONLY where the answer relies on the category or names one of *Masters*' classes: RG3A, 'What are the different categories of preliminary agreement? Which are binding on the parties?'; S3A PDF page 22, 'What are preliminary agreements?'; CB3A 154, the heading 'PRELIMINARY AGREEMENTS'. The terms already required elsewhere (privity and its two aspects; the doctrine of agency; consideration and the bargain requirement; intention to create legal relations; certainty and illusory promise; letter of comfort) stand as listed above.

R8. Citation: references according to AGLC4 (2.5)

- **Excellent requires:** footnotes for every source and only for sources (discursive footnote text counts toward the words); full citation at first reference with, where the case recurs, its short title INTRODUCED at the end of that first full citation, after the pinpoint and the judge's bracket and before any ', quoting' or ', citing' tail, in italics inside inverted commas and parentheses ('*Coulls*'), then '*Short title* (n X) pin' (AGLC r 1.4.4, read outside the course files by UPGRADES_r1 U12 in the MULR AGLC4 text: the short title is introduced 'in inverted commas and parentheses' 'after pinpoints or parenthetical clauses', the example being '*Pape v Federal Commissioner of Taxation* (2009) 238 CLR 1 ('*Pape*')'; r 1.4.1 governs the later'(n X)' form; a short title is optional, the subsequent-reference rule being 'facultative rather than mandatory', but one used in an '(n X)' footnote must have

been introduced, so every first citation of a recurring case carries it, eg the counted fn 14, '*Coulls v Bagot's Executor & Trustee Co Ltd* (1967) 119 CLR 460, 494–5 (Windeyer J dissenting) ('*Coulls*')'; a short title used but never introduced is one minor non-compliance; v10's 'a short title in italics' did not say where or how it is introduced); 'Ibid' for the immediately preceding single source, and never after a footnote carrying two sources, a ', quoting' or ', citing' footnote included, where the '(n X)' form is used instead (AGLC r 1.4.3: 'ibid' 'should not be used where there are multiple sources in the preceding footnote'; the counted fn 9 after fn 8; Part 9 item 30); pins after a comma with no 'at'; paragraph pins in square brackets ('[25]'); each footnote carrying only the pin for its own sentence's words or proposition; judge in brackets after the pin unless the whole Court or the Board speaks (no name for *Masters*, *Australian Woollen Mills*, *Mobil*; *Pao On* either as the Board with no name or as '(Lord Scarman for the Board)', the extract being headed 'Judgement delivered by Lord Scarman'; *Roscorla* either with no name or as '(Lord Denman CJ for the Court)', he having 'delivered the judgment of the Court'; each consistently (R-P; CRIT_round3 M7, adopted)); the AGLC form for a dissent is '(Barwick CJ dissenting)', no comma and no qualifier, any 'on construction' sitting in the text (CRIT_round3 m13, adopted); names for *Ermogenous* (Gaudron, McHugh, Hayne and Callinan JJ), *Coulls* (Taylor and Owen JJ, or the dissenting judge with 'dissenting' disclosed), *Wigan* (Mason J), *Meehan* (Gibbs CJ or Mason J), *Brambles* (Heydon JA; Ipp AJA per R-K, or Ipp JA, the casebook's heading, accepted and not deducted), *Godecke* (Walsh J, Mason J agreeing; or Gibbs J)); a second-hand judicial quotation in the AGLC r 1.3 form, ', quoting' (or ', citing') placed after the pinpoint and the judge's bracket and followed by the quoted source's own citation as the casebook prints it, with its judge in brackets, or omitted where the casebook prints none (the counted forms: 'Ibid 363, quoting *Winn v Bull* (1877) 7 Ch D 29, 32 (Jessel MR)' (fn 8 from v10: CRIT_fidelity_9 Finding 2); '*Brambles* (n 19) 176 (Heydon JA), quoting *Eccles v Bryant* [1948] Ch 93, 104 (Lord Greene MR)' (from v11: R-X(2); UPGRADES_r1 U8; the casebook's '[1948] 1 Ch 93' at CB1B 77 is Heydon JA's slip, and '[1948] Ch 93' is the report as the Court in *Masters* prints it at CB3A 156; a draft that prints '1 Ch' has one minor non-compliance); '*Beaton* (n 4) 181 (McHugh JA), quoting *Thomas v Thomas* (1842) 2 QB 851, 859; 114 ER 330, 333–4 (Patteson J)'; '*Council of the Upper Hunter County District v Australian Chilling and Freezing Co Ltd* (1968) 118 CLR 429, 437 (Barwick CJ), quoting *G Scammell & Nephew Ltd v Ouston* [1941] AC 251 (Lord Wright)'; '*Beaton* (n 4) 185 (McHugh JA), citing *Secured Income Real Estate (Aust) Ltd v St Martins Investments Pty Ltd* (1979) 144 CLR 596, 607 (Mason J)'), v5's form with the quoting clause inside the judge bracket and the quoted source uncited being withdrawn (CRIT_round5 m6, adopted; R-S(6); the AGLC text is not in the course files, so the form is a disclosed judgment call: Part 9 item 28), consistently throughout (Kitto J in *Placer* via *Meehan* 581; Lord Westbury, Lord O'Hagan and Jessel MR via *Masters*; Knox CJ via *Whitlock* 461; Lord Greene MR via *Brambles* 176; Lord Wright in *Scammell* via *Upper Hunter* 437 (at *Meehan* 587 Mason J merely recites the words as the respondents' proposition, so 587 is not the citation for them: CRIT_fidelity_4 Finding 4); Patteson J via *Beaton* 181; Mason J in *Secured Income* via *Beaton* 185; Patteson J in *Thomas v Thomas* via *Beaton* 181; Lord Ellenborough CJ via *Williams v Roffey*; the trial judge's 'extant obligation' via *Mobil* 508 if ever quoted; McHugh JA in *Integrated Computer Services* via *Brambles* 177; the *Sundell* court's words, if quoted, via the casebook note at [4.190] in the 'quoted in' form, which spends a casebook footnote; a PARAPHRASE of *Sundell* without quotation marks is cited by report alone and is not second-hand), a second-hand quotation cited as if read in the original being a VG fault (CRIT_fidelity_3 M8 and m8; CRIT_round3 m3, adopted); case names italicised in text and footnotes (his marker deducted for this); the report as printed in the casebook heading, with the ER parallel where the heading prints one, the pin attached to its own report before the parallel (*Roscorla* (1842) 3 QB 234, 237; 114 ER 496; *Felthouse* (1862) 11 CB (NS) 869; 142 ER 1037; *Thomas v Thomas* (1842) 2 QB 851; 114 ER 330) (CRIT_fidelity_3 m5, adopted); *Wigan* (1973) 47 ALJR 586, not the slide's ALR; citations precisely supporting their sentence; **no over-citation, defined by his marker's two comments** (CRIT_harsh_2 F16, adopted): a footnote citing more than one source or pin for a single proposition where one carries it ('the reference should not include ss 28 and 32(1)'), or a pin or source that does not bear on the sentence ('s 32(4) has no relevance to the point you make'); each instance is a unit citation fault (VG) and two or more make R8 Good; R-A's order for an editors'-note proposition is an order of preference, never a cumulative stack, so a footnote cites one source for one proposition (R-R(3); CRIT_fidelity_4 Finding 2; CRIT_round4 M10, adopted: v4's fn 12 and fn 30 stacked slide 16 with [11.70] and were two over-citations under this row's own rule); from v12 the order is R-Z(3)'s, a case first, the casebook only where no case in the readings states the proposition, and a slide never (R-Z(2)); a sentence carrying two propositions carries two markers, one per proposition, and EVERY FOOTNOTE MARKER CARRIES ONE SOURCE (II.C1: 456 to 457 for the bargain, *Beaton* 181 for 'moving from'; II.I3: *Roscorla* on 'the past advance', *Pao On* on the exception; II.A: *Gibson* 298 on the request, *Brambles* 177 on the bilateral contract; II.B: *Brambles* 176 on Lord Greene MR's words, *Masters* 361 on the reservation of a right to withdraw; II.E: *Upper Hunter* 437 and *Meehan* 581 to 582 on their own sentences; II.I1: *Empirnall* 536 on 'necessary', *Coulls* 487 on 'decisive'); a single footnote listing two sources for two propositions, which v5 accepted as a lesser form, is from v6 one minor non-compliance (VG after two), the counted model carrying none (CRIT_fidelity_5 Finding 5, adopted by splitting; the standard may only rise); full stops closing footnotes; statute titles italicised (*Electronic Transactions Act 2000* (NSW) s 13A(1)); *Pao On* as [1980] AC 614, 629–30 and 632 only; the textbook never cited (D1); the casebook cited only as a last resort, where no case in the readings (*Trident* included) states the proposition (R-Z(3)), in the R-A(4) form as amended by R-X(1), as Andrew Robertson and Jeannie Paterson, *Contract: Cases and Materials* (Lawbook Co, 15th ed, 2025) [11.70] or [11.10], the later reference 'Robertson and Paterson (n X) [11.70]' (author order per the course slide's full citation, S1A PDF page 7, printed slide 8, and the publisher's listing; reading guide 1A's 'Paterson and Robertson' yields to the full citation; the title page is not in the folder: Part 9 item 11; UPGRADES_r1 U14; the reversed order is from v11 one minor non-compliance), at most twice in the answer; NO SLIDE EVER CITED, in any form (R-Z(2); R-A(3) and R-P's slide limb withdrawn; v11's deck-and-slide form 'Class 4A Slides, slide 16' and the CRIT_round3 M6 discussion of a lecture form are moot): a slide citation is graded under R-Z(5), one instance capping this row at VG and two or more at Good, the same instances being graded at R1 (§1), and no meta language appears in any footnote (no 'Week', 'Class', 'lecture', 'slides', 'course' or 'reading' as a source description); official judgments (R-H): the report as the casebook heading prints it, a pin taken from the official text as the report page the official text marks or the judgment paragraph; *Trident* is a course reading (R-Y(1); R-J and R-N superseded): cited by report with the judge in brackets and no pin, as often as one source per marker requires, never counted toward the R-H cap and never official-only (the verifier's 'report citation with no pinpoint' lint is R-Y(1)'s accepted, disclosed consequence and is not a fault); at most three footnotes resting on a proposition the course never states (the permitted three, all optional credit: *Masters* 362 (*Crossley v Maycock*); *Godecke* 641–2 (Walsh J, Mason J agreeing); *Godecke* 640 (Walsh J's indicators)), every official quotation checked verbatim by `check_official.py`; editors' notes never footnoted to the editors by name except under R-A(4); consistency of every form throughout.

- **VG:** up to two minor non-compliances; one slide citation or one meta reference in a footnote (R-Z(5)). **Good:** a pattern of one

fault (eg missing judge names; second-hand quotations cited as originals; two or more over-citations); two or more slide citations or meta references, in any combination (R-Z(5)). **Fair:** citations do not support their propositions in more than one place. **Poor:** sources unacknowledged or cited to non-course material; more than three official-only footnotes. (v12: v11's Poor for 'a second *Trident* footnote' is withdrawn with R-N: R-Y(1).)
- **Marker comments.** 'Ensure your citation precisely supports the proposition for which it is relied.' 'The reference should not include [pages] that do not support the point.' 'case name should always be italicised (including in text).'

R9. Word count and format (1.0)

- **Excellent:** 'Word count: N' stated, N being the total of all text excluding footnotes as Word will count it, which is the verifier's body count (headings included) plus the three words of the count line itself (R-P; CRIT_round3 M13, adopted: a body of 1,494 is stated as 'Word count: 1,497', and a stated count three words short of Word's figure is a wrong count); N at most 1,500, so the body at most 1,497, and the sheet's floors use 1,495 as the body ceiling; typed, double spaced, 12 pt Times New Roman, Arial or Calibri; page numbers; margins; MS Word; no coversheet, 'unnecessary' title page, headers or footers (page numbers excepted, the Instructions requiring them and forbidding only 'unnecessary' headers or footers: R-R(8); CRIT_round4 m16), bibliography, bullets or numbered points; no extended quotations. **Any breach** makes this row Poor (count wrong) or Omitted (over the limit or no count), with the Part 7 deductions.

R10. Consistency across Parts (1.0)

- **Excellent:** every consistency trap in Appendix A that the answer's positions engage is either avoided or reconciled on one doctrinal footing, the six required ones (T4, T8, T10, T11, T13, T17) stated once in a clause where they bite and the rest avoided without words; narrator statements handled on the one R-M line throughout; the II.F2 conclusion carried consistently into II.C2, II.D, II.I1, II.I3 and II.I4. **VG:** one tension unremarked. **Good:** two. **Fair:** a position in one Part undercuts another claim. **Poor:** the answer argues contradictory positions to win each claim.

Scoring rule

For each unit and each global row: points × multiplier (Excellent 1.00; Very Good 0.75; Good 0.60; Fair 0.45; Poor 0.20; Omitted 0). Mark out of 100 = sum of all items − automatic deductions, never below 0, rounded down to a whole mark. **100 is awarded only if every unit and every global row is Excellent (each with the quoted sentence that earns it and the source check) and no automatic deduction applies.**

Calibration (R-C). His real LAWS1061 Part A grades, re-read cell by cell from the .pdf pages (v5; the recount stands, was re-run for v6 and v8, and was confirmed by the round-7 critic and, from the rendered pages, by the round-8 critic; the arithmetic is recomputed for v10): Preliminary Exc; 1(a) 3 Exc, 2 VG, 1 Good; 1(b) 1 Exc, 5 VG; 1(c) 2 Exc, 1 Good; 1(d) 2 Exc, 1 VG; 2 (statutory authorities) 2 Exc, 3 VG, 1 Good: 11 Excellent, 11 Very Good, 3 Good, no Fair, no Poor (25 cells); the three global rows ungraded; Part A mark 82%. On these multipliers, with the printed Part weights (15/25/15/15/30, the preliminary row unweighted) and equal weight within each Part, his dot grades give 0.850 × 15 + 0.792 × 25 + 0.867 × 15 + 0.917 × 15 + 0.808 × 30 = 83.5% of the dot points (v3 printed 83.7; the recount is 83.5); with the global block (20 of 100) capped at the grade of the units it summarises (Very Good on his sheet), the whole-sheet mark is 0.835 × 80 + 20 × 0.75 = 81.8, and 81.4 if R2 is capped at Good (his two 'conclusive' units); both within one mark of 82. The disclosure the result depends on (CRIT_round4 m15, adopted): the dot points alone give 83.5, which is 1.5 off, and the within-one-mark result holds only on the assumption that every ungraded global row is graded Very Good, the grade of the units it summarises; if the five independent rows (R1, R3, R5, R7 and R9, 9.5 points) were Excellent, as his marker's Part B style comment might suggest, with R2 Good and the rest Very Good, the figure is 83.76 (v9 printed '83.7', a truncation beside the rounded 81.4: CRIT_round9 m6; R-U(6)). The assumption is a judgment call and is stated as the one on which the calibration rests. The multipliers and the cap are unchanged from v2 and the grid change (23 units) does not touch the calibration, which is run on his sheet's own weights. The multipliers are a disclosed judgment call; the global-row cap is what makes them reproduce his result.

Automatic deductions (applied after the grades; each instance counts)

One error, one deduction (R-U(6); CRIT_round9 m3 to m5). Each error is graded once: where the same fault appears under two Drops lines or two automatic deductions, only the heaviest applicable applies (eg 'ensure … promptly' attributed to Rocky is D4 and not also D2; Knox CJ's severance words as the joint judgment's own are D2 at I.A and not also a VG credit-wrong line; '[1980] AC 615' is VG with D11 at II.I3 and not also Poor). The global-row cap (R-C) is not a deduction and still applies, because it is what makes the global rows compound unit failures rather than offset them; D6's '−2 each, in addition to the Poor grade' is that deduction's own rule and is unchanged. **One error carried into a later unit is deducted once, at the unit where it is made** (R-V(1); CRIT_round10 m9): a later unit that applies the earlier finding is graded on its own question and drops only for a new error of its own (eg 'AMPL clearly gave none' at II.I3 is graded there, and 'AMPL has nothing to enforce' at II.I4, its consequence, is not deducted again; but a later unit that turns the carried finding into new advice that the strength does not support, such as II.I4's 'so do nothing' or 'so pay now' on an overstated date from II.G, makes a new error in the advice and is graded at that unit, R-U(4)).

- **D1. Textbook or Optional file** cited, quoted or relied on for any proposition, including as a page locator (R-Y(3)): −10 each, and the unit it supports is Poor. Lint (R-A): `grep -nE "Principles of Contract Law"` prints nothing, and any 'Paterson' or 'Robertson' hit is the casebook cited as a last resort under R-Z(3) in the R-A(4) form, at most twice.
- **D2. Misattributed or misquoted authority**: words attributed to the wrong case, judge, court or speaker (eg Lord Westbury's or Jessel MR's words as the Court's own; Knox CJ's severance principle as Taylor, Menzies and Owen JJ's own; Megaw J's 'the counter-offer kills the original offer' as Lord Denning MR's coinage; Lord Greene MR's words as said of the meetings example; *Placer* quoted as if from its extract; *Sundell* attributed to a named judge; the slide's 'we promise to fly you unless we choose not to' attributed to Barwick CJ; 'ensure … promptly' attributed to Rocky is graded under D4, a speaker misidentified, and not here: CRIT_round9 m3); words in quotation marks not in the source as quoted; an ellipsis that changes meaning (eg Asquith LJ cut to 'an agreement to forbear … is a good consideration'; Gibbs J spliced to 'further terms to be settled by one of the parties

… there would be no binding contract in such a case'; *Winn v Bull* without 'merely' quoted as the official text): −3 each, and the unit is Poor.

- **D3. Wrong status on a point that matters**: obiter as ratio (*Godecke* 646 to 647; Mahoney JA 176); dissent or minority as majority (Windeyer J and Barwick CJ in *Coulls*; McHugh JA in *Beaton*; Gibbs CJ at 581 stated as the Court's view against Mason J (591) and Wilson J (598); Murphy J in *Meehan*); first instance as appellate (*Banque Brussels*; *Todd v Nicol*; *Musumeci*); a judge's own route as the Court's (Heydon JA at 179, 181, 182; Kirby P on consideration in *Beaton*); slide-only as casebook (*Delaney*); Mason J's reasonable-efforts implication at 591 stated as a holding without its hedge: −1 each, and the unit is capped at Good. Skip-range status is never required and never deducted (R-F).
- **D4. A fact not in the problem stated as fact**, a derived fact not marked 'arguably' (eg 'Grace never protested'; 'Pierre did not know of the email'; 'Rocky read the clause'; 'AMPL drafted the Loan Agreement'; the Loan Agreement 'purports expressly' to be between AMPL and Grace; the clause 'states' or 'records' that Rocky guaranteed (the narrator describes its effect; its words are not narrated); the payments were made 'on the 8th'; the payments 'ended' or 'stopped' on 8 February 2025 (R-M proves payment in the period and no more: UPGRADES_r1 U16); the guarantee was agreed before the $10,000; the clause was written in after Pierre agreed; *Crossley v Maycock*'s facts), a speaker misidentified (the narrator's 'confirming the details', 'ensure … promptly' or 'personal guarantee provided by Rocky' attributed to a party), or words in quotation marks that are not the problem's words verbatim (dropped words without an ellipsis; altered words without square brackets; the setter's own brackets in 'when and how [Grace] intend[ed]' not preserved; '$1 million dollar' silently corrected): −2 each, and the unit is capped at Fair.
- **D5. Conclusion before analysis** at any level, including the answer's first line: −1 each (R3 capped at Fair after two). A first sentence that classifies a quoted fact into the category whose test is then run is the issue, not a conclusion; an L-tier sentence in which the quoted fact and the rule's operative words precede the result is not a conclusion first; a colon-joined sentence whose claim is a classification or a fact claim proved after the colon ('The words are arguably ambiguous: …'; '*Meehan* is distinguishable: …') is his form and is not conclusion-first; a unit's VERDICT before a colon ('Rocky lent nothing: …') is conclusion-first whatever follows it (§1; R-R(2); CRIT_round4 M8, adopted, narrowing CRIT_round3 m7). A first sentence that decides a contested element ('Bullet 1 is an offer'; 'Rocky is bound'; 'No route around the rule is open') before its analysis is D5.
- **D6. Confidently wrong conclusion on a strong point** (the advice would mislead the client): −2 each, in addition to the Poor grade. The list: Rocky can enforce the Loan Agreement against Grace; Rocky recovers under the 12 February email; the clause in the Loan Agreement binds Rocky by itself; Rocky is not bound to anyone because he never signed; the $10,000 is payable now; there is no intention because Rocky and Pierre are cousins (presumption applied); a course rule fixes the start of the 12 months (from the date of the instrument or from drawdown); 'ensure' or 'once Grace repays' held void for uncertainty.
- **D7. Word limit.** Body over 1,500 words including the count line: −5, R9 Omitted, and nothing after the 1,500th word is marked (this sheet's rule; the UNSW Law & Justice penalty is applied separately under the Procedure, which is not in the course files). Count missing, or not equal to the verifier's body count plus three (R-P: the line's own three words are counted by Word): −2 (R-R(6); CRIT_round4 M13, adopted: the verifier's own lint, 'Stated word count N does not match the count N−3', is the expected R-P consequence and is disclosed in the appendix, not a fault).
- **D8. Format.** Bullet or numbered points in the body; an extended quotation (any single quotation over 20 words, his longest in Part A being 19); quoted words over 20% of the body (R-G); a coversheet, an unnecessary title page, unnecessary headers or footers (page numbers excepted: R-R(8)), a bibliography: −1 each.
- **D9. Voice mechanics.** Em dash or en dash as punctuation, double quotation marks, contraction, first person: −0.5 each, to a maximum of −3. A dash or contraction reproduced inside a quotation counts (this is Yusuf's own rule, not his marker's, who would not deduct for quoting the problem verbatim: CRIT_round3 m16, disclosed) (the problem itself contains both: 'Bowral Project – wait and see'; 'the Loan – the $1.15m'; 'you can't enforce anything'; 'you won't see a cent'; 'if you don't leave off'): quote around it, or quote only the words on one side of it. An en dash in a footnote pin range (eg 629–30) is correct AGLC and is not a fault. A quotation that itself contains a quotation is never reproduced with the inner quotation: quote only the outer words that carry the point, or paraphrase; an inner quotation reproduced is −0.5 under this item.
- **D10. Italics.** A case name or statute title not italicised (text or footnote): −0.5 each, to a maximum of −2.
- **D11. Pao On** cited other than [1980] AC 614 with pins 629–30 or 632, or with a wrong judge named (any name other than Lord Scarman for the Board); or a *Pao On* pin other than 629–30 or 632 given for the *Lampleigh* or *Re Casey's Patents* passages: −1 each. '(Lord Scarman for the Board)' is not a fault (R-P). A pin to Hobart 106 or 1 Ch 115–16 inside an AGLC 'quoted in' form is the course extract's own and is not a fault (CRIT_fidelity_2 m10, adopted).
- **D12. Proxy terminology** beyond R7's cap: −0.5 each, to a maximum of −2.
- **D13. Official texts and Trident.** A fourth footnote resting on a proposition the course never states; a *Trident* CLR pin (none can be verified, the reading carrying no page markers: R-Y(1)); an official quotation not checked verbatim against the saved file: −1 each, and R8 capped at Good. (v12: v11's 'a second *Trident* footnote (R-N)' is withdrawn, R-N being superseded; a *Trident* quotation is checked against the course reading as any course case is.)

Part 8. The v11 core costs (R-X(3)); the v10 floors kept as a record

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What changed in v11. Until v10 this Part printed a floor table: each floor was the count of a real paragraph in his voice carrying exactly the unit's core (the paragraphs in `SHEET_v10_appendix_NOT_FOR_DRAFTERS.md`, 1,442 words with 52 heading words, 1,494 of 1,495, slack 1, verified with `verify.py` and `voice_stats_v2.py`), and that table was the proof that the Excellent standard was attainable in 1,495 words (R-L(2) and (4)). The v11 cores, adopted from UPGRADES_r1 and R-X, cost more than that table holds, so the floors no longer fit and are no longer the proof. Under R-X(3) the cores are the requirement and the floors are a feasibility record, not a quota: **the answer, not the appendix, is now the feasibility proof.** The answer reviser funds the v11 cores in R-X(3)'s order ((a) zero-cost rewrites; (b) cutting duplication, cross-references, restatements and credit text; (c) compressing units whose result is not in doubt: I.F1, P, I.F3, II.E, II.F1), never dropping a unit's core, and records anything still unfunded in the map as a residual risk graded by the unit's Drops. No appendix paragraph has been written or counted for v11; the costs below are the UPGRADES_r1 deltas (verify.py's rule: whitespace tokens containing a letter or digit) against the v10 counted forms, and the rulings' own deltas,

and they measure what the v11 core adds, not the length a drafter must write.

The v11 core cost of each unit, at the v10 counted forms.

Unit	Tier	v10 floor (record)	v11 additions to core (source: word delta)	v11 core cost	Pts
P	L	34	U31 ‘for paying AMPL’ +3; R-X(7) ‘Frustration,’ deleted −1	36	2.0
I.A	C	73	U7 ‘an invitation to treat’ for ‘a request that Rocky make an offer’ −3; U15 bullets’ deciding words +5; U27 ‘the letter’s indicative paragraph’ 0	75	3.0
I.B	L	21	U7 ‘so no counter-offer’ +3	24	2.0
I.C	L	48	U10 ‘in form’ +2	50	2.0
I.D	K	122	U4 ‘their status as ’project developers’ favouring intention’ +7; U3 ‘unless the conditions were settled ’this morning’’ −2; U26 ‘settling amount, term and rate’ +2	129	6.0
I.E	C	76	U1 and R-X(5) the honesty fetter put and met, ‘, which Rocky’s implied duty to judge ’satisfactory’ honestly cannot supply’ +10; ‘arguably’ for ‘likely’ 0	86	3.0
I.F1	L	30	U5 ‘though ’Rocky asked’, … and took his guarantee’ +7	37	2.5
I.F2	C	81	none	81	7.5
I.F3	L	20	U29 ‘its own loan’ for ‘its own money’ 0	20	1.0
II.A	L	33	none (‘an invitation to treat’ accepted at +2, not required)	33	2.5
II.B	C	62	U8 ‘[1948] Ch 93’ (footnote, 0 body words)	62	3.0
II.C1	L	26	none	26	1.5
II.C2	K	126	U3 ‘though a clause agreed first would favour AMPL’ −2; U7 ‘The existing legal duty rule’ +2; U20 ‘Rocky’s 27 February request’ +2; U6 (a Drop) 0	128	5.5
II.D	C	80	U28 ‘, AMPL having already advanced’ +4	84	5.0
II.E	L	35	none	35	2.5
II.F1	L	38	U29 ‘the guarantee clause named before it’ +1	39	1.0
II.F2	K	95	U3 further information with its direction, ‘, decisively so if he spoke for himself’ +7	102	4.0
II.G	C	76	U3 ‘unless the agreement’s words date the term from 8 April’ +4; U24 the lean’s reason 0 on the v10 form (about +6 where a draft lacks it)	80 (to 86)	5.0
II.H	C	89	R-X(4) ‘the duty to co-operate’ named +2; R-X(4) and (6) condition	91	4.5

			precedent named in the heading ‘H. Condition precedent’ 0 (about +5 if named in the text instead)		
II.I1	C	56	none	56	4.0
II.I2	C	80	U13 ‘of AMPL’s written offer’ +4; U3 direction, same count, 0	84	3.5
II.I3	C	73	U2 the fallback met, ‘, though Rocky priced his undertaking at’$10,000’’ +7; U32 ‘made at Rocky’s request’ +4; U7 ‘past consideration’ +2	86	4.0
II.I4	C	68	U29 ‘the claim lies against him and the exposure likely runs to him’ +5; U16 ‘the payment record ends’ +2 where the unhedged form was used	75	5.0
Headings		52	R-X(6) course forms at no extra words (‘H. Condition precedent’, three for three)	52	

Totals. v10 floors 1,442 + 52 = 1,494. v11 additions: UPGRADES_r1 net +76 (gross +83, less the tier-0 savings of U7 at I.A, −3, and U3 at I.D and II.C2, −2 and −2), R-X(4)‘s ‘the duty to co-operate’ +2, R-X(7)‘s deleted ‘Frustration,’ −1: net +77. **v11 core cost 1,519 + 52 = 1,571 words at the v10 counted forms, 76 over the 1,495 ceiling** (1,577 where a draft also needs U24’s reason clause at II.G, and about 1,576 if condition precedent is named in II.H’s text rather than its heading). The 76 words are found by the answer reviser under R-X(3), never by relaxing a core. UPGRADES_r1 section 2 ranks the paid items by marks at risk per word (rank 1, U16, 2.38 per word; rank 16, U7’s remainder, 0.04 to 0.06) for that reviser’s use. Adding clauses raises the mean sentence length (his ceiling 24.7), so the reviser funds by cutting words inside sentences and splitting long ones, and the R1 voice test is run on the answer itself (R-L(4) as R-X(3) now applies it).

v12 (R-Y; R-Z). Two core changes alter the counted cost, each a withdrawal, none an addition: P loses v11’s main clause ‘Breach, damages and guarantee law lie outside Weeks 1 to 4,’ (11 words) and its absolute ‘Grace having promised’ becomes ‘Grace promised’ (−1), so P’s v12 core form ‘Grace promised Rocky no reimbursement for paying AMPL’ plus the Development Agreement clause costs about 24 (−12 against 36); II.I4 loses ‘which only postpones liability’ (−4, R-Y(4)), about 71. Citation changes (*Trident* for the burden aspect and the routes; *Port Jackson* 240 or [11.70] for the agency criterion; no slide) are footnote words and cost no body words. The v12 core cost is therefore about 1,555 at the v10 counted forms (1,519 − 16 + 52), still about 60 over the 1,495 ceiling, found by the answer reviser under R-X(3) as before. The v11 table above is kept as the record it is.

What this means for the standard. The Excellent standard is the v11 cores, unchanged by length: (i) every unit’s core is graded whatever the unit’s length (§1); (ii) every credit item is optional; (iii) the decide-once rules are applied; (iv) the L units remain one or two sentences carrying the rule’s operative words; (v) the verdict sentences carry the strength, the reason and the trailing further-information clause with its direction. If the answer reviser shows that a core cannot be met within 1,495 words in his voice, the remedy is a disclosed demotion under the first-demotion list below, graded as printed, or a ruling; never a silent relaxation. **v4’s merge order is deleted** (R-R(5); CRIT_round4 M12, adopted): each of its four merges shrank an item its unit lists as core without saying whether the merged form still earned Excellent, which is the silent relaxation R-B forbids. The ledgers below record how the v10 floors were reached; they are history, kept because the first-demotion list and Part 9 refer to them.

The v10 floor table (record only; not a quota from v11). P 34; I.A 73; I.B 21; I.C 48; I.D 122; I.E 76; I.F1 30; I.F2 81; I.F3 20; II.A 33; II.B 62; II.C1 26; II.C2 126; II.D 80; II.E 35; II.F1 38; II.F2 95; II.G 76; II.H 89; II.I1 56; II.I2 80; II.I3 73; II.I4 68; headings 52 (the short forms ‘G. The 12 months’, ‘H. The condition’, ‘I. AMPL’s call’); 23 units, 1,442 words (3 K 343; 11 C 814; 9 L 285); total 1,494 of 1,495. The v10 appendix as counted: 52 quotations, 0 FAIL, 2 CHECK PIN (the *Pao On* 629–30 pins); voice statistics mean 24.0, under 12 words 10.0%, semicolons 1.04, colons 0.90, sentences with a mark 41.7%, quoted words 17.3%; the five contrary-branch substitutions inside his ranges. None of these figures is re-run for v11, no v11 appendix existing.

Merges made to fit (disclosed; R-L(1)). v2’s 34 graded units became v3’s 24 (I.A1, I.A2 and I.E2 into I.A; I.A3 into I.F2; I.C1 and I.C2 into I.C; I.D3 into I.D; I.F2, I.F3 and I.A3 into I.F2; I.F5 is I.F3; G to C tier; II.B1 and II.B2 into II.B; II.D1, II.D2 and v2’s II.H5 into II.D; II.H4 to C tier; II.H5, II.H6 and II.H7 into II.I4) and are now 23: v3’s II.G1 (the condition of AMPL’s obligation; nothing payable on 9 March 2025) and II.G2 (Rocky’s own payment) are one unit, II.H, because the first is one sentence that opens the second’s question and the merge saves the framing sentence; and v3’s Part 5 (G) is now II.G inside Part II (R-Q), with Part I carrying a one-clause cross-reference at I.F2.

Items moved from core to credit in v4 to fund the round-3 corrections (each named in its unit; R-L(3); they remain credit). P: the scope sentence (withdrawn as a conciseness fault, not credited); ‘minimal’. I.C: ‘a bargain rather than a conditional gift’ in terms; ‘with interest’ as the content of Grace’s promise. I.D: Rocky’s and Grace’s best cases as their own sentence (they are carried as the clauses of the verdict sentence). I.F1: the guarantee as the second inconsistency with Rocky being the lender. I.F2: the content of the joint-promisee argument (486’s ‘notwithstanding that she, personally, gave no consideration’); the general rule in two sentences. II.D: the ‘practice to ensure’ comparison. II.F2: the problem’s 27 February usage for consent; ‘a cousin’ at ‘you’. II.G: ‘no

commencement' in terms. II.I2: 'in his presence'; the ticket-case 'ought to have' with its confinement; AMPL's reliance (536) in terms. II.I3: 'Rocky asked' for the first condition; the two reasons why nothing shows a 27 February understanding. II.I4: 'AMPL having given no consideration' on the Pierre alternative in terms. The items moved to credit in v3 (its Part 8 list) remain credit.

The funding of the round-4 corrections (R-R(7); the frontier, disclosed). Costs, each a critic's addition applied as R-R rules: fidelity M1, 'arguably premised' at I.F2 (+1); round-4 M4, 'likely' at II.A, II.C1 and II.I1 (+3); M5, 'at the meeting he 'attended'' at II.I2 (+5); M7, '(D)' and 'which these arguably exceed' at I.E (+5); M9, II.H's decisive reason swapped (0, the new clause being one word shorter than the critic's form); m1, 'breach' at P (+1); M6 in part, 'the essentials, as in *Niesmann*' with its footnote at I.D (+3); fidelity Finding 6, 'the contract becoming' at II.H (+2); m7, 'a letter of comfort' at II.D (+1); the II.I3 marker split, 'the past advance, under *Pao On*,' (+1): total +22. Paid first by the zero- and negative-cost fixes: de-narration (R-R(1)) at I.F3 ('appears', −1), II.B ('Pierre 'agreed', communicating', −2) and II.C2 ('appears', −1); I.D S2 'so applies by analogy' (−2); I.E S2 'the discretion relating only to' (−1); II.C2 S5 'anyway' deleted (−1); II.F2 S2 'AMPL being 'owned and controlled' by Pierre supplies consent' (−1); II.G S2 in the classification-then-proof colon form (−1); II.H S2 'own' deleted (−1), S3 'his' for 'the other's' (−1) and 'preventing' for 'who prevents' (−1): −13. Then by two disclosed core-to-credit moves under R-L(3), each named at its unit and in Part 9 item 25: I.C's 'not the past advance' with its *Roscorla* footnote (−4), the one-line disposal of the Loan Agreement's consideration surviving with its authority and the past-consideration point about the 27 February advance being decided at II.I3, where it bites and where *Roscorla* 237 remains required (this is the partial form of the demotion R-R(7) conditions, and it meets the condition); and II.H's restatement of T13, 'Rocky could pay $1,150,000 and lose the $10,000' (−7 with the verdict rewritten as 'His payment therefore likely does not meet it'), the consequence being required once where it bites (Appendix A: II.H or II.I4) and the counted structure stating it at II.I4. Net: 1,494 + 22 − 13 − 4 − 7 = 1,492; slack 3 (the one word of v4 slack is kept inside the three). Not funded, each recorded with its residual risk: M6's full form (+13: Rocky's case stated in terms, 'a loan conditioned only in performance', with 'arguably'; Part 9 item 23); m2's '(D, E)' expansion (+8); m3's 'AMPL's promise of' (+2); m6's limb (b) clause (+6); m8's 'he being party to neither document' (+6); m10's 8 April clause (+6) and 'more likely' (+2); m11's '(B)' reason (+8). None of these lowers a core silently: each is credit, named at its unit, and the sheet grades a drafter who finds the words for it exactly as it grades the counted form.

The funding of the round-5 corrections in v6 (R-S(3) and (4); the frontier, disclosed). Costs, each a critic's addition applied as R-S decides: M5, 'Grace having promised Rocky no reimbursement' at P (+6; the critic's 'nothing' is +5, the one further word chosen so that P does not read against I.C's inference, Part 9 item 29); M7, 'its promise of' at I.C (+2) and 'AMPL's own promise suffices; if Pierre promised' at II.I3 (0, the two elliptical clauses rewritten inside the same count); M4, 'which the loan's own conditions arguably exceed' at I.E (+3); M2, 'the price outweighing cousinhood even if Pierre promised' at II.D (+6); M3, 'the bargain binding at once' (+5) and 'would not literally meet it' (0, five words for v5's five) at II.H; M6, 'its entry into the Loan Agreement remaining arguable' at II.I3 (+8): total +30. Paid by the moves R-S(4) names, each a disclosed core-to-credit move under R-L(3) or the removal of a restatement, never a silent cut: *Mobil* 500 at II.H to credit (S3 'Rocky would invoke the duty 'to do everything necessary' for his benefit', −10; S4 rewritten with 'nothing suggests' and 'so AMPL has omitted nothing necessary', −3: −13 at II.H, of which R-S(4)'s −11 is the *Mobil* demotion and the remaining −2 the fidelity critic's 'nothing suggests' form and the duty met in its own words); II.C2 S6's restatement of S3 and S4 removed (−6, 'his promise exceeding anything that bound him' keeping the reason in the verdict); II.G S3's restatement of S2's genesis removed (−5, 'on that genesis'); and the one further move R-S(4) requires to be named here: II.F2 S3's 'for a payment outside the loan' (−6), a fact the unit's Facts list has rated credit since v3 while the counted sentence carried it, so its removal makes the paragraph conform to R-L(2) rather than lowering a core, with S2 and S3 then joined by a semicolon at no cost because the removal left two under-12 sentences adjacent. Zero-cost rewrites: II.E split into two sentences, each with its own marker (0); 'appear first' for 'were fixed' at II.G (0). Net: 1,492 + 30 − 13 − 6 − 5 − 6 = 1,492 (checked by verify.py; I.E costs +3 rather than the critic's +4 and II.D +6 rather than +7, 'personally' being carried by the established 'if Pierre promised' form); slack 3, untouched. I.F3 was NOT absorbed into I.F2 (R-S(4) permitted it only if needed; it was not, and the absorbed form the critic drafted dropped 'agency fails', which I.F3's core names). Not funded in v6, each credit and disclosed at its unit: m9's 'in form' at I.A (+2); m12's 'as to that clause only' at II.I1 (+4); M6's fuller form meeting the fallback with the pricing point (+4 beyond the put form); the round-4 items still unfunded (M6's full *Niesmann* form, +13; m2's '(D, E)' expansion, +8; m6's limb (b), +6; m8's 'party to neither document', +6; m10's 'appropriate' clause, +6). Round-5 m4's 'arguably' at II.I2 (+1) was recorded in v6 and funded in v7 (below).

The round-6 minors in the counted model (v7; the ledger). Costs: fidelity 1, 'likely' at I.C S2 (+1); fidelity 2 and round-6 m6, 'arguably' at II.I2 S3 (+1). Funds: fidelity 3, 'preceded and' removed at II.D S2 (−2; the critic's '−1' recounted). Zero-cost rewrites: P's absolute clause moved after its main clause (m11); II.D S2's opening 'Against intention, the undertaking resembles a letter of comfort' (m5, nine words for nine); fn 48 moved to the *Pao On* words (m3); fn 39 swapped to *Ermogenous* [25] (m4; reversed in v8, below); fn 30 given the joint judges' names. Net: 1,492 + 2 − 2 = 1,492 (checked by verify.py); slack 3; floors I.C 48, II.D 80, II.I2 80. No core item was added, removed or demoted.

The round-7 corrections in the counted model (v8; the ledger; R-T and R-R(7)). Cost: CRIT_round7 M1, 'nor commercially, the $10,000 pricing Grace's repayment' at II.H S2 (+7; II.H 82 to 89), the pricing point moving from credit to core as AMPL's answer on construction; m7, 'consideration' at II.I3 S2 (+1; 72 to 73). Funds, in R-R(7)'s order: the slack, of whose three words two were spent and one remains (v8's changes ledger printed the row as 'The slack: −3: spent', which the Net line below contradicts; the arithmetic, +8 against the two −3 rewrites, consumes two: CRIT_round8 m4, corrected in v9); the zero-core-cost rewrites 'keeps Pierre arguable' for 'keeps Pierre arguable in the alternative' at II.F2 S4 (−3; 98 to 95; the alternative is still pleaded by the clause, as II.F2 Core (4) now records, and the Pierre contrary paragraph is trimmed by the same three words to its new floor) and '*Masters*, asking whether a document was 'only a record of terms'' for 'was a contract or 'only a record of terms'' at I.D S2 (−3; 125 to 122; the *Masters* question still framed by its quoted alternative, the form the counted I.D 'bound' branch has carried since v7 and two critics graded Excellent on; the bound branch is trimmed by two words, 'and' to a semicolon and 'only' before 'his obligation', to its new floor). Net: 1,492 + 7 + 1 − 3 − 3 = 1,494 (checked by verify.py); slack 1. Zero-cost rewrites: 'Rocky being bound likewise' at II.D S3 (m4); 'later conduct excluded on meaning' at II.G S1 (m5); fn 39 restored to *Upper Hunter* 437 and moved to the end of S2 (m15). The absorption of I.F3 into I.F2 that R-T(1) permitted, 'only if its core survives in the identity table', was tested and is NOT taken: the critic's trailing clause ('fails, no route around the rule assisting, AMPL enforcing its own money and no trust or estoppel appearing', −3) drops 'agency fails', I.F3's first-demotion item, so it fails that test; the clause that keeps it ('fails; AMPL enforcing its own money, agency failing and no trust or estoppel appearing, no route around the rule assists') nets −1, makes a 40-word three-

clause sentence, lifts the counted body's mean to 24.5 (59 sentences) and the II.C2-substituted body's mean to 24.9, outside his range (17.8 to 24.7) unless the contrary paragraph is re-split; the I.D rewrite funds the same words at no core cost and keeps the mean at 24.0 (Part 9 item 38). Not funded, each credit and disclosed at its unit: 'In *Godecke*,' at I.E (m2, +2; Part 9 item 39); 'as the third class contemplates' at I.D (m1, +2; item 36); the v6 and v7 lists above.

First demotion per unit, with its grade (R-R(5); CRIT_round5 m11, adopted; kept in v11 subject to R-X(3)). A draft that runs over cuts credit first (a floor-only draft has none), then funds by R-X(3)'s order; the v11 additions listed in the table above, being ADOPT AS CORE items, grading fixes or ruling requirements, are funded first and are never a unit's first demotion. If it must then cut a core item, the first item to cut at each unit is the one below, the unit then being graded as printed; every other core item at the unit stays; no other demotion is sanctioned without this Part being amended. P: the Development Agreement clause (core (2)), VG (R4 caps at VG for a non-issue unnamed; the Development Agreement, C4, is a stipulated non-issue in Appendix B, not a claim whose omission R4 grades Good: CRIT_round7 m11, reconciled). I.A: the bullets 2 and 3 clause (core (1), second limb), VG. I.B: 'adding nothing' (counter-offer not excluded), VG. I.C: the second sentence's price ('its promise of '12 months' at '4% per annum''), VG (the Loan Agreement's consideration then undisposed, so R-R(7)'s condition is not met and the sheet records the unit as VG, never Excellent). I.D: the analogy disclosure at S2 (CRIT_round9 m7: the counted S2 names no fourth class) ('assumed a formal contract, absent here, so applies by analogy'), VG (core (2) thin). I.E: Gibbs J's dictum (S3), VG, and Poor if the 'Perhaps' is then stated without its hedge elsewhere. I.F1: none (a one-sentence core; from v11 the U5 clause, 'though 'Rocky asked' … and took his guarantee', is an ADOPT AS CORE item that R-X(3) funds first, so it is never the first demotion; cut, it is VG; any other cut is Good as a bare 'AMPL lent, not Rocky'). I.F2: the joint-promisee clause (core (4)), VG. I.F3: 'agency fails' (carried by I.F1 and read across), VG (one route missing); all three routes are I.F3's core, R-S(4)'s parenthetical ('no trust or estoppel appears') naming one of them and not the only one, so a cut of 'no trust or estoppel appears' is likewise VG and is not the first demotion (CRIT_round7 Lens 3, the wording slip, reconciled). II.A: Rocky's bilateral classification's reason ('seeking a return promise'), VG. II.B: 'nothing reserved a document or withdrawal' (core (2), second limb), VG. II.C1: the Pierre sentence (S2), VG. II.C2: the 'more than' limb (''all payments … promptly' exceeds 'repayment of the Loan''), VG. II.D: the *Banque Brussels* direction clause ('a mark of seriousness weaker here'), VG. II.E: the second sentence (AMPL's promise not illusory), VG. II.F1: the written-term reading ('and even a written $10,000 term leaves him the oral promise'), Good (one reading only, as the Drops say). II.F2: the consent clause (core (2), S2's first clause, 'AMPL being 'owned and controlled' by Pierre supplies consent'), VG (CRIT_round9 m7: consent has been a clause of S2 since v6). II.G: the further-information tail ('the agreement's words would decide it'), VG. II.H: the duty to co-operate put and met (S3 and S4), VG. II.I1: 'signature being neither necessary nor decisive' (T10), VG (R10 then VG as well). II.I2: 'the personal guarantee provided by Rocky' tested, VG. II.I3: the fallback clause, VG. II.I4: the March instalment clause (core (3)), VG. A drafter who cuts a different item is graded by the unit's Drops, not by this list.

Items funded into core in v4 (the round-3 corrections; carried). I.A: the direction of *Gibson* 298 and the qualifier carried to D and E in terms. I.C: AMPL's price. I.E: Gibbs J's 646 to 647 dictum with both hedges. I.F2: the II.G cross-reference. II.B: Lord Greene MR's analogy disclosed in the text. II.C1: the grammar of what moves from Rocky. II.D: the counter reshaped. II.F1: the reason for 'most naturally'. II.F2: AMPL's call in the problem's words, 'arguably' the undertaking. II.G: 'arguably'. II.H: *Mobil*'s status in the text. II.I1: 'neither necessary nor decisive'. II.I2: the benefit named; the criterion in McHugh JA's own words. II.I4: 'both' with its nouns.

Part 9. Judgment calls in this sheet (disclosed)

1. **Weights** carry v2's (ISSUES_SETTLED S-28 re-balanced per CRIT_harsh F16), each merged unit taking the sum of the units it absorbs; the 80/20 split and the global-row weights are mine; the 12 months' 5.0 now sits inside Part II (R-Q), so Part II is 51 and Part I 27.
2. **Multipliers** (1.00, 0.75, 0.60, 0.45, 0.20, 0) and the global-row cap are mine; calibrated to his real result in Part 7 (recounted cell by cell in v5, confirmed from the rendered pages by CRIT_round8 Lens 4, the arithmetic recomputed for v9 and v10: 83.5% of the dot points; 81.8 and 81.4 whole-sheet).
3. **Strength caps** follow R-E: strong, contrary Poor; moderate to strong, contrary Very Good; moderate or weaker or open, either conclusion Excellent if best-reasoned; misstated strength Very Good, or Good where it changes the advice, symmetric both ways; no lean and no method at any open unit, Good (§2).
4. **The condition (II.H)** is moderate to strong against Rocky under R-O (restoring S-16), v2's 'moderate' being withdrawn: the fact of the events as described, that AMPL's call does not itself prevent Grace from repaying, is a fact, not guarantee law, and answers Rocky's co-operation and prevention arguments; since v5 it is the unit's decisive reason in the counted paragraph and in core (4), now written in his 'nothing suggests' form and meeting the duty in its own words ('omitted nothing necessary'), *Mobil*'s prevention analogy being credit from v6 (R-S(4)); the pricing point ('no reward for the failure he undertook to prevent') being, from v8, core (2)'s answer to the commercial reading of Rocky's words (CRIT_round7 M1; R-T(1)), while remaining no answer to the co-operation argument in its call form (that AMPL's call stops Grace repaying), which core (4) meets on its own terms (CRIT_round4 M9; R-O); the stronger form of that argument (that AMPL, by accepting Rocky's payment, would end any possibility that 'Grace repays the Loan') is met in substance by the same pricing point, because a duty 'to do everything necessary on their part to enable the plaintiff to have the benefit of the contract' (CB2A 109, 185) enables the benefit S2's construction defines, a reward priced on Grace's repayment, and does not require AMPL to forgo payment under the undertaking to preserve it; the discharge question (what Rocky's payment does to Grace's debt) is guarantee law, not argued, never relied on and, from v12, never flagged as outside any scope (R-Z(1), (4); CRIT_round8 m6, recorded at II.H Core (4) at no cost); Lindley LJ's 'It is for the defendants to shew what it does mean' remains no rule of onus (CB1A 44 to 45, read in full context). The duty to co-operate is cited as Mason J's principle applied by McHugh JA (CB2A 109, 185), with no status word in the text (R-F), because McHugh JA's minority on the result does not change the weight a court gives Mason J's principle.
5. **The 12 February intention (I.D)** is moderate on the course materials; the sheet allows either conclusion to reach Excellent and never requires the official-only passage (R-L(5)). *Crossley*'s facts are a gap and are never characterised (Z9). v3's cap on an answer that deployed *Crossley* and concluded 'bound' is withdrawn (R-L(3)).
6. **II.D's AMPL alternative** is moderate to strong, not ISSUES_SETTLED's strong (S-33; header C6): the reason is stated at the unit from the source page as R-R(9) requires (CRIT_round4 m12): *Ermogenous* [25] and [26] make the point an objective

weighing of ‘the status of the parties to it, their relationship to one another, and other surrounding circumstances’ with the onus on the party alleging the contract, the casebook’s own note at [5.90] keeps relationship and context as ‘important considerations’, and *Banque Brussels* 523 is a first-instance judgment about a commercial letter between companies; no High Court authority in the materials decides a family-and-company weighing on these facts, so a contrary conclusion that applies [25] and [26] is a reasoned application of the governing authority, not law wrong, and is capped at Very Good (CRIT_complete_bias_2 B-4); a contrary conclusion resting on a family presumption remains Poor and D6.

7. **Citation of editors’ notes, official texts and *Trident* (v12: R-Y and R-Z; R-J, R-N, R-A(3) and R-P’s slide limb superseded).** *Trident* is a Class 4A reading (R-Y(1)), so it is cited and quoted as a course case, one source per marker, with no cap of one footnote and no footnote counted as official-only toward R-H’s cap of three; the reading carries no CLR page markers, so it is cited by report with the judge named and no pin, and the verifier’s ‘report citation with no pinpoint’ lint is an accepted, disclosed consequence, of which a marker is told here. The burden aspect of privity is cited to Deane J (R-Y(2)), whose opening sentence states ‘the general rule that only the parties to a contract are bound by, and entitled to enforce, its terms’ (verified in the corpus’s Deane J segment). The routes around privity are cited to the *Trident* judge who states them, verified in the reading: Brennan J (‘It was not suggested that agency, trust or estoppel availed McNiece’; trust and agency each a ‘so-called exception’) or Mason CJ and Wilson J (trust and agency: ‘in the absence of a trust, an agency relationship or an enforceable agreement between the promisee and the third party’). The agency criterion is cited to a case first (R-Z(3)): *Port Jackson* 240 (Barwick CJ, Lord Reid’s requisites (2) and (3), OFF Port Jackson [18] ‘(at p240)’), with *Trident* (Brennan J or Deane J) for the bare route and *The New York Star* for authority only; the casebook [11.70] remains accepted, at most twice, as the last resort for a sentence in the editors’ own ‘purporting … not solely’ form, which no case states in those words, and a reviser who can write the criterion in Lord Reid’s form uses *Port Jackson* instead. No slide is cited anywhere (R-Z(2)). Residual risk, disclosed (CRIT_round7 m6, carried): a real marker may record a report citation with no pinpoint as a minor non-compliance at R8; the slide form that once removed that risk is barred, so the risk stands, and the sheet grades the no-pin form as no fault. History: v4 to v11 allowed one *Trident* footnote (R-N), spent at II.I1, with ‘Class 4A Slides, slide 2’ as the accepted alternative; both rules are withdrawn.
8. **Slide citation form (withdrawn in v12: R-Z(2)).** From v12 no slide is cited in the answer in any form, and R-A(3) and R-P’s slide limb are withdrawn, so the deck-and-slide form v4 to v11 prescribed (‘Class 4A Slides, slide 16’), its treatment as the disclosure under R-F, and the rejection of CRIT_round3 M6’s AGLC r 7.3 lecture form are all moot. A slide citation of any form is an R1 and R8 fault under R-Z(5) (VG for one instance, Good for two or more). The slides remain this sheet’s locators for the marker (the 4A deck’s header, ‘Term 3 2024 – JURD7150 | LAWS1150’ against the file’s 2026, stays logged here); the reading guide names Professor Amelia Thorpe for the 4A lecture only.
9. **Extended quotation threshold** (20 words) and the 20% aggregate are R-G.
10. **Word-limit rule** (nothing after the 1,500th word is marked) is this sheet’s rule. The ‘Word count: N’ line states Word’s figure for all text excluding footnotes, which includes the line’s own three words (R-P).
11. **The casebook’s author order (reversed in v11: R-X(1); UPGRADES_r1 U14).** S1A PDF page 7 (printed slide 8), the course’s own full citation, prints ‘Andrew Robertson and Jeannie Paterson, Contract: Cases and Materials (Lawbook Co, 15th ed, 2025) (known as the Contracts Casebook)’; the publisher’s listings (OUTSIDE, fetched by UPGRADES_r1) print ‘By Andrew Robertson, Jeannie Paterson’; reading guide 1A gives surnames only, in an informal definition (‘Contracts Casebook means Paterson and Robertson, …’). AGLC takes authors as the book presents them, and the reading guide’s surname order yields to the full citation. The sheet therefore prints ‘Andrew Robertson and Jeannie Paterson, *Contract: Cases and Materials* (Lawbook Co, 15th ed, 2025) [11.70]’, then ‘Robertson and Paterson (n X) [11.70]’. The title page is not in the folder, so the order remains a disclosed judgment call. v1 to v10 followed the reading guide (CRIT_fidelity_2 m9); that choice is withdrawn. The textbook lint (`grep -nE "Principles of Contract Law"`) is unaffected.
12. **‘Ipp AJA’** per R-K; ‘Ipp JA’, the casebook’s own heading, is accepted and not deducted (CRIT_harsh_2 F17), because the marker reads against the casebook. **‘Rogers CJ’** as the casebook prints him; ‘Comm D’ is outside knowledge and is not used (CRIT_fidelity_3 m3).
13. **The grid merges (Part 8)** are the remedy R-B and R-L prescribe; they are disclosed there with every item moved from core to credit. The two condition units were merged in v4, when the 12 months moved into Part II (R-Q).
14. **D5 on the first line** is this sheet’s rule, stricter than his LAWS1061 marker, who graded his conclusive one-line preliminary Excellent (CRIT_harsh_2 F21); the standard may only rise. **The colon carve-out** (§1, D5) is confined since v5 to a classification or fact claim proved after the colon (R-R(2); CRIT_round4 M8): v4 had licensed a unit’s verdict before a colon on the strength of VOICE.md 1.3, overlooking VOICE.md section 4 item 10, which lists exactly that shape as a feature not to copy; I.F1’s counted sentence is rewritten in the L order at no cost. **D9 on dashes and contractions inside quotations** is Yusuf’s rule, not his marker’s (CRIT_round3 m16).
15. **Nested quotations.** The sheet does not state AGLC’s own nesting rule (not in the course files); it requires that no quotation containing a quotation be reproduced, because single-within-single is wrong and double marks are banned in the body.
16. **The appendix’s conclusions** on open points (not bound on 12 February; illusory; 27 February; AMPL the promisor; consideration given; Rocky assented; the condition not met by his own payment) were chosen only to make the counting real; the sheet grades the opposite conclusions as Excellent where best-reasoned, with the conditional cores stated at each unit.
17. **II.F1’s ‘either reading Excellent’** departs from R-E as applied to S-10 (‘Reading A, moderate to strong’): the departure is deliberate, because the ambiguity in ‘the clause’ is textual and the legal result for Rocky is unchanged on both readings, so the sheet rewards running both rather than picking one (CRIT_round3 m14, disclosed).
18. ***Sundell* 327.** One rule (CRIT_fidelity_3 M8; CRIT_round3 m3): the court’s words exist in the course only in the editors’ note, so quoted words take the ‘quoted in’ form and spend a casebook footnote; a paraphrase without quotation marks is cited by report alone. The counted paragraph paraphrases, and from v12 the paraphrase by report is the preferred form, a case then carrying the proposition and the casebook being a last resort (R-Z(3)). This is a judgment call: the casebook prints the report pin ‘(at 327)’, so a report citation for a paraphrase is precise and is not a claim to have read the original.
19. ***Pao On*’s judge.** Either the Board (no name) or ‘(Lord Scarman for the Board)’ (R-P); the brief’s Part 3 sentence (‘no judge is named in the footnote’) was a rule of the run, which R-P now relaxes; the course extract itself names him.
20. **The swap at I.E.** Gibbs J’s *Godecke* 646 to 647 dictum (obiter; ‘Perhaps’ for subsidiary matters) is core and the content of the joint-promisee argument at I.F2 is credit, on the critic’s own ranking (CRIT_round3 Part 3.4): I.F2’s result is strong on ‘entered

into' whichever way the joint-promisee point is put, whereas I.E's result turns on the very passage that addresses terms reserved to one party.

21. **The II.H merge and the I.D fold.** The two condition questions are one unit; Rocky's and Grace's best cases at I.D are carried as the clauses of the verdict sentence. Both are disclosed count-driven choices under R-L(1) and (2); neither drops a core item from the paragraph.
22. **'II.G' and 'G'; course-vocabulary headings (R-X(6)).** From v11 headings G, H and I may take a course-vocabulary form at no extra words ('H. Condition precedent'); a longer course form is accepted but its words come from the answer's allocation (§5). Inside the answer the cross-reference is '(G)' or 'the 12 months (G)' because the heading is in the same Part (R-Q); in this sheet the unit is 'II.G'. The heading 'I. AMPL's call' sits under 'II. ROCKY v AMPL (ALTERNATIVELY PIERRE)' as that Part's ninth lettered heading, and a reader scanning headings may misread 'I.' as a Part numeral; R-Q binds and the lettering is continuous, so the risk is noted here and not changed (CRIT_round4 m20); a drafter may write 'I. AMPL's call of 9 March 2025' (+4) to make the letter read as a letter.
23. **I.D's opposing argument (CRIT_round4 M6, adopted in part).** The critic was right that a K unit's counter must be 'put at full strength with its authority, and met' and that v4's 'despite 'Confirmed' settling the rest' was a bare concession. Rocky's best case on the course materials is *Niesmann* as the Court reports it at *Masters* 361 (all essential terms agreed; the one further stipulation 'a condition of the obligation to pay', not 'of agreement'). The count funds the authority and the shape of the argument ('despite 'Confirmed' settling the essentials, as in *Niesmann*', +3, footnoted *Masters* 361), met by 'satisfactory conditions' reserving the loan's own terms to Rocky, which is *Winn v Bull*'s 'new agreement the terms of which are not expressed in detail' and not *Niesmann*'s mere condition of performance. The critic's fuller form (+13: 'although 'Confirmed' arguably accepted a loan conditioned only in performance, as in *Niesmann*, 'satisfactory conditions' named no object and reserved the loan's own terms to Rocky') could not be funded without demoting I.C's whole second sentence, which R-R(7) forbids unless the Loan Agreement's consideration is still disposed of in one line with its authority. Residual risk, disclosed as R-R(7) requires: a lecturer who wants the analogy in terms may grade I.D Very Good on the counted form; a drafter who finds the words uses *Niesmann* 361 in the fuller form, which is credit and never deducted. The I.D 'bound' branch counted in the appendix (section 7) carries the fuller analogy with 'arguably' inside the floor (122 from v8), because its verdict sentence is shorter; the counted 'not bound' branch cannot (item 36 records the second and third residual risks at this unit). **v11:** the counted 'settling the essentials' becomes 'settling amount, term and rate' (UPGRADES_r1 U26, +2), because 'all essential terms' is the premise of Gibbs J's 'Perhaps' exception that I.E resists (trap T19); the analogy attaches to what 'Confirmed' settled, *Niesmann* having found a binding agreement.
24. **The II.H verdict and T13.** The counted II.H verdict is 'His payment therefore likely does not meet it', naming what it decides; T13 (Rocky could pay $1,150,000 and lose the $10,000) is required once where it bites (Appendix A: II.H or II.I4) and the counted structure states it at II.I4, so its restatement at II.H is credit since v5 (a disclosed R-L(3) move; Part 8). A drafter who states it at II.H and not at II.I4 is graded the same.
25. **The two core-to-credit moves of v5** (R-L(3); R-R(7)): I.C's 'not the past advance' with *Roscorla* 237 (the one-line disposal of the Loan Agreement's consideration survives with its authority, the price criterion; the past-consideration point is decided at II.I3 where it bites, with *Roscorla* required there; this is the partial form of the demotion R-R(7) conditions, and the condition is met); and II.H's restatement of T13 (item 24). Both are named at their units and in Part 8; neither lowers a core silently. The ranking that chose them: I.C's tail carries at most 0.5 of 2.0 and re-makes a point another unit decides; II.H's tail duplicates II.I4's clause; every other candidate was a core item a critic had asked to be strengthened.
26. **The R-P lint line.** verify.py prints 'Stated word count 1497 does not match the count 1494' for the counted model because R-P makes the stated count Word's figure, the body plus the line's own three words; the lint is the expected consequence and is disclosed in the appendix section 3 and under D7 (R-R(6)); it overrides the brief's Part 9 gate 2 ('equals that figure') to that extent, and verify.py's lint is unchanged.
27. **'Narrator' in this sheet.** The sheet keeps 'narrator', 'narrated' and 'narrative' as its own analytic labels in §3 and the descriptors, because R-D and R-M are framed in them; they never appear in a core requirement's prescribed wording, in the counted model or in the answer (R-R(1); R7).
28. **What counts as a material finding from round 6 (R-S(5)).** The appendix is a feasibility proof, not the answer (R-L(2)). A finding against this sheet is MATERIAL only if it shows (a) an error of law, source, pin, attribution or status in the sheet; (b) a core requirement a UNSW marker would not demand, or a demand the marker would make that no core carries; (c) a grading rule that contradicts the brief, the Instructions, ISSUES_SETTLED or R-A to R-Z (the rulings now run to R-Z: CRIT_round10 m11; v12); or (d) that a unit's core cannot be met within its floor in his voice. An improvement to the appendix's prose that shows none of (a) to (d) is MINOR and is adopted at the reviser's discretion. Later markers and critics apply this definition before labelling a finding.
29. **P's clause for claim C3 (v12: R-Z(1) and (5)).** v11's form, 'Breach, damages and guarantee law lie outside Weeks 1 to 4, Grace having promised Rocky no reimbursement for paying AMPL', is withdrawn because its main clause names matters as 'outside Weeks 1 to 4', meta language R-Z(1) bars and R-Z(5) grades at R1 and R8. The v12 accepted form is a substantive clause, 'Grace promised Rocky no reimbursement for paying AMPL' (eight words), or the absolute 'Grace having promised Rocky no reimbursement for paying AMPL' trailing a substantive main clause; 'for paying AMPL' stays (UPGRADES_r1 U31, so that a cold reader can name the claim), and 'no reimbursement' stays in preference to CRIT_round5 M5's 'nothing', because 'nothing' sits one Part above I.C's inference that 'Confirmed' arguably implied Grace's promise to repay and a marker could read the two as inconsistent; either is Excellent. History: v6 to v10 printed 'Frustration, breach, damages and guarantee law lie outside Weeks 1 to 4, Grace having promised Rocky no reimbursement' (+6 in v6; the clause moved after the main clause in v7 at no cost: CRIT_round6 m11); v11 deleted 'Frustration,' (R-X(7)) and added 'for paying AMPL'. The answer may omit a preliminary paragraph (R-Z(1)); C3 and the Development Agreement are then graded at P wherever the answer disposes of them.
30. **The AGLC form for a source quoting or citing another (CRIT_round5 m6; R-S(6); CRIT_round9 M4; R-U(5)).** The AGLC text is not in the course files; it was read for this point only, in the MULR AGLC4 PDF (law.unimelb.edu.au, fetched on 11 October 2026 by CRIT_round9 and again, as a text extract, by the round-10 reviser), and it is never cited in the answer. Rule 1.3, 'Sources Referring to Other Sources', has no sub-rules (v6 to v9 printed a sub-rule number that does not exist; corrected throughout in v10); it lists 'quoting', 'citing' and like phrases, which 'should be preceded by a comma', and its example, '*Burger*

King Corporation v Hungry Jack's Pty Ltd (2001) 69 NSWLR 558, 570 (Sheller, Beazley and Stein JJA), quoting …', places ', quoting' after the pinpoint and the judge's bracket. The sheet adopts that form, followed by the quoted source's citation as the casebook page prints it (*Eccles v Bryant* [1948] Ch 93, 104 from v11, the report as the Court in *Masters* prints it at CB3A 156 and the official *Masters* text prints it, CB1B 77's '[1948] 1 Ch 93' being Heydon JA's own slip, logged and not followed: R-X(2); UPGRADES_r1 U8; CB1B 78 for *Integrated Computer Services* (1988) 5 BPR 11,110, 11,117–18; CB2A 107 for *Thomas v Thomas* (1842) 2 QB 851, 859; 114 ER 330, 333–4; CB2A 109 for *Secured Income* (1979) 144 CLR 596, 607; CB3B 161 for *G Scammell & Nephew Ltd v Ouston* [1941] AC 251, no pin printed at 437; CB3A 156 for *Winn v Bull* (1877) 7 Ch D 29, 32, from v10 at fn 8), the judge of the quoted source in brackets. v5's form (the quoting clause inside the judge bracket; the quoted source uncited) is withdrawn. v9's hedge, that a marker who checks the AGLC and finds a different placement grades the form as one minor non-compliance, is withdrawn, the placement being verified. Rule 1.4.3, read at the same time, says that 'ibid' 'should not be used where there are multiple sources in the preceding footnote', so the footnote after a ', quoting' or ', citing' footnote takes the '*Short title* (n X) pin' form (fn 9, '*Masters* (n 7) 361', from v10; every other footnote after a two-source footnote in the counted model, fn 20, 22, 25, 33 and 41, already does).

31. **II.H's literal reading.** The counted S2, 'Rocky's payment, 'once Grace repays the Loan' naming Grace, would not literally meet it', states the literal reading of Rocky's own words before the counter and leaves the verdict to S5 after it (R-S(2); CRIT_round5 M3). 'Literally' is the one-word form of the sheet's own 'on their face' (core (2)); 'on its face' (+1) is equally acceptable. A drafter who writes the unhedged 'would not meet it' or 'objectively would not meet it' at that point states the verdict before the counter (VG; D5).
32. **Weights (CRIT_round5 m13, noted).** I.F2 carries 7.5 points on an 81-word C unit and II.C2 5.5 on a 126-word K unit. The asymmetry is deliberate: the weights follow ISSUES_SETTLED S-28's ranking by marks at stake and are disclosed in Part 2, and R5 says privity against Grace is complete but brisk because authority decides it; the words a unit needs measure its difficulty, not its weight. No change.
33. ***Empirnall* at II.I2 (CRIT_round5 m14, noted as a residual risk).** McHugh JA's criterion at 535 to 536 concerns an offeree who takes the benefit of goods or services offered on terms; the model's benefit is a conditional promise of $10,000 that was the consideration for Rocky's own offer. The sheet applies the criterion as the course's nearest authority (settled in rounds 3 and 4) and keeps Rocky's counter (Kirby P at 170, by analogy) and the ticket-case line (confined to carriage and bailment) in credit. A lecturer may regard the analogy as strained; a drafter who says so in a clause and still applies the criterion loses nothing.
34. ***Upper Hunter* 437 and *Ermogenous* [25] at II.H (CRIT_round5 m5; CRIT_round6 m4; CRIT_round7 M1 and m15, adopted; R-T(1)).** The pin was corrected to 437 in v6. Read in context, Barwick CJ's 'no narrow or pedantic approach' leans toward a commercial reading of Rocky's words; v7 answered that by swapping fn 39 to *Ermogenous* [25], which hid the passage from the marker without answering it (CRIT_round7 M1). From v8 the counted S2 puts the commercial reading and meets it with the pricing point, so fn 39 is *Upper Hunter* 437 again, placed at the end of the sentence, the marker who checks it finding the passage the clause answers; *Ermogenous* [25] remains the accepted alternative; neither is deducted. The preference is stated: 437 where the sentence engages the commercial reading, as the counted model does; [25] is a neutral statement of the objective test and is equally correct.
35. **The moves of v6 (R-S(4)).** *Mobil* 500 at II.H to credit; the restatements at II.C2 S6 and II.G S3 removed; II.F2's credit fact removed from the counted sentence; each named at its unit and in Part 8 with its words. I.F3 is not absorbed. No core item was lowered silently; the per-unit first-demotion list (Part 8) prints the grade that follows any further cut.
36. ***Ermogenous* [25]'s relationship factors at I.D, and the *Masters* categories (CRIT_round6 m12; CRIT_round7 m1; CRIT_round8 m9; residual risks recorded beside item 23, not changes).** The second risk (CRIT_round7 m1): the counted I.D paragraph never names a *Masters* category, reasoning through *Winn v Bull* at 363 instead, and a marker applying the reading guide's 'different categories of preliminary agreement' may ask which class the email falls in; 'as the third class contemplates' (+2) is credit a drafter writes where words allow, the slack of 1 not funding it, and the sheet does not require it because 363, not the classes, is the decisive authority for a qualifier that mentions no formal contract. The first risk (CRIT_round6 m12): [25] lists 'the status of the parties to it, their relationship to one another, and other surrounding circumstances' (CB3A 137), and II.D weighs them ('cousins'; 'at AMPL's office'); at I.D the counted paragraph weighs only the email's words, 'project developers' and 'since 2017' sitting in credit. A marker applying [25] may expect one clause ('between project developers', +3), which the slack of 3 could fund only by spending every word of it; the sheet does not spend it, because item 23's *Niesmann* form (+13) is the larger residual risk at the same unit and the two cannot both be funded. Residual risk, disclosed as R-R(7) requires: a lecturer who wants the [25] factors weighed at I.D in terms may grade I.D Very Good on the counted form; a drafter who finds the three words writes them, and loses nothing. The third risk (CRIT_round8 m9): S2's 'assumed a formal contract, absent here' can be misread as 'assumed that there was a formal contract'; 'assumed a contemplated formal contract' (+1), the Court's own 'contemplated formal document' (CB3A 155, 360), removes the misreading and is equally acceptable; it is recorded rather than funded, the last word of slack being kept unspent so that the model and its counts are those both round-8 critics verified (v9 called that model frozen; the claim is withdrawn: item 42).** v11:** the first risk is funded into core (UPGRADES_r1 U4: ', their status as 'project developers' favouring intention', +7, I.D Core (1)); the second and third risks stand as recorded.
37. **v7's judgment calls (round 7).** (a) Fidelity 3 was optional and is taken: 'preceded' is not in the extract and its removal funds the two one-word markers, so the slack stays at 3 rather than 1. (b) II.D's letter-of-comfort point is put without a party ('Against intention, …'), the critic's form, because an argument that the undertaking does not bind is not AMPL's to run while it calls on the undertaking; attributing it to AMPL is still accepted where the one-bargain clause follows. (c) The fallback clause at II.I3 is left unfootnoted rather than footnoted to *Australian Woollen Mills* 456 to 457, because it states an arguable fact and the sheet's meeting of it (the bargain requirement) is credit; the alternative is graded the same. (d) II.G's 'for 1 year' item moves from Poor to Fair because the ladder in Part 8 of the brief puts a misapplied criterion at Fair and law wrong at Poor, and S-14 says knowledge is 'an inference either way'; the D4 assertions stay Poor. (e) The unmarked form at II.I2 ('included at the meeting he 'attended'') remains eligible for Excellent, because the identity table graded it so in v6 and the standard may only rise, not shift sideways against a drafter who follows v6's counted form; the marked form is the counted one. (f) fn 30 is given the joint judges' names, a consistency fix the critics did not raise, because R8 requires every form consistent throughout and fn 6 names

them.

38. **v8's judgment calls (round 8).** (a) The funding of M1 (+7) and m7 (+1): R-T(1) named the slack, II.F2's 'in the alternative' and the absorption of I.F3 into I.F2 'only if its core survives in the identity table'. The critic's absorbed clause drops 'agency fails' (I.F3's first-demotion item), so it fails that test; the clause that keeps it nets only −1, makes a 40-word sentence of three semicolon-joined clauses, lifts the counted mean to 24.5 and the II.C2-substituted mean to 24.9, outside his Parts' range (the figures are in Part 8 and the appendix). R-R(7) pays zero- and negative-cost fixes first, so the reviser took instead the zero-core-cost rewrite of I.D S2 ('asking whether a document was 'only a record of terms''), which two critics had already graded Excellent in the I.D 'bound' branch, and left I.F3 as its own one-line unit. A critic who reads the I.D rewrite as thinning core (2) should say so; the identity row shows the *Masters* question framed by its quoted alternative, and the fuller form (+3) is recorded at the unit as equally acceptable. (b) II.D S3's 'Rocky being bound likewise' (m4) is taken at zero cost in his absolute construction rather than the critic's +2 forms, which are equally acceptable; a marker who reads the absolute as dangling may prefer the +2 form, which a drafter writes where words allow. (c) II.G S1's 'excluded on meaning' (m5) is taken at zero cost in the grid line's own words; 'never admissible on meaning' (+1) is equally acceptable. (d) m2 ('In *Godecke*,' at I.E) is credit, not core, because fn 12 names the case and AGLC requires no more; it is recorded as a clarity risk (item 39) and not funded. (e) m14 moves II.I3's 'understanding formed on 8 April' from Poor to Fair on the ladder item 37(d) adopted at II.G, so that the two parallel items are graded alike; CRIT_complete_bias_2 B-7's Poor is withdrawn to that extent. (f) C4, the Development Agreement, is reclassified in Appendix B as a stipulated non-issue (the problem calls the agreement 'legally binding' and Rocky's entitlement is contingent on a profit not yet shown), which is what Part 2 and P have always said, so P's first-demotion entry (VG) and R4 agree. (g) fn 39 sits at the end of II.H S2 because *Upper Hunter* 437 supports the whole construction sentence, the literal reading and the commercial reading alike; a drafter who places it after 'literally meet it' loses nothing. (h) The II.C2 'more than' limb (reworded in v9: CRIT_round8 m5). Whether ensuring 'all payments … promptly' does more than guaranteeing 'repayment of the Loan' is a construction of two quoted phrases, so neither reading is a fact and neither is graded as one under §3 or D4. Both forms in the model are accepted on their branches: the counted preferred branch's unhedged 'exceeds', which compares the words on their face ('all payments' taking in the monthly interest, 'repayment of the Loan' naming the defined principal) and leaves the strength to the verdict's 'likely'; and the contrary paragraph's 'arguably adding nothing to a guarantee', which marks the branch's own reading because the preferred branch reads the same words the other way. 'arguably exceeds' on the preferred branch (+1) is equally acceptable and is not funded, the slack of 1 being kept; the contrary branch keeps its 'arguably', as II.C2's conditional core and Strength line require. (i) The II.F2 Pierre paragraph is trimmed by 'in the alternative' (−3) to its new floor of 95, the same words the counted paragraph loses, and its 'nothing places the $10,000 in AMPL's document' becomes 'the $10,000 arguably sits outside AMPL's document' (CRIT_fidelity_7 Finding 3; eight words for eight), so the planted ambiguity in 'the clause' is marked on that branch as it is everywhere else. (j) The I.E 'bound' paragraph adds 'the essentials fixed' (+3, to 76 of 76) to the critic's draft, so that the 'Perhaps' exception is answered with its reason on that branch as I.E core (3) requires on the other ('a sentence that states the 'Perhaps' and then concludes … without saying why … is a non sequitur'); the I.D 'bound' branch's 'settled the essentials' is the same reason, carried.
39. **'Gibbs J' at I.E S3 (CRIT_round7 m2; a residual clarity risk, not a change).** The counted S3 opens 'Gibbs J, obiter, doubted' directly after a *Meehan* sentence footnoted to Gibbs CJ; fn 12 names *Godecke*, but a marker reading the text may take 'Gibbs J' for the *Meehan* judge and read 'obiter' as wrong for a judgment just applied as ratio. 'In *Godecke*, Gibbs J, obiter, doubted' (+2) removes the risk and is credit a drafter writes where words allow; the slack of 1 does not fund it and the identity rule (R-L(2)) keeps credit out of the counted model. **v11:** unchanged and still credit; under R-X(3) the answer reviser may fund it if words allow, the I.E core having grown by the honesty fetter (U1).
40. **Grace's planted line at I.F2 S3 (CRIT_round8 m7; a residual risk recorded, not a change).** The counted S3, 'Grace is therefore right in result but wrong in reason', answers 'I never signed anything with you' without quoting it; Appendix B accepts the line 'quoted or answered in terms', so the counted form is Excellent on the sheet, but a cold marker may want the words in the answer and write 'answer the planted line in terms'. The credit form, written where words allow, is 'Grace's 'I never signed anything with you' is therefore right in result but wrong in reason' (+6 by verify.py's rule; the critic's '+5' is recounted, 'Grace is' becoming 'Grace's' plus six quoted words, 'is' kept (v9 printed 'seven': CRIT_fidelity_9 Finding 13)); 'Grace's 'I never signed anything' is …' (+4), a verbatim fragment, is equally acceptable. Neither is funded at slack 1.
41. **II.I3's fallback, put and not met (CRIT_round8 m8; the residual a lecturer is likeliest to press).** R-S(3) fixed the 'put' form: the counted S2 ends 'its entry into the Loan Agreement remaining arguable consideration', and core (3) is met by putting it. Of all the units, this is where the lecturer's 'Further analysis is required as your statement is conclusive' is most likely to bite, the natural question being why the entry into the Loan Agreement is not consideration. Meeting it is credit, written where words allow: the shortest form is ', though Rocky priced his undertaking at $10,000' after 'consideration' (+7 by verify.py's rule; the critic's '+4' is recounted, its own phrase, 'the express words pricing the undertaking at $10,000', being eight words), the express words of 'I will do that if you also promise to pay $10,000' pricing the undertaking (ISSUES_SETTLED S-13); the fuller form adds the bargain requirement, the entry not being 'really done in consideration of' the undertaking (*Australian Woollen Mills* 456 to 457, CB2A 101), as II.I3's Credit records. Accepting the fallback with the bargain requirement applied is equally Excellent (S-13, moderate). Not funded at slack 1. **v11:** funded into core (UPGRADES_r1 U2: ', though Rocky priced his undertaking at'$10,000'', +7, on its own marker to *Australian Woollen Mills* 456 to 457; II.I3 Core (3)); no longer a residual risk.
42. **Status under R-U(7) (the freeze note rewritten accurately: CRIT_round9 m2).** v9's note treated v9 as frozen on the record of rounds 6 and 8, which are not consecutive; R-T(4) requires two consecutive fresh rounds reporting none material, the consecutive pair was rounds 8 and 9, and round 9 reported five material findings (CRIT_fidelity_9 Finding 1; CRIT_round9 M1 to M4), all zero cost and all applied in v10 as R-U decides, so v9 was not frozen and v9's statement that it was is withdrawn. R-U(7) now governs: from v10 the sheet is the drafting standard; drafting begins on v10 in parallel with one confirming fresh critic round; a later sheet change that alters no core, floor or weight does not reopen drafts, and one that does is applied to the drafts by the reviser in Stage 5. v10 changes no floor or weight; in the cores it states the hedge on II.I4's Pierre consequence (which the counted model carries at its own count) and II.I1 Core (2)'s statement of what AMPL can enforce on the Pierre alternative, and it adds citation-fault Drops at I.F2 and II.F1, so the standard rises. Any later change is made only on a finding shown MATERIAL under R-S(5) and verified at source (Z7), and the standard may only rise. **v11 (R-V, R-W, R-X):** SHEET_v10_1.md was the Stage-5 marking standard (R-V(2)); v11 adds cores (UPGRADES_r1 U1, U2, U4, U5, U32; R-X(4) and

(5)), so under R-U(7) it is applied to the drafts by the reviser in Stage 5 and the forwarded answer is re-marked against it; no weight changes.

43. **I.A's 'likely an offer' beside I.D's 'did not intend to be bound' (CRIT_round9 m8; a residual risk recorded, not a change).** S1A slide 11 (printed slide 11, slide only) says 'Cannot be an offer if there is not an intention to create legal relations'; the counted I.A carries the qualifier to D and E with '(D, E)', which signals deferral, but a harsh marker may read the two verdicts as inconsistent (brief Part 8 item 9). The credit form 'it is likely an offer in form' (+2), which says what A decides and leaves bindingness to D and E, is recorded at I.A Core (5) since v6 (CRIT_round5 m9) and is not funded at slack 1; a drafter who finds two words writes it.
44. **I.A S1's 'bullets 2 and 3 promise nothing' (CRIT_round9 m9; a residual risk recorded, not a change).** The clause quotes no word and names no criterion, so the marker's 'Further analysis is required as your statement is conclusive' can attach to it. The credit form 'bullets 2 and 3, 'Potential' and 'wait and see', promise nothing' (+5 by verify.py's rule; 'wait and see' quoted on one side of the problem's dash, as D9 requires) names the deciding words; it is not funded at slack 1. **v11:** made core as a grading fix (UPGRADES_r1 U15, +5, I.A Core (1)), the Drops having graded the bullets 'not classified on a deciding word' VG while the core did not ask for the word; no longer a residual risk.
45. **I.F1 decided on the sum alone (CRIT_round9 m11; a residual risk recorded, not a change).** 'Rocky asked' AMPL 'to advance $1,150,000 to Grace' (question.txt), Rocky's best agency fact, is not met in the counted sentence, which decides 'purporting' on '$1,150,000' against '$1 million'; the stronger answer, that AMPL documented the loan and took Rocky's guarantee in its own name, is credit (I.F1 Credit; CRIT_round4 m5, a disclosed choice). The credit form ', taking Rocky's guarantee in its own name' (+7) is not funded at slack 1. **v11:** funded into core (UPGRADES_r1 U5: 'though 'Rocky asked', it advanced '$1,150,000', not '$1 million', and took his guarantee', +7, I.F1 Core), the sum mismatch alone going only to performance of the email and not to purporting; no longer a residual risk.
46. **I.F2 S1's rule stated without the joint-promisee qualification (CRIT_round9 m12; a residual risk recorded beside item 40, not a change).** [11.10] states both limbs, so 'Only a party who provided consideration can enforce a contract' is the course's rule; but *Coulls* 486 (Taylor and Owen JJ, CB4 330) lets a joint promisee recover 'notwithstanding that she, personally, gave no consideration', the course's answer to RG4A's multi-party question. The counted S2 meets the joint-promisee argument on its premise (no promise to both), so the result is right; a lecturer may still note the qualification. The credit form 'Only a party who provided consideration, joint promisees aside, can enforce a contract' (+3) is not funded at slack 1.
47. **Density (CRIT_round9 m13; a residual risk recorded, not a change).** The counted model is attainable only at the appendix's density (slack 1; mean 24.0 against his ceiling of 24.7; under-12 share 0.9 points above his floor), and several L lines (I.A S1, I.F3, II.I4 S3) read compressed, the quality Yusuf called 'condensed' and R1 lists at Fair. R-L governs, so this is not material; a marker of drafts reads the model's L lines as the floor of what a unit must carry, not as the target prose, and a drafter who finds words elsewhere spends them on items 23, 36, 39 to 41 and 43 to 46 first. **v11:** R-X(3) removes the slack constraint that made the L lines compressed: the cores are the requirement and the answer is the feasibility proof, and the reviser funds the v11 cores by cutting duplication and credit before compressing any L line further.
48. **v10's judgment calls (round 10).** (a) The section-7 II.C2 paragraph restores 'work … goods or services' (+1), funded inside the paragraph by 'Rocky likely gave none' for 'Rocky likely gave no consideration' (−1), the noun 'consideration' closing the sentence before, so the paragraph stays at its floor of 126 (CRIT_fidelity_9 Finding 10; R-U(6) 'if it fits the floor'); verify.py reports the span 'found 4 times', the right hit being CB2B 119, report page 15, Glidewell LJ's element (i), read on the page image. (b) The section-7 I.D paragraph's 'Decisively,' becomes 'The governing question, where no formal contract is stipulated, is whether' (eleven words for eleven; the critic's 'The question, …' is ten and would leave the paragraph one word under its floor) (CRIT_round9 m15). (c) The section-7 II.G paragraph's 'with the rate it bears' becomes 'appearing then with the rate' (five for five); the critic's 'the term being fixed with the rate' (+2) would put the paragraph two words over its floor and the substituted body over 1,495, and 'fixed' states a derived fact unmarked, the reason the counted body says 'appear first' (CRIT_fidelity_5 Finding 2; CRIT_round9 m15). (d) fn 9 and section-7 fn 108 take the '(n X)' form under AGLC r 1.4.3, because fn 8 and fn 107 now carry two sources (item 30). (e) II.I4's Drops gain a VG line for the Pierre consequence stated as settled, which §1's tier rule already implied (CRIT_round9 M1). (f) The 'one error, one deduction' rule is stated once at the head of the automatic deductions so that the three double counts the critic found (m3 to m5) cannot recur elsewhere; the global-row cap is kept, being R-C's rule and not a deduction.
49. **v11's judgment calls (Stage-5 panel round 1; UPGRADES_r1; R-V(1); R-X).** (a) **Frustration.** R-X(7) deleted it from P's list and added no unit; v11 graded an answer that still named frustration as outside Weeks 1 to 4 at P's credit-wrong line (VG). From v12 (R-Z(1), (5)) no matter is listed as outside anything, that credit-wrong line is withdrawn, and naming frustration (or any matter) as outside Weeks 1 to 4, the course or the scope is graded at R1 and R8 under R-Z(5); the sheet still does not grade frustration's absence. (b) **I.E's rules corrected at source** while the honesty fetter was added: Gibbs CJ's 'No doubt it may be implied that the purchaser will act honestly' sits wholly at 581 (v10 printed 580 to 581); Wilson J agreed with Mason J on each issue but inclined to honesty alone (CB3B 188, 597 to 598), so v10's 'Mason J (Wilson J agreeing)' against 'honestly, or honestly and reasonably' overstated his agreement; Mason J's 'This point would have force if the contract left the court at large' sits before the [588] marker on CB3B 185, so its pin is 587, not the 588 UPGRADES_r1 U1 printed (OFF Meehan closes that paragraph '(at p588)', the paragraph running onto 588 after the sentence). (c) **R-X(5)'s 'arguably' at I.E** replaces 'likely'; 'likely' is from v11 an overstatement graded VG under §2, the ruling fixing the strength the source supports. (d) **R7's mechanism for R-X(4).** An applied doctrine never named in the course's terms is one proxy instance (0.5, within the row's 1.0 cap), so the existing penalty scale carries the new requirement and no new deduction is created; 'named once' means once in the answer, so 'a request' at II.A is not a lapse where I.A names an invitation to treat. Condition precedent and the duty to co-operate are named in no slide or reading guide; their course sources are the casebook (*Meehan* 582; the CB2A 109 heading), and the sheet says so rather than citing a slide that does not use the term. (e) **Further information in credit.** R6's direction rule applies to every further-information clause the answer writes, core or credit, because R6 is graded on the answer as a whole and the Instructions pair further information with 'how it would impact your conclusion'; a credit item still earns nothing extra (§1). (f) **T19 and T20** (Appendix A) are graded once, at R10, not also at I.C, I.D or I.E (one error, one deduction). (g) **The short title** is placed after the pinpoint and judge and before any ', quoting' tail, so that it attaches to the citing case (the AGLC auditor's reading of r 1.4.4 at its n 20; UPGRADES_r1 U12 fetched the rule). (h) **U16's +2** is counted in Part 8's total to match UPGRADES_r1's +76, although II.I4 Core (3) already prescribed 'the payment record ends'; the figure may overstate the v11

cost by two words. (i) **The grid and unit headings keep the v10 floors** as records rather than being rewritten with v11 costs, so that every cross-reference to a v10 floor in Parts 8 and 9 stays accurate; Part 8 prints the v11 core cost beside each. (j) **Alternative forms accepted** where a Stage-5 auditor's wording meets the same core (eg 'the mortgage paragraph' at I.A; 'Grace's 'Confirmed' added no term, so it was assent to the whole email, not a counter-offer' at I.B; 'AMPL, the contracting party, would enforce for itself' at I.F3; 'Rocky both claims against and is likely liable to Pierre' at II.I4): the sheet grades the core, not the counted wording. VOICE_TERMS.md's other sentence-level rewrites are matters for the answer reviser and change no rule here. (k) **Rejected at source and logged (UPGRADES_r1 U9, U21, U30).** U9: the *Australian Woollen Mills* (PC) pin 550 stands; the casebook prints the 550 passage after the 554 to 555 passage because the editors reordered two extracts (the official CLR scan, OUTSIDE, prints it on 550), so 550 is cited as the casebook prints it, and the official scan is not quoted or cited until saved under R-H. U21: a verdict followed by an absolute reason in the same sentence is not barred, his own Part A carrying the form (VOICE.md 2.6, example 39) and §1 accepting the reason 'in the sentence'; R-R(2) bars only a unit's verdict before a colon. U30: moot from v12, no slide being cited in any form (R-Z(2); item 8).

Appendix A. Consistency traps (ISSUES_SETTLED 3.X, reduced to those a position engages)

Required, one clause each where it bites (R10): T4 asserting the 12 February email invites Grace's counterclaim (I.D credit; engaged only if the answer holds the email binding); T8 class 3 or a writing requirement for the 8 April bargain loses both sides (II.B or II.C2); T10 signature cuts both ways (I.F2 and II.I1); T11 one counterparty, or Pierre on both sides (II.F2 and II.I4); T13 Rocky could pay $1,150,000 and lose the $10,000 (II.H or II.I4; the counted structure states it at II.I4); T17 AMPL cannot have both 27 February arguments (II.C2 or II.I3; engaged only if the answer accepts AMPL's sequence and runs past consideration).

Avoided without words (no clause required; a breach is graded at R10): T1 the 12 months (demand v defence; decided once at II.G); T2 party to the Loan Agreement v burden defence (reconciled, where words allow, by the four-word credit clause 'as to that clause only' at II.I1: CRIT_round5 m12); T3 'I will do that' binds both ways (carried by II.D's clause); T5 'the Loan Agreement with AMPL' (the narrator's description of the demand, usable as its proven content under R-D, never as Rocky's words) undercuts any claim that the money was Rocky's; T6 class 3 or illusory defeats the email claim but protects against the counterclaim; T7 past consideration for the undertaking v consideration for the $10,000; T9 'once Grace repays' read to include Rocky's payment fights his own words; T12 attacking Grace's consideration destroys the $10,000 trigger; T14 check-ins go to formation, not meaning; T15 keep the 12 February email and the Loan Agreement separate; T16 the two readings of 'the clause' (both run at II.F1); T18 the a fortiori reasoning confined to the guarantee reading.

Avoided by the core's own wording (from v11; a breach is graded once, at R10): T19 I.D's 'Confirmed' settling 'the essentials' (or 'all essential terms') concedes the premise of Gibbs J's 'Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties' (CB3B 190, *Godecke* 647), which I.E core (3) then resists; avoided by naming what 'Confirmed' settled, 'amount, term and rate' (UPGRADES_r1 U26). T20 I.C finding consideration without qualification while I.E finds Rocky's promise illusory stands on two footings, 'A contract made for a consideration which is illusory is unenforceable' (CB3B 166, *Pace* 150); avoided by I.C's 'in form', whether the promise is illusory, and so the consideration good, being decided at E (UPGRADES_r1 U10).

Appendix B. Claims, and the planted facts that decide each unit (so R4 can be applied from this sheet alone)

Claims (ISSUES_SETTLED 1.4, condensed). C1 repayment of the principal 'under the Loan Agreement with AMPL' against Grace (fails: privity); C2 repayment under the 12 February email (fails: no binding contract and Rocky lent nothing); C3 any implied promise by Grace to repay, reimburse or indemnify (no promise by Grace to Rocky appears; disposed of in a substantive clause in P or wherever the answer first meets it, never with guarantee law named as excluded: R-Z(1)); C4 the Development Agreement (stipulated 'legally binding'; Rocky's entitlement contingent on a profit 'not yet shown'; a non-issue to be named as one, not a claim, in a clause in P: CRIT_round7 m11; R4 grades its omission as a non-issue unnamed, VG); C5 the Eastwood and Bowral items (not promissory; I.A); C6 the $10,000 against AMPL, alternatively Pierre (formed; not yet payable; conditional); C7 the $10,000 as a clause of the Loan Agreement on the other reading of 'the clause' (adds nothing; II.F1); C8 Rocky's answer to AMPL's 9 March 2025 call (II.H).

Deciding planted facts (mandatory, quoted) by unit (R-L(7)); each is quoted in the counted paragraph of its unit. P: 'legally binding'; 'if the Project made a profit'; claim C3 identified and named in a substantive clause, 'Grace promised Rocky no reimbursement for paying AMPL' (from v11: U31; from v12 never attached to a clause naming excluded matters: R-Z(1); frustration's planted fact, 'unavoidable delays', no longer deciding: R-X(7)) (no quoted fact: the problem contains no promise by Grace to Rocky, 'Confirmed' being her only promissory word, and that at I.C: CRIT_round5 M5). I.A: 'proposed that Rocky offer'; 'I will lend'; 'Please confirm agreement'; 'Potential' and 'wait and see' (the bullets' deciding words, from v11: U15); 'subject to satisfactory conditions' (deciding here too, since the similarity to Lord Diplock's second paragraph cannot be named without it: CRIT_round3 M1). I.B: 'Confirmed'; '15 minutes later'. I.C: 'at a rate of 5% interest'; '4% per annum' (the counted form quotes '12 months' as well, with 'likely' marking the inference that the recorded term carries AMPL's promise; 'not the past advance' is credit). I.D: 'satisfactory conditions' (or 'subject to satisfactory conditions'); 'Confirmed' (or 'Please confirm agreement'), now carried with its authority ('as in *Niesmann*'); 'project developers' (from v11, the *Ermogenous* [25] status factor: U4); 'this morning' (the further information, with its direction: U3). I.E: 'satisfactory terms and conditions' is *Meehan*'s, not the problem's; none of the problem's beyond the reading carried from D (credit: 'satisfactory conditions' quoted again). I.F1: '$1,150,000'; '$1 million'; 'Rocky asked' (met); the guarantee clause (from v11 core: U5). I.F2: 'entered into'; 'I never signed anything with you' (quoted or answered in terms); '5 March' (the demand, for the cross-reference). I.F3: none beyond the facts named. II.A: 'expected'; 'I will do that if you also promise'. II.B: 'Pierre agreed'. II.C1: 'if you also promise'. II.C2: 'also'; 'all payments … promptly'; 'repayment of the Loan'. II.D: 'promise'; 'to me directly';

‘at AMPL’s office’; the cousinhood named (credit: ‘Rocky’s cousin’ quoted); AMPL’s advance on 27 February as the reason for ‘weaker here’ (from v11: U28; quoting ‘advanced’ is credit). II.E: ‘all payments … promptly’. II.F1: ‘to me directly’; ‘the clause’. II.F2: ‘owned and controlled’; ‘you’; ‘at AMPL’s office’; ‘payments under the Loan Agreement’; ‘the personal guarantee provided by Rocky’ (credit: ‘Pierre agreed to provide the money’; the $10,000 as a payment outside the loan, which the counted sentence no longer carries; the alternative is pleaded by ‘keeps Pierre arguable’, the words ‘in the alternative’ no longer carried). II.G: ‘recorded’; ‘advanced’; ‘the expiry of 12 months’. II.H: ‘completely binding’ is *Meehan*’s, attached to ‘the contract’; the problem’s: ‘had not yet repaid the Loan’; ‘once Grace repays the Loan’; the inference that nothing stated has AMPL’s call stop Grace repaying is the decisive reason on the co-operation argument (R-O), written in his ‘nothing suggests’ form (CRIT_fidelity_5 Finding 3); the commercial reading is met by the pricing point (‘the $10,000 pricing Grace’s repayment’, no new quoted fact: CRIT_round7 M1); the classification’s reason, the bargain binding at once, is carried by reference to B. II.I1: ‘I will do that’ (the narrator’s description of the clause, ‘that Rocky personally guaranteed repayment of the Loan’, is II.I2’s fact, quoted or described there; II.I1 may say ‘the clause as described’: CRIT_round3 m18, adopted by assigning the description to II.I2). II.I2: ‘expected’; ‘repayment of the Loan’; ‘the personal guarantee provided by Rocky’; ‘attended’ (the knowledge fact: CRIT_round4 M5; ‘included, arguably at the meeting he ’attended’’ from v7). II.I3: ‘27 February’ as the date of the advance; ‘Rocky asked’ (from v11 core: *Pao On*’s first condition, U32); the fallback put as ‘its entry into the Loan Agreement’ (the problem’s ‘entered into’, paraphrased) and met with ‘$10,000’ (from v11: U2). II.I4: ‘8 February 2025’ (credit: ‘repayment of the Loan’ and ‘repayable at the expiry of 12 months’ quoted again here).

Supporting facts (credit). Everything else in question.txt (the narrator’s ‘the Loan Agreement with AMPL’ being the description of the demand, never Rocky’s words), including: ‘since 2017 to stellar success’; ‘significant financial difficulties’; ‘quite angry’; ‘blamed’; ‘demanded Rocky’s assistance’; ‘long-term’; ‘this morning’; ‘Confirming discussions’; ‘by 15 February’; ‘Best, Grace’; ‘Pierre agreed to provide the money to Grace and the $1,150,000 was advanced by AMPL on the same day’; ‘signed by Grace and AMPL’; ‘Interest was to be paid by Grace monthly’; ‘appropriate’; ‘Rocky would check in consistently’; the 13 February 2025 email; the silence ‘by 27 February 2025’; the 28 February and 2 March emails; ‘the Loan Agreement with AMPL’; ‘Leave me alone!’; ‘I have until 8 April 2025’; AMPL’s 27 February argument; ‘if you don’t leave off, I might not pay at all!’; ‘as soon as possible’; ‘unavoidable delays’; ‘minimal’.

Appendix C. Source verification log

Every rule stated in a descriptor was read at its source page in full context before it was written here (the sentence before and after, the question the court was answering, the result, the bench and the status). Read for v3, in addition to the v2 log carried forward (CB1A pp 39 to 46 and 48; CB1B pp 66 to 73, 76 to 82, 88, 90 and 94; CB2A pp 99, 101 to 104, 107, 109 to 111 and 113; the Pao On extract; CB2B pp 113 to 114, 118 to 119, 122 to 123, 125 and 131 to 133; CB3A pp 136 to 137, 143 to 147, 149, 151 and 154 to 157; CB3B pp 159 to 161, 163 to 164, 166 to 167, 171 to 173, 182 to 190; CB4 pp 327 to 333 and 336; the slides and reading guides listed there; the official texts listed there): CB3A 154 to 156 (*Masters* 360 to 364 in full, the ellipsis at the *Crossley* sentence confirmed; Lord O’Hagan at 361; *Winn v Bull* at 363); OFF Masters paragraph 12 at 362 (the *Crossley* sentence; nothing in the set states *Crossley*’s facts); CB2B 131 to 132 (*Wigan* 594 to 595, ‘when it is made to the promisee under that contract’); CB2B 125 ([4.300]); S2B PDF pages with the three exceptions (‘promises to third parties (Pao On v Lau Yiu Long – class 2A)’); CB1B 71 to 72 (*Empirnall* 534 to 536, ‘a reasonable opportunity to reject’, ‘has or ought to have knowledge of the terms of a contract of carriage or bailment’, ‘Eric does not sign contracts’); CB1A 42 (*Gibson* 298, the second paragraph in full); CB4 330 to 332 (*Coulls* 485 to 487 and Windeyer J 490 to 491); CB3A 144 (*Banque Brussels* 521 to 523, ‘the facility was subject to BBL obtaining a suitable letter of comfort’); S4A PDF pages 2, 3, 16 and 17 (the agency sentence is on page 16; page 17 is the circumvention slide); CB4 336 ([11.70], which cites no case for the two elements); CB3B 183 to 184 (*Meehan* 580 to 582), 186 (Mason J 591 with ‘However, I have no need to decide the question’), 188 to 190 (*Godecke*: Walsh J’s extract begins at ‘[642] In the present case’; ‘reasonable in an objective sense’; Gibbs J 645 to 648 with his disagreement with Bray CJ). Every quotation in the appendix paragraphs was located in the course corpus by `verify.py check` (52 quotations, 0 FAIL); every single-quoted span in this sheet of four or more words is either located there, a marker comment, a hypothetical wrong-answer phrase, a quotation of the brief, the rulings, ISSUES_SETTLED or a critique, or a span the checker reads across an apostrophe.

Read at source for v4 (round 4), each passage in full context, before any round-3 finding was adopted: CB1A 41 to 42 (*Gibson* 297 to 299, the whole of Lord Diplock’s second-paragraph passage, ‘If the final sentence had been omitted …’); CB1A 59 (*Mobil* 500, the unilateral contract definition and the prevention passage with its hedge); CB1B 71 to 72 (*Empirnall* 534 to 536 in full: the Laurel Race Course quotation, ‘A more accurate statement …’, the ticket-cases analogy ‘of a contract of carriage or bailment’, ‘The ultimate issue …’, ‘taking the benefit of an offer with knowledge of its terms and knowledge of the offeror’s reliance’, ‘Eric does not sign contracts’); CB1B 77 to 78 (*Brambles* 176 to 177: Lord Greene MR ‘of the practice’, the meetings example in the next paragraph, McHugh JA in *Integrated Computer Services* on the bilateral contract); CB2A 109 (*Beaton* 185, ‘Secured Income … per Mason J’); CB2A 103 (*Australian Woollen Mills* (PC) 550); CB2A 113 (*Roscorla* heading and 237); the Pao On extract (whole; ‘was at Lau’s request’); CB2B 113 to 114 ([4.190], *Sundell* ‘said (at 327)’); CB2B 118 to 119 (*Williams v Roffey*: the [11] marker before Lord Ellenborough CJ’s passage, the elision before [13]; Lord Scarman ‘delivering the judgment of the Judicial Committee’; Glidewell LJ’s (i) to (vi) at 15 to 16); S2B PDF pages 5 and 9; CB3A 137 (*Ermogenous* [25] to [27]); CB3A 141 (‘ROGERS CJ:’; the heading ‘(Supreme Court of New South Wales’ and ‘Action)’, the casebook’s dash between them not reproduced here); CB3A 143 to 144 (*Banque Brussels* [520], [521] before ‘refreshingly honest and sensible’, the ‘facility was subject to’ passage between [521] and [523], 523); CB3A 147 (*Todd v Nicol* [74], no [75] before the subsequent-conduct passage); CB3A 154 to 156 (*Masters* 360 to 364; Jessel MR ‘When it is not expressly stated to be subject to a formal contract’); CB3B 161 (*Upper Hunter* 436 to 437, ‘to use Lord Wright’s words’); CB3B 183 to 184 (*Meehan* 580 to 582); CB3B 188 to 190 (*Godecke*: Walsh J 642 to 643; Gibbs J 645 to 648, ‘it does not necessarily follow’, ‘Perhaps it may be different’, ‘unnecessary to express any concluded opinion’); CB4 327 to 333 and 336 ([11.10]; *Coulls* 478 ‘That C provided no part of the consideration seems to me irrelevant’, 486, 487, 494, the consideration sentence after [494]; [11.70]); OFF Coulls paragraph 18 ‘(at p495)’; S4A PDF pages 1 (‘Term 3 2024’), 2, 3, 16 and 17; reading guide 4A; question.txt (whole); the Instructions; the LAWS1061 feedback sheet (both pages rendered and read cell by cell).

Read at source for v5 (round 5), each passage in full context, before any round-4 finding was adopted or rejected: question.txt (whole: ‘attended a meeting at AMPL’s office’; ‘the clause was included in the Loan Agreement before it was signed’; the 5 March

demand sentence; ‘Pierre agreed’); CB3A 155 (*Masters* 361: *Niesmann v Collingridge*, ‘all the essential terms of a contract had been agreed upon’, ‘did not make the signing of a contract a condition of agreement, but made it a condition of the obligation to pay’); CB3B 190 (*Godecke* 646 to 647 whole: ‘it does not necessarily follow’, the *Thorby* principle, ‘there can be no concluded bargain if a vital matter (such as price or rental) has been left to the determination of one of the parties’, ‘Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties’, ‘unnecessary to express any concluded opinion’); CB3B 184 (*Meehan* 582: ‘Once the condition is fulfilled, within the time allowed by the contract for its fulfilment, the contract becomes completely binding’; ‘not a condition precedent to contract’; ‘Certain obligations under the contract attached immediately’); CB3B 184 to 185 (*Meehan* 587: ‘The respondents’ case rests on three propositions: (1) … “so obscure …”‘); CB3B 161 (*Upper Hunter* 437, ’to use Lord Wright’s words’); CB2A 107 (*Beaton* 181: McHugh JA quoting Patteson J in *Thomas v Thomas* (1842) 2 QB 851, 859, ‘it must be moving from the plaintiff’); CB2A 104 (*Beaton* 168, Kirby P, ‘a price in return for the promisor’s promise or a quid pro quo’); CB2A 101 (*Australian Woollen Mills* 456 to 457, ‘In cases of this class’); CB1A 62 (*Mobil* 508, the [508] marker closing page 61 and the passage sitting on 62: CRIT_fidelity_5 Finding 1; ‘His Honour dealt with this submission shortly: “But none of the franchisees was under an extant obligation …”‘; the Court’s own ‘did not attract the rule’); CB1B 71 to 72 (*Empirnall* 535 to 536: ‘a reasonable opportunity to reject’; ‘taking the benefit of an offer with knowledge of its terms’); CB4 336 ([11.70] whole: the two elements, no case cited for them); S4A PDF page 16 (the agency slide states the route, not the elements) and page 17; CB3A 143 to 144 (*Banque Brussels* ‘Letters of comfort’ [5.70]; ‘the facility was subject to BBL obtaining a suitable letter of comfort’; 523 ‘appropriately promissory … in the course of business’); CB3A 137 (*Ermogenous* [25] to [26]) and 146 ([5.90]); CB2A 109 (*Beaton* 185, the duty to co-operate, inside McHugh JA’s extract); CB1A 59 (*Mobil* 500). Every quotation in the v5 appendix paragraphs was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and through `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem’s own ‘if the Project made a profit’, which the script does not search), and all 13 scan crops were opened and read; each resolved to the page and judge this sheet cites.

Read at source for v6 (round 6), each passage in full context, before any round-5 finding was adopted, adopted in part or rejected: CB4 333 (*Coulls*, Windeyer J: [494] ‘By the common law of England only those who are parties to a contract can sue upon it. For us that statement is incontrovertible’, then, after the Cheshire and Fifoot, Jordan, Bourne, Lord Haldane, Lord Wright, Williston and Tweeddale passages, ‘For us the rule prevails that a plaintiff who sues on a promise must show a consideration for it provided by him … [499]’, the official text marking that sentence 495: both limbs in the one extract, so 494 to 495 alone carries the rule and 478 is a second source for the party limb); CB3B 184 (*Meehan* 582: ‘Once the condition is fulfilled, within the time allowed by the contract for its fulfilment, the contract becomes completely binding’; ‘It is clear that the condition in Special Condition 1(b) is not a condition precedent to contract. Certain obligations under the contract attached immediately the contract was signed although the condition had not been fulfilled’); CB3B 183 (*Meehan* 581: ‘that principle does not apply where the discretion or option of the contracting party relates, not to the performance of the contractual obligations themselves, but only to the fulfilment of a condition upon which the contract depends’, before the [582] marker); CB3B 190 (*Godecke* 646 to 647: ‘there can be no concluded bargain if a vital matter (such as price or rental) has been left to the determination of one of the parties’; ‘Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties’; ‘it is unnecessary to express any concluded opinion’); CB3A 137 (*Ermogenous* [25]: ‘the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances’; [26]: the onus ‘for the appellant to demonstrate’); CB2A 101 (*Australian Woollen Mills* 456 to 457: ‘really offered as consideration for the doing of the act, and that the act was really done in consideration of a potential promise’; ‘the relation of a quid pro quo’; 458: the request ‘expressed or implied’); CB2A 109 (*Beaton* 185, inside McHugh JA’s extract under the heading ‘The duty to co-operate’: ‘The McDivitts have a contractual duty to do everything necessary on their part to enable the plaintiff to have the benefit of the contract: Secured Income … at 607 per Mason J’); CB1A 59 (*Mobil* 500: ‘There may also be a case (it is, perhaps, difficult to imagine one) in which the offeror may prevent the offeree from completing the act of acceptance … yet the offer will be held not to have been revoked’; the Court’s ‘supposed nine-for-six promise’); CB1A 61 to 62 (*Mobil* [506] on page 61; the [508] marker closing page 61; the trial judge’s ‘extant obligation’ passage on page 62); CB3B 161 (*Upper Hunter*: ‘and the court or arbitrator [437] will decide its application. The question becomes one of construction, of ascertaining the intention of the parties, and of applying it’; ‘to use Lord Wright’s words in G Scammell & Nephew Ltd v Ouston [1941] AC 251’; ‘no narrow or pedantic approach is warranted, particularly in the case of commercial arrangements’, all after [437]); CB2B 119 (*Williams v Roffey*, Glidewell LJ at 15 to 16: ‘(i) if A has entered into a contract with B to do work for, or to supply goods or services to, B in return for payment by B’; ‘(ii) … B has reason to doubt whether A will, or will be able to, complete his side of the bargain’); CB1B 77 to 78 (the casebook’s citations of *Eccles v Bryant* [1948] 1 Ch 93 at 104 and of *Integrated Computer Services Pty Ltd v Digital Equipment Corp (Aust) Pty Ltd* (1988) 5 BPR 11,110 at 11,117–18, for the AGLC r 1.3 form); CB2A 107 (*Thomas v Thomas* (1842) 2 QB 851, 859; 114 ER 330, 333-4, as the casebook prints it); question.txt (whole: no promise by Grace to Rocky anywhere, ‘Confirmed’ being her only promissory word; ‘The loan was recorded as $1,150,000’; ‘Interest was to be paid by Grace monthly, and the Loan was repayable at the expiry of 12 months’ with no statement of when those terms were first fixed; ‘At the meeting, AMPL and Grace entered into a written loan agreement’; ‘the clause was included in the Loan Agreement before it was signed’; ‘AMPL contacted Grace directly, however, Grace refused to pay’; ‘AMPL called for payment of the Loan under the personal guarantee provided by Rocky’, nothing being said of any effect of the call on Grace); ISSUES_SETTLED S-12 (‘Unproven (moderate to strong against AMPL); not academic: live if the $10,000 was Pierre’s’), S-13 (‘Moderate; a fallback needed only if the $10,000 was Pierre’s’; the ruling: AMPL’s entry into the Loan Agreement ‘was arguably ’really done in consideration of’ Rocky’s undertaking’; ‘Against: the express words price Rocky’s undertaking at the $10,000, and AMPL had already advanced’), S-31 and S-33; VOICE.md 1.1, 2.5 example 29 (‘nothing suggests’), 2.7 example 42 (the absolute construction), F9; his LAWS1061 Part A. Every quotation in the v6 appendix paragraphs was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem’s own ‘if the Project made a profit’), and all 13 scan crops were opened and read; the II.C2 contrary-branch paragraph was run separately (2 quotations located, 0 FAIL; its three crops opened and read).

Read at source for v7 (round 7), each passage in full context, before any round-6 minor was applied: question.txt (whole: ‘The loan was recorded as $1,150,000 (’Loan’) with an interest rate of 4% per annum. Interest was to be paid by Grace monthly, and the Loan was repayable at the expiry of 12 months’, no promise by AMPL being stated in terms, so that AMPL’s promise of the term is an implication; ‘Rocky, Grace, and Pierre attended a meeting at AMPL’s office. At the meeting, AMPL and Grace entered into a written loan agreement’; ‘Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL’, the

inclusion at the meeting being an inference; ‘AMPL called for payment of the Loan under the personal guarantee provided by Rocky’); CB3A 137 (*Ermogenous* [25] whole: ‘may take account of the subject-matter of the agreement, the status of the parties to it, their relationship to one another, and other surrounding circumstances’; ‘requires an objective assessment of the state of affairs between the parties’; ‘it is used in the same sense as it is used in other contractual contexts. It describes what it is that would objectively be conveyed by what was said or done, having regard to the circumstances in which those statements and actions happened’; [26] the onus; the heading ‘GAUDRON, McHUGH, HAYNE and CALLINAN JJ’); CB2A 113 (*Roscorla* 237: ‘a consideration past and executed will support no other promise than such as would be implied by law’, Lord Denman CJ for the Court, the words contiguous); CB4 332, page image read (*Coulls*, Windeyer J: ‘The document was signed not only by the deceased and the representative of the construction company, but also by the wife. I can see no reason for her signature except upon the basis that she had an interest in the performance of the contract’, then, in the next sentence, ‘should be introduced [491] by the words “I authorise”’, so the sentence sits at 490 (v7 printed ‘two sentences later’: CRIT_fidelity_7 Finding 1, corrected); ‘[His Honour then gave his reasons and continued:]’ before [493]); CB3A 144 (*Banque Brussels* between [521] and [523]: ‘it was made quite clear to both Spedley and ANI that the facility was subject to BBL obtaining a suitable letter of comfort or some other indication of commitment from ANI’, ‘conditioned’ being the extract’s point and ‘preceded’ not stated in terms); CB3A 155 (*Masters* 361, *Niesmann*: ‘did not make the signing of a contract a condition of agreement, but made it a condition of the obligation to pay’, for the counted I.D ‘bound’ branch); the Pao On extract (‘The parties understood at the time of the main agreement that the restriction on selling must be compensated for by the benefit of a guarantee’, the words fn 48 now follows); CB2B 131 (*Wigan* 594) and 119 (Glidewell LJ (i), ‘to do work for, or to supply goods or services to, B’), the two crops of the II.C2 contrary paragraph; CB3A 154 and 156 (*Masters* 360 and 363), the three crops of the I.D contrary paragraph; ISSUES_SETTLED S-14 (‘knowledge is an inference either way’), S-15 (‘Formation: moderate to strong that a contract was formed with someone … moderate that it was formed with AMPL (S-7); moderate that the oral bargain bound without the document (S-17)’), S-17 and S-21; VOICE.md 1.4 (framing adverbials), 2.4 and 5; RULINGS R-S(5) and (6) (read whole: no ‘recorded as accepted’ alternative appears in R-S(6), so SHEET_v6_changes’ attribution of round-5 m4’s disposition to those words was wrong and is corrected in SHEET_v7_changes.md). Every quotation in the v7 appendix paragraphs was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem’s own ‘if the Project made a profit’), and all 13 scan crops were opened and read; each of the four contrary-branch paragraphs was run separately (II.C2 2 quotations, I.D 4, II.G 1, II.F2 5; 0 FAIL each; their five casebook crops opened and read) and the whole-body voice statistics were run with each substituted and with all four together (appendix section 7).

Read at source for v8 (round 8), each passage in full context, before any round-7 finding was applied as R-T decides: CB3B 161 (*Upper Hunter* 436 to 437 whole: ‘the court or arbitrator [437] will decide its application. The question becomes one of construction, of ascertaining the intention of the parties, and of applying it’; ‘to use Lord Wright’s words in G Scammell & Nephew Ltd v Ouston [1941] AC 251’; ‘In the search for that intention, no narrow or pedantic approach is warranted, particularly in the case of commercial arrangements. Thus will uncertainty of meaning, as distinct from absence of meaning or of intention, be resolved’, all after the [437] marker, under the heading ‘BARWICK CJ’, for M1 and fn 39); CB2B 131 (*Wigan* 594, Mason J: ‘at least when the promise is made by a party to a pre-existing contract, when it is made to the promisee under that contract, and it is to do no more than the promisor is bound to do under the contract’, the third premise that m8’s ‘more than’ limb applies; crop read); CB2B 119 (Glidewell LJ (i) ‘to do work for, or to supply goods or services to, B in return for payment by B’; crop read); CB3B 183 (*Meehan* 581, Gibbs CJ (v9 printed ‘580 to 581’ for a sentence wholly after the [581] marker: CRIT_fidelity_9 Finding 11): ‘No doubt it may be implied that the purchaser will act honestly in deciding whether or not he is satisfied’, the fetter the I.E ‘bound’ branch names, and 581 ‘that principle does not apply where the discretion or option of the contracting party relates, not to the performance of the contractual obligations themselves, but only to the fulfilment of a condition upon which the contract depends’; crops read); CB3B 190 (*Godecke* 646 to 647, Gibbs J, ‘Perhaps it may be different where agreement has been reached on all essential terms but the determination of subsidiary matters has been left to one of the parties’, for the I.E bound branch’s ‘the essentials fixed’); CB3A 154 to 156 (*Masters* 360, ‘whether … this document on its true construction constitutes a binding contract … or only a record of terms upon which the signatories were agreed as a basis for the negotiation of a contract’, for the I.D S2 rewrite; 361 *Niesmann*; 363 *Winn v Bull*; crops read); CB4 332, page image (*Coulls*, Windeyer J: the signature sentence, then ‘It is not, I think, altogether incongruous that a contractual term as to the manner of payment should be introduced [491] by the words “I authorise”’, the marker in the next sentence: fidelity 1); OFF Port Jackson (Barwick CJ [2] ‘(at p236)’, [18] ‘(at p240)’ Lord Reid’s requisites, [19] ‘(at p240)’ the trial judge’s ratification finding, [21] ‘(at p241)’ ‘with its antecedent authority … a correct conclusion of fact’, [33] ‘(at p245)’ ‘with its antecedent authority’; the heading ‘MASON AND JACOBS JJ.’ and their [8] ‘(at p272)’, [11] ‘(at p273)’ and [12] ‘(at p274)’ on reliance and knowledge as the consideration point); OFF New York Star ([7] ‘(at p303)’: ‘Sheppard J. … found that the necessary agency was established only by ratification’; [8] ‘(at p303)’: ‘The Court found that the necessary agency was directly established by the evidence, so that reliance on ratification was not necessary’), for the R-T(3) correction of II.F2’s credit gloss; question.txt (whole: ‘Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL’, which clause being ‘arguably’ each way, for fidelity 3; ‘I will do that if you also promise to pay $10,000 to me directly once Grace repays the Loan’, for M1; ‘entered into a legally binding agreement’ and ‘if the Project made a profit’, for m11 (v9 printed here a sentence the problem does not contain, corrected in v10 to the problem’s words: CRIT_fidelity_9 Finding 6)); the Pao On extract (‘The parties understood at the time of the main agreement’, for m14’s timing point); ISSUES_SETTLED S-12, S-13, S-16; RULINGS R-T (whole) and R-R(7); VOICE.md 1.1 (the Part ranges), 2.7 example 42 (the absolute construction, for II.D S3), section 5; HANDOFF_BRIEF Part 8 (the ladder, for m10 and m14). Every quotation in the v8 appendix paragraphs was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem’s own ‘if the Project made a profit’), and all 13 scan crops were opened and read; each of the five contrary-branch paragraphs was run separately (II.C2 3 quotations, I.D 4, I.E 2, II.G 1, II.F2 5; 0 FAIL each; their eight casebook crops opened and read) and the whole-body voice statistics were run with each substituted, with I.D and I.E together, with the four non-II.C2 branches together and with all five together (appendix section 7).

Read at source for v9 (round 9), each passage in full context, before any round-8 minor was applied: OFF New York Star paragraphs [7] and [8], read whole (paragraph 7: ‘Before Sheppard J. it was contended by the consignee:’, the three contentions, then ‘Sheppard J. rejected all these contentions, though he found that the necessary agency was established only by ratification. He gave judgment for the appellant. (at p303)’; paragraph 8: ‘In the Court of Appeal: the same three contentions were put forward, and were rejected

by the Court. The Court found that the necessary agency was directly established by the evidence, so that reliance on ratification was not necessary', closing '(at p303)'), for fidelity 2; OFF Port Jackson, Barwick CJ [19] ('The learned trial judge, however, found that the appellant had ratified the agreement') and [21] ('i.e. with its antecedent authority'), re-read for the carried v8 summary; OFF Pao On, the paragraph after the Chitty sentence ('Their Lordships agree that the mere existence or recital of a prior request is not sufficient in itself …'; 'is simply one of the construction of the words of the contract in the circumstances of its making'), with ISSUES_SETTLED's register line ('course-stated in substance (Roscorla; AWM PC); unpinnable; do not quote'), CB2A 113 (*Roscorla* 237, 'a consideration past and executed will support no other promise than such as would be implied by law') and CB2A 103 (*Australian Woollen Mills* (PC) 550, 'The presence of a request does not, however, in itself establish a contract', their Lordships speaking), for fidelity 4; CB1B 73 (*Brambles* 164, Heydon JA: 'post-contractual conduct is not admissible on the question of what a contract means as distinct from the question of whether it was formed'), for fidelity 1; CB3A 155 to 156 (*Masters* 360: 'Where parties who have been in negotiation reach agreement upon terms of a contractual nature and also agree that the matter of their negotiation shall be dealt with by a formal contract'; 'whether the contemplated formal document comes into existence or not'; 363, Jessel MR as adopted, ending 'subject to a new agreement the terms of which are not expressed in detail …'), for fidelity 3 and m9; CB2A 109 (*Beaton* 185, under 'The duty to co-operate' inside McHugh JA's extract: 'The McDivitts have a contractual duty to do everything necessary on their part to enable the plaintiff to have the benefit of the contract: Secured Income … per Mason J'), for m6; CB2A 101 (*Australian Woollen Mills* 456 to 457, 'really done in consideration of a potential promise'), for m8; question.txt ('Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL', for m2; Grace's 7 March 'I never signed anything with you', the words that follow in her sentence carrying a contraction that the answer never reproduces (D9), for m7; 'Interest was to be paid by Grace monthly', for m5); his LAWS1061 Part A (no 'here' and no 'In this case' anywhere), for m3; RULINGS R-S(5) and R-T(4), for the freeze note. Every quotation in the v9 appendix body was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem's own 'if the Project made a profit'); the two changed section-7 paragraphs were run separately (II.G 1 quotation, I.D 4; 0 FAIL each), the other three re-run unchanged, and the whole-body substitution table re-run (appendix section 7).

Read at source for v10 (round 10), each passage in full context, before any round-9 finding was applied as R-U decides: S4A PDF page 2, text layer and page image ('Rule: only a person who is a party to a contract can enforce the contract and incur obligations under it: Consequently', 'A contract cannot confer an enforceable benefit on a nonparty', 'Nor can it impose an enforceable burden on a non-party.'; nothing on consideration), for Finding 1 and R-U(1); CB4 327 ([11.10] whole: the two aspects, 'This chapter will focus on the benefit aspect of the rule', 'The privity rule is separate from the rule that consideration must move from the promisee', limbs (a) and (b)) and CB4 330 and 333 (*Coulls* 486, the joint-promisee rule 'notwithstanding that she, personally, gave no consideration'; [494] 'only those who are parties to a contract can sue upon it' and, after the quoted authorities, 'For us the rule prevails that a plaintiff who sues on a promise must show a consideration for it provided by him'), for Finding 1 and m12; CB3A 156 (*Masters* 363: 'The effect of the early cases on the subject was stated by Sir George Jessel MR in Winn v Bull (1877) 7 Ch D 29, when he said in a passage which has become well-known (1877) 7 Ch D 29 at 32', then the passage ending 'not expressed in detail …'; crop read), for Finding 2; OFF Port Jackson, Mason and Jacobs JJ [4] and [5] (the heading 'MASON AND JACOBS JJ.'; [5] '(at p271)': 'The primary judge found that the third condition was satisfied, namely that the stevedore had ratified the act of the carrier', the Court of Appeal's finding of authority 'without expressing any opinion upon this question', Glass JA's passage on the stevedore's familiarity with the clauses and the claims 'rejected in reliance upon the exemption clauses', and 'On this point we need do no more than state our agreement with what Glass J.A. has said'), for Finding 3; CB1B 73 and 76 (*Brambles* 163 to 164, Heydon JA's three principles; 168, 'the actual opinions of the parties are irrelevant'), for Finding 4; OFF Brambles [116] (Ipp AJA: 'For my part, I think that the letter was a contractual offer and was accepted by conduct'), [175] and [176] ('The benefits which I have outlined were adequate consideration for the October 1991 contract'), with CB1B 81 (*Brambles* 182, Heydon JA, the 'crucial' premise), for Finding 5; question.txt (whole: 'entered into a legally binding agreement'; 'Pierre agreed and the clause was included in the Loan Agreement before it was signed by Grace and AMPL'; 'I never signed anything with you', six words; 'Potential project over in Eastwood'; 'wait and see'; 'Rocky asked A-Maize Pty Ltd … to advance $1,150,000 to Grace'), for Findings 6, 7 and 13 and m9 and m11; CB3A 137 (*Ermogenous* [25]: 'Although the word … is used in this context, it is used in the same sense as it is used in other contractual contexts'), for Finding 9; CB2B 119 (Glidewell LJ (i), 'to do work for, or to supply goods or services to, B in return for payment by B', page image read), for Finding 10; CB3B 183 (*Meehan* 581: 'No doubt it may be implied that the purchaser will act honestly in deciding whether or not he is satisfied', after the [581] marker), for Finding 11; S1A slide 11 ('Cannot be an offer if there is not an intention to create legal relations'), for m8; the LAWS1061 feedback sheet, page 1 rendered ('the reference should not include ss 28 and 32(1)', the cell graded Very Good), for m5; ISSUES_SETTLED S-13 and S-18 ('weak to moderate, because AMPL is the better view'), for M1; RULINGS R-E, R-R(4), R-T(4) and R-U (whole); AGLC4 rr 1.3 and 1.4.3 (MULR PDF, fetched 11 October 2026), for M4 and the fn 9 form. Every quotation in the v10 appendix body was run through `verify.py check` (52 quotations, 0 FAIL, 2 CHECK PIN explained) and `check_official.py` (every span of law COURSE; the one NOT FOUND is the problem's own 'if the Project made a profit'), and the 13 body crops were opened and read; the three changed section-7 paragraphs (II.C2 3 quotations, I.D 4, II.G 1) and the two unchanged ones (I.E 2, II.F2 5) were run separately, 0 FAIL each, their crops read, and the whole-body substitution table re-run (appendix section 7).

Read at source for v11 (Stage-5 panel round 1), each passage in full context, before any UPGRADES_r1 item, R-V(1) tidy, CRIT_round10 minor or R-X paragraph was written into the sheet: CB3B 183 to 186 and 188 (*Meehan*: Gibbs CJ 581, 'No doubt it may be implied that the purchaser will act honestly in deciding whether or not he is satisfied', wholly after the [581] marker; Mason J 587 'This point would have force if the contract left the court at large … yielding no indication as to what the parties meant by that expression', before the [588] marker; 588 'subject to an implied obligation that he will act honestly, or honestly and reasonably, in endeavouring to obtain finance and in deciding whether to accept or reject proposals for finance'; 589 'The limitation that the purchaser must act honestly, or honestly and reasonably, takes the case out of the principle that', the [590] marker falling inside the quoted principle; 590 'it must be reached honestly, or honestly and reasonably'; 591 'However, I have no need to decide the question'; Gibbs CJ 582 'It is clear that the condition in Special Condition 1(b) is not a condition precedent to contract' and 'Whether the condition is described as a condition precedent to completion, or as a condition subsequent, seems largely a matter of words'; Wilson J 597 to 598, 'I agree with his Honour that each of the issues in the appeal should be resolved', 'the court will imply no greater obligation on the purchaser than that he is obliged to act honestly', 'like Mason J, to refrain from expressing a concluded view'), with OFF Meehan paragraphs closing '(at p588)', '(at p589)' and '(at p590)' (paragraph 23); CB3B 166 (*Pace* 150 to 151,

McHugh JA: ‘A contract made for a consideration which is illusory is unenforceable’; ‘even when no objective criterion of measurement is available, it may still be possible to infer a promise to act honestly and/or reasonably’, after the [151] marker); CB3B 190 (*Godecke* 646, ‘rather than by his solicitors’, before the [647] marker; 647 ‘Perhaps it may be different where agreement has been reached on all essential terms’); CB3A 137 (*Ermogenous* [25], ‘the status of the parties to it, their relationship to one another’); CB3A 154 (the heading ‘PRELIMINARY AGREEMENTS’); CB3A 155 (*Masters* 361, *Niesmann v Collingridge* (1921) 29 CLR 177, ‘all the essential terms of a contract had been agreed upon’, ‘did not make the signing of a contract a condition of agreement’); CB3A 156 (‘Eccles v Bryant and Pollock [1948] Ch 93 at 94’); CB1B 77 (‘(Eccles v Bryant [1948] 1 Ch 93 at 104)’, Heydon JA’s own citation); CB1A 42 (*Gibson* 298, ‘the wording of the second paragraph, unlike that of the first, with its use of the indicative mood’); CB1B 72 (*Empirnall* 536, ‘taking the benefit of an offer with knowledge of its terms’); CB2A 101 (*Australian Woollen Mills* 456 to 457, ‘really done in consideration of a potential promise’); CB2A 103 (*Australian Woollen Mills* (PC) 550, ‘The presence of a request does not, however, in itself establish a contract’); CB2A 109 (the heading ‘The duty to co-operate’); CB2B 114 ([4.190], *Sundell* 327, ‘would do what was necessary to ensure that the goods were delivered’ and ‘was bound to do so under the original contract’); CB3A 144 (*Banque Brussels*, ‘it was made quite clear to both Spedley and ANI’); CB4 327 ([11.10], ‘C has no right to sue A to recover the money’), 328 (‘First, the contracting party may enforce the contract’) and 336 ([11.70], ‘purporting to act on behalf of the principal and not solely on the agent’s own behalf’); the Pao On extract (‘The act must have been done at the promisors’ request’; ‘was at Lau’s request’); S1A PDF page 7 (printed slide 8: ‘Andrew Robertson and Jeannie Paterson, Contract: Cases and Materials (Lawbook Co, 15th ed, 2025) (known as the Contracts Casebook)’) and PDF page 26 (printed slide 27, ‘Invitation to treat … An invitation for others to make an offer or enter into a negotiation.’); S1B PDF page 42 (‘What is the legal effect of a counter-offer?’); S2A PDF pages 11, 12, 14 and 15 (frustration in *Beaton*: ‘Why did McHugh J hold there was no frustration of contract ?’; ‘Frustration argument failed’; ‘McD have contractual duty to do everything they can to provide B with benefit of the contract’; ‘Frustration to be tested by the circumstances’), 20 (‘Past consideration’) and 23 (‘Exception to past consideration rule’); S2B PDF page 8 (the heading ‘Existing Legal Duty Rule’); S3A PDF page 22 (‘What are preliminary agreements?’); reading guides 1A (2) (‘How is an offer distinguished from an invitation to treat?’), 1B (2) (‘What is the legal effect of a counter-offer?’), 2A (‘What is the rule with respect to past consideration? Are there any exceptions to the general rule?’), 2B (‘What is the existing legal duty rule? What are the exceptions to the general rule?’) and 3A (‘What are the different categories of preliminary agreement? Which are binding on the parties?’); question.txt (whole). Every passage was located with `verify.py find` and read on its page with `verify.py show`; no new quotation enters any counted paragraph, no v11 appendix being written (Part 8). AGLC rr 1.3, 1.4.1 and 1.4.4 and the publisher’s author order were not re-fetched: they rest on UPGRADES_r1’s OUTSIDE fetches (U8, U12, U14, U23) and PANEL/r1/AGLC.md’s rule table, read for citation form only.